

FORCED CONTRACT

unofficial copy

BETWEEN

THE LAURENTIAN UNIVERSITY FACULTY ASSOCIATION

AND

THE BOARD OF GOVERNORS OF LAURENTIAN UNIVERSITY

1 JULY 2020 TO 30 JUNE 2025

TABLE OF CONTENTS

INTRODUCTION	1
ARTICLE 1.10 – UNOFFICIAL TITLE	1
ARTICLE 1.15 – OFFICIAL LANGUAGES	1
ARTICLE 1.20 – PURPOSE OF THE FORCED CONTRACT	1
ARTICLE 1.25 – OBJECTS AND PURPOSES OF THE UNIVERSITY	1
ARTICLE 1.30 – DEFINITIONS	1
ARTICLE 1.35 – COPIES	3
RELATIONS BETWEEN THE UNION AND THE EMPLOYER.....	3
ARTICLE 2.10 – RECOGNITION OF THE EMPLOYER	3
ARTICLE 2.15 – RECOGNITION OF THE BARGAINING UNIT	4
ARTICLE 2.20 – EMPLOYMENT OF NON-MEMBERS	4
ARTICLE 2.25 – SENIOR ACADEMIC ADMINISTRATORS	5
ARTICLE 2.30 – EXISTING PRACTICES	6
ARTICLE 2.35 – MODIFICATIONS TO THE LEGAL STATUS OF THE UNIVERSITY	6
ARTICLE 2.40 – RIGHTS AND PRIVILEGES OF THE UNION	6
ARTICLE 2.45 – DUES CHECK-OFF	8
ARTICLE 2.50 – INFORMATION	8
ARTICLE 2.55 – CORRESPONDENCE.....	11
ARTICLE 2.60 – JOINT CONSULTATIVE COMMITTEE FOR THE ADMINISTRATION OF THE FORCED CONTRACT	11
WORKING CONDITIONS.....	11
ARTICLE 3.10 – ACADEMIC FREEDOM.....	11
ARTICLE 3.15 – NO DISCRIMINATION OR HARASSMENT	12
ARTICLE 3.20 – WORKING ENVIRONMENT	13
ARTICLE 3.25 – HEALTH, SAFETY AND SECURITY	15
ARTICLE 3.30 – BILINGUALISM	15
ARTICLE 3.35 – CONFLICT OF INTEREST	16
SESSIONAL MEMBERS	16
ARTICLE 4.10 – APPOINTMENT PROVISIONS FOR SESSIONAL MEMBERS	16
ARTICLE 4.15 – APPOINTMENT AND RENEWAL FOR SESSIONAL MEMBERS	16
ARTICLE 4.25 – WORKLOAD PROVISIONS FOR SESSIONAL MEMBERS	19
ARTICLE 4.30 – TEACHING RIGHTS AND RESPONSIBILITIES FOR SESSIONAL MEMBERS.....	20
ARTICLE 4.35 – ANNUAL REPORT FOR SESSIONAL MEMBERS	20
ARTICLE 4.45 – PHYSICAL AND MENTAL ILLNESS FOR SESSIONAL MEMBERS.....	20
ARTICLE 4.50 – FAMILY RESPONSIBILITY FOR SESSIONAL MEMBERS	20
ARTICLE 4.55 – RATES OF PAY FOR SESSIONAL LECTURERS ON AND OFF CAMPUS	20
ARTICLE 4.56 – RATES OF PAY FOR INDIVIDUALS WHO CONDUCT INSTRUCTION THROUGH DISTANCE EDUCATION DELIVERY MODES.....	23
ARTICLE 4.65 – EXEMPTION FROM TUITION FEES FOR SESSIONAL MEMBERS	24
ARTICLE 4.70 – PROFESSIONAL DEVELOPMENT EXPENDITURES FOR SESSIONAL MEMBERS	24
ARTICLE 4.85 – CLINICAL SESSIONALS – NURSING	24
ARTICLE 4.90 – CONTACT HOURS.....	24
ACADEMIC CAREER	25
ARTICLE 5.10 – ACADEMIC QUALIFICATIONS GUIDELINES.....	25
ARTICLE 5.15 – RIGHTS, RESPONSIBILITIES AND DUTIES OF ACADEMICS	27
ARTICLE 5.20 – APPOINTMENT AND RENEWAL	33

ARTICLE 5.25 – EMPLOYMENT EQUITY	39
ARTICLE 5.30 – ABORIGINAL EQUITY INITIATIVE.....	40
ARTICLE 5.35 – NEWLY HIRED MEMBERS.....	40
ARTICLE 5.40 – ACADEMIC WORKLOAD.....	40
ARTICLE 5.41 – MIDWIFERY PROGRAM	46
ARTICLE 5.45 – ANNUAL REPORT FOR MEMBERS	47
ARTICLE 5.50 – ASSESSMENT OF A MEMBER'S PERFORMANCE.....	47
ARTICLE 5.55 – FACULTY/FRANCOPHONE FACULTY/LIBRARIANS AND ARCHIVISTS PERSONNEL COMMITTEE	52
ARTICLE 5.60 – TENURE EVALUATION PROCEDURES	56
ARTICLE 5.65 – PROMOTION PROCEDURES	57
ARTICLE 5.70 – PERSONNEL FILES.....	59
ARTICLE 5.75 – DISCIPLINE	60
ARTICLE 5.85 – RESIGNATION.....	62
ARTICLE 5.90 – RETIREMENT	62
RESEARCH, CREATIVITY AND PROFESSIONAL DEVELOPMENT	63
ARTICLE 6.10 – RESEARCH AND CREATIVITY	63
ARTICLE 6.15 – OFFICE OF RESEARCH SERVICES.....	63
ARTICLE 6.20 – RESEARCH AND DEVELOPMENT SUPPORT	63
ARTICLE 6.25 – LAURENTIAN UNIVERSITY RESEARCH FUND (LURF)	63
ARTICLE 6.30 – PATENTS.....	65
ARTICLE 6.35 – COPYRIGHT	66
ARTICLE 6.40 – COMMITTEE ON PATENTS AND COPYRIGHT	68
ARTICLE 6.45 – PROFESSIONAL DEVELOPMENT EXPENDITURES.....	68
LEAVES.....	69
ARTICLE 7.10 – RECOGNIZED AND OTHER HOLIDAYS	69
ARTICLE 7.15 – VACATION	69
ARTICLE 7.20 – ABSENCE - GENERAL.....	70
ARTICLE 7.25 – SABBATICAL LEAVES	71
ARTICLE 7.30 – STUDY LEAVES.....	76
ARTICLE 7.35 – VOLUNTARY REDUCED WORKLOAD.....	78
ARTICLE 7.40 – LEAVES OF ABSENCE WITHOUT PAY	79
ARTICLE 7.45 – COURT LEAVES.....	79
ARTICLE 7.50 – POLITICAL LEAVES.....	80
ARTICLE 7.55 – PHYSICAL AND MENTAL ILLNESS	80
ARTICLE 7.60 – PREGNANCY, PARENTAL AND ADOPTION LEAVES	83
ARTICLE 7.65 – SPECIAL LEAVES.....	85
ARTICLE 7.70 – COMPASSIONATE LEAVE	86
SALARY AND BENEFITS	86
ARTICLE 8.10 – SALARY STRUCTURE.....	86
ARTICLE 8.15 – PROGRESS-THROUGH-THE-RANKS INCREMENTS	88
ARTICLE 8.20 – PROCEDURES FOR THE AWARD/DENIAL OF A PROGRESS-THROUGH-THE-RANKS INCREMENT	88
ARTICLE 8.25 – MERIT INCREMENTS	90
ARTICLE 8.30 – ADDITIONAL QUALIFICATIONS INCREMENTS.....	90
ARTICLE 8.35 – OVERLOADS	90
ARTICLE 8.40 – DISTANCE EDUCATION COURSES.....	91
ARTICLE 8.45 – BENEFITS	92
ARTICLE 8.50 – TUITION FEE EXEMPTION AND SPOUSAL LIBRARY CARD	94
ARTICLE 8.55 – MOVING EXPENSES	94
ARTICLE 8.65 – PUBLIC LIABILITY INSURANCE.....	95

ARTICLE 8.70 – PARKING	95
ARTICLE 8.75 – REIMBURSEMENT OF EXPENSES	95
ARTICLE 8.80 – POLICY AND PROCEDURES IN THE EVENT OF DEATH	96
ARTICLE 8.85 – SALARY TO BENEFICIARY IN THE EVENT OF DEATH OF FACULTY MEMBER	97
CHAIRS AND DIRECTORS.....	97
ARTICLE 9.10 – DUTIES OF CHAIRS/DIRECTORS	97
ARTICLE 9.15 – SELECTION OF CHAIRS/DIRECTORS	98
ARTICLE 9.20 – TERM OF OFFICE OF CHAIRS/DIRECTORS	100
ARTICLE 9.25 – TEACHING LOAD REDUCTIONS AND STIPENDS FOR CHAIRS/DIRECTORS	100
ARTICLE 9.30 – REMOVAL FROM OFFICE OF CHAIRS/DIRECTORS	101
PROFESSIONAL STAFF.....	101
ARTICLE 10.10 – DEFINITIONS AND TERMS	101
ARTICLE 10.15 – RIGHTS, RESPONSIBILITIES AND DUTIES	102
ARTICLE 10.20 – WORKING ENVIRONMENT	104
ARTICLE 10.25 – APPOINTMENT PROCESS	105
ARTICLE 10.30 – SENIORITY	107
ARTICLE 10.35 – TUITION EXEMPTION FOR PART TIME CLINICIANS	108
ARTICLE 10.40 – PROFESSIONAL DEVELOPMENT EXPENDITURE.....	108
ARTICLE 10.45 – ANNUAL REVIEW FOR PART-TIME CLINICIANS	109
ARTICLE 10.50 – DISCIPLINE	109
ARTICLE 10.55 – SALARIES, INCREMENTS AND ALLOWANCES	109
ARTICLE 10.60 – WORKLOAD COUNSELLORS	110
ARTICLE 10.65- VACATION- FULL TIME COUNSELLORS	111
ARTICLE 10.70- DISMISSAL	111
ARTICLE 10.75- REDUNDANCY OF POSITION FOR FINANCIAL REASONS	111
REDUNDANCY AND FINANCIAL EXIGENCY	111
ARTICLE 11.10 – REDUNDANCY	111
ARTICLE 11.15 – FINANCIAL EXIGENCY	115
GRIEVANCE AND ARBITRATION.....	118
ARTICLE 12.10 – GRIEVANCE PROCEDURE	118
ARTICLE 12.15 – ARBITRATION PROCEDURE	120
STRIKES AND LOCKOUTS	120
ARTICLE 13.10 – STRIKES AND LOCKOUTS	120
VALIDITY, DURATION AND CONTINUANCE OF THE FORCED CONTRACT	120
ARTICLE 14.10 – VALIDITY OF THE FORCED CONTRACT	120
ARTICLE 14.15 – DURATION AND CONTINUANCE OF THE FORCED CONTRACT	120
APPENDICES	122
APPENDIX A: LETTER OF UNDERSTANDING – CAMPUSES OUTSIDE SUDBURY	122
APPENDIX B: STANDARD LETTER OF APPOINTMENT	123
APPENDIX C: DEPARTMENTAL/SCHOOL ASSESSMENT CONTRACT RENEWAL	126
APPENDIX D: DEPARTMENTAL/SCHOOL ASSESSMENT TENURE	128
APPENDIX E: DEPARTMENTAL/SCHOOL ASSESSMENT PROMOTION TO THE RANK OF ASSISTANT PROFESSOR/LIBRARIAN	130
APPENDIX F: DEPARTMENTAL/SCHOOL ASSESSMENT PROMOTION TO THE RANK OF ASSOCIATE PROFESSOR/LIBRARIAN	132
APPENDIX G: DEPARTMENTAL/SCHOOL ASSESSMENT PROMOTION TO THE RANK OF FULL PROFESSOR/LIBRARIAN	134
APPENDIX H: DEPARTMENTAL/SCHOOL ASSESSMENT MERIT INCREMENT	136

APPENDIX I: FPC/FFPC/LPC ASSESSMENT REVIEW FORM	138
APPENDIX J: LETTER OF UNDERSTANDING- MCEWEN SCHOOL OF ARCHITECTURE WORKLOAD	139
APPENDIX K- EXPEDITED MEDIATION AND ARBITRATION PROCESSES.....	140
APPENDIX L- RIGHTS OF FEDERATED UNIVERSITY EMPLOYEES	141
APPENDIX M: LETTER OF UNDERSTANDING- COUNSELLORS	142
APPENDIX N: COORDINATOR CREDITS- PROGRAMS.....	143
APPENDIX O: COORDINATOR CREDITS- COURSES	146
APPENDIX P: TRANSPARENCY AND OVERSIGHT	147
APPENDIX Q: CCCA TERM SHEET	148

INTRODUCTION

ARTICLE 1.10 – UNOFFICIAL TITLE

- 1.10.1 The **unofficial** title of this Forced Contract shall be "**The Forced Contract** between the Laurentian University Faculty Association and the Board of Governors of Laurentian University". Hereinafter, this title shall be referred to as the Forced Contract.

ARTICLE 1.15 – OFFICIAL LANGUAGES

- 1.15.1 Both the English and French versions of the Forced Contract shall be official and definitive versions. Both Parties may use either the English or the French version in any proceedings arising out of the Forced Contract, and shall apply the version of the Forced Contract in which formal grievance/arbitration proceedings were initiated.
- 1.15.2 The Parties agree to cooperate to have the Forced Contract translated within ninety (90) days from the version negotiated at the table into the other official language of Canada. The Parties will share equally in the cost of the translation.

ARTICLE 1.20 – PURPOSE OF THE FORCED CONTRACT

- 1.20.1 It is the purpose of this Forced Contract:
- a) To set forth terms and conditions relating to employment, remuneration and benefits.
 - b) To maintain a harmonious relationship between the Union and the Employer by providing amicable means for settling differences which may arise between them from time to time.
 - c) To encourage the efficient and responsible conduct of the life and work of the University.
 - d) To foster a working environment which motivates Members to achieve the objects and purposes of the University.

ARTICLE 1.25 – OBJECTS AND PURPOSES OF THE UNIVERSITY

- 1.25.1 The objects and purposes of the University, as set out in the *Act*, are:
- a) The advancement of learning and the dissemination of knowledge; and
 - b) The intellectual, social, moral and physical development of its Members and the betterment of society.
- 1.25.2 The Parties agree to cooperate in the pursuit of these objects and purposes.

ARTICLE 1.30 – DEFINITIONS

- 1.30.1 For the purpose of this Forced Contract the following words shall bear the definition indicated herein except as otherwise provided in this Forced Contract:

Academic Year shall mean the twelve (12) month period commencing July 1 and ending June 30 of any given year and includes the Fall, Winter, and Spring Terms as per the University Calendar, even where the Spring Term extends beyond June 30.

Adjunct faculty Members shall mean those persons outside the university whose scholarly or professional accomplishments merit association with the university. Adjunct faculty Members are appointed for a defined period, with defined privileges and voluntary responsibilities in scholarly activity. Adjunct appointments do not have ranks or carry the right to vote in Department/School decision-making.

Centres shall mean Counselling Services and Indigenous Sharing and Learning Centre.

Chair/Director shall mean the Chair/Director of any teaching department / professional school / library department.

Clinic shall mean the Orthophonie Clinic.

Clinical Sessionals shall mean a Member hitherto a Member of the Bargaining Unit designated by the February

26, 2016 OLRB certificate. For clarity the term Clinical Sessionals refers to all persons employed by Laurentian University as Clinical Teachers, Clinical Instructors, Clinical Educators and Clinical Advisors.

Clinician shall mean a Member hitherto a Member of the Bargaining Unit designated by the May 6, 2018 OLRB certificate.

Conflict of interest shall mean a situation where an individual stands to benefit from a decision being made with respect to a person who is a Member of the individual's immediate family, or with whom the individual has any relationship of an intimate and/or financial and/or commercial nature either current or past, including any student-supervisor relationship or any other past or present relationship, which conflicts or appears to conflict with the individual's responsibility to the University and includes an actual, apparent and/or perceived conflict of interest.

Counsellor shall mean a Member hitherto a Member of the Bargaining Unit designated by the April 9, 2020 OLRB certificate.

Course credits shall mean the number of credits assigned to a course by the University Senate and as indicated in the Laurentian University Calendar.

Course credits that contribute toward Sessional Seniority shall mean credits arising from courses for which the Sessional Member's name appears on the Laurentian University course masters, grade reports, teaching evaluations, or letters of appointment.

Dean shall mean the Dean of a Faculty duly appointed or the Dean's designate.

Employer or Board shall mean the Board of Governors of Laurentian University, or its designate, as provided for in the *Laurentian University of Sudbury Act*.

Faculty shall mean anybody identified as such by the Senate of Laurentian University of Sudbury, and with the approval of the Employer in accordance with the *Laurentian University of Sudbury Act*.

Faculty Personnel Committee shall mean FPC/FFPC/LPC.

Full-time faculty Members shall mean academic Employees appointed through tenured, probationary, or limited-term appointments to perform duties of (a) Teaching, including supervision / Professional Librarianship / Archives Management, (b) Scholarly Activity, and (c) University Governance and Administrative Duties consistent with Article 5.15 – Rights, Responsibilities and Duties of Academics.

Full-time Members appointed to the position of Master Lecturer are responsible for undergraduate teaching/clinical education or supervision/language teaching/skills teaching/coaching/writing assistance and other related duties as determined by the Employer. Master Lecturers may, where appropriate, elect to teach graduate courses. Master Lecturers may also engage in scholarly activity, and are entitled to participate in university governance and vote in Department/School meetings.

Immediate Family shall mean a spouse, sibling, parent or child whether related by blood, adoption, marriage or common-law relationship.

Laurentian University of Sudbury Act shall mean the *Laurentian University of Sudbury Act*, being Chapter 151 of the *Statutes of Ontario* for the year 1960 as amended by Chapter 154, 1961-62.

Member or Employee shall mean a Member of the Bargaining Unit for whom the Union is certified as the exclusive bargaining agent except where the context requires otherwise.

Parties shall mean the Board of Governors of Laurentian University of Sudbury and the Laurentian University Faculty Association.

President shall mean the President of Laurentian University of Sudbury or the President's designate.

Professional Practice for Librarians and Archivists shall mean contribution to the selection, development and implementation of strategic directions, priorities, policies, procedures and standards for the resources and services offered by the Library and the Archives.

Professional Librarians and professional librarianship shall mean Professional Librarians and Archivists, and professional librarianship and archival management, respectively unless specified in relevant Articles within the Forced Contract.

Professional Staff shall include Counsellors and Clinicians.

Senate shall mean the Senate of Laurentian University of Sudbury as constituted in the *Laurentian University of Sudbury Act*.

Session shall mean either or both Terms of the Winter Session (from September to December or from January to April) or the Spring Session (from April to July) as per the Laurentian University Academic Calendar posted on the Laurentian University website.

Sessional Member shall mean a Member hitherto a Member of the Bargaining Unit designated by the March 28, 1994 Ontario Labour Relations Board Certificate and by the July 12, 2011 OLRB certificate and now a Member of this Merged Bargaining Unit. For clarity, the term Sessional Member refers to three types of appointments, sessional lecturers on campus, sessional lecturers off campus and individuals who conduct instruction through distance education delivery modes.

Union or LUFA shall mean the Laurentian University Faculty Association, certified to be the exclusive Bargaining Agent for the full-time and Sessional librarians and archivists /faculty of the University pursuant to the various relevant decisions of the Ontario Labour Relations Board.

University shall mean Laurentian University of Sudbury.

University Librarian shall mean University Librarian duly appointed or the University Librarian's designate.

Vice-President, Academic and Provost shall mean the Vice-President, Academic and Provost of Laurentian University of Sudbury or his/her designate.

ARTICLE 1.35 – COPIES

- 1.35.1 The Employer shall, within thirty (30) days after the respective bargaining committees have approved the translation of the Forced Contract, provide at no charge, one print copy of this Forced Contract in both official languages to each full-time Member of the Union, and upon request to individuals who were employed as Sessional Members during the previous three (3) years. The Employer shall also post the Forced Contract on the LU website.
- 1.35.2 The letter of appointment shall provide the link to the Forced Contract on the website. Once the candidate has been appointed, the Employer shall provide a hard copy to the full-time Member.
- 1.35.3 The cost of producing any additional copies shall be borne by the Party that requests them.

RELATIONS BETWEEN THE UNION AND THE EMPLOYER

ARTICLE 2.10 – RECOGNITION OF THE EMPLOYER

2.10.1 Composition

Laurentian University of Sudbury is incorporated under the *Statutes* of the Province of Ontario, 1960, Chapter 151 as amended by 1961-62, Chapter 154 and by 2022, Chapter 2 - Bill 84, Schedule 7.

2.10.2 Rights

The Union recognises that the Employer has retained and shall possess and exercise all rights and functions, powers, privileges and authority that the Employer possessed under the *Act of Incorporation* prior to the signing of this Forced Contract with the Union, excepting only those that are clearly and specifically relinquished or restricted in this Forced Contract, or modified by statute. The Employer

undertakes that all rights and functions, powers, privileges and authority shall be exercised in a manner consistent with the provisions of this Forced Contract.

ARTICLE 2.15 – RECOGNITION OF THE BARGAINING UNIT

2.15.1 Laurentian University Faculty Association represents:

All Members of faculty, including professional librarians and archivists employed by Laurentian University of Sudbury in the Regional Municipality of Greater Sudbury;

All Members of faculty employed by Laurentian University to teach courses for degree credit at locations outside the Regional Municipality of Greater Sudbury; and

All persons employed by Laurentian University through the Centre for Continuing Education (CCE) to conduct instruction at off-campus centres located outside the Regional Municipality of Greater Sudbury or through distance Education Delivery modes.

All persons employed by Laurentian University as Clinical Teachers, Clinical Instructors, Clinical Educators and Clinical Advisors.

All persons employed by Laurentian University as Clinicians. Clarity Note: The parties agree that clinicians employed in the University's Health Clinic and/or the Department of Student Life are not included in the bargaining unit.

All persons employed by Laurentian University as Counsellors, save and except, those at or above the rank of Manager.

Save and Except:

Administrative Staff, at or above the rank of Director;

Academic Staff, at or above the rank of Associate Dean;

Registrar, Special Advisor to the President, Director of Professional Relations, Translators, University Librarian, and Director, Office of Research Services;

Members of the Board of Governors;

Athletic Coaches required as part of their duties to teach degree credit activity courses;

Full-Time Faculty Members employed by Laurentian University for a period of not more than one year while on leave from another university;

Persons employed to teach courses intended primarily for students who are not registered in a degree credit program;

Persons assigned responsibility for teaching portions of courses coordinated by regular faculty Members, such as Teaching Assistants, Field Consultants in Social Work, Laboratory Technicians, , or Outdoor School Instructors.

ARTICLE 2.20 – EMPLOYMENT OF NON-MEMBERS

2.20.1 The Employer agrees that, except as otherwise provided for in this Article, it will not employ Non-Members to teach in the programs of the University or offer professional library service or provide clinical care. Membership in the Bargaining Unit is defined in Article 2.15 – Recognition of the Bargaining Unit.

2.20.2 Notwithstanding the generality of Article 2.20.1 above, nothing in this Forced Contract is intended to

prevent the Employer from assigning a teaching load to individuals that are precluded from membership in the Bargaining Unit by virtue of their position as described in the Ontario Labour Relations Board Certificates designated in Article 2.15 – Recognition of the Bargaining Unit. The Union will exercise reason in entering into Memoranda of Agreement to allow the assignment of occasional teaching loads to qualified individuals who hold senior administrative posts within the University and whose official functions could reasonably be deemed to be inconsistent with Union membership.

- 2.20.3 As per the Ontario Labour Relations Board Certificate, Visiting and Exchange professors/librarians/archivists may work outside the Bargaining Unit.
- 2.20.4 Notwithstanding Article 2.20.3 above, Non-Members of the Bargaining Unit must not participate in decisions by the Department/School on personnel matters except as specified in this Forced Contract.

ARTICLE 2.25 – SENIOR ACADEMIC ADMINISTRATORS

2.25.1 Selection

While retaining the right to appoint Senior Academic Administrators, including the President, the Employer recognises the usefulness and desirability of consultation with Members, Units and Divisions in their selection, and appointment of Senior Academic Administrators. Usefulness and desirability of consultation must be read in the context of collegial governance as requiring that the Employer consult in regard to both the process and the actual selection of Senior Academic Administrators, including the President. While respecting the above, the Employer shall follow the selection and appointment procedures that have been approved by the Board of Governors and the Senate. In instances where an outside applicant is being considered for a senior academic appointment, the applicant will normally be offered an appointment according to their qualifications at a rank consistent with the criteria listed under Article 5.20 – Appointment and Renewal.

2.25.2 Removal

While retaining the right to remove Senior Academic Administrators, the Employer shall consider all serious complaints against Senior Academic Administrators and take appropriate action, including the possibility of removal from office. It is understood that if a majority of Members of the Bargaining Unit within the Administrator's purview indicate dissatisfaction with that Administrator, the University will view this as one example of a serious complaint.

2.25.3 Re-entry into the Bargaining Unit

- a) Any Senior Academic Administrators, who are excluded from the Bargaining Unit by virtue of their office, shall upon resignation/retirement/removal from that office or upon being made redundant or in the event of closure of the office return to take-up membership in the Bargaining Unit.
- b) No Member shall be displaced from the Department/School by the entry or re-entry of former Senior Academic Administrators. If there is no vacancy in the Department/School concerned, the additional allocation shall not be at the expense of another Department/School allocation.
- c) For all purposes relating to this Forced Contract, membership in the Bargaining Unit of a Senior Academic Administrator shall be reckoned as if they had not been outside the Bargaining Unit during their term of office.
- d) Senior Academic Administrators returning to the Bargaining Unit shall be considered as Members teaching for the first time (as per Article 5.40.8 (d) of Article 5.40 – Academic Workload) and shall be assigned teaching/professional library loads in keeping with the practice of their respective Department/School(s).

Senior Academic administrators, entering the bargaining unit for the first time, will be provided, in accordance with Article 5.20.8, with a standard letter of appointment (Appendix B).

2.25.4 *Acting or Substitute Senior Academic Administrators*

The University may from time to time appoint Members of the Bargaining Unit to act or substitute for short periods of time in the place of Senior Academic Administrators.

Members so serving shall not undertake or be required to undertake any personnel action.

For longer periods, i.e. two (2) months or more, when there is a need for an appointee to substitute or act with full authority and responsibility of office, a Member who so acts shall cease to be a Member of the Bargaining Unit for the period of substituting or acting and shall receive a pro-rated stipend for the position.

2.25.5 *Relationship between Senior Academic Administrators and Departments/Schools.*

Senior Academic Administrators shall be considered full Members of Departments/Schools in which they teach/offer professional library service, except that they must not participate in decisions by the Department/School on personnel matters.

ARTICLE 2.30 – EXISTING PRACTICES

2.30.1 Prior to modifying or discontinuing any working conditions not covered by the Forced Contract but possessed by all Members of the Bargaining Unit or by a group thereof, the Employer agrees to give notice of such change or discontinuance to the Union.

2.30.2 The Union shall be afforded the opportunity to make a representation to the Employer through the Joint Consultative Committee for the Administration of the Forced Contract prior to the implementation of any change as defined in Article 2.30.1 above. After such representation, the Employer has the right to proceed providing the change or discontinuance is urgent and reasonable.

ARTICLE 2.35 – MODIFICATIONS TO THE LEGAL STATUS OF THE UNIVERSITY

2.35.1 *Amendment to The Act*

Any future proposals by the Employer to amend the *Laurentian University of Sudbury Act*, 1960 shall be presented to the Legislative Assembly of the Province of Ontario, after consultation with the Union.

2.35.2 *Amalgamation, Consolidation, Merger or Expansion of The University*

- a) In the event of a merger or amalgamation or a transfer of jurisdiction, the provisions of the *Labour Relations Act*, 1995 of Ontario shall apply, particularly sections 68 and 69.
- b) This Forced Contract shall bind the transferees or assignees of the University or of the Union.

ARTICLE 2.40 – RIGHTS AND PRIVILEGES OF THE UNION

2.40.1 The Employer agrees to provide the Union with the use of a private serviced office, in an academic area of the University. The office floor area shall be no less than the current space allocated to the Union (as at July 1st, 2017).

The Employer agrees to provide the Union with access to the University Club for use by Members and their guests.

The Employer agrees to provide to the Union a common room for use by Members and their guests, specifically room J234 in the JN Desmarais Library Building. The Employer may only change the location

of the common room with the agreement of LUFA.

- 2.40.2 The Union shall have access to the internal postal service of the University. Normal practice of charging for external mail will apply.
- 2.40.3 The Employer shall permit the Union to use University premises as meeting rooms on the same basis as University organisations.
- 2.40.4 The Employer will allow the Union to use University printing, computer, and audio-visual facilities at the same rate as University users, subject to availability.
- 2.40.5 The Employer agrees to continue to extend a monthly account, due when rendered, to which charges incurred by the Union shall be debited.
- 2.40.6 The Union will endeavour to request, prior to February 1 but not later than March 15 of the preceding academic year, that Members be relieved by the appropriate Dean/University Librarian of up to twelve (12) credits of a teaching workload, or its equivalent in the case of the Library, during the course of an academic year. Such requests shall not be unreasonably refused. In any one academic year no more than thirty-six (36) credits of reductions will be granted in total.

If, on the recommendation of the Dean/University Librarian concerned in consultation with the Department/School, a replacement is required to take on the duties of which a Member has been relieved, the Union will reimburse the Employer for a maximum of one (1) sessional payment for each six (6) credit equivalent reduction that it has requested based on the rate of pay for Sessional Members without establishment status as specified in Article 4.55 – Rates of Pay for Sessional Members.

If a replacement is not required, the Union will still reimburse the Employer for a maximum of one (1) sessional payment for each six (6) credit equivalent reduction that it has requested based on the rate of pay for Sessional Members without establishment status as specified in Article 4.55 – Rates of Pay for Sessional Members and, in this case, the funds will be transferred by the Employer to the Department(s)/School(s) affected by the workload reductions to be used by the Department/School as it deems appropriate in accordance with generally accepted university policy.

Funds will be transferred by the Union to the Employer within thirty (30) working days of being informed about the disposition of the funds. If the funds are to cover a replacement, the name of the instructor, plus the course to be taught, or its equivalent in the case of the library, shall be supplied to the Union.

- 2.40.7 The Union shall have the right at any time to call upon the assistance of representatives of the Canadian Association of University Teachers and the Ontario Confederation of University Faculty Associations. Such representatives and any other duly designated representatives or counsel for the Union shall have access to Laurentian University premises to consult with Members, Union officials or the Employer. These representatives designated by the Union shall participate in discussions or negotiations with representatives of the Employer when their authority has been communicated to the Employer by the Union.
- 2.40.8 The President of the Union, or someone designated by the LUFA Executive, and a second Member designated by the LUFA Executive, shall continue to be non-voting Members of the Board of Governors.
- 2.40.9 The President of the Union, or someone designated by the LUFA Executive, shall continue to be a non-voting Member of the Finance Committee of the Board of Governors.
- 2.40.10 The Employer agrees to continue current practices with respect to release time for Union activities provided these practices are known and reasonable.
- 2.40.11 The Union shall maintain its current representation of one (1) Member on the University Advisory Committee on Security and Parking Services.
- 2.40.12 Three (3) members designated by the President of the Union shall be voting Members of the University Pension Committee. Given the importance of pensions, on substantive matters, the Union's Board has the right to ratify the recommendations of its representatives.

No amendments to the Pension Plan that reduce pension benefits for Members, or that materially affect Members' rights, may be made without LUFA's consent.

ARTICLE 2.45 – DUES CHECK-OFF

- 2.45.1 No Member shall be required to join the Union as a condition of employment. Except as hereinafter specified, the Employer shall deduct once monthly during the term of this Forced Contract from the salary of each Member of the Bargaining Unit monthly dues or other assessments for general Union purposes uniformly and regularly payable by a Member of the Union authorised in accordance with the Constitution and by-laws of the Union and certified in writing to the Employer by the Union.
- 2.45.2 At the commencement of the Forced Contract, the Union shall advise the Employer in writing of the amount of its regular monthly membership dues. Thereafter the Union shall advise the University in writing of any change in the amount of regular monthly membership dues, such notice to be given at least thirty (30) days prior to the effective date of such change. The Union shall limit the change in membership dues to no more than three (3) times per year.
- 2.45.3 Except as hereinafter specified, the amounts so deducted shall be remitted to the Union by the fifteenth (15th) of the month following the month in which the deductions are made together with a list specifying the names of those Members of the Bargaining Unit from whose salaries the aforementioned deductions have been made and the individual amount of each Member's total earnings and deduction. The Employer shall with the list aforesaid provide the names of all Members who have ceased to be employees of the University.
- 2.45.4 Within thirty (30) days of the end of each academic semester, CCE will provide a list of those CCE instructors who were paid based on the number of their students pursuant to the Forced Contract, showing the calculation of how they were paid.
- 2.45.5 Any issues respecting the remittance of dues shall be dealt with on a semester-by-semester basis at the end of each semester. Within thirty (30) days of receiving the CCE information specified in Article 2.45.4, the Union will notify the Employer of any concerns it has with respect to dues remittances from the previous semester. The parties will meet within thirty (30) days of such notice to attempt to resolve any such issues, prior to commencing the grievance process of Article 12.10- Grievance Procedure.
- 2.45.6 The Employer shall deduct from the salary of each Member of the Bargaining Unit who obtains an order from the Ontario Labour Relations Board under section 47 of the *Labour Relations Act, 1995* of Ontario (directing that the said Member is not required to pay monthly dues or other assessments to the Union because of her/his religious conviction or belief) an amount equal to the monthly dues or other assessments for general Union purposes uniformly and regularly payable by a Member of the Union and shall remit said amount on behalf of the said Member to the University's Scholarship Funds.
- 2.45.7 In the event the Union wrongfully receives dues hereunder on account of an employee who is not a Member of the Union, or if on account of a Member of the Union but in excess of the amount required, the Union agrees to reimburse or credit the employee as the case may be for the amount so received. The Union shall indemnify and save harmless the University against any action arising out of the wrongful deductions of money for Union dues resulting from the Union's instructions and the refusal of the Union to reimburse the employee, within sixty (60) days of the lodging of her/his claim.
- 2.45.8 At the time that Income Tax T4 slips are provided to each Member by the University, the University shall indicate on the T4 slips or separately in writing to each Member the deductions from her/his salary under this Article.

ARTICLE 2.50 – INFORMATION

- 2.50.1 The Parties recognise that their mutual goals stated in Article 1.20 – Purpose of the Forced Contract can only be realised if both Parties have access to necessary information required for effective collective bargaining and the proper administration of this Forced Contract. Both Parties agree to use professional discretion in dealing with this information. This information shall be provided electronically. Separate e-files will be provided for each item below and will be identified with the relevant Article number.

2.50.2 To that end the Employer undertakes to provide the Union with the following, at the times indicated:

- a) In October of each year, an electronic list of each full-time Member of the Bargaining Unit which includes the name, gender, date of birth, language, department/school, faculty/library, campus, rank (if applicable), actual salary, nominal salary, type of appointment (whether tenured/permanent, probationary or limited term), date of appointment, end of appointment (where applicable), years of service, highest degree, year of highest degree, date of appointment to current rank, and the type of current leave. This information will be provided in a spreadsheet format.
- b) In October, February, and May of each year, an electronic list showing the name, salary, seniority status, establishment status, and courses taught of each Sessional Member and each Professional Staff who is employed during the current academic session.
- c) In October of each year an electronic list of all limited term appointments and the reasons for the appointment categorised according to paragraphs 5.20.11 (a) to (e) of Article 5.20 – Appointment and Renewal.
- d) In October and February of each year, an electronic list showing the name, and the number of credits and courses, including distance education courses, taught by full-time Members as part of their teaching load.
- e) In May of each year, an electronic list showing the name, and number of credits and distance education courses taught by all Members.
- f) In May of each year an electronic list showing the name, courses taught on overload/ professional library service rendered and amount of money paid to each full-time Member of the Bargaining Unit during the current academic year.
- g) In May of each year an electronic list showing the name, courses taught and professional library service rendered and amount of money paid to each non-Member during the current academic year.
- h) In October and February of each year an electronic list including the names of all full-time Members with course or workload release during the current academic year including the amount and reason for the release granted.
- i) In October of each year a statement of the name of full-time Members of the Bargaining Unit that did not expend all of the professional allowance available to them as provided in Article 6.45 – Professional Development Expenditures, and the total amount of funds per Member left unexpended as of June 30 of the previous year.
- j) A copy of the letters of appointment of all new full-time Faculty Members and Professional Staff who accept employment with the University subsequent to the signing of this Forced Contract by both Parties shall be supplied to the Union within fifteen (15) days of receipt of the said executed letters of appointment.
- k) A copy of the letters of appointment of all Sessional Members and each part time Professional Staff who accept employment with the University. Such letters of appointment shall be supplied to the Union within fifteen (15) days of receipt of said executed letters of appointment and a copy of all letters cancelling sessional contracts.
- l) A copy of the contracts issued to all full-time Faculty Members and Professional Staff who have been granted sabbatical leave or any other kind of leave. Such contracts shall be supplied to the Union within fifteen (15) days after acceptance by the Member. A copy of all letters issued to Members denying sabbatical leave or overload work. Such letters shall be supplied within fifteen (15) days of their issuance.
- m) A copy of patent and copyright contracts as per Article 6.30 – Patents and Article 6.35 – Copyright.
- n) In October of each year, the total salary allocation and median salary for:
 - (i) Executive Team and Senior Academic Administrators;
 - (ii) The names of any other teaching or research and library employees outside the Bargaining Unit.

- o) A copy of the course master and updates to the course master when they become available.
- p) A copy of the University's annual audited financial statements and supporting schedules, following approval of these by the Board of Governors, unless such material is posted and accessible online.
- q) A copy of employment equity data including the number of women and men applying for each advertised position, the gender, highest degree and years of experience for each applicant chosen for the interview list. Such information will be forwarded to the Union by February 28 of each year, along with the reports required in accordance with article 5.25.3 (c). This will include a report of the annual voluntary self-identification survey. This report shall be posted on the Equity, Diversity and Human Rights website.
- r) A copy of advertisements for faculty positions and Professional Staff shall be sent to the Union once they have been approved by the Office of the Vice-President, Academic and Provost for Faculty and Human Resources for Professional Staff.
- s) A copy of any mailings forwarded by the Employer to the majority of the Members or intended for the majority of Members, within the University, a Faculty/Library, or unit, to be sent to the Union at the same time as the general mailing.
- t) A copy of all minutes, actuarial reports and benefit reports of the Pension and Benefits Committees.
- u) Thirty (30) days after the signing of this Forced Contract, a copy of all present articulation agreements between the Employer and all public and private education institutions.
- v) A copy of all new articulation agreements between the Employer and all public and private education institutions within thirty (30) days of the signing of the said agreements.
- w) For the purposes of identifying concerns that LUFA may have, all Laurentian University policies that may impact terms and conditions of employment shall be disclosed to LUFA prior to approval by the Board of Governors.
- x) LUFA will be provided with electronic copies of all workload assignments and revisions, salary letters, and annual assessments within fifteen (15) days of issuance.

2.50.3 The Union agrees to provide the Employer with:

- a) Copies of any statements or representations made or to be made publicly by the Union.
- b) An up-to-date copy of the constitution of the Union.
- c) An up-to-date list of the Executive of the Union.

2.50.4 Each Member, who has not previously done so, shall when requested supply the Human Resources Office with one (1) copy of her/his birth certificate (or other equivalent documentation attesting to the date of birth).

2.50.5 It is understood that this section shall not be construed to require either Party to supply any information that is confidential with respect to matters relating to labour relations.

2.50.6 Each Party agrees to inform the other Party when statistical information concerning Members is released as required by law or in response to a request from a government body or agency, and further, to inform the other Party of the nature of the information requested or released. Except when required by law, the Employer agrees not to release any individually identifiable statistical data in aggregate form concerning Members to any person, body, agency, and institution without the written consent of the Union.

2.50.7 One (1) individual shall be chosen by each Party to coordinate the exchange of information and to act as liaison between the two Parties. The parties shall provide the email address for purposes of exchanging this information by July 1.

2.50.8 Nothing in this Article is meant to preclude either side of this Forced Contract from making reasonable requests for additional information from time to time. Both Parties agree to fulfil such requests.

ARTICLE 2.55 – CORRESPONDENCE

- 2.55.1 In conformity with section 122 of the Ontario *Labour Relations Act, 1995*, except where otherwise expressly provided in this Forced Contract, notices required to be given under the provisions of this Forced Contract shall be in writing and shall be sufficient either if addressed to the appropriate recipient and sent by campus mail or Canada Post, or if delivered to the appropriate recipient personally with a signed receipt required.
- 2.55.2 Notices to and official correspondence with the Union shall be addressed to the attention of the President of the Union or the President of the Union's designate.
- 2.55.3 Notices to and official correspondence with the Employer shall be addressed to the Vice-President, Academic and Provost.

ARTICLE 2.60 – JOINT CONSULTATIVE COMMITTEE FOR THE ADMINISTRATION OF THE FORCED CONTRACT

- 2.60.1 The President of the Union and the Vice-President, Academic and Provost or their respective designates shall act as liaison between the two Parties as required by this Forced Contract as well as coordinate and exchange information as per Article 2.50 – Information.
- 2.60.2 When either Party deems it advisable, its representative may be accompanied by one (1) or more advisers.
- 2.60.3 The Parties are authorised from time to time to enter into Memoranda of Agreement with regard to the Forced Contract. The Parties may from time to time authorise other representatives, in addition to the Vice-President, Academic and Provost and the President of the Union, to sign these Memoranda of Agreement.
- 2.60.4 The Parties agree to form a Joint Consultative Committee for the Administration of the Forced Contract, composed of three (3) representatives of each Party as follows: the President of the Union and the Vice-President, Academic and Provost or their respective designates; one (1) officer of LUFA and one (1) Dean appointed by the Vice-President, Academic and Provost; and one (1) appointee from each Party.
- 2.60.5 The Committee shall attempt:
 - a) To maintain and develop a spirit of cooperation and mutual respect between the Parties.
 - b) To facilitate better working relationships between the Employer and the Union and its Members.
 - c) To discuss, review, and make recommendations to the Parties on matters of concern to either Party.
- 2.60.6 The Committee shall meet once in November and once in February and at other times when deemed useful or necessary by mutual agreement of the Parties.
- 2.60.7 The Committee shall be chaired in alternation by a representative of the Employer and a representative of the Union. The chair shall be responsible for preparing and distributing the agendas and preparing minutes of meetings.
- 2.60.8 The Committee shall determine its own procedures subject to the provision that a quorum shall consist of at least two (2) representatives of each Party.
- 2.60.9 The Committee shall not have the power to add to or to modify the terms of this Forced Contract.

WORKING CONDITIONS

ARTICLE 3.10 – ACADEMIC FREEDOM

- 3.10.1 In addition to their legal rights as citizens, Members have the right to academic freedom. Academic freedom is the right to search for truth, knowledge and understanding and to express freely what one believes. The University as an institution and the community of its scholars have a duty to protect and defend the search for knowledge and truth by all that enquire, teach, offer professional library service and learn under its auspices. They shall be free to carry out research and to publish its results, free to teach,

to discuss and to criticize both the University and the wider society it serves.

- 3.10.2 Academic freedom includes the right, without restriction by prescribed doctrine, to freedom in teaching; freedom in research and scholarship including the right to disseminate and publish the results thereof; freedom to produce and perform creative works; freedom to acquire, preserve, and provide access to documentary material in all formats; freedom to participate in professional and representative academic bodies; freedom to engage in service to the institution and the community; and freedom to express one's opinion about the University, its administration, and the system in which one works.

Academic freedom does not confer legal immunity. It requires the acknowledgement of the work of others and the acceptance of responsibility for one's own beliefs and utterances.

- 3.10.3 The principle and practice of collegial governance is essential for the exercise of academic freedom within the University. Members are entitled to have representatives on and to participate in collegial governing bodies in accordance with their role in the fulfillment of the University's academic and educational mission.

The administration recognizes that faculty are the experts in their own disciplines and fields of practice as well as regarding academic matters generally.

The Parties recognize that openness and transparency are essential to collegiality and academic freedom.

- 3.10.4 Academic freedom also entails the right of academic staff to exercise their civil liberties as individuals, including the right to contribute to social change through free expression on matters of public interest, without being censored, impeded or hindered by the Employer.
- 3.10.5 The Employer shall not abridge academic freedom on any grounds, including claims of institutional autonomy.
- 3.10.6 The Parties agree that Members have a right to privacy, consistent with the traditions of Academic Freedom and the provisions of this Article.

ARTICLE 3.15 – NO DISCRIMINATION OR HARASSMENT

- 3.15.1 The Employer recognizes the need to provide an environment free from discrimination and harassment. To that end, the Employer has established a Human Rights Office, headed by a Human Rights Advisor and has created a discrimination and harassment policy.
- 3.15.2 The Parties agree that in accordance with the provisions of the Human Rights Code of Ontario there shall be no discrimination or harassment exercised or practiced with respect to any Member in regard to salaries, rank, appointment, promotion, tenure, reappointment, dismissal, leaves, benefits, or any other matter arising from this Forced Contract, by reason of age, race, language, creed, colour, ancestry, ethnic or cultural background, national origin, political or religious affiliation or belief, sex, sexual orientation, gender identity, gender expression, marital status, family relationship, personal or social life style or behaviour, clerical or lay status, or disability.

The Parties agree, however, that no Members or person acting as an officer of the University shall take part in formal discussions or vote with respect to the determination of any term or condition of employment of a Member of her/his immediate family as defined in Article 1.30 – Definitions.

- 3.15.3 The choice of the most competent person for the post as described in an advertisement formally approved by the Vice-President, Academic and Provost in consultation with the Department/School will not constitute discrimination.
- 3.15.4 In the case of the evaluation of applicants for appointment, renewal, tenure and promotion, the criteria adopted must not systematically discriminate against Members of designated groups and shall be periodically reviewed to ensure that work done predominantly by Members of designated groups is not undervalued.
- 3.15.5 There shall be no discrimination with respect to any Member arising from membership or activity in the Union, or from a failure to join or participate in the Union.

- 3.15.6 This Article shall not preclude any action that has as its object the equitable representation of designated employment equity target groups throughout the academic community. Any action taken in accordance with a specific equity plan or specific equity initiative that has been negotiated pursuant to this Forced Contract will not constitute discrimination or harassment contrary to this Article.

ARTICLE 3.20 – WORKING ENVIRONMENT

- 3.20.1 The Employer acknowledges its responsibility to provide and maintain facilities, services and general working conditions, which support the effective discharge by full-time Members of their responsibilities as specified in Article 5.15 – Rights, Responsibilities and Duties of Academics and Article 10.15 – Rights, Responsibilities and Duties. The Employer will determine by consideration of the financial resources of the University, the manner in which and the level at which facilities and services are provided to Members. Additionally, the Employer will provide, in a fair and equitable manner, at least a securable individual office for each full-time Member and securable group offices exclusively for Sessional Members, ergonomically appropriate office furniture, appropriate lighting and ventilation, and will maintain reasonable levels of working space, secretarial and other support services, including telephones, computing, printing, duplicating, library services, technical services, Centres/Department/School resources, teaching and research assistance and laboratory space if required.

The Counsellors will be provided with appropriate and reasonable administrative support.

The Employer shall provide individual office space for newly hired Members on the start date of their appointment.

The Employer shall comply with its obligations regarding thermal comfort and air quality in the workplace, including offices and classrooms, in accordance with the Occupational Health and Safety Act.

All moving expenses to relocate Members within the University shall be paid by the Employer.

- 3.20.2 The Employer acknowledges the importance of providing well-designed, safe, and healthy physical working spaces and of Members playing a substantive role in decisions affecting their working environment, particularly offices, classrooms, studios, research and laboratory spaces. The Employer shall establish a budget of forty thousand dollars (\$40,000) per year during the life of this Forced Contract for the provision of such furniture, work stations and equipment according to the recommendations of the Working Space Committee. The Working Space Committee shall consist of two (2) Members selected by the Union and two (2) Members selected by the Employer. For the purposes of this Article, “furniture, work stations and equipment” shall be deemed to include, but not to be limited to, chairs, desks, computer tables, lighting, foot rest, and such computer equipment as the keyboard, mouse, screen-glare guard, and wrist support bar, all of a high standard and ergonomically sound.

Where a Member is scheduled to teach in two consecutive time slots, to the extent possible, the Registrar will schedule classrooms in close proximity to each other.

- 3.20.3 All Members, including retirees, upon request, will be supplied with a photo identification card at no cost to them except if they require a replacement for a lost card. The charge for replacement will be fifteen dollars (\$15) per card. All Sessional Members will be issued a card that will be valid for library services from the date of appointment until August 31 of the following academic year.

- 3.20.4 Once every four (4) years, Members shall be allocated with up to one thousand eight hundred dollars (\$1,800) for a new computer as determined by the Computer Allocation Committee, or acceptable computing equipment. This Article 3.20.4 comes into effect July 1, 2018. The computer shall be networked, attached to a network printer, and maintained without charge to the Members and Departments/Schools for the full four (4) years.

The Computer Allocation Committee shall consist of two (2) Members selected by the Union and two (2) Members selected by the Employer. The Committee shall also review and update the plan for continued implementation of this policy, including the availability and maintenance of computers for Sessional Members, which shall be a minimum of one (1) computer for every group office for Sessional Members. In the event that there are concerns about availability of computers in a group office the Dean shall investigate

and provide additional resources if required.

Each party shall appoint its members of the Computer Allocation Committee by September 1st of each year. The Computer Allocation Committee shall thereafter meet as needed to complete its functions in a timely way.

The Computer Allocation Committee is responsible for:

- a. reviewing the list of members who are eligible for a new computer or acceptable computing equipment in a given year;
- b. determining the computing options available to a member;
- c. scheduling the yearly computer allocation rollout;
- d. determining when members must respond to the notice for a new computers; and
- e. reviewing and updating the computer allocation policy including the availability and maintenance of computers for sessional members.

Early allocation of funds for a new computer requires the approval of the computer allocation Committee.

- 3.20.5 Member accounts may be accessed only with the authorization of the Chief Information Officer (CIO). The Chief Information Officer (CIO) shall authorize access to a Member's accounts on the network without the Member's permission only in the following circumstances:

- a) when immediate action is necessary to protect the integrity of the computer network
- b) when subject to a search by law enforcement agencies acting under the order of a court of appropriate jurisdiction.

Where possible, the Member will be notified prior to the Member's accounts being accessed, and if prior notice proves impossible, then notice will be given within one (1) calendar day.

Each time the Chief Information Officer (CIO) authorizes access to a Member's accounts it shall be recorded in a log maintained for this purpose. The log shall record who accessed the Member's accounts, when they were accessed and the purpose for the access. Members have a right to view all log entries dealing with their Member accounts. Upon request, the Employer will provide the Union with a report indicating which and when Member accounts were accessed and the purpose for the access.

The Union acknowledges that no authorization by the Chief Information Officer("CIO") is required where members grant permission for the University to access their accounts.

The University agrees that it will provide notice to the Union at the same time it provides notice to a member under Article 3.20.5.

The University will advise the Union of significant security breaches which compromise the integrity of Union members' accounts and data as soon as when doing so would not compromise a University investigation and incident response process, which will be conducted in a timely manner. Nothing in this paragraph will prejudice any right of a member to be informed in a timely manner or any security breach which impacts the member's privacy rights.

The University will advise the Union of all IT service disruptions and degradations which are of significance to LUFA members in light of the number of individuals affected, likelihood of recurrence and the impact of the disruption or degradation.

- 3.20.6 Full-time Members shall be offered a securable individual office located in reasonable proximity to the Department's/School's main office. A Member's office shall not be entered except by authorized University staff.
- 3.20.7 All full-time Members teaching in the School of Human Kinetics shall be granted free lockers outside the general area and membership service without fee. All Sessional Members teaching activity courses and experientially based courses in the School of Human Kinetics shall be granted the same privilege during the session(s) in which they are employed.

ARTICLE 3.25 – HEALTH, SAFETY AND SECURITY

- 3.25.1 The Employer recognises a responsibility to provide an environment intended to protect the health, safety and security of employees as they carry out their responsibilities. To that end, the Parties agree that they are bound by the *Occupational Health and Safety Act R.S.O 1990* as revised and in effect April 1, 2012. The Employer agrees to maintain a Joint Health and Safety Committee, which will independently consider matters concerning the health and safety of employees and students. This Committee shall include two (2) representatives of all unionized groups in the University (including LUFA), as well as one (1) Professional Staff member from LUFA, (1) LUFA representative from the School of Architecture, (1) representative of the Science, Engineering and Architecture Safety Committee, and one (1) Employer representative with power to co-opt other Members.

The Committee's work will include an examination of procedures and physical facilities brought to its attention, as these relate to health, safety and security.

- 3.25.2 The Union shall observe and assist in the implementation of rules adopted to protect the health and safety of employees and to maintain the security of persons and premises.
- 3.25.3 Members who have reason to believe that a work situation is likely to endanger them have the right to refuse unsafe work pursuant to and in accordance with the provisions of the *Ontario Occupational Health and Safety Act*.

ARTICLE 3.30 – BILINGUALISM

- 3.30.1 The University is committed to the fulfillment of its role as bilingual institution of higher learning, in accordance with the *Laurentian University of Sudbury Act*. The Employer and the Union pledge themselves to the maintenance and promotion of both official languages, French and English, as well as both cultures.

Notwithstanding the above, the Employer and the Union acknowledge the distinct role and the important contribution of Aboriginal languages and cultures in particular programs at Laurentian University. Further, the Employer and the Union recognize that in the University as a whole Aboriginal faculty are underrepresented and agree as per Article 5.30 – Aboriginal Equity Initiative to establish an Aboriginal equity initiative, and to waive the requirement for French/English bilingualism and recognize as bilingualism the knowledge and/or demonstrated study of an Aboriginal language and one (1) of the two (2) official languages of Laurentian University.

- 3.30.2 In accordance with the commitment stated in Article 3.30.1 above, the Employer recognizes the right of all Members to communicate directly (verbally and in writing) in the official language of their choice with all University Departments, Schools, Research and Administrative services for all official transactions.
- 3.30.3 The two Parties shall have the right to be heard in either official language and to require the translation of any official materials. Members have the right to express themselves in the official language of their choice.
- 3.30.4 The two Parties agree to make every effort to provide a translation of non-official documents where either Party requires such.
- 3.30.5 A joint Committee of two (2) representatives chosen by the Employer and two (2) representatives chosen by the Union, distributed equitably between the two (2) official languages, shall prepare the guidelines and requirements for competency required to enable each Member to meet the bilingualism requirements stated in her/his Letter of Appointment, in accordance with Article 5.20.8 of Article 5.20 – Appointment and Renewal. The recommendations of the Joint Committee shall be approved by the Employer and the Union. The Joint Committee shall convene when required.
- 3.30.6 The Employer agrees to provide language training at no cost in the course of the entire year at beginner, intermediate and advanced levels in order to enable Members to a) meet the requirements of bilingualism stated in their Letter of Appointment in accordance with Article 5.20.8 of Article 5.20 – Appointment and Renewal and b) maintain and improve their skills.
- 3.30.7 The Employer shall inform all new Members about language requirements for both official languages on an annual basis until tenure is granted, in order to allow Members to prepare themselves adequately to meet

the language requirements for the granting of tenure.

- 3.30.8 A Member's course syllabuses, course notes and presentations (regardless of their format), whether distributed, projected or transmitted in any and all media, shall be written in the course's language of instruction. The Member shall ensure that a terminology index is available to students if certain required readings are not in the language of instruction.

ARTICLE 3.35 – CONFLICT OF INTEREST

- 3.35.1 No individual shall knowingly participate in any academic or administrative decision, including decisions regarding commercial contracts or transactions, which benefits the individual, affects or benefits a person from whom the individual stands to derive a financial benefit or affects or benefits a person in a situation as defined in Article 1.30 – Definitions.
- 3.35.2 In the event the affected individual determines that a conflict exists of sufficient seriousness to compromise the integrity of the decision-making process, the affected individual shall declare the nature and extent of the interest as soon as possible and no later than the meeting(s) at which the matter is to be considered and the individual in conflict shall:
- a) withdraw from the meeting where the matter is being discussed;
 - b) refrain from taking part in any other discussion of the matter; and
 - c) refrain from voting on the matter.

In the event there is a disagreement as to whether a conflict of interest exists, the Vice-President, Academic and Provost or her/his designate will decide the matter and the remedy will follow, accordingly. Decisions of the Vice-President, Academic and Provost or her/his designate can be challenged through the grievance procedure.

- 3.35.3 The term "individual" in this Article includes Members of the Bargaining Unit and management representatives.

SESSIONAL MEMBERS

ARTICLE 4.10 – APPOINTMENT PROVISIONS FOR SESSIONAL MEMBERS

- 4.10.1 The Parties recognise that the University's mission is best served by a largely full-time faculty and that it is not generally desirable to make sessional appointments a substitute for full-time faculty.
- 4.10.2 At the same time, the Parties recognise that sessional faculty add a significant level of diversity, expertise and practical experience to the University, and their value must be recognised in the governance and decision-making processes and generally in the on-going life of the University.
- 4.10.3 Teaching/professional librarianship/archival management duties comprise the only assigned function for Sessional Members.

ARTICLE 4.15 – APPOINTMENT AND RENEWAL FOR SESSIONAL MEMBERS

Seniority of Sessional Members

- 4.15.1 Sessional Members shall be deemed to have Seniority with respect to a particular Department/School at the time they are appointed to teach for the third (3rd) academic year within that Department/School in the last six (6) academic years (July to June).
- 4.15.2 Each Department/School shall maintain a single roster listing the names and e-mail addresses of Sessional Members who have Establishment and Sessional Members who have Seniority. The roster shall also list the courses each Member on the roster has taught and list the Member's establishment.

- 4.15.3 Sessional Members may request leave from the roster for up to two (2) consecutive years. Such application shall be made annually to the Dean/University Librarian and shall not be unreasonably refused.
- 4.15.4 Sessional Members on the roster shall be given first right of consideration for available sessional contracts.
- 4.15.5 The names of Sessional Members on the roster shall be included with the Department/School faculty listings, on the University website.

Establishment of Sessional Members

- 4.15.6 Sessional Members shall be deemed to have Establishment with respect to a particular course at the time they are appointed to teach it for the third (3rd) academic year. Such sessional contracts need not be in consecutive academic years, but in no case shall exceed the previous six (6) academic years. Establishment is specific to the medium, location, and the language of instruction.

Where a course is replaced by a renamed, renumbered, or revised (e.g. a six (6) credit course divided into two (2) three (3) credit courses) version of what is essentially the same course, establishment shall be maintained.

For the purpose of calculating Seniority and Establishment, cross-listed courses (e.g. JURI/LBST 3616EL) shall be deemed to belong to both Departments/Schools. Courses with no Department/School affiliation (e.g. STAT 2126EL) shall be deemed to belong to all Departments/Schools with programs in which they are required. Where the academic unit housing a particular course has changed due to the restructuring of programs, Departments or Schools, the Member's Seniority and Establishment apply within all relevant units.

Sessional members shall have the right to remain on the roster and exercise roster, seniority and establishment rights for any courses they have earned seniority or establishment rights with respect to, or which are substantially similar to courses for which they earned seniority and establishment rights. Sessional members shall have the right to exercise roster, seniority and establishment rights in any Department/School which offers any such courses regardless of whether they earned their seniority and establishment rights in the Department or School now offering such courses.

- 4.15.7 Retirees shall be deemed to have Establishment with respect to a particular course either at the time they are appointed to teach a course for the third (3rd) academic year on sessional contracts or at the time they are appointed to teach it on a first sessional contract after having taught the course twice as part of their full-time workload. Such sessional contracts or teaching need not be in consecutive academic years, but in no case shall exceed the previous six (6) academic years.
- 4.15.8 Establishment shall not be exercised if a Sessional Member has removed her/his name from the roster by submitting a written request to the Dean/University Librarian, or has declined an offer of appointment for a third (3rd) consecutive academic year. Offers of appointment that are made outside of the dates identified in Article 4.15.9 shall not be considered for this Article.
- 4.15.9 Sessional Members with Establishment and most years of teaching service at Laurentian University shall have the right of first refusal. This shall apply for the first two sections of the course. The Member shall have first choice of available sections. If other sections are not filled by the roster, the member shall have priority over the remaining sections before advertising externally. Such Members shall be offered available courses by April 1 for Fall/Winter session and by October 1 for Spring/Summer session.

Appointment of Sessional Members of the Bargaining Unit

- 4.15.10 Appointments of Sessional Members are made by the Dean/University Librarian, on behalf of the Employer, on the written recommendation of the majority of the Department/School concerned or by the majority of a committee consisting of no fewer than three (3) Members after scheduled minuted meeting(s). Where the Dean/University Librarian, on behalf of the Employer, decides not to follow the recommendation of the Department/School concerned, she/he will provide written reasons for her/his decision.
- 4.15.11 When courses cannot be made part of full-time Members' normal teaching loads or as overloads, these courses shall be offered by the Department/School in the form of sessional contracts.

Roster/Internal applicants

4.15.12 Departmental Roster:

Sessional appointments not filled by Established Members shall be made from the roster subject to the provisions of Article 4.15.13. This will enable appointments to be made expeditiously and at the same time in a way that honours Sessional Members' Seniority.

- 4.15.13 The Department/School shall notify by e-mail all Sessional Members on their roster of the available courses in their Department/School in all sessions for the upcoming academic year. This shall be done by April 7 for the Fall/Winter session and by October 7 for the Spring/Summer session.

Sessional Members interested in teaching any of the available courses shall email an expression of interest and a current curriculum vitae to the Chair/Director of the Department/School by April 21 for the Fall/Winter session and by October 21 for the Spring/Summer session.

The Department/School recommendation shall be submitted to the Dean/University Librarian by May 5 for the Fall/Winter session and by November 4 for the Spring/Summer session.

If the Department/School cannot find any qualified Members on the roster for a particular contract, written reasons for the decision must be provided to the Dean/University Librarian with a copy to the Union.

Approval to advertise externally rests with the Dean/University Librarian and may not commence until the completion of the internal process.

4.15.14 University Roster :

When a Sessional appointment cannot be filled through the roster, the unassigned course shall be advertised to all campus rosters. The posting will be for the same duration as allowed for the departmental roster.

If the internal application process reaches the University-wide rosters, in such circumstances, all applicants from the University roster will be notified of the successful applicant.

External Applicants

If the course remains unassigned it shall be posted on the Laurentian University website and may also be advertised externally by June 5th for the Fall /Winter session and December 5th for the Spring/Summer session. A copy of the advertisement for sessional positions shall be sent to the Union prior to posting on the website.

A letter of application, curriculum vitae, and any relevant supporting documentation shall be submitted to the Department/School by June 16 for Fall/Winter session and December 15 for the Spring/Summer session.

The Department/School recommendation shall be submitted to the Dean/University Librarian by July 1 for Fall/Winter session and by January 14 for the Spring/Summer session.

- 4.15.15 In exceptional circumstances where appointments must be made shortly before, or even after, the commencement of instruction, and where time does not allow full compliance with the above procedures (e.g., in cases of illness of a Member originally scheduled to teach; opening of a new section of a course(s); unanticipated commencements of Leaves of Absence), the Employer shall respect the Seniority and Establishment of Members prior to seeking external candidates. The Employer shall inform the Union of each appointment made under this Article and the circumstances.

Written Offer of Appointment of Sessional Members

- 4.15.16 The Parties agree that Offers of Appointment shall be sent by e-mail to Sessional Members by the following dates: June 30 for the Fall Term, September 30 for the Winter Term, and January 15 for the Spring/Summer Term.

Each Offer of Appointment shall specify the course number(s), the number of credits, terms and conditions of employment including salary, benefit, Establishment/Seniority, deemed hours and cancellation conditions if applicable.

- 4.15.17 A link to the current Forced Contract shall be sent with every offer of employment. The Employer shall also issue at no charge, a hard copy to individual Members upon request by the Member.
- 4.15.18 A copy of each accepted Offer of Appointment shall be sent to the Union within fifteen (15) days of the Employer's receipt.

Grievance of Appointment Decision of Sessional Members

- 4.15.19 All applicants from the roster shall be notified of the appointment decision. Notification will occur on or before July 31 for the Fall Term, October 31 for the Winter Term and February 15 for the Spring/Summer Term. For courses that are filled beyond the timelines stated in 4.15.16, the applicants on the roster shall be notified within 30 days of appointment. In the event that an unsuccessful applicant for a sessional teaching position believes that someone else was appointed to the position in violation of the provisions of this Forced Contract, she/he may request within one (1) month of the notification, a review of the appointment with the view of establishing whether the Employer acted in accordance with the provisions of this Forced Contract when not appointing the unsuccessful applicant.
- 4.15.20 Such a request for review shall be directed to the Dean/University Librarian and/or the Union and shall involve initially an informal stage in which the Dean/University Librarian and a Grievance Officer appointed by the Union have an opportunity to review the available information. If agreement cannot be reached at the informal stage, the matter shall be dealt with according to the grievance procedures set out in Article 12.10– Grievance Procedure.

ARTICLE 4.25 – WORKLOAD PROVISIONS FOR SESSIONAL MEMBERS

4.25.1 Contract Cancellation

- a) If, once a contract has been executed, the workload of a Sessional Member must be altered, the agreement of the Member must be obtained.
- b) Once a contract has been executed with a Sessional Member such a contract shall not be cancelled in order to have the duties performed by a Faculty Member with a full-time appointment.
- c) Cancellation prior to its commencement of a course for which contract with a Sessional Member has been executed can occur only in accordance with cancellation Article provisions contained in the contract.
- d) Cancellation Articles shall be used only where there is good reason to believe that enrolment levels may be vulnerable. In the event of a cancellation the Employer shall:
 - i) Attempt to find work of equivalent value for which the Sessional Member is qualified; and failing this
 - ii) Shall pay a cancellation fee of fifteen percent (15%) of the agreed salary as outlined in the Letter of Appointment.
 - iii) Members who conduct instruction through distance education delivery modes shall be paid two hundred and fifty dollars (\$250).

Sessional Members shall accrue Sessional Seniority for all cancelled courses once they have achieved establishment. Cancelled courses shall not count toward establishment.

- 4.25.2 The contracts issued to Sessional Librarians and Archivists shall identify in reasonable detail the hours during which the work is to be performed. These hours cannot be changed without the consent of the Member. The librarian pay equivalent shall be deemed to be 126 hours per 3 course credits of pay.
- 4.25.3 The workload of a Sessional Member shall normally not exceed twelve (12) credits per Fall/Winter

session (September to April) and nine (9) credits per Spring session (May to August). Courses delivered through distance education modes do not count in these totals. There is no maximum course load or enrolment limit for individuals who conduct instruction through distance education delivery modes.

ARTICLE 4.30 – TEACHING RIGHTS AND RESPONSIBILITIES FOR SESSIONAL MEMBERS

- 4.30.1 Sessional Members shall be covered by the general provisions regarding teaching and professional librarianship and archival management in Articles 5.15.5 to 5.15.18 of Article 5.15 – Rights, Responsibilities and Duties of Academics except for specific Articles within this section that clearly apply only to full-time faculty.
- 4.30.2 The Chair/Director of the Department/School shall structure the procedures required by this responsibility in a reasonable manner.
- 4.30.3 The Chair/Director of the Department/School shall make procedures regarding Sessional Members a matter of record.
- 4.30.4 Sessional Members shall have the right to attend Departmental/School meetings. In terms of voting rights, Sessional Members shall have the right of up to two (2) voting representatives as elected annually by the Sessional Members teaching in the respective Department/School. The number of sessional voting representatives shall be determined by the number of full-time Members in the Department/School as follows:
 - One (1) to Nine (9): One (1) Sessional voting representative
 - Ten (10) and over: Two (2) Sessional voting representatives

ARTICLE 4.35 – ANNUAL REPORT FOR SESSIONAL MEMBERS

- 4.35.1 Sessional Members shall submit brief annual reports in electronic format to the Dean/University Librarian. These reports shall include a current curriculum vitae as well as a current teaching dossier as defined in Article 5.50 – Assessment of a Member's Performance. At their discretion, Sessional Members may also include material related to their scholarly or creativity activity, professional development, university governance, outside professional activities, and service to the community.

ARTICLE 4.45 – PHYSICAL AND MENTAL ILLNESS FOR SESSIONAL MEMBERS

- 4.45.1 In the event of illness, a Sessional Lecturer on and off campus shall be granted leave with full pay up to two (2) weeks in each term. If requested, the Sessional Lecturer on and off campus shall provide a medical certificate to substantiate the claim. For longer illnesses no deduction of pay shall be made in cases where no substitute teaching costs accrue to the Employer. Individuals who conduct instruction through distance education delivery modes would endeavor to adjust the deadline dates for assignments and tests.

ARTICLE 4.50 – FAMILY RESPONSIBILITY FOR SESSIONAL MEMBERS

- 4.50.1 The Ontario *Employment Standards Act, 2000* provides specific rights and responsibilities with respect to leaves related to family responsibilities. These provisions will apply to Sessional Members.

ARTICLE 4.55 – RATES OF PAY FOR SESSIONAL LECTURERS ON AND OFF CAMPUS

- 4.55.1 Sessional Lecturers shall be paid as follows for each three (3) credit course which commences after the date shown below; other courses will be pro-rated as per their credit weighting. Human Kinetics activity courses will be weighted at 2.25 credits.

- a) Sessional Lecturers without Seniority or Establishment

Base Rate	\$6941
Four (4%) percent in lieu of vacation	\$278
Four (4%) percent in lieu of benefits	\$278
Total rate of pay	\$7497

b) Sessional Lecturers with Seniority, Establishment and Retirees

Base Rate	\$7288
Six (6) percent in lieu of vacation	\$437
Four (4) percent in lieu of benefits	\$292
Total rate of pay	\$8017

Sessional Lecturers are also entitled to the assignment of teaching assistants and/or markers at a level consistent with assignment of such assistance to full-time Members.

- 4.55.2 When scheduled Continuing Education Courses may otherwise have to be cancelled, Members may, if they choose, agree to teach a course for an amount less than the overload stipend. This amount shall be equal to at least the stipend for the course divided by twelve (12) and multiplied by the number of students enrolled in the course at the time the course starts. A copy of the agreement shall be sent to the Union at the same time as it is offered to the Member.
- 4.55.3 The Parties agree that Sessional Lecturers who have establishment for one (1) course, according to Article 4.15 – Appointment and Renewal for Sessional Members, shall be paid at the establishment rate for any other course they may teach. However, such pay does not confer establishment for that particular course.
- 4.55.4 The Parties agree that compensation for Sessional Lecturers teaching a “teachable” course in the School of Education or a “didactique” course at l’École des sciences de l’éducation shall be pro-rated at six hundred and ninety three dollars (\$693) up to the maximum of the rate of pay for a Sessional Member with establishment for such a course.

Base Rate	\$629.62
Six (6%) percent in lieu of vacation	\$37.77
Four (4%) percent in lieu of benefits	\$25.19
Total rate of pay	\$693

- 4.55.5 The Parties agree that the rates of pay for Sessional Lecturers teaching activity courses in the School of

Human Kinetics shall be weighted at 2.25 credits as following:

- a) Sessional Lecturers without Seniority or Establishment teaching activity courses in the School of Human Kinetics

Base Rate	\$5206
Four (4%) percent in lieu of vacation	\$208
Four (4%) percent in lieu of benefits	\$208
Total rate of pay	\$5622

- b) Sessional Lecturers with Seniority, Establishment and Retirees teaching activity courses in the School of Human Kinetics

Base Rate	\$5466
Six (6) percent in lieu of vacation	\$328
Four (4) percent in lieu of benefits	\$219
Total rate of pay	\$6013

4.55.6 The Parties agree that the rates of pay for Sessional Lecturers teaching Applied Music courses and Clinical Sessionals shall be the following:

- a) Sessional Lecturers without Seniority or Establishment teaching Applied Music courses and Clinical Sessionals

Base Rate	\$68.23
Four (4%) percent in lieu of vacation	\$2.73
Four (4%) percent in lieu of benefits	\$2.73
Total rate of pay	\$73.69

- b) Sessional Lecturers with Seniority, Establishment and Retirees teaching Applied Music courses and

Clinical Sessionals

Base Rate	\$71.95
Six (6%) percent in lieu of vacation	\$4.32
Four (4%) percent in lieu of benefits	\$2.88
Total rate of pay	\$79.15

- c) The above rates shall apply to Sessional Lecturers assigned the duties of sitting on music juries, supervising master classes, and directing ensembles.

Remuneration for Ensemble Directors:

For large ensembles of Laurentian University (Laurentian University Choir and Laurentian University Symphonic Wind Ensemble), the total pay will be calculated at three (3) hours per week for twenty-four (24) weeks based on the above hourly rates.

For all other ensembles, the total pay will be calculated at two (2) hours per week for twenty-four (24) weeks based on the above hourly rates.

ARTICLE 4.56 – RATES OF PAY FOR INDIVIDUALS WHO CONDUCT INSTRUCTION THROUGH DISTANCE EDUCATION DELIVERY MODES

Base Rate 1-5 students		in lieu of benefits	in lieu of vacation	Total Rate of Pay
		4%	4%	
6 credit course	\$1,576.86	\$63.07	94.61	1734.54
3 credit course	\$788.88	\$31.56	47.33	867.77
For each additional student >5				
<i>Without Seniority/Establishment</i>				
		4%	4%	
3 credit course	\$126.86	\$5.07	\$5.07	\$137.00
6 credit course	\$253.70	\$10.15	\$10.15	\$274.00
<i>With Seniority/Establishment</i>				
		4%	6%	
3 credit course	\$128.70	\$5.15	\$7.72	\$141.57
6 credit course	\$257.40	\$10.30	\$15.44	\$283.14

Courses with other credit values will be compensated on a pro-rated basis.

If on the Ministry reporting date enrolment has declined, the compensation will be reduced to reflect that decline going forward, but there will be no retroactive reduction in compensation.

When a Sessional Member develops a distance education course, the Member shall be paid at twice the overload stipend of the credit value of the course created as per Article 8.40.2.

	<i>(3 credits)</i>	<i>(6 credits)</i>
Base rate	\$10,665.00	\$21,330.00
4% in lieu of benefits	\$426.60	\$853.20
6% in lieu of vacation	\$639.90	\$1,279.80
	\$11,731.50	\$23,463.00

ARTICLE 4.65 – EXEMPTION FROM TUITION FEES FOR SESSIONAL MEMBERS

- 4.65.1 Sessional Members shall be entitled to exemption from tuition fees for credit courses taken at Laurentian University. The exemption available shall equal the number of credits taught by the Sessional Member. The earned exemption can be carried for a maximum of five (5) years from the time the course was taught. Sessional Members may transfer to their spouse or dependents up to six (6) credits of the current year's exemption credits to be used within that academic year.

Sessional Members who teach and accrue tuition exemption will be awarded credits based on the credits taught and the credits will not be treated differently for graduate 'course based' programs or undergraduate programs, i.e. 1 credit = 1 credit regardless of the level of the course.

For the purpose of calculating tuition exemption for 'research based' graduate programs it is understood that 3 credits will be equivalent of 33% of a full load tuition for one term.

ARTICLE 4.70 – PROFESSIONAL DEVELOPMENT EXPENDITURES FOR SESSIONAL MEMBERS

- 4.70.1 In order to further the objectives of the University, and the creation and dissemination of knowledge, the activities of each Sessional Member shall be supported by professional expenditures. Each Sessional Member shall receive effective July 1, 2021 to June 30 2025 the amount of one hundred fifty dollars (\$150) for professional development expenditures (in accordance with Article 6.45 – Professional Development Expenditures) for each three (3) credit course taught. Courses with different credit value will be pro-rated. Any unused portion of the maximum allowed for professional development expenditures can be carried forward for two (2) years.

ARTICLE 4.85 – CLINICAL SESSIONALS – NURSING

- 4.85.1 Clinical Instructors and Educators shall be defined as individuals who are assigned principal responsibility for the teaching and direct supervision of up to six (6) nursing students in a clinical setting. The incumbent must hold a current College of Nurses of Ontario license.

Clinical Advisors shall be defined as individuals who are assigned teaching and direct and indirect supervision of up to ten (10) nursing students in a community setting. The incumbent must hold a current College of Nurses of Ontario license.

- 4.85.2 Clinical Sessionals shall have all the rights of Sessional Members. Members who have been offered a session in accordance with the sessional Article will be given the right to take a group up to the maximum identified in Article 4.90.

- 4.85.3 Rates of Pay for Clinical Sessionals

The parties agree that the rate of pay for Clinical Sessionals shall be in accordance with Article 4.55.6.

ARTICLE 4.90 – CONTACT HOURS

- 4.90.1 Remuneration for Clinical Instructors and Educators shall be calculated as the contact hours specified in the course description approved by Senate. The contact hours shall apply to a group of students. The group maximum is

6 students.

4.90.2 The workload of Clinical Advisors shall be 2.75 hours per student for each clinical session. Clinical Advisors shall supervise no more than 10 students per clinical session.

4.90.3 The current practice of determining sessions shall apply.

4.90.4 For the purposes of salary calculation, the following exceptions to the Senate contract hours will apply: SCIN 1004 and SCIN 2024 will be delivered as 55 contact hours, NURS 1004 and 2006 will be delivered as 13 contact hours.

ACADEMIC CAREER

ARTICLE 5.10 – ACADEMIC QUALIFICATIONS GUIDELINES

5.10.1 For the purpose of this Forced Contract the following definitions shall apply:

- a) "Doctoral degree" shall mean an earned Ph.D. or other degree formally recognised as equivalent to an earned Ph.D.
- b) "Relevant experience" shall mean any combination of teaching and scholarly activity as defined in Article 5.15 – Rights, Responsibilities and Duties of Academics and/or equivalent professional experience.
- c) "Professional designation" shall mean a diploma earned as a result of additional experience/training and qualifying examinations such as, but not limited to C.A., R.I.A., C.G.A., and C.R.E.D.I.F., or others agreed to by the Parties.
- d) When considering librarians and archivists, professional service or, where appropriate, library or archival coordination shall be substituted for "teaching".

In interpreting these guidelines, the following shall apply:

- a) Article 5.10 – Academic Qualifications Guidelines
- b) Article 5.15 – Rights, Responsibilities and Duties of Academics
- c) Article 5.50 – Assessment of a Member's Performance
- d) For those persons appointed prior to July 1, 2002, Article 2.20 of the 1999-2002 Forced Contract shall apply.

5.10.2 Academic Qualifications Guidelines for Appointment or Promotion of Members of the Teaching Faculty.

a) For the rank of Lecturer

- (i) A Master's degree or equivalent degree; or
- (ii) A Baccalaureate degree and an appropriate professional designation.

b) For the rank of Assistant Professor

- (i) A Doctoral degree; or
- (ii) A Master's degree or equivalent and satisfactory performance of the Member's responsibilities and duties over a five (5) year period as per Article 8.20 – Procedures For the Award/Denial of a Progress-Through-The-Ranks Increment and demonstrated evidence of scholarly activity as per Article 5.15 – Rights, Responsibilities and Duties of Academics; or
- (iii) In the Department of Law and Justice, eight (8) years of full-time university education (or the equivalent) during which time the Member must have obtained a LL.B. and an appropriate Master's degree.

(c) For the rank of Associate Professor

- (i) A Doctoral degree; and
- (ii) Teaching, the quality of which is satisfactory as determined solely by the method of teaching evaluation mandated by the Forced Contract; and
- (iii) Evidence of scholarly activity (as per Article 5.15 – Rights, Responsibilities and Duties of Academics) that is of good quality; and
- (iv) At the time the promotion to Associate becomes effective, at least five (5) years of full-time

- teaching and/or research in a university or an institution of equivalent level or at least five (5) years of professional experience judged to be relevant for teaching at the university level.
- (v) The requirement for scholarly activity as stipulated under (iii) may be replaced in exceptional cases by a consistently demonstrated quality of teaching and tutorial activity that clearly indicates outstanding qualities as a teacher as established by whatever is the generally accepted method of evaluation.
- (d) For the rank of Full Professor
 - (i) A Doctoral degree; and
 - (ii) Teaching, the quality of which is satisfactory as determined solely by the method of teaching evaluation mandated by the Forced Contract; and
 - (iii) Shown evidence of scholarly activity (per Article 5.15 – Rights, Responsibilities and Duties of Academics) throughout the Member's career and after her/his promotion to Associate Professor that ranks as a recognised contribution to the scholarly field or professional activity concerned. This work must be judged by four (4) external referees, who shall normally be Full Professors in an academic institution, and at least two (2) of these referees may be nominated by the applicant; and
 - (iv) Normally, at the time that the promotion to Full Professor becomes effective, at least ten (10) years of full-time teaching and/or research in a university or in an institution of equivalent level, or has accumulated at least ten (10) years of professional experience judged to be relevant for teaching at the University level;

Alternative to the requirements for promotion to Full Professor:

The requirement for scholarly activity stipulated under (iii) may be replaced in extraordinary circumstances by a requirement that the Member has consistently shown clearly outstanding qualities as a teacher and has scholarly activity of good quality.

5.10.3 Academic Qualifications Guidelines for Appointment or Promotion of Professional Librarians and Archivists.

- (a) For the rank of General Librarian or General Archivist
 - (i) A Master's degree, in Library or Archival Studies.
- (a) For the rank of Assistant Librarian or Assistant Archivist
 - (i) A Doctoral degree, it being understood that unless this Doctoral degree is in the field of Library Science or Archival Studies, it shall be accompanied by a Master's degree or equivalent qualifications in Library Science or Archival Studies; or
 - (ii) A Master's degree in Library Science or Archival Studies and professional service and library or archival coordination skills relevant to academic librarianship or archival management, the quality of which is established as clearly satisfactory by whatever is the generally accepted method of evaluation over a period of four (4) years; and demonstrated evidence of scholarly activity as per Article 5.15 – Rights, Responsibilities and Duties of Academics.
- (c) For the rank of Associate Librarian or Associate Archivist
 - (i) An appropriate Doctoral degree, it being understood that unless this Doctoral degree is in the field of Library Science or Archival Studies, it shall be accompanied by a Master's degree or equivalent qualifications in Library Science or Archival Studies; or

In exceptional cases, a Master's degree in Library Science or Archival Studies and professional service and library or archival coordination skills relevant to academic librarianship or archival management, the quality of which is established as clearly satisfactory by whatever is the generally accepted method of evaluation over a period of four (4) years; and demonstrated evidence of scholarly activity as per Article 5.15 – Rights, Responsibilities and Duties of Academics since last promotion; and
 - (ii) At the time the promotion to Associate becomes effective, at least five (5) years of full-time professional service relevant to academic librarianship or archival management.

(d) For the rank of Full Librarian or Full Archivist

- (i) An appropriate Doctoral degree, it being understood that unless this Doctoral degree is in the field of Library Science or Archival Studies, it shall be accompanied by a Master's degree or equivalent qualifications in Library Science or Archival Studies; or

In exceptional cases, a Master's degree in Library Science or Archival Studies and professional service and library or archival coordination skills relevant to academic librarianship or archival management, the quality of which is established as clearly satisfactory by whatever is the generally accepted method of evaluation over a period of four (4) years; and demonstrated evidence of scholarly activity as per Article 5.15 – Rights, Responsibilities and Duties of Academics since last promotion; and

- (ii) Have demonstrated outstanding professional performance and, in addition, have shown evidence of on-going scholarly activity of good quality (as per Article 5.15 – Rights, Responsibilities and Duties of Academics) throughout the Member's career and after her/his promotion to Associate Librarian or Associate Archivist. This work must be judged by four (4) external referees, two (2) of whom may be nominated by the applicant; and
- (iii) Have normally accumulated, at the time the promotion to Full Librarian or Full Archivist becomes effective, at least ten (10) years of full-time professional service relevant to academic librarianship or archival management.

5.10.4 **Bilingualism**

(a) The Employer may, in consultation with the Departments/Schools:

- (i) Stipulate in advertising for and in appointing Members, that a bilingual applicant is preferred or required;
- (ii) Require the appointment of applicants capable of working in either or both of the official languages in order to improve the balance between courses offered in English and courses offered in French within any Department/School or Faculty;
- (iii) Require the appointment of applicants capable of working in either or both of the official languages in the Library;
- (iv) Consider bilingualism as a desired qualification for those Members who are selected to take on specific responsibilities.

(b) Letters of appointment shall clearly indicate any bilingual requirements which are to be a condition of being granted tenure and any assistance that the Employer might agree to provide to the Members for them to meet these requirements.

(c) A Member's performance in both French and English will be taken into consideration in such matters as promotion and tenure.

5.10.5 A Member who has consistently demonstrated clearly outstanding performance in the areas of teaching/professional librarianship and/or archival management, research, and/or university governance and administrative duties may, in extraordinary circumstances, be promoted to the next rank without fulfilling the years of experience criterion as stipulated in paragraphs 5.10.2 (b), (c) and (d) and paragraphs 5.10.3 (b), (c) and (d) above. The burden of proof of outstanding performance rests with the applicant.

ARTICLE 5.15 – RIGHTS, RESPONSIBILITIES AND DUTIES OF ACADEMICS

5.15.1 The full-time Members of the Bargaining Unit have rights, duties and responsibilities which derive from their positions as teachers/professional librarians and scholars working within the University community, and which reflect the reasonable expectations of the Members, the University community and the contractual expectations of the Employer. In this Article, the term Members refers to full-time Members unless otherwise specified.

5.15.2 Members have the right to engage in the following activities:

Priority One:

- A) Teaching / Professional Librarianship / Archives Management**
- B) Scholarly Activity**

Priority Two:

- C) University Governance and Administrative Duties**

Priority Three:

- D) Outside Professional Activities**
- E) Service to the Community**

Priority Four:

- F) Other Paid Activity (consistent with Article 5.15.38)**

- 5.15.3 Members have responsibilities relating to items A), B), and C) and are expected to participate actively in items A), B), and C), although not necessarily in all three (3) in any one (1) given year. A Member's responsibilities related to item A) shall consist of those teaching or library duties which are assigned by the Dean/University Librarian as per Article 5.40 – Academic Workload. A Member's responsibilities related to items B) and C) are inherent in a Member's status as an academic and thus flow naturally therefrom. Certain specific duties related to item B) and C) may also be assigned by the Dean/University Librarian on an *ad hoc* basis in order to ensure a good and proper functioning of the University. A Member's responsibilities relating to item D), E) and F) are undertaken voluntarily by the Member.

The parties recognize that acknowledging Indigenous knowledge and ways of knowing requires applying the following definition of Indigenous knowledge for the application of rights, duties, responsibilities, and assessment of members.

Indigenous knowledge, in accordance with the 2018 Tri-Council Policy Statement, is rarely acquired through written documents, but is rather, a worldview adopted through living, listening and learning in the ancestral languages and within the contexts of living on the land. Engagement with Elders and other knowledge holders is acknowledged as valued and vital to knowledge transmission within the context of Indigenous Peoples living in place. Both Indigenous knowledge content and processes of knowledge transmission are, thus, embedded in the performance of living, including storytelling, ceremonies, living on the land, the use of natural resources and medicine plants, arts and crafts, singing and dancing, as well as engagement with the more than human world.

- 5.15.4 Some specific features of academic responsibilities are set out in the following sections:

Priority One:

- A) Part One - Teaching**

- 5.15.5 Members have an obligation to develop and maintain their scholarly competence and effectiveness as teachers within the area of their expertise. They shall inform their students regarding their methods of evaluation, which have been approved by the Department/School and the Dean, consistent with Senate policies. They shall also inform their students regarding their instructional methods and seek approval of the Department/School and of the Dean for substantial changes in instructional methods involving significant increases in costs or alterations in the established policy of the Department/School, e.g. conversion of a lecture course to a reading course.
- 5.15.6 While it is recognized that whenever possible there shall be adequate consultation with the Member and the Department/School as to the assignment of teaching duties, once such teaching duties have been assigned in a fair and equitable manner by the Dean, it is the responsibility of the Member to teach the assigned courses to students registered in them at the time and place designated by the Dean in a manner which reflects the area of the content of the course approved by the Department/School consistent with the University calendar. A Member shall not delegate her/his teaching duties to another person, the occasional guest lecturer excepted. Assignment of teaching duties shall be consistent with Article 5.40 – Academic

Workload. Teaching responsibilities include being available for reasonable consultation with students at their teaching locale subject to Article 5.40 – Academic Workload. Members have an obligation to be available to students for consultation during a regular teaching term for at least one (1) hour per week for a three-credit course. The office hours, or alternate contact hours, shall be included in the course syllabus. The Department/School will post the office hours.

- 5.15.7 A Member shall not be required to co-teach a course without the Member's consent.
- 5.15.8 Members shall comply with all properly established regulations of the University, which are not at variance with this Forced Contract. Members shall accept responsibility for participation in the effective operation of the University, including responsibilities for academic counselling, accreditation, registration, and the supervision of examinations as appropriately assigned by the Department/School, the Dean or the Registrar's office consistent with Senate policy. During examinations, only the head invigilator shall be a faculty Member. The head invigilator shall be selected randomly from the LUFA full-time faculty membership and the names of those who serve shall be removed from the pool of potential head invigilators until all remaining Members have served. The names of those Members not scheduling any of their final examinations through the Registrar's Office will not be included in the pool for the examination period concerned.
- 5.15.9 It is the responsibility of Members to act ethically, fairly, and in a non-discriminatory manner in their dealings with students and their academic colleagues. It is also the responsibility of Members to foster a free exchange of ideas including a discussion of differing views, to avoid discrimination, to respect the principles of confidentiality in a manner consistent with the performance of their academic role, and to acknowledge their indebtedness to students and their academic colleagues in relation to their own teaching.
- 5.15.10 Each Member shall have freedom of discussion. However, in the exercise of this freedom in the classroom, reasonable restraint shall be used in introducing matters unrelated to her/his subject or discipline.
- 5.15.11 Members shall be free to organise and to structure classroom and laboratory activities and to adopt reasonable means to maintain a learning environment, which is both productive and orderly. They shall have the right to rule on the use by students of electronic devices such as recording devices, calculating devices, and lap-top computers in the classroom, laboratory or learning situation.

The duty to accommodate students with disabilities is a shared responsibility of the parties. Accordingly, where students require accessibility services, any accommodation proposed by Accessibility Services shall be developed with the participation of the faculty member without compromising student confidentiality. In Accessibility Services developing accommodation, the pedagogical mission and goals of the course, including any professional standards shall be considered. Members shall be informed of any such authorizations and, if necessary, can consult with Accessibility Services for possible alterations.

Notwithstanding Members' right to rule, students designated by Accessibility Services shall have access to electronic devices as determined by Accessibility Services.

Where a Member doesn't allow electronic devices in the classroom, Accessibility Services will work with the Member and students to find suitable alternatives. In exceptional cases where no alternatives are possible (for reasons other than financial reasons), the parties agree to accommodate in a way that protects the Member's intellectual property. No Member shall be required to disclose personal notes or course material that is proprietary.

- 5.15.12 Members shall not alter the schedule or cancel instruction time except with prior permission of the Dean in any but exceptional circumstances. Such permission shall not be unreasonably refused. Both Parties agree that every reasonable effort will be made to notify the students affected. Timetable changes of a permanent nature require the prior permission of the Dean. Absences are governed by Article 7.20 – Absence - General.
- 5.15.13 Members shall have fourteen (14) calendar days following the final exam to submit their final grades or fourteen (14) calendar days following the deadline for submission of the final item of work as indicated in the course syllabus. Requests for extensions shall not be unreasonably refused. For distance courses, Members shall have fourteen (14) calendar days from the date of the receipt of their final exam or final assignment.

To the extent possible, the Registrar will schedule final exams for courses with large enrolments at the beginning of the exam period.

- 5.15.14 The Member teaching a course is responsible for evaluating student course work (including such evaluation as has been assigned to teaching assistants) and for determining and assigning the grades received by the students in that course. A grade assigned by a Member shall not be altered except in compliance with Senate policy.

A) Part Two - Professional Librarianship / Archives Management

- 5.15.15 Members have an obligation to develop and to maintain their scholarly competence and effectiveness as librarians within the area of their expertise.
- 5.15.16 While it is recognised that whenever possible there shall be adequate consultation between the Member and the University Librarian as to the assignment of duties, once such duties have been assigned in a fair and equitable manner by the University Librarian, it is the responsibility of the Members to perform their duties at the time and place designated by the University Librarian. Assignment of professional library / archives management duties shall be consistent with Article 5.40 – Academic Workload.
- 5.15.17 It is the responsibility of Members to deal ethically, fairly, and in a non-discriminatory manner in their dealings with students and colleagues. It is also the responsibility of Members to foster a free exchange of ideas, to avoid discrimination, to respect the principles of confidentiality in a manner consistent with the performance of their academic role, and to acknowledge their indebtedness to their academic colleagues in relation to their own professional activities.
- 5.15.18 Members shall have the right and responsibility to adopt reasonable means to maintain an orderly and productive learning environment in the library / archives.
- 5.15.19 Members, if involved in scheduled work related activities, shall not alter or cancel such scheduled activities except with prior permission of the University Librarian in any but exceptional circumstances. Such permission shall not be unreasonably refused. Both Parties agree that every reasonable effort will be made to notify the person affected. Absences are governed by Article 7.20 – Absence - General.

B) Scholarly Activity

- 5.15.20 Members shall have the right and responsibility to devote a reasonable proportion of their time to scholarly activity.
- 5.15.21 It is understood that for the purposes of this Forced Contract the term "scholarly activity" means:
- (a) Research directed towards a contribution to knowledge, and the dissemination of its results; and/or
 - (b) Participation in those academic activities that contribute to the enhancement, creation and dissemination of knowledge; and/or
 - (c) Creative and professional activities which contribute to one's discipline.
- 5.15.22 Scholarly activity may involve, although not necessarily be limited to, activities of the type set out in the following list. It is understood that this list does not imply an order of priority. It is also understood that the following forms of scholarly activity are not necessarily to be given equal weight and application for each discipline when a Member is being evaluated for an annual increment, merit increment, tenure or promotion. In each case the Member must demonstrate that the activity is of good quality and is consistent with the contribution to knowledge described in Article 5.15.20 above.
- (a) The writing or editing and publication of books, textbooks, journals and of Articles, which may be externally reviewed.
 - (b) The earning of additional appropriate academic and/or professional qualifications.
 - (c) Research carried out on research contracts.
 - (d) The writing and/or publication of case studies.
 - (e) The development of teaching/library materials, of an innovative sort which have a wider application than the Member's own teaching/library activities.
 - (f) The compilation and publication of scholarly bibliographies, or literary work.
 - (g) The translation and publication of scholarly or literary work.
 - (h) Literary and artistic works, including recordings and public performances.
 - (i) Demonstrated leadership in the area of professional education, including workshops.

- (j) Creative application of existing knowledge through such activities as consulting or workshops.
- (k) Research carried out using traditional/Indigenous knowledge and the practical applications or dissemination of such research generally, or specifically through engagement with Indigenous communities.
- (l) Development and publication of new teaching strategies.
- (m) Attending and/or presenting at conferences.
- (n) Production of images including but not limited to photography and architectural works.
- (o) Indigenous Scholarship

Indigenous Scholarship, in accordance with the 2018 Tri-Council Policy Statement, is defined as research in any field or discipline that is conducted by, grounded in, or engaged with, First Nations, Inuit, Métis or other Indigenous nations, communities, societies or individuals, and their wisdom, cultures, experiences or knowledge systems, as expressed in their dynamic forms, past and present. Indigenous research can embrace the intellectual, physical, emotional and/or spiritual dimensions of knowledge in creative and interconnected relationships with people, places and the natural environment.

Whatever the methodologies or perspectives that apply in a given context, researchers who conduct Indigenous research, whether they are Indigenous or non-Indigenous themselves, commit to respectful relationships with all Indigenous peoples and communities.

Research by and with Indigenous peoples and communities emphasizes and values their existing strengths, assets and knowledge systems.

In addition to those activities listed above (a-n), Indigenous Scholarship is recognized as a primary category of scholarly contribution and includes but is not limited to:

- i. Development and sharing of Indigenous knowledge and languages.
- ii. Engagement with culturally appropriate research and publication venues.
- iii. Lived experiences within Aboriginal communities.
- iv. Incorporation of Indigenous knowledge systems.
- v. Participation in traditional ceremonies.

- 5.15.23 The Parties agree that scholarly activity does not normally include research directly related to the immediate and normal preparation for teaching activity.
- 5.15.24 Where appropriate in their published work, the Members shall indicate affiliation with the University and acknowledge their indebtedness to students and their academic colleagues in relation to their own research.
- 5.15.25 The Parties encourage all Members of the Bargaining Unit to deposit one (1) signed copy of their published monographs or reports in the University Library. The University agrees to pay for reasonable expenses incurred by a Member in making such material available to the Library. Members are also encouraged to submit their scholarly work to the University's online repository.
- 5.15.26 Members have the right to participate in the activities of professional or learned societies and the like, providing such activities do not conflict with the reasonable fulfilment of assigned duties.

Priority Two:

C) University Governance and Administrative Duties

- 5.15.27 To the extent consistent with their teaching/library and scholarly responsibilities, Members shall contribute to the governance of the University through membership on appropriate bodies. It is understood that for the purposes of this Article, service to the Union will be considered equivalent to service on Department/School or Senate Committees.
- 5.15.28 While exercising university governance and administrative responsibilities, Members shall deal ethically with other university employees and students so that objectivity, fairness, and absence of discrimination are maintained in all deliberations including assessment of performance of any employee or student. Members shall not infringe on the academic freedom of academic colleagues or students or breach confidentiality in this regard.
- 5.15.29 In order to ensure equality of opportunity to participate in university governance, the Employer agrees to

circulate notice of openings on all university bodies above the Department / School / Library level to eligible Members at least two (2) weeks prior to the time that the vacancies must be filled.

- 5.15.30 The University's mandate as a bilingual institution of higher learning in accordance with the *Laurentian University of Sudbury Act* entails that the following activities shall also constitute academic work under University Governance and Administrative Duties:
- (a) Formal language training in either of the official languages, French or English, as provided in Article 3.30 – Bilingualism, as may be required to achieve tenure, or formal training in an Indigenous language and;
 - (b) The provision of such linguistic services that include, but are not limited to, translation, interpretation, representation and communication, which contribute to university governance and administrative duties.

Priority Three:

D) Outside Professional Activities

- 5.15.31 The Parties encourage Members to participate in outside professional activities.
- 5.15.32 The scope and nature of any professional activities of a substantial nature, whether paid or unpaid shall be reported in writing to the Dean/University Librarian as part of the annual report of Members. Notwithstanding the above, contractual activities that would involve Members spending a total of more than one half (1/2) day a week on a regular basis between Monday and Friday during a term in which they teach or perform professional library duties shall be reported in writing to the Dean/University Librarian prior to the signing of the contract or beginning of the work. The Dean/University Librarian may require the Members not to undertake an activity or to moderate such an activity on the grounds that the time involved would or does interfere with the Member's academic obligations as defined in this Forced Contract. A reasonable period of time shall be allowed for the Members to comply. The appropriateness of the decisions of the Dean/University Librarian on these matters is subject to grievance and arbitration.
- 5.15.33 When undertaking outside professional activities, Members retain the rights and responsibilities associated with academic freedom.
- 5.15.34 When a Member's outside professional activities involve the use of the University's facilities, supplies or services, permission for their use shall be approved in writing or through email by the appropriate University Administrator. Such permission shall not be unreasonably refused. These services shall normally be paid for at the prevailing internal University user rate, unless the University Administrator agrees in writing to waive all or part of the fee(s).

E) Service to the Community

- 5.15.35 The Parties encourage Members to offer service to the community.
- 5.15.36 The rights and responsibilities of Members who offer service to the community shall be the same as for those Members who participate in outside professional activities, as modified by Article 5.15.37 below.
- 5.15.37 When a Member's service to the community involves the use of the University's facilities, supplies or services, permission for their use shall be approved in writing or through email by the appropriate University Administrator. Such permission shall not be unreasonably refused. These services shall normally be paid for at the prevailing external University user rate, unless the University Administrator agrees in writing to waive all or part of the fee(s).

Priority Four:

F) Other Paid Activity

- 5.15.38 Faculty Members have the right to engage in other paid activity
- 5.15.39 All such activities shall be governed by Article 5.15.31 above, except the annual report where such reporting shall be optional to the Member.

ARTICLE 5.20 – APPOINTMENT AND RENEWAL

Appointment of Full-time Members of the Bargaining Unit

5.20.1 New appointments that fall within the Bargaining Unit shall normally be advertised:

- (a) Within the University and
- (b) Outside the University

In suitable national and discipline publications such as *University Affairs*, *CAUT Bulletin* and other publications that may be especially directed to professionals who belong to any of the four (4) designated employment equity groups. Advertisements shall contain an article stating that Laurentian University is committed to employment equity.

When the Dean/University Librarian indicates that there is a vacancy to be filled, the Dean/University Librarian shall seek a recommendation from the Department/School on academic needs, qualifications, and criteria for the external posting. These recommendations shall not be unreasonably refused.

5.20.2 (a) Appointments shall be made by the Vice-President, Academic and Provost on behalf of the Employer and on the recommendation of the Dean/University Librarian and the written recommendation of the majority of the Members of the Department/School concerned after scheduled, minuted meeting(s) with Department/School Members. Individual Members (including those on leave) may choose to vote in person, by email or by facsimile. Proxy voting is not permitted.

- (b) The letter of appointment shall indicate the Department/School to which the Member will be assigned.
- (c) In the event that an appointee has duties and responsibilities in more than one Department/School or program, then one Department/School shall be declared to be the Member's Department/School. Wherever in this Forced Contract recommendations or evaluations of a Member's performance are required from a Department/School, in addition to the recommendation or evaluation from the assigned Department/School, the other Department(s)/School(s) or program(s) shall also submit their recommendation or evaluation; these recommendations shall carry a weight approximately proportional to the duties and responsibilities of the Member in each program/Department/School.
- (d) Advertisements for all vacant positions shall refer to the Union website where applicants can access the Forced Contract.

5.20.3 If a number of applicants have been judged to be substantially equal in qualifications and appropriateness of academic specialization, priority shall be given to Canadian citizens, permanent residents, and persons on minister's permits.

- 5.20.4
- (a) Where selection has to take place among equally qualified applicants, relevant criteria for appointment shall include teaching/professional, scholarly potential and employment equity goals.
 - (b) In disciplines where it is difficult to attract qualified faculty, and/or in order to achieve employment equity goals, the Employer and the Union will work together to devise and implement innovative appointment arrangements in order to combine appointments with the opportunity to complete Doctoral degrees.
 - (c) All tenured, tenure-track Members and Master Lecturers of the Department/School shall have the right to participate in all aspects of the appointment process. The Chair/Director of the Department/School shall issue a notice to all eligible Members of the Department/School requesting that they indicate their intent to serve on the Department/School Search Committee. Members shall indicate their intention to participate in the process within five (5) working days. Members who elect to participate in the Department/School Search Committee shall attend all meetings and interviews in order to be able to vote for the recommendation of a candidate or short list of candidates to the

Department/School. The Department/School Search Committee shall consist of at least five (5) eligible Members, with at least one (1) female and one (1) male Member. Where this requirement cannot be fulfilled, the Dean/University Librarian, in consultation with the Department/School, shall appoint a suitable Member from another Department/School to the search committee.

- (d) Search committees shall be proactive in the recruitment of applicants from the four (4) employment equity groups outlined in Article 5.25 – Employment Equity. If the tentative short list of applicants does not include at least one (1) Member of an equity group, the search committee shall submit an explanation. If the Dean/University Librarian is not satisfied with the explanation, the Dean/University Librarian may change the short list. If the short list contains fewer than three (3) names, this change can only be an additional name. Alternatively, the Dean/University Librarian shall work together with the Department/School to substitute one (1) of the short-listed names.
- 5.20.5 Appointments shall be made only to the ranks referred to in this Forced Contract, viz, Lecturer, Assistant Professor, Associate Professor, Full Professor, and the corresponding library ranks (General Librarian/Archivist, Assistant Librarian/Archivist, Associate Librarian/Archivist, and Full Librarian/Archivist).
- 5.20.6 Appointments shall be made only to the status categories referred to in this Forced Contract, viz, limited term, probationary and tenured. From time to time the Parties may agree to other categories.
- 5.20.7 Candidates from within the Bargaining Unit shall be entitled to consideration for all advertised posts.
- 5.20.8 All letters of appointment shall normally be signed no later than the start of a teaching term in which a Member must first teach, i.e. by September 1, January 1 and May 1. Letters of appointment shall follow the format outlined in Appendix B – Standard Letter of Employment and Offer of Employment. No letter of appointment shall contain any conditions not consistent with this Forced Contract. A copy of the letter of appointment, or revisions thereof, shall be forwarded to the Union at the same time as the original is sent to the applicant. The applicant's telephone/fax numbers and email address, as well as any other means of contacting the applicant will be included if the applicant has provided them.
- 5.20.9 Upon appointment new Members shall provide the Vice-President, Academic and Provost copies of their birth certificate, or equivalent document, and certified copies of their academic degrees and, if required for the position, their professional qualifications.
- 5.20.10 Teaching load reduction for new Members
 - a) The teaching load reduction applies to Members appointed at the rank of Lecturer, Assistant Professor and Associate Professor only, who have three (3) years or less of teaching experience.
 - b) The teaching load reduction shall be six (6) credits.
 - c) The teaching load reduction applies to probationary appointments only, in the first year.
 - d) Notwithstanding Article(c) above, the teaching load reduction can be taken over the first two consecutive years, at the Member's discretion, as a teaching load reduction. In such event, the Member may take a reduction of three (3) credits per year over the first two consecutive years.
 - e) The teaching load reduction does not apply to Members who are appointed as Chairs with reduced teaching load.
 - f) It is understood that all references to teaching in this Article are to the University level teaching.
 - g) The teaching load reduction cannot be converted into salary.
 - h) For the purposes of calculating eligibility for a teaching load reduction, teaching experience shall be calculated as follows:
 - i) One year for each year of full-time teaching experience;
 - ii) Part-time experience shall be calculated in terms of the total number of credits taught, twelve (12) credits of part-time teaching being equal to one year of full-time teaching experience for Members being appointed to an Academic Unit where twelve (12) credits is the normal teaching load.
 - iii) Part-time experience shall be calculated in terms of the total number of credits taught, fifteen (15) credits of part-time teaching being equal to one year of full-time teaching experience for Members being appointed to an Academic Unit where fifteen (15) credits is the normal teaching load.
 - iv) It is understood that teaching experience means university level teaching.

Limited Term Appointments

- 5.20.11 Limited Term appointments are appointments that carry no implication of renewal or continuation beyond the stated term and no implication that the appointee shall be considered for tenure. Limited term appointees must be assigned to an academic Department/School and shall be considered Members unless excluded by Article 2.15 – Recognition of the Bargaining Unit. Limited term appointments are utilised:
- (a) To bring distinguished visitors to the University.
 - (b) For exchange appointments.
 - (c) To provide replacements for Members on leave.
 - (d) To respond to specific academic needs which the Employer, for academic and/or budgetary reasons, does not wish to result in an appointment in the probationary stream. This shall be done in consultation with the Union who shall not unreasonably withhold its agreement.
 - (e) For appointments to programs with provisional funding or of a trial nature.
- 5.20.12 Where appointments must be made urgently, the Vice-President, Academic and Provost may, with the agreement of the Parties, authorise exceptions to the procedures in Articles 5.20.1 and 5.20.4 above. Such agreement shall not be unreasonably withheld.
- 5.20.13 The Vice-President, Academic and Provost has the discretion, after consultation with the Department/School and the Dean/University Librarian, to re-appoint the holder of a term appointment without further advertisement. Should the Employer choose to re-advertise the post, the incumbent may apply, but retains no right of preference over other acceptable applicants. The normal procedures for appointment will apply.
- 5.20.14 Term appointees may not apply for promotion in the final year of their term appointment, unless they had been prevented from applying in the year immediately preceding. A term appointee reappointed to a further term appointment or a term appointee reappointed to a probationary position shall be reappointed to the same rank that she/he held in the previous appointment. A Member so reappointed may, subsequent to reappointment, also apply for a promotion as per Article 5.65 – Promotion Procedures. If the Member is granted a promotion, the said promotion shall be retroactive to the date of the Member's reappointment.
- 5.20.15 Term appointments shall be limited to a total of three (3) years, except by agreement of the Parties. In cases where the limited term appointment is a replacement for an academic administrator, the appointment may be for a term up to five (5) years. The initial term may be for less than a full academic year, but reappointment shall normally be for a full twelve (12) month period. The term limits (three (3) or five (5)) shall apply whether or not the term appointments are consecutive or intermittent.
- 5.20.16 Non-renewal of term appointments shall not be subject to grievance.
- 5.20.17 For the duration of this Forced Contract, the Employer agrees that the total number of limited term appointments will not exceed fifteen percent (15%) of the total number of faculty Members except with the agreement of the Parties.

Probationary Appointments/Tenure Appointments

- 5.20.18 Probationary appointments are defined as appointments lasting up to a maximum of five (5) years, during which time the Employer and the Member are afforded an opportunity for mutual appraisal.
- 5.20.19 Probation does not imply that the Employer will grant tenure at the end of the probationary period; it does imply that the Employer will give serious consideration to awarding tenure.
- 5.20.20 Should a Member holding a term appointment wish to apply for a probationary appointment, the Member's application shall be considered in the normal way along with all other applications for the position. Should such a Member be appointed to the probationary position, at the Member's discretion, the Member's probationary period may be reduced by up to the number of years that the Member has served in limited term appointment(s) to a maximum of three (3) years.
- 5.20.21 Faculty appointed on probation will serve a maximum probationary period based on the academic rank at which the appointment is made. Faculty appointed at the rank of Lecturer/General Librarian or Assistant Professor/Librarian will serve a five (5) year probationary period. Faculty appointed at the rank of Associate Professor/Librarian and Full Professor/Librarian will serve a three (3) year probationary period. Where a

Member is appointed at the rank of Full Professor/Librarian the Employer may grant tenure on appointment. Under exceptional circumstances and upon recommendation of both the Department/School and the Vice-President, Academic and Provost, where a Member is appointed at the rank of Associate Professor/Librarian the University may grant tenure on appointment, provided that the new Member is tenured at another recognised university.

- 5.20.22 An Associate Professor/Librarian or Full Professor/Librarian who has at least three (3) years of service to the University, who has applied for a probationary appointment, shall be considered for such an appointment on the basis of the criteria listed in Article 5.60 – Tenure Evaluation Procedures. Should such a Member be appointed to the position, it shall be a final probationary appointment of one (1) year with tenure evaluation to begin by September 30 of that year.
- 5.20.23 In the case of persons appointed at the rank of Lecturer/General Librarian and Assistant Professor/Librarian, the initial probationary appointment shall be for a period of three (3) years.
- (a) In their initial letter of appointment by the Vice-President, Academic and Provost and in their annual evaluation letters by the Deans/University Librarian, all Members on initial probationary contract shall be notified that they shall begin to undergo a renewal evaluation by the Faculty Personnel Committee no later than September 30 of the final year in their initial probationary contract.
 - (b) Subject to satisfactory performance as outlined in Article 5.20.22 (c) below, the initial probationary appointment will be followed by a further two (2) year probationary appointment with a tenure evaluation to take place in the final year of that second appointment or as per Article 5.60 – Tenure Evaluation Procedures.
 - (c) The decision whether or not to offer a second two (2) year probationary appointment shall be reached on the basis of a judgement of satisfactory performance under procedures set out under Article 5.45 – Annual Report for Members, Article 5.60 – Tenure Evaluation Procedures and Article 8.20 – Procedures for the Award/Denial for a Progress-Through-the-Ranks Increment;
 - (d) In assessing the applicant's progress toward meeting the requirements for tenure outlined in paragraphs 5.60.3 (d) and (e) of Article 5.60 – Tenure Evaluation Procedures, the Faculty Personnel Committee shall comment on each aspect of these criteria. The Faculty Personnel Committee should also comment on the rate of progress shown during the initial probationary period. If the performance is found unsatisfactory the Faculty Personnel Committee may recommend that the applicant not be offered a final probationary appointment.
- 5.20.24 In the case of persons appointed at the rank of Associate Professor/Librarian and Full Professor/Librarian, the initial appointment shall be a three (3) year probationary appointment with a tenure evaluation to take place in the final year of the appointment, except as modified in Article 5.20.20 above.
- 5.20.25 The tenure evaluation is to be conducted in accordance with the procedures set out in Article 5.60 – Tenure Evaluation Procedures, and will result in a decision either to award tenure or to allow the appointment to lapse.

Adjunct Appointments

- 5.20.26 When it is appropriate for scholarly or professional reasons, a person may be appointed to a position as Adjunct Professor by the Vice-President, Academic and Provost upon recommendation by Departments/Schools and Deans for a period with defined privileges and voluntary responsibilities in scholarly activity. Each month at Senate, the Vice-President, Academic and Provost shall table as a separate Information item a list of any newly appointed Adjunct faculty Members including their names, Department/School affiliations, periods of appointment along with a justification for each appointment, highest degree held, year obtained, current institution and rank (position), at that institution.
- 5.20.27 All Adjunct faculty Members shall also be included in the faculty listing on Department/School websites.
- 5.20.28 Adjunct appointments shall also become Sessional Members if they carry any of the duties consistent with this Forced Contract. Such Members shall be paid for thesis supervision as per Article 5.40 – Academic Workload. However, Adjunct faculty Members may collaborate in scholarly activities with Members without becoming Sessional Members.

Cross Appointments

- 5.20.29 When it is appropriate for academic teaching/scholarly or professional reasons, Members may be appointed to more than one (1) Department/School of the University such that the salary of the Member is charged to one (1) fiscal Department/School, but she/he is named to another Department/School in which she/he has a sustained academic teaching/scholarly or professional interest. Such appointments shall be called cross appointments.
- 5.20.30 A cross appointment shall only be made with the consent of the Members of all Departments/Schools concerned.
- 5.20.31 A cross appointment shall be made by the Employer for a fixed period not exceeding five (5) years, and may be renewed or altered with the consent of the Member and on the recommendations of the Department(s)/School(s) concerned. The termination or alteration of a cross appointment, except for cause, shall not in itself jeopardize the Member's appointment with the University in the Department/School of primary responsibility, as specified in Article 5.20.34 below. Notwithstanding any of the foregoing, a cross appointment will terminate upon the termination of the appointment in the Department/School of primary responsibility as specified in Article 5.20.34 below.
- 5.20.32 The sources and level of administrative and academic teaching/scholarly support available to the Member with a cross appointment shall be mutually agreed by the Member and the Department/School concerned and shall be confirmed in writing by the Chair/Director. In the event that the cross-appointed Member is recommended by either Department/School to teach in the Department/School to which she/he has been cross appointed, the teaching assignment will be issued by the primary Dean of the Member and only with the agreement of the other Dean (if applicable) and after consultation with both Chair(s)/Director(s).
- 5.20.33 In the case of a cross appointment, the assessment procedures and criteria to be used by the cross-appointed Department/School in considering the Member for renewal, tenure and promotion shall be those of the Department/School of primary responsibility as specified in paragraphs 5.50.6 (b), 5.50.6 (c), 5.50.6 (d), 5.50.6(e), 5.50.6 (f), 5.50.6 (g) and 5.50.6 (i) only and are subject to Article 5.20.33 below. The application dossier shall be made available to the cross-appointed Department/School.
- 5.20.34 The Chair/Director and the eligible Members of the cross-appointed Departments/Schools shall be consulted formally during the renewal, tenure and promotion process. This consultation shall not involve examination of the academic dossier but shall be limited to a written assessment concerning the contributions the applicant has made to the cross-appointed Department/School in the areas outlined in Article 5.15 – Rights, Responsibilities and Duties of Academics and shall be weighed by the Faculty Personnel Committee pursuant to Article 5.50.7 (j). Members who are eligible to vote and participate in the assessment of applications shall do so in their own Department/School of primary responsibility. In cases where an eligible Member of the applicants cross-appointed Department/School acts as an assessor in the applicant's Department/School of primary responsibility pursuant to Article 5.50.7 (j), the eligible Member shall not be permitted to vote or participate in the assessment of the applicant by the applicant's cross-appointed Department/School given that in no case shall an eligible Member be permitted to vote and participate in the assessment in more than one instance.
- 5.20.35 The letter of cross appointment shall state the privileges and sharing, if any, of duties and responsibilities between or among Departments/Schools.
- 5.20.36 Members holding a cross appointment shall be eligible to attend meetings of all Departments/Schools to which they are appointed, but may vote, be elected to or appointed to committees only in their Academic Department/School of primary responsibility.
- 5.20.37 Qualified persons from the Northern Ontario School of Medicine may be cross-appointed to Departments/Schools within Laurentian University subject to the approval of the Department/School. Such persons shall be Members of the Union if they carry any of the duties consistent with this Forced Contract. Such Members shall be paid for thesis supervision according to Article 5.40 – Academic Workload.

Spousal Hiring Appointments

- 5.20.38 When an applicant has been recommended by a Department/School for a probationary or tenured appointment and has a spouse or partner who may be qualified for an academic position, a Department/School appropriate to the discipline of the spouse or partner may recommend a one (1) to three

(3) year term appointment without advertising under the following conditions:

- (a) The Vice-President, Academic and Provost has confirmed the availability of a position within the Department/School in question;
- (b) The Chair/Director has made available an application file for viewing by all Members of that Department/School and has arranged interviews and open meetings with the applicant and the Members in the Department/School, on campus or through teleconference;
- (c) A majority of the full-time Members of the Department/School by vote have approved of the recommendation, including the term of the appointment when applicable;
- (d) The appointment has been approved by the Vice-President, Academic and Provost after review of the application file and the Department/School recommendation;
- (e) The decision of the Vice-President, Academic and Provost is not subject to grievance.

5.20.39 Notwithstanding the provisions of Article 5.20.15 above, an appointment made under the provisions may be extended, subject to Department/School approval, for a period of up to five (5) years in total.

5.20.40 At any time, the total number of spousal appointments shall not exceed ten (10).

Appointments and Accreditations to the Faculty of Graduate Studies

5.20.41 All Members with a PhD or equivalent qualification are eligible to teach graduate courses or conjoint graduate-senior undergraduate courses. However, to supervise graduate theses Members must be appointed to the Faculty of Graduate Studies. Members may apply at any time to the Director of Graduate Studies for appointment to the Faculty of Graduate Studies. The requirements for appointment shall be publicly available to all Members. All applications for appointment will be evaluated in accordance with the Policy of the Council of the Faculty of Graduate Studies.

Appointment to the Position of Master Lecturer

5.20.42 The Parties recognise that the University is best served by tenured and tenure track faculty who contribute to the pursuit and dissemination of knowledge. This includes appointments with responsibilities in teaching, scholarly activity, and governance. It is not generally desirable to make other teaching intensive appointments as a substitute for these appointments.

5.20.43 A Master Lecturer with a continuing appointment is responsible for undergraduate teaching / clinical education or supervision / language teaching / skills teaching / coaching / writing assistance and other related duties as determined by the Employer. Notwithstanding the above, a Master Lecturer may, where appropriate, elect to teach graduate courses. A Master Lecturer may also engage in scholarly activity, and is entitled to participate in university governance and vote in Department/School Meetings.

5.20.44 Qualifications: At least a Master's degree or appropriate professional qualifications and with proven competence in teaching.

5.20.45 Appointments: Any new Master Lecturer position must be advertised to the roster in the Department/School internally before being advertised externally and must go through the normal hiring process for the appointment of full-time Members. Sessional Members on the roster shall have first consideration for appointment as Master Lecturer. In the event there is no qualified roster applicant as determined by the Department/School, the University may advertise externally. Nothing precludes the Employer from working with the Boards of the three (3) federated universities to create such a position funded jointly by the partners. Appointments to the position of Master Lecturer shall be made by the Vice-President, Academic and Provost upon recommendation of the Department/School and the Dean.

A newly appointed Master Lecturer shall normally have a probationary period of three (3) years. A Member appointed to a Master Lecturer position with at least thirty-six (36) credits taught on campus within the Department/School may have the probationary period waived on the recommendation of the Department/School and the Dean.

The evaluation of an applicant on probation shall follow the normal assessment process for full-time Members as set out in Article 5.50 – Assessment of a Member's Performance, but shall be restricted to the teaching responsibilities, and other recognized workload and reported voluntary duties as per Article 5.20.43.

5.20.46 Workload: The normal maximum teaching workload is twenty-one (21) credits of which a maximum of nine

(9) may be assigned in the Spring Session. The workload shall include an additional 3 credits to be used towards teaching, governance or scholarly work at the discretion of the member.

Members may request one day free from teaching for teaching preparation and grading. This request shall not be unreasonably denied.

In order to promote scholarly activity and professional development, Master Lecturers shall have access to the process outlined in Article 5.40.10

For new Master Lecturer appointments with a probationary status as defined in Article 5.20.45, a three (3) credit course reduction shall be applied for each of the first (1st) two (2) years.

5.20.47 Transfer to Tenure Track Faculty Ranks: Master Lecturers may be appointed to a tenure track faculty position without advertising. Such appointments shall be made by the Vice-President, Academic and Provost upon recommendation of the Department/School and the Dean under the following conditions:

- (a) The Vice President, Academic and Provost has authorized a tenure track faculty position for the Department/School.
- (b) The Chair/Director of the Department/School has made available an application file for viewing by all Members of the Department/School and has arranged interviews and open meetings with the candidate and Members in the Department/School, on campus or through teleconference.
- (c) A majority of the full-time Members of the Department/School by vote have approved of the recommendation, including the term of the appointment where applicable

5.20.48 The starting salary of an applicant shall be based on the floor of Lecturer. For applicants with a PhD, the starting salary shall be based on the floor of Assistant. The Members shall be given one (1) increment for each year of full-time equivalent (i.e. twenty-one (21) credits per year) at the university level. Other relevant experience shall be considered. The position shall not contain ranks or promotion.

Effective July 1, 2017, Master Lecturers with a PhD and whose salary is below the floor of the Assistant Professor rank shall be provided a salary increase to the floor of the Assistant Professor rank.

Effective July 1, 2017, all Master Lecturers with a PhD. shall receive a salary increase equivalent to one (1) increment.

5.20.49 Redundancies for Master Lecturers will be governed by Article 11 consistent with other full-time faculty.

5.20.50 The University may appoint a maximum of thirty-seven (37) Master Lecturers.

5.20.51 Exigencies for Master Lecturers will be governed by Article 11 consistent with other full-time faculty.

ARTICLE 5.25 – EMPLOYMENT EQUITY

5.25.1 The Parties support the principle of employment equity as defined by Provincial and Federal Laws and the Senate/Board of Governors approved Policy on Employment Equity.

5.25.2 Employment Equity

- (a) The Parties pledge themselves to work to increase the proportion of faculty Members who are members of the four (4) designated employment equity groups (women, aboriginal people, persons with disabilities and members of visible minorities) to an equitable level in each discipline.
- (b) To determine an equitable proportion of Members of the four (4) designated employment equity groups for each discipline, the Parties shall consider among other factors the number of Doctoral applicants in Canadian universities as revealed by Statistics Canada data.

5.25.3 The Vice-President, Academic and Provost shall support employment equity by:

- (a) promoting awareness of the University's commitment to non-discrimination and to the promotion of equity in the employment status of Members in the designated employment equity groups;

- (b) ensuring proper training on equitable employment practices for all Departments/Schools hiring new Members;
- (c) providing annual reports to the Employer and the Union on:
 - (i) the total number of applicants and the number of self-identified applicants by employment equity group for each vacant position for which a search has been conducted,
 - (ii) the composition by employment equity group of the Members in each Department/School, by rank and status of appointment, as voluntarily reported by Members,
 - (iii) the percentage of employment equity groups by discipline in graduate degree programs in Canada, if available,
 - (iv) other matters deemed necessary to monitor the effectiveness of this Article.

5.25.4 In order to increase awareness of the University's employment equity goals and to support non-discriminatory interview and hiring practices, full-time Members shall make every reasonable effort to attend the training sessions on equitable employment practices offered by the University for their respective Department/School.

ARTICLE 5.30 – ABORIGINAL EQUITY INITIATIVE

- 5.30.1 The Employer and the Union agree that a series of active measures are required to appoint a larger number of qualified Aboriginal professors, librarians and archivists at Laurentian University, particularly outside Aboriginal-specific programs.
- 5.30.2 The Employer agrees to develop a "grow-our-own" program to recruit and appoint Aboriginal professors, librarians and archivists to probationary appointments, who, on the condition of agreeing to work at Laurentian as professors/librarians for a minimum of three (3) years, shall be supported in completing the academic qualifications needed for tenure (per Article 5.10 – Academic Qualifications Guidelines). The details of the program are to be agreed to by the Employer and the Union in consultation with the Office of the Associate Vice-President, Academic and Indigenous Programs.

ARTICLE 5.35 – NEWLY HIRED MEMBERS

- 5.35.1 In the year the Forced Contract is being negotiated, all new hires whose appointments are effective July 1 or before the signing of a new Forced Contract shall receive all increases in salary for that year that become effective July 1, except for the PTR increment, merit increment, or any other increase explicitly excluded by the new Forced Contract, irrespective of the actual date of commencement of employment.

ARTICLE 5.40 – ACADEMIC WORKLOAD

- 5.40.1 The academic workload shall be assigned in a fair and equitable manner. To help ensure this goal, each Member of a Department/School shall receive a copy of the Chair's/Director's recommendations to the Dean/University Librarian on the Member's own workload and a summary of the recommendations on all other Members in the Department/School, including any recommendations for overloads, prior to the recommendations being forwarded to the Dean/University Librarian. Each Member shall receive by April 1 a copy of the Dean's/University Librarian's decision on these recommendations. When Units make workload recommendations, regular workload will be determined prior to considering overload requests.
- 5.40.2 The academic workload of a full-time Member during the academic year includes: (a) teaching/professional librarianship/archives management, including the supervision of graduate and undergraduate students; (b) scholarly activity, including commitments to external granting agencies; (c) University governance, administrative duties, and other contributions to the University. The normal guideline for the distribution of the workload among the three (3) main workload components is: forty percent (40%) teaching/professional librarianship/archives management, including the supervision of graduate and undergraduate students; forty percent (40%) scholarly activity, including commitments to external granting agencies; and twenty percent (20%) University governance, administrative duties, and other contributions to the University.
- 5.40.3 (a) The assignment of the workload shall be communicated in reasonable detail, in writing, to the Member by April 1 by the Dean/University Librarian. The Dean/University Librarian shall request the written advice of the Department/School concerned. The Chair/Director shall submit the written advice of the Department/School by February 15 and the Dean/University Librarian shall not unreasonably refuse the advice of the Department/School. The timetabling of the teaching load/library assignment shall be

communicated in writing to the Member by July 15 by the Dean/University Librarian after consultation with the Registrar. For the duration of this Forced Contract the Registrar shall have final authority in time-tabling all courses.

(b) The following information will be provided in workload letters which will be made available in the Department/School office:

- i. All courses being taught including the full course code, the term, language of instruction, mode of delivery and the assigned Senate credit weighting for the course;
- ii. All overloads;
- iii. All participants in any co-teaching assignment;
- iv. All unpaid courses;
- v. All non-instructional work with a credit weighting or stipend and a code identifying the nature of the work;
- vi. All buyouts;
- vii. All leaves.

(c) Establishing the Professional Practice Component of Individual Workloads – Librarians

In considering the professional practice component of individual workloads, relevant factors include the following, as applicable:

- i. Development, management and evaluation of information resource collections;
- ii. Provision of specialized and general reference services;
- iii. Appraisal, acquisition, control, storage, preservation and conservation of information resources and collections;
- iv. Management of material library resources;
- v. Selection, development, implementation and management of information systems designed to enable access to library services and resources, build digital collections, and facilitate scholarly communication;
- vi. Provision of information literacy and curriculum support including programming, collaboration, instruction and teaching;
- vii. Faculty outreach and liaison, including participation in research and support for scholarly communication;
- viii. Evaluation, measurement and analysis of user needs and library services and resources;
- ix. Research services, extension, and other activities related to programs at the University; and
- x. Any other relevant activities.

5.40.4 The composition of the workload of Members may vary with their discipline, and will take into account the capabilities of the Members, the need to maximize their potential and any obligations placed on them within the University's operations, consistent with the terms of this Forced Contract. In the assignment of teaching loads, the Deans, in consultation with the Departments/Schools, shall consider not only the number of courses taught by a Member, but the size and type of such courses as well as administrative and other duties. Members' workloads shall also be subject to the following maximum norms for assigned workloads.

(a) Teaching Members: In the assignment of teaching loads by the Deans, in consultation with the academic Departments/Schools, the maximum normal teaching load per academic year shall be two and one-half (2 ½) full courses or fifteen (15) credit equivalents in all Faculties.

Effective July 1st, 2017 the current practices (2014-2017) regarding the application of coordinator credits and student supervision shall not change. Appendix N will be the baseline for the assignment of coordinator credits and Appendix O will be the baseline for the assignment of course coordination.

(b) Professional Librarian and Archivist Members: In the assignment of workloads by the University Librarian, the normal hours of scheduled student contact shall not exceed twelve (12) per week, scheduled fairly and equitably and on the recommendation of the Department.

(c) Notwithstanding Article 5.40.4 (a) above, Members on a twelve (12) month limited-term appointment may have a teaching load of three (3) credits above the normal teaching load. This above-normal teaching load shall be for a maximum of twelve (12) months only. Any extension of the twelve (12) month limited-term appointment or any additional limited-term appointments to the Member shall be according to the normal teaching load as specified as per Article 5.40.4 (a) above.

(d) The Parties agree that it is mutually beneficial to allow Members to bank or owe teaching credits as outlined below. The banking or owing of teaching credits will be permitted in the following cases:

- I. The Member proposes to arrange a teaching-reduced or teaching-free term for the purposes of scholarly activity
- II. The total credit value of the Member's normal assigned teaching load deviates by not more than six (6) credits from the normal maximum teaching load
- III. The Member undertakes academic supervision of an individual student pursuant to Article 5.40.8 (h)
- IV. Courses assigned as part of the Member's normal workload are cancelled due to low enrolment

Members shall not normally be permitted to bank or owe more than six (6) teaching credits at any given time. Members with banked teaching credits may request a maximum of six (6) credits release per academic year. The scheduling of the reduction shall be with the mutual agreement of the Member and the Dean. No remuneration for banked teaching credits will be provided in lieu of release time. If the Member's Department/School agrees with the Member's proposal to arrange a teaching-reduced or teaching-free term for the purposes of scholarly activity and recommends it to the Dean for approval, the Dean shall not unreasonably refuse such a recommendation. Members owing three (3) or more teaching credits shall undertake to teach a course above the normal teaching load without remuneration within three (3) years of the end of the term during which the total number of credits owing reached three (3).

In the event that the Member leaves his/her employment due to retirement, resignation, death or dismissal, the Member shall not be entitled to remuneration for any banked teaching credits, nor shall he/she be required to repay any teaching credits owing at the time of the termination of employment.

When a member was scheduled to teach extra credits in a semester to make up credits owing from an earlier semester and the member is on sick leave for that term, the member will be paid full sick leave during that semester, but will still owe the credits in question and will make those credits by teaching extra credits in a semester following her/his return from sick leave.

When a member was scheduled to teach fewer credits in a semester to compensate for credits banked from an earlier semester and the member is on sick leave for that term, the member will be paid full sick leave during that semester, but will still maintain the banked credits in question to be used to reduce her/his teaching load in a semester following her/his return from sick leave.

The semester in which the owed or banked credits are to be used will be determined in accordance with the processes in the Forced Contract, with appropriate adjustments to the time in which such credits must be used in order to reflect the member's sick leave.

5.40.5 The Dean/University Librarian may include in Members' workloads any teaching/professional library or archival assignment related to their discipline and any on-campus administrative activity that the Dean/University Librarian considers necessary for the effective operation of the Faculty/Library or of the University program. With regard to the load for teaching/professional librarianship/professional archival work, generally prevailing past practices shall apply unless these practices have been the result of Members undertaking voluntarily unpaid overloads to maintain the integrity of programmes or service commitments in Department/Schools which have suffered complement reductions due to budgetary pressures or unless specific provisions in this contract state otherwise.

5.40.6 The determination of the workload shall be subject to the following conditions:

- (a) The Dean/University Librarian, in accordance with Article 3.10 – Academic Freedom, shall not impose specific scholarly tasks other than the teaching/professional librarianship duties referred to in Article 5.40.5 above. Specific tasks related to the internal governance of the Department/School shall not be imposed by the Dean/University Librarian, except for the appointment of an Acting Chair/Director as in Articles 9.15 – Selection of Chairs/Directors and 9.20 – Term of Office of Chairs/Directors. The Dean/University Librarian may assign specific responsibilities concerning a University-related community activity in consultation with the Member. The Member shall not unreasonably refuse.

- (b) The Dean/University Librarian shall normally not impose on any individual a workload in excess of that which in the past has generally been applicable to Members within the Faculty/Library to which the Member belongs. The Parties agree that excessive overload teaching/professional library work is undesirable and for that reason compensation for teaching-related overloads from all sources, including courses administered through the Centre for Continuing Education, shall be limited to a maximum of twelve (12) credits per year with a maximum of nine (9) credits in either the Fall/Winter or the Spring/Summer sessions, the Parties further agree that the twelve (12) credit overload allowance shall be limited to three (3) consecutive years.
 - i. Where the above limitation on total compensation to a Member involves a component from the supervision of a distance education course(s) according to Article 8.40.5 of Article 8.40 – Distance Education Courses, the University shall make available marking assistance as required and in keeping with the degree of limitation.
- (c) From time to time, the Dean/University Librarian, in consultation with the Department/School may request a Member to undertake additional duties over and above the normal workload. In such instances, an overload payment shall be made, as in Article 8.35 – Overloads. The Member shall not unreasonably refuse such assignments. Members who believe they are entitled to overload payments shall apply through the Dean/University Librarian to the Vice-President, Academic and Provost within ten (10) working days after the assignment of the workload. The Vice-President, Academic and Provost shall provide an answer, in writing, to the Member within ten (10) working days of her/his application. If negative, the decision shall be accompanied with reasons.
- (d) In the event that a workload assignment, with regard to the courses taught or professional librarian duties or other assigned duties, is not acceptable to the Member or the Department/School, after discussion with the Dean/University Librarian, the Member or the Department/School may appeal to the Vice-President, Academic and Provost by April 7. The decision of the Vice-President, Academic and Provost shall be communicated in writing to the Member and Department/School before April 21.
- (e) The credits for courses approved by Senate (Council on English Language Programmes (CELP) and Conseil des programmes en français (CPF)) shall not be altered when the Dean assigns the teaching of any of these courses to a Member. However, the workload credit for a faculty Member is subject to the provisions of this Article 5.40.6 and Article 5.40.8
 - i. Human Kinetics activity courses will be weighted at 2.25 credits.
 - ii. It is agreed and understood that where Members engage in the supervisory work set out in 5.40.8 (h) they will be compensated as provided therein.
 - iii. It is further agreed and understood that unless a course, as approved by the Senate, requires scheduled classroom teaching, or as otherwise agreed by the parties, there will be no workload credit.
- (f) When a Member is assigned to teach two (2) or more courses at the same time and location, she/he shall receive workload credit for the course with maximum credits.

5.40.7 Once assigned, workloads shall not be altered except in cases of emergency. If a proposed workload must be altered, such alteration will be taken into consideration in the annual performance evaluation. However, alterations for reasonable program requirements and low enrolment may be made within 30 days of the start of the term in which the course is being offered.

If the Dean, for non-emergency reasons, deems it necessary to alter the workload of a Member once it has been assigned, the Dean must obtain the agreement of the Member.

Any alteration to a Member's workload, including any associated overload payments shall be communicated to each Member of the Department/School within five (5) working days after the Member has been formally notified of the change.

Notwithstanding the provisions of this Article, when an assigned course(s) is cancelled because of zero registration in the course(s) there arises an obligation on the part of the Member to undertake additional

work in order to maintain fairness and equity within the Department/School. The nature and extent of such work shall be determined in discussions between the Member, the Chair of the Department/School and the Dean. In the event that the Member was scheduled to receive an overload stipend such a stipend should be reduced appropriately. In the case where additional work assigned is in the form of a course, such course shall be one the Member has taught in the last two (2) years, unless otherwise agreed to by the Member.

5.40.8 The determination of the workload for Members of the teaching faculty shall also be subject to the following conditions:

- (a) A Member is entitled to one (1) term without scheduled teaching among the Fall, Winter and Spring terms as part of her/his normal workload. The scheduled teaching duties as part of a Member's normal workload shall normally be in the Fall and Winter terms of the academic year.
- (b) In the case of distance education courses or off-campus courses, consultation times shall be arranged for the teaching locale in accordance with the requirements of the subject matter. The Chair/Director shall outline the norms in consultation with the Department/School.
- (c) In the case of evening courses, the Dean shall not assign another course scheduled to begin within twelve (12) hours of the scheduled end of the evening course unless the Member agrees to this in writing.
- (d) With the exception of Members who are teaching at this University for the first time or teaching in a new program, no Member shall be required in an academic year to prepare for more than one (1) full course or two (2) half (1/2) courses (or equivalent) which she/he has not taught at least once during the previous four (4) years. Normally, no Member shall be required to undertake such course preparation more than once every two (2) years, nor shall any Member be required to undertake new course preparation unless requested to do so by June 1. Where a course is replaced by a renamed or renumbered version of what is essentially the same course in the same language, it shall be deemed to be the same course for purposes of this Article.
- (e) Members may be required to supervise or develop distance education courses as part of their normal workload subject to provisions of Article 8.40 – Distance Education Courses. Members whose appointments specifically included the development of distance education courses as part of their normal workload may be assigned such duties for the duration of their contract(s).
- (f) In order to enhance the ability of Members to undertake scholarly activity, it is desirable to schedule the teaching activities in such a way as to create blocks of time free of scheduled teaching activities. For the Fall and Winter terms, the scheduling of courses shall permit every Member to have at least one (1) day per week for scholarly activity during which she/he is not expected to teach scheduled classes. Members wishing to create additional such days or blocks of time without scheduled teaching shall approach the Chair/Director of the Departments/Schools and the Dean with an appropriate request. These officials shall make reasonable efforts to accommodate such requests within the constraints imposed by requirements of offering programs and courses to students. When competing requests for time blocks without scheduled teaching cannot be met for all applicants, priority shall be given to those individuals who earlier have been unsuccessful in making such a request, provided that these were based on bona fide requirements to enhance scholarly activity.
- (g) Full-time Members teaching in programs where the preparation of a thesis is mandatory for students have an obligation to participate in the thesis supervision provided that they are qualified to do so. However, the Parties agree that the close working relationship desirable for the successful preparation of a thesis is best achieved under conditions that allow for mutual choice on the part of the Member and the student before entering the supervisor/student relationship.
- (h) When a Member undertakes academic supervision of an individual student in a program offered by Laurentian University, such supervisory work shall be recognized upon its successful defence or completion as follows:
 - (i) The compensation outlined below may be shared by agreement between two (2) or more Members who have contributed to the thesis or other supervision. In cases of disagreement, the Dean shall arbitrate the proportions.
 - (ii) Members will be paid the monetary value accumulated for any supervisory work in their

professional expenditure account.

- (iii) Once the supervisory work has been completed, it shall be the responsibility of the Member to report such completion to the Dean on a form co-signed by her/his Chair/Director. The Dean's Office shall arrange for the transfer of funds to the Member's professional development expenditure within 60 days of approval.
- (iv) Based on existing program requirements, the Dean shall identify those programs which have

Supervisory work	Monetary value
PhD Thesis	\$3,000
Master's Thesis or Advanced Practicum in Social Work	\$1,000
PhD or Master's Research Project, Research Essay, Directed Reading Seminar or Independent Study	\$500
Undergraduate Thesis or School of Architecture Master's Thesis	\$333
Undergraduate Directed Reading Seminar or Independent Study where mandatory	\$250

mandatory supervisory needs as per Article 5.40.8 (g) above. Any Member planning to supervise an individual student in another program under this paragraph needs the prior authorization of the Dean.

5.40.9 The determination of the workload for professional librarians shall also be subject to the following conditions:

- (a) Members may be requested to offer service during one (1) evening per week and if requested, they shall not unreasonably refuse, provided that such requests are made on a fair and equitable basis.
- (b) Professional librarians may be expected to carry library supervisory duties.

5.40.10 In order to promote scholarly activity, as defined by section B) Scholarly Activity of Article 5.15 – Rights, Responsibilities and Duties of Academics within the University, a Member may have her/his teaching/library service workload altered. Requests for workload reductions as a result of other paid activity shall be considered in accordance with the provisions of Article 7.35 – Voluntary Reduced Workload. However, contract research where the Member is paid a stipend not to exceed twenty thousand dollars (\$20,000) for her/his services may be considered under this provision.

- (a) Without compensation to the University:

For such an assignment to become operative, it shall require the recommendation of the Department/School, of the Dean/University Librarian, and approval of the Vice-President, Academic and Provost. Faculty Members who receive one (1) or more course reductions for purposes of enhancing scholarly activity, including the preparation of teaching materials for the Centre for Continuing Education, shall not be entitled to overloads as per Article 5.40.6 (b) above. This restriction

shall also apply to Librarians and Archivists whose workload is also reduced for scholarly purposes.

(b) With compensation to the University:

A Member with a regular teaching load may elect to buy-out of up to fifteen (15) credits of teaching load over five (5) years, not to exceed six (6) credits per year, or the equivalent of professional library service in order to concentrate on research activities. It is acknowledged that certain grants may require a reduction in teaching loads exceeding fifteen (15) credits. The buy-out must be applied for no later than February 1 of the year preceding the academic year for which it is requested and the Dean/University Librarian shall not unreasonably refuse such request. The Dean/University Librarian shall communicate her/his decision by April 1. The buy-out shall cover the actual cost (including benefits) to replace the teaching/professional library work but shall not exceed the overload or sessional rate of pay as appropriate. A Member shall not be refused such a request for two (2) consecutive years.

5.40.11 As per Article 5.40.10 (a) Members can request a reduced teaching load to increase scholarly activity. Members may opt to do unpaid overloads to offset scholarly activity requirements. However, a paid overload is work performed above the normal workload and does not offset scholarly activity or governance requirements.

5.40.12 The workload of any or all Members shall be made known to the Union on request.

5.40.13 It is acknowledged that the provision of teaching assistants is a factor to be considered in the assignment of workloads. As such the Vice-President, Academic and Provost will ensure to the greatest degree possible the equitable distribution amongst the Faculties of such assistance, consistent with the identified needs of the Department/School.

ARTICLE 5.41 – MIDWIFERY PROGRAM

5.41.1 For the purposes of this Forced Contract, the Midwifery program shall be treated as a Department/School.

5.41.2 It is understood that each Midwifery faculty Member will be employed by Laurentian University for a minimum of fifty percent (50%) of a full-time position with the requirement that the faculty Member maintain a midwifery practice sufficient to qualify and maintain current registration with the College of Midwives.

A Member may request an increase in workload while maintaining professional registration. Where extra courses are available, full-time Members may request to increase their workload up to one hundred percent (100%) with a commensurate increase in salary. Such request will be submitted in accordance with Article 5.40 - Academic Workload.

5.41.3 For the application of tenure and promotion policies, assessment criteria and standards will reflect the actual workload. All relevant timelines shall continue to apply, and will not be pro-rated on the basis of workload.

5.41.4 Midwifery Faculty Members have the right to benefits and to contribute to the benefits plan of the University in accordance with the provisions of the Forced Contract for sharing contributions.

(a) *Sick leave.* Members will be covered for periods of sick leave to the extent of the actual salary paid during that period as per Article 7.55 – Physical and Mental Illness.

(b) *Long-Term Disability.* Members must be provided with specific information concerning coverage for Long-Term Disability at the time of appointment.

(c) *Pension Plan.* Members may contribute to the pension plan on the basis of their actual salary.

(d) *Life Insurance.* Life insurance may be carried based on the Member's actual salary.

(e) *Sabbatical Leave.* Salary received on sabbatical shall be pro-rated to reflect the average workload of the qualifying years. All relevant timelines shall continue to apply, and will not be pro-rated on the basis of workload.

ARTICLE 5.45 – ANNUAL REPORT FOR MEMBERS

- 5.45.1 All full-time Members, except those on sabbatical or study leave who have given prior notice to their Dean/University Librarian of their intent to postpone submission until their return, shall submit a report in electronic and paper format, on their activities for the preceding twelve (12) months to the Office of the Dean/University Librarian, by May 15. The report will cover all components of her/his responsibilities as listed under Article 5.15 – Rights, Responsibilities and Duties of Academics.

Members on sabbatical or study leave are covered by Article 7.25 – Sabbatical Leaves and 7.30 – Study Leave respectively.

- 5.45.2 In preparing their reports, Members shall use the appropriate standardized form developed for each Faculty and the Library.
- 5.45.3 It is also the responsibility of the Members to provide annually an up-to-date and corrected curriculum vitae for their personnel file.

ARTICLE 5.50 – ASSESSMENT OF A MEMBER'S PERFORMANCE

- 5.50.1 When making assessments on contract renewal (Article 5.20 – Appointment and Renewal), tenure (Article 5.60 – Tenure Evaluation Procedures), promotion (Article 5.65 – Promotion Procedures) and merit increments (Article 8.25 – Merit Increments), the assessors shall consider the Member's performance in the areas outlined in Article 5.15 – Rights, Responsibilities and Duties of Academics.

- 5.50.2 The assessors may consider as mitigating factors:

- (a) The bilingual and tricultural character of Laurentian University.
- (b) In the case of Librarians/Archivist, the amount of time available for scholarly activities.

- 5.50.3 The assessment of a Member's teaching performance shall be based on Senate approved course evaluations and the Member's annual teaching dossier.

- (a) During each term of the academic year, the Employer shall administer the course evaluations approved by the Laurentian University Senate. The Vice-President, Academic and Provost shall be responsible for the distribution and collection of the said instruments. It is agreed that Members shall have access to the results of course evaluations prior to their use by the University.

In the case of co-taught courses, the following shall apply:

- (i) For courses co-taught sequentially, there shall be separate evaluations for each professor prior to the end of each sequence.
- (ii) For all other co-taught courses, the information provided to the assessors will indicate that the evaluation in question shall be viewed with caution.

Should a Member feel that a course should be exempt from the approved evaluation process, reasons for exemption should be addressed to the Vice-President, Academic and Provost no later than the end of the first week of classes in that course. The Vice-President, Academic and Provost will communicate her/his decision on the request prior to the planned date of the course evaluation.

- (b) It is the responsibility of Members to maintain on an annual basis their teaching dossiers. For each course, the annual dossier must contain at least the following material:
 - (i) Course syllabus and sufficient material to permit an evaluation of the contents of the course, the teaching/learning process, and the means of assessing the performance of the students.
 - (ii) Sufficient material to permit the evaluation of the Member's teaching performance as perceived by groups such as graduates, peers, or students.

- (iii) The file should also contain any other material that the Member deems relevant to her/his teaching role.
 - (iv) In the case of co-taught courses, the Member shall include in the dossier information about which parts of the course/s fell within her/his responsibility for course preparation, scheduled classroom, laboratory and tutorial time with students, evaluation of students, and course administration.
- (c) Assessors shall use the results of the teaching evaluations in their assessments with the understanding that these evaluations comprise only one part of a Member's teaching dossier.
- 5.50.4 Notwithstanding the priorities for teaching/librarianship/archival management and/or scholarly activities as noted in the various Articles in this Forced Contract, the Parties recognise that the University benefits greatly from significant contributions in many areas including academic administration and/or university governance, continuous involvement in a Member's professional/learned society or in a community activity directly related to the work of the University. The Parties agree that Members who have made such contributions shall have these contributions taken into especial account as compensating for lesser performance in another area.

Notwithstanding the priorities for scholarly activities as noted in the various Articles in this Forced Contract, the Parties recognise that the University benefits greatly from the contributions of Members who are exceptional teachers. Members who can make such a contribution shall have this taken into especial account as compensating for lesser performance in another area. When considering librarians/archivists, professional service and library management skills shall be substituted for "teaching".

Assessment Procedures

- 5.50.5 The applicant shall submit her/his academic dossier to the Dean/University Librarian by July 2, who shall make a copy available to the Department/School by September 1. Members of the Department/School who are eligible to participate in the assessment shall have access to the applicant's dossier. The applicant shall have the right to update her/his academic dossier until such time as the Department/School has made its assessment. Any updates to the academic dossier shall be brought to the attention of the Vice-President, Academic and Provost before the decision is rendered.
- 5.50.6 No later than July 15, the Union shall receive from the Employer a list of all applications being made by Members during the current academic year.
- 5.50.7 The assessors shall put forward their recommendation in written form setting forth their findings and grounds for recommendation in order that the applicant may know which factors were persuasive in a recommendation. In all considerations of renewal, tenure, promotion and merit increments, the assessors shall use the following assessment procedures:

Dean/University Librarian

- (a) The Dean/University Librarian shall prepare an independent letter of assessment of the application. In assessing applicants, the Dean/University Librarian shall not see internal or external letters of assessment before submitting her/his own independent letter of assessment of the applicant.

The Dean/University Librarian may take into account but not be limited to those parts of the applicant's current personnel file that are relevant to the matter being discussed. The applicant shall be provided with a list of material from the personnel file that is being considered and that has not accompanied the application. In the case of applicants who submit updates to their academic dossier before September 1, the Dean/University Librarian shall consider such changes and amend the letter as necessary.

The Dean/University Librarian shall forward her/his own independent letter of assessment of the applicant simultaneously to the Chair of the Faculty Personnel Committee and to the applicant by September 1 for renewal and tenure applications, and by October 1 for promotion and merit applications. The applicant has the right to respond in writing to the Dean's/University Librarian's independent letter of assessment of the applicant within five (5) working days of its receipt. The applicant shall send her/his response, if any, directly to the Chair of the Faculty Personnel Committee.

For promotions to the rank of Full Professor/Librarian, the Dean/University Librarian may append additional comments to the assessment within one (1) week of receiving the reports of the external assessors. These assessments shall be made available to Members as soon as they are prepared and at least one (1) week before a Faculty Personnel Committee considers a given case.

Department/School Assessment Committee

- (b) Only tenured Members of the appropriate Department(s)/School(s) are eligible to participate in the assessment process except under the circumstances defined in Article 5.50.7 (i).

Each tenured Member has a responsibility to participate and to vote in the assessment process. Members on sabbatical or other leaves, excluding leaves of absence without pay or long-term disability, have the right to participate and to vote in the assessment process.

- (c) In a timely fashion and with sufficient notice the Chair/Director of the Department/School or designate shall convene a meeting of the eligible Members to assess the applicant's academic dossier. Those eligible shall meet as often as necessary for the purpose of writing a joint single letter of assessment for the application. A vote on the application shall occur and be recorded. The eventual joint single letter of assessment shall be forwarded to the Chair of the relevant FPC.
- (d) The proceedings of the meetings are to be undertaken in camera. It is understood that nothing in this Article shall prevent a Member from discussing with the Union concerns about potential breaches of the Forced Contract.
- (e) In exceptional circumstances, where an eligible Member is unable to attend Department/School assessment committee meetings, the Member may submit to the committee an individual letter of assessment with her/his recommendation and vote, both of which shall be incorporated into the joint single letter of assessment of the Department/School. The individual letter of assessment with her/his recommendation and vote shall be provided and read to the Department/School assessment committee during the course of its deliberations.
- (f) The joint single letter of assessment shall address the criteria outlined in Article 5.15 – Rights, Responsibilities and Duties of Academics and contained in the assessment form in Appendices C-I – Department/School Assessment Form. The letter shall state the recommendation, the reasons and evidence for the recommendation, the votes for and against the recommendation, and the names of Members participating in the assessment process. There shall be no abstentions. The joint single letter of assessment shall include both majority and minority recommendations and reasons for the different recommendations where Members request. Prior to its submission, the assessment committee's joint single letter of assessment shall be reviewed by all participants in the assessment process for final approval of its accuracy.
- (g) The Chair/Director of the Department/School shall forward the assessment of the application by the assessment committee to the Chair of the Faculty Personnel Committee not later than October 15 for renewal and tenure applications and not later than November 15 for promotion and merit applications. The Chair of the Faculty Personnel Committee will forward the unit assessment to the applicant once he/she has verified that the proper process has been followed. The applicant has the right to respond in writing to the assessment by the assessment committee within five (5) working days of its receipt. The applicant shall send her/his response, if any, directly to the Chair of the Faculty Personnel Committee.
- (h) All letters of assessment internal to the University shall be signed and the recommendations shall be based on evidence.
- (i) In Departments/Schools with fewer than four (4) eligible colleagues apart from the applicant, the applicant's Dean/University Librarian in consultation with the Department/School and approval of the Union, shall add eligible Members from other Departments/Schools so that a minimum of four (4) eligible Members is attained.
- (j) Where the applicant is appointed to more than one (1) Department/School, a written assessment concerning the contributions the applicant has made to the cross-appointed Department/School shall

be undertaken by the cross-appointed Department/School provided in accordance with the terms specified in Article 5.20.32 and Article 5.20.33 of Article 5.20 – Appointment and Renewal. The complete assessment of the applicant by the assessment committee of the Department/School of primary responsibility and the written assessment of the cross-appointed Department/School shall be weighted by the Faculty Personnel Committee to reflect proportionately the extent of the Member's responsibilities in each of the Departments/Schools. The applicant has the right to respond to the written assessment of the cross-appointed Department/School in writing within five (5) working days of its receipt. The applicant shall send her/his response, if any, directed to the Chair of the Faculty Personnel Committee.

Faculty Personnel Committee

- (k) Within two (2) working days of the receipt of the Department/School's letter of assessment, the Chair of the Faculty Personnel Committee shall make available to the Faculty Personnel Committee, the academic dossier of the applicant, the letter of assessment by the Department/School, the letter of assessment by the Dean/University Librarian, the written representations by the applicant, and any external letters of assessment.
- (l) Any required external letters of assessment as per Article 5.65 – Promotion Procedures shall be sent directly to the Vice-President, Academic and Provost, who shall edit these external letters of assessment only to conceal the identities of the external assessors. The Vice-President, Academic and Provost shall then forward the external letters of assessment simultaneously to the Chair of the Faculty Personnel Committee and the applicant. The applicant has the right to respond in writing to the external letters of assessment within five (5) working days of its receipt.
- (m) When the Faculty Personnel Committee has completed its deliberations in accordance with its responsibilities as outlined in Article 5.55 – Faculty Personnel Committee, the Chair shall prepare a letter reflecting the substantive and comprehensive reasons for the endorsements or refusal of endorsements contained in the assessment review form as per Appendices K -Q Faculty Personnel Committee Assessment Review Form. Where appropriate, the completed letter shall include minority and majority views.

The assessment letter of the Faculty Personnel Committee shall contain the following paragraph: "The Member may make written representations to the Vice-President, Academic and Provost within ten (10) working days of the date on which the Faculty Personnel Committee forwards to the Member a copy of its assessment letter to the Vice-President, Academic and Provost."

The Chair of the Faculty Personnel Committee shall forward the assessment letter to the Vice-President, Academic and Provost, with a copy to the applicant, by December 15 for renewal and tenure applications, and by February 15 for promotion and merit applications, with the exception of applications for promotion to Full Professor/Librarian.

Decision of the Vice-President, Academic and Provost

- 5.50.8 The decision of the Vice-President, Academic and Provost on the application shall be based solely on the content of the assessment file which includes the recommendations of the assessors, the review of the Faculty Personnel Committee, any written representations from the Member and any external letters of assessment. The decision of the Vice-President, Academic and Provost shall be communicated in writing to the Member with a copy to the Union. The letter shall include substantive and comprehensive reasons for the decision.

In the case of applications for renewal and tenure, the decision of the Vice-President, Academic and Provost shall be communicated to the Member no later than March 1 of the academic year in which the Member is being considered. If the decision of the Vice-President, Academic and Provost on renewal and tenure applications is not communicated to the Member by March 1, the Member shall be guaranteed employment for the next academic year.

In the case of applications for merit and promotion, with the exception of promotion to Full Professor/Librarian, the decision of the Vice-President, Academic and Provost shall be communicated to the Member no later than April 15 of the academic year in which the Member is being considered.

- 5.50.9 No later than May 15, the Union shall receive a summary from the Employer of the work of the Faculty Personnel Committee and the decisions of the Vice-President, Academic and Provost during the current academic year.

Timelines

- 5.50.10 The Timetable for the assessment process shall be as follows:

<i>Deadline</i>	<i>Steps</i>	<i>Article</i>
March 1	Secretary of Senate to issue a call for nominations for Faculty Personnel Committee positions	Article 5.55 – Faculty Personnel Committee
April 15	Secretary of Senate to ensure that Faculty Personnel Committee positions have been filled	Article 5.55 – Faculty Personnel Committee
May 1	Member may request a delay of up to two (2) years in the tenure review process, if Member had to deal with heavier than normal personal responsibilities or extraordinary circumstances	Article 5.60 – Tenure Evaluation Procedures
June 1	Vice-President, Academic and Provost to render decision on delay in tenure review	Article 5.60 – Tenure Evaluation Procedures
July 2	Deadline for submission of applications for renewal, tenure, promotion and merit to the Dean/University Librarian	Article 5.50 – Assessment of a Member's Performance
July 15	Employer to provide Union with a list of all assessment applications	Article 5.50 – Assessment of a Member's Performance
September 1	Deadline for Dean/University Librarian's letter of assessment on renewal and tenure applications	Article 5.50 – Assessment of a Member's Performance
October 1	Deadline for Dean/University Librarian's letter of assessment on promotion and merit applications	Article 5.50 – Assessment of a Member's Performance

October 15	Deadline for Department/School's letter of assessment on renewal and tenure applications	Article 5.50 – Assessment of a Member's Performance
November 15	Deadline for Department/School's letter of assessment on promotion and merit applications	Article 5.50 – Assessment of a Member's Performance
December 15	Deadline for Faculty Personnel Committee's letter of assessment on renewal and tenure applications	Article 5.50 – Assessment of a Member's Performance
February 15	Deadline for Faculty Personnel Committee's letter of assessment on promotion and merit applications	Article 5.50 – Assessment of a Member's Performance
March 1	Deadline for Vice-President, Academic and Provost's decision on renewal and tenure applications	Article 5.50 – Assessment of a Member's Performance
April 15	Deadline for Vice-President, Academic and Provost's decision on promotion and merit applications, with the exception of application for promotion to Full Professor/Librarian.	Article 5.50 – Assessment of a Member's Performance
May 15	Employer to provide Union with a summary of the work of the Faculty Personnel Committee and decisions of the Vice-President, Academic and Provost	Article 5.50 – Assessment of a Member's Performance

ARTICLE 5.55 – FACULTY/FRANCOPHONE FACULTY/LIBRARIANS AND ARCHIVISTS PERSONNEL COMMITTEE

Role and Responsibilities

- 5.55.1 The role of the Faculty Personnel Committee shall be to undertake a review of the assessments by the Department/School and the Dean/University Librarian on applications for contract renewal (Article 5.20 – Appointment and Renewal), tenure (Article 5.60 – Tenure Evaluation Procedures), promotion (Article 5.65 – Promotion Procedures) and merit increments (Article 8.25 – Merit Increments). In doing so, the Faculty Personnel Committee shall help to ensure that all applications have been fairly and completely assessed according to the terms of the Forced Contract.

The review shall result in either an endorsement or a refusal to endorse the assessments. The Faculty Personnel Committee shall communicate the result of its review, with comprehensive and substantive reasons, in writing to the Vice-President, Academic and Provost. The Faculty Personnel Committee shall use the assessment review form provided in Appendices K-P – Faculty Personnel Committee Assessment Review Form.

The advice of the Faculty Personnel Committee shall be considered by the Vice-President, Academic and Provost in making a decision on the application.

- 5.55.2 In addition, the Faculty Personnel Committee has the responsibility to act as consultant on any other matters as requested by the University or required by the terms of this Forced Contract.

Structure of the Faculty Personnel Committees

- 5.55.3 In each Faculty there shall be a Faculty Personnel Committee composed of five (5) elected Members plus two (2) alternates. A Dean/University Librarian appointed by the Vice-President, Academic and Provost shall be the non-voting Chair. There shall be no more than two (2) Members belonging to the same academic Department/School. Except as provided in Article 5.55.7 below, at least two (2) Members shall be Full Professors from within that Faculty.
- 5.55.4 There shall also be a Francophone Faculty Personnel Committee composed of five (5) elected Members plus two (2) alternates. The elected Members with the lowest number of votes shall serve as the alternate. A Dean/University Librarian appointed by the Vice-President, Academic and Provost shall be the non-voting Chair.

All Members of the Francophone Faculty Personnel Committee must be qualified Francophone Members i.e., in the case of teaching faculty, the Member must have taught or be scheduled to teach a course in French at Laurentian and in the case of the librarian faculty, the Member must have provided or be schedule to provide library service in French at Laurentian. In addition, two (2) of the six (6) Members of the committee must be Full Professors/Librarians and Archivists, except as provided in Article 5.55.7 below. Potential candidates will be identified by the Vice-President, Academic and Provost.

Each application form for assessment, as per Appendices C through I – Assessment Application Template, shall include the following statement:

“Please indicate whether you wish to have your application reviewed by the Francophone Faculty Personnel Committee. Yes or No.”

Applications are to be sent to the appropriate Dean/University Librarian who will forward these to the non-voting Chair of the Francophone Faculty Personnel Committee. Once a Member has selected a Committee, the Member shall not apply to another Committee either in that academic year or in the following year if the application were unsuccessful.

- 5.55.5 Members who conduct community-based research requiring engagement with First Nations, Métis or Inuit communities may request that two (2) Members who also conduct community-based research requiring engagement with First Nations, Métis or Inuit communities or who have taught or are scheduled to teach courses in Indigenous programs at Laurentian University be elected to the relevant FPC for a total of seven (7) voting Members. Such Members may or may not self-identify as First Nations, Métis or Inuit. The office of the Associate VP Academic and Indigenous programs would determine the eligibility of Members to serve in this capacity for the duration of the Forced Contract.
- 5.55.6 In the Library, there shall be a Library Faculty Personnel Committee composed of five (5) elected Members and one (1) alternate. Of the six (6) committee Members, one (1) must be from the Library, and five (5) must be from a Faculty outside of the Library. In addition, two (2) of the six (6) Members of the committee must be Full Professors/Librarians and Archivists, except as provided in Article 5.55.7 below. A Dean appointed by the Vice-President, Academic and Provost shall be the non-voting Chair.
- 5.55.7 In the Faculty of Management, there shall be a Management Faculty Personnel Committee composed of five (5) elected Members and one (1) alternate. Of the six (6) committee Members, one (1) must be from the School of Commerce and Administration, one (1) from the School of Sports Administration, and four (4) from a Faculty/Library outside of the Faculty of Management. In addition, two (2) of the six (6) Members of the committee must be Full Professors/Librarians/Archivists, except as provided in Article 5.55.7 below. A Dean/University Librarian appointed by the Vice-President, Academic and Provost shall be the non-voting Chair.
- 5.55.8 In the Faculty of Education, there shall be a Faculty of Education Personnel Committee composed of five (5) elected Members and one (1) alternate. Of the six (6) committee Members, one (1) must be from the School of Education, one (1) must be from l'École des sciences de l'éducation and four (4) from a Faculty/Library outside of the Faculty of Education. In addition, two (2) of the six (6) Members of the committee must be Full Professors/Librarians/Archivists, except as provided in Article 5.55.7 below. A Dean/University Librarian appointed by the Vice-President, Academic and Provost shall be the non-voting

Chair.

- 5.55.9 In the event that the requirements in Articles 5.55.3 to 5.55.8 above cannot be met, the first priority in dealing with insufficient Members at a rank shall be to seek nominations by Members of that Faculty/Library of Members of another Faculty/Library at the required rank. The second priority shall be to seek nominations by Members of that Faculty/Library of Members from the next lower rank within the same Faculty/Library.

Election of the Faculty Personnel Committee Members

- 5.55.10 The Secretary of Senate shall issue a call for nominations for the Faculty Personnel Committee positions no later than March 1 for applications to be assessed in the following academic year including the Members as identified in Article 5.55.5. The Employer and the Union each shall appoint one (1) scrutineer for the elections.
- 5.55.11 The Secretary of Senate shall ensure that the Faculty Personnel Committee positions have been filled by April 15 for applications to be assessed in the following academic year.
- 5.55.12 Nominations shall be by Members of each Faculty/Library. Voting shall be by Members of the faculty/library for Members of their own Faculty Personnel Committee. All Members shall be entitled to vote for Members in Article 5.55.5. Qualified Francophone Members may vote in the elections for faculty representatives on both the Faculty Personnel Committee and the Francophone Faculty Personnel Committee. Every effort shall be made to seek nominations from both male and female Members. Elections shall be conducted by the office of the Secretary of Senate by secret preferential ballot. The alternates will be the nominee not elected who received the greatest number of votes.
- 5.55.13 Any tenured Member may be a member of the Faculty Personnel Committee it being understood that:
- (a) No Vice-Dean may be a committee member.
 - (b) The President of the Union and the Chief Grievance Officer of the Union may not be committee members.
 - (c) An elected member may not serve for more than two (2) consecutive terms.
 - (d) A Member may not be a committee member during the academic year she/he is on sabbatical.
 - (e) No Member may serve on more than one (1) Faculty Personnel Committee in the same academic year except for the two Members identified in Article 5.55.5.
 - (f) Except in the case of the Library Faculty Personnel Committee, the Management Faculty Personnel Committee, and the Education Faculty Personnel Committee, a Faculty Personnel Committee member may not review the assessments of an applicant from her/his own Department/School. When required the member will be replaced by an alternate member. The member shall instead participate in the assessment at the Department/School level.
- 5.55.14 In the event that any positions of an Faculty Personnel Committee are not filled through the election process outlined, the Dean/University Librarian, or in the case of the Francophone Faculty Personnel Committee, the Vice-President, Academic and Provost, and an appointee of the Union's Board shall seek, within five (5) working days, a mutually acceptable candidate(s) who shall be named to serve.

Term of Office and Vacancies

- 5.55.15 The term of office of elected and appointed Faculty Personnel Committee Members shall be two (2) years, starting on July 1 following the election. To ensure continuity, terms shall be staggered.
- 5.55.16 A committee Member who makes an application for promotion or merit increment being evaluated by the Faculty Personnel Committee shall be deemed to have resigned from the committee.
- 5.55.17 In the event that replacements are needed, the Dean/University Librarian or in the case of the Francophone

Faculty Personnel Committee, the Vice-President, Academic and Provost and an appointee of the Union's Board shall (subject to Articles 5.55.3 to 5.55.8 above) seek a mutually acceptable tenured candidate who shall be named to serve.

- 5.55.18 An applicant may ask that a Faculty Personnel Committee Member recuse herself/himself in her/his particular case, on the grounds that a conflict of interest exists, or that a reasonable apprehension of bias exists. The applicant shall state the reasons in writing to the Chair of the Committee. The Chair shall render a decision with reasons to the applicant and the Member in question if the Member is to be recused. Even without a request from the applicant, the Chair of the Faculty Personnel Committee may require a Member to recuse herself/himself on one (1) of the same two (2) grounds. A Member may recuse herself/himself on her/his own volition.
- 5.55.19 In the context of collegial decision making, prior service in the same Department/School, joint service on University or Union committees or other normal acquaintance by itself does not necessarily constitute grounds for the presumption of conflict of interest or bias.
- 5.55.20 A quorum shall consist of the full committee including the two Members identified in Article 5.55.5, if applicable. The alternate may replace any elected Member when needed to obtain quorum.
- 5.55.21 The alternate Member shall act in the absence of a regular Member in order to obtain quorum. A regular Member who is unable to attend meetings shall so inform the Chair. The Chair shall formally invite the alternate to replace the regular Member. The alternate Member shall be kept informed of Committee proceedings and shall be invited to attend all meetings. The alternate Member has an obligation to stay abreast of the matters discussed.
- 5.55.22 Once a Faculty Personnel Committee has started to review a case, it shall be the responsibility of that Faculty Personnel Committee to see that case through to completion even if the process extends beyond one (1) academic year. In the event that replacements are needed, the Dean/University Librarian and an appointee of the Union's Board shall (subject to Articles 5.55.3 to 5.55.8 above) seek a mutually acceptable tenured Member(s) who shall be named to serve.

Operating, Voting, Recording and Reporting Procedures

- 5.55.23 The Chairs of Faculty Personnel Committee shall ensure that at the commencement of evaluations for renewal, tenure, promotion and merit increment all Members of the Committee are familiar with the employment equity policies and the criteria of assessment set out in this Forced Contract.
- 5.55.24 Before endorsing or refusing to endorse an assessment of an application, the Faculty Personnel Committee shall take into account the following evidence:
 - (a) The assessments by the Members of the Department(s)/School(s) and by the Dean/University Librarian.
 - (b) Any relevant material specified in the applicant's letter of application or curriculum vitae. The applicant shall be responsible within reason for producing one true copy of any material that she/he wishes to be considered.
 - (c) The written representations submitted by the applicant.
- 5.55.25 Endorsements or refusal of endorsements by the Faculty Personnel Committee shall be established by majority vote. There shall be no abstentions. Each Member shall record her/his vote with reasons on an assessment review form as per Appendices K-Q– Faculty Personnel Committee Assessment Review Form.
- 5.55.26 The Chair shall prepare a letter reflecting the substantive and comprehensive reasons for the endorsements or refusal of endorsements contained in the assessment review forms. Where appropriate, the letter must include minority and majority views. The letter shall record the vote and contain the following paragraph: "The Member may make written representations to the Vice-President, Academic and Provost within ten (10) working days of the date on which the Faculty Personnel Committee forwards to the Member a copy of the letter to the Vice-President, Academic and Provost." A copy of the letter shall be forwarded to the applicant. Prior to sending the letter to the Vice-President, Academic and Provost, the letter shall be brought to Faculty Personnel Committee for review and approval.

- 5.55.27 The letter and the assessment review forms shall be retained by the Office of Academic Staff Relations until all procedures up to and including arbitration have been exhausted.

Deadlines

- 5.55.28 In the event that an Faculty Personnel Committee is unable to meet any of the deadlines set out in this Forced Contract by virtue of its inability to meet with quorum, then all subsequent deadlines in the particular procedure are extended by the length of time that Faculty Personnel Committee requires to meet with quorum and make its endorsement or refusal of endorsement of the assessment.
- 5.55.29 Notwithstanding Article 5.55.28 above, the Member shall be guaranteed employment for the next academic year, as per Article 5.50 – Assessment of a Member's Performance, if the decision of the Vice-President, Academic and Provost on renewal and tenure applications is not communicated to the Member by March 1.

ARTICLE 5.60 – TENURE EVALUATION PROCEDURES

- 5.60.1 In the interest of the University community and of society at large tenure protects free criticism and independent judgement and hence forms an integral part of Academic Freedom per Article 3.10 – Academic Freedom.
- 5.60.2 Tenure means permanency of appointment. Such an appointment may be terminated through resignation, retirement, dismissal for cause as established by a proper hearing, redundancy or financial exigency consistent with the terms of this Forced Contract, or as otherwise stated in this Forced Contract. Tenure includes the right during appointment to academic freedom and to fair consideration for increases in responsibility and salary, and promotions in rank.
- 5.60.3 Members on probationary appointments shall normally begin to undergo a formal tenure evaluation no later than July 2 of the final year of their probationary status. However, Members may apply for tenure one (1) year prior to the final year of their probationary status. An early application for tenure may not result in a termination of appointment. Members considered for tenure at the end of the normal probationary period may be awarded tenure, denied tenure, or if the Member has not made an early application for tenure, may have her/his probationary period extended by one (1) additional year, during which she/he shall be evaluated for tenure for a final time. A Member may not be considered for tenure more than twice
- 5.60.4 However, in recognition of the fact that Members may have to deal with heavier than normal personal responsibilities or extraordinary circumstances, not faced by the majority of other Members, the opportunity is provided for a Member to request a delay of up to two (2) years in the tenure review process. Members wishing to delay their final tenure evaluation must apply in writing to the appropriate Dean/University Librarian by May 1 of the final year of their probationary appointment describing the special circumstances why a delay in tenure review is requested, identifying the particular area in the performance of the Member that would be strengthened by the delay and what steps the Member will take to meet the requirements for tenure during the period of the delay. The Dean/University Librarian, after discussion with the appropriate Department(s)/School(s) will forward a recommendation to the Vice-President, Academic and Provost who will render a decision by June 1. The Vice-President, Academic and Provost may authorise a delay in tenure evaluation for up to two (2) years. If the Vice-President, Academic and Provost does not authorise a delay in tenure evaluation, the evaluation will proceed. Failure by the Vice-President, Academic and Provost to authorise a delay in tenure evaluation shall not be subject to grievance and arbitration.
- 5.60.5 Members who have taken pregnancy, parental or adoption leave as provided under Article 7.60 – Pregnancy, Parental and Adoption Leaves during their probationary period may elect to postpone the mandated evaluations leading to tenure (both the evaluation for renewal of the probationary appointment and the final tenure evaluation) by one (1) year for each incident of leave period.

Assessment of Teaching Faculty

- 5.60.6 When an assessment of a Member's performance is undertaken, those making an assessment or being asked to endorse an assessment, shall use the following standards:
- (a) A record of satisfactory teaching in the pre-tenure years based on the teaching dossier and approved course evaluations as set out in Article 5.15 – Rights, Responsibilities and Duties of Academics and

Article 5.50.3 of Article 5.50 – Assessment of a Member's Performance. The nature and scope of past teaching activities shall be taken into account in assessing a Member. If the applicant has faced problems in teaching, the assessors will look for evidence that the applicant has recognized the problems, has taken steps to improve, and has made some improvements.

- (b) A record of satisfactory scholarly activity as defined in Article 5.15 – Rights, Responsibilities and Duties of Academics. The applicant shall show progress in independent scholarly or creative activity.
- (c) A record of contributions to University governance and administrative duties as set out in Article 5.15 – Rights, Responsibilities and Duties of Academics.
- (d) The applicant has met the formal educational or professional qualifications for the rank of Assistant Professor and bilingualism qualifications as set out in Article 5.10 – Academic Qualifications Guidelines, Article 3.30.5 of Article 3.30 – Bilingualism and Letter of Appointment, consistent with the Forced Contract.
- (e) The assessors shall be flexible in assessing stronger performance in some areas against weaker performance in other areas as set out in Article 5.50.4 of Article 5.50 – Assessment of a Member's Performance. However, in no instance shall it recommend tenure for an applicant if teaching performance is judged mostly unsatisfactory or if the applicant is not engaged in a program of scholarly activity.

Assessment of Librarians and Archivists

5.60.7 When an assessment of a Member's performance is undertaken, those making an assessment or being asked to endorse an assessment, shall use the following standards:

- (a) A record of satisfactory professional librarianship/archives management in the pre-tenure years based on the academic dossier as set out in Article 5.15 – Rights, Responsibilities and Duties of Academics and Article 5.50 – Assessment of a Member's Performance. If the applicant has faced problems in professional librarianship/archives management, the assessors will look for evidence that the applicant has recognized the problems, has taken steps to improve, and has made some improvements.
- (b) A record of satisfactory scholarly activity as defined in Article 5.15 – Rights, Responsibilities and Duties of Academics. The applicant shall show progress in independent research or creative activity.
- (c) A record of contributions to University governance and administrative duties as set out in Article 5.15 – Rights, Responsibilities and Duties of Academics.
- (d) The applicant has met the formal educational/professional/linguistic qualifications for the rank of Assistant Librarian or Assistant Archivist and bilingualism qualifications as set out in Article 5.10 – Academic Qualifications Guidelines, Article 3.30.5 of Article 3.30 – Bilingualism and Letter of Appointment, consistent with the Forced Contract.
- (e) The assessors shall be flexible in assessing stronger performance in some areas against weaker performance in other areas as set out in Article 5.50.4 of Article 5.50 – Assessment of a Member's Performance. However, in no instance shall it recommend tenure for an applicant if the applicant's performance in professional librarianship/archives management is judged mostly unsatisfactory or if the applicant is not engaged in a program of scholarly activity.

ARTICLE 5.65 – PROMOTION PROCEDURES

5.65.1 The term "promotion" applies to advancement from the rank of Lecturer to Assistant Professor, Assistant Professor to Associate Professor and Associate Professor to Full Professor, or to corresponding advancement for the Librarians/Archivists from the rank of:

- (a) General Librarian/Archivists to Assistant Librarian/Archivists,
- (b) Assistant Librarian/Archivists to Associate Librarian/Archivists; and
- (c) Associate Librarian/Archivists to Full Librarian/Archivists.

- 5.65.2 A Member is eligible to apply for promotion while on leave, but the Member is responsible for maintaining contact with the University and for all expenses incurred in making appearances when requested.
- 5.65.3 Members shall normally apply for their own promotion. Applications may also be submitted by Chairs/Directors, or a Dean/University Librarian on behalf of Members who have not themselves applied where the Members have declared their willingness to be considered.
- 5.65.4 Applications shall be made on the prescribed application form and forwarded in paper and electronic form to the office of the applicant's Dean/University Librarian, together with a paper copy of all necessary and relevant documentation.
- 5.65.5 The application for promotion shall reach the Dean/University Librarian not later than July 2, for decision in that academic year. Members are urged to consult with the Dean/University Librarian well in advance of the application deadline. If the Member so requests by June 1, the Dean/University Librarian will prepare a preliminary written assessment based on the requirements set out in the appropriate Articles of Article 5.10 – Academic Qualifications Guidelines within one (1) week of receiving the Member's application. A copy of this assessment will immediately be forwarded to the Member who will then have one (1) week to decide whether or not to proceed with the application.
- 5.65.6 The following documents must be attached to the application for promotion and must be submitted at the time of application:
- (a) An updated curriculum vitae of the applicant.
 - (b) For applications for promotion to Full Professor/Librarian:
 - (i) A list of at least three (3) referees, of which two (2) will be chosen, from outside the University qualified to assess the research and creative works of the applicant.
 - (ii) A copy of the research and creative works the applicant wishes to have considered in the examination of the application, it being understood that the applicant may attach a clear and detailed description of these works when the works are such that their physical submission is not practical. Barring unusual circumstances, it is assumed that all research and creative works submitted by the applicant will be made available to the external referees for review.
- 5.65.7 In making recommendations in promotion cases, the assessment procedure in Article 5.50 – Assessment of a Member's Performance is to be followed.

Recommendations of the Assessors

- 5.65.8 For appointment/promotion to the rank of Full Professor/Librarian, the assessors shall consider the assessment of the Member's scholarly activity as judged by four (4) external referees. Two (2) of these referees will be nominated by the applicant if the applicant so requests. Should the applicant fail to nominate one (1) or both external referees, the Member's Department/School will nominate the required referees. The additional external referees shall be appointed by the Vice-President, Academic and Provost after consultation with the Department/School. All external evaluations shall come to the assessors duly signed by the author.
- 5.65.9 In the case of Members at the rank of Lecturer/General Librarian/Archivists who are awarded a Doctoral degree, they shall be promoted to the rank of Assistant Professor/Librarian effective January 1 or July 1 whichever next follows the award of the degree. The Doctorate will be deemed to have been received when the individual can provide a diploma or a letter from the university where the Doctorate is being obtained indicating that all the conditions for the Doctorate, including the thesis defence and the corrections to the thesis, have been met. Members must supply a copy of the diploma or of the letter to their Dean/University Librarian with a normal application form as well as an updated curriculum vitae before the promotion procedures will be initiated. In the case of librarians, Members must also demonstrate that they are holders of a Master's degree in Library Science if their Doctorate is not in Library Science.

ARTICLE 5.70 – PERSONNEL FILES

Note: For Professional Staff, Dean and Vice-President, Academic and Provost shall be replaced by Manager/Director.

- 5.70.1 Official personnel files of a Member shall be kept by Office of the Vice-President, Academic and Provost with copy in the office of the Dean/University Librarian. Files for Professional Staff shall be kept in the office of Human Resources. The Employer agrees not to use any unofficial personnel information that is not maintained in accordance with this Article for any official purposes including disciplinary measures. There shall be two (2) types of files for Members, active files and archival files. Active files shall contain only information allowed under this Article. Archival files shall contain material which has been banned for use in subsequent proceedings as in Articles 5.70.5 to 5.70.9 below but which the University requires for matters other than those related to this Forced Contract.
- 5.70.2 Members shall have the right to examine all of their personnel files during normal business hours, after notice in writing, in the presence of the Dean/University Librarian or a person authorised by the Dean/University Librarian. Material in the files which is to be held confidential according to the provisions of this Forced Contract will be removed from the files prior to their inspection by the Member. However, an inventory of this confidential material, certified by the Office of the Vice-President, Academic and Provost, will be provided to the Member, such inventory shall identify all confidential documents by authorship (if appropriate), date and general subject matter only.
- 5.70.3 Members may request the Vice-President, Academic and Provost to provide one (1) copy of their personnel file, excluding confidential material according to the provisions of this Forced Contract but including the inventory thereof. Such requests will be filled within five (5) working days, at no charge to the Member. One (1) copy of additions made subsequent to the initial copying may be requested under the same conditions and terms. Requests for additional copies will be filled at the convenience of the Vice-President, Academic and Provost.
- 5.70.4 No anonymous material concerning any Member shall be kept by the Employer for inclusion in the Member's personnel file. Statistical summaries of student evaluations or written summaries of student comments unrelated to Senate sanctioned course evaluations, such summaries to exclude anonymous comments, shall neither be considered anonymous nor confidential and shall remain available when required by this Forced Contract.
- Officers of the Employer, including Deans/University Librarian, reserve the right to maintain personal notes and records for their own use.
- Records pejorative of a Member not included in her/his personnel file will not be passed on to other Officers of the Employer.
- 5.70.5 Members shall have the right to have all of their files supplemented or corrected in the event of error, or inadequacy. In the event of alleged distortion, Members shall have the right to provide additional material for inclusion in their personnel files. Members shall have the right to request the removal from their personnel file of any false, irrelevant or unsubstantiated material. Such requests shall be made through the Dean/University Librarian as appropriate and must be accompanied with reasons why the material is false, irrelevant or unsubstantiated. In the event of refusal by the Dean/University Librarian of such a request, the Dean/University Librarian shall provide the Member with reasons why the material is true, relevant or substantiated, and shall send a copy of that response to the Union. Members can grieve according to the provisions of this Forced Contract, providing only that such grievance is initiated within forty-five (45) working days of notification by the Employer to the Members that the material in dispute is to be included in their personnel file.
- 5.70.6 Letters of assessments received in relation to the appointment of a Member shall be confidential and shall not be submitted as evidence in any subsequent proceedings against that Member.
- 5.70.7 Letters of reprimand are inadmissible evidence if used against a Member for any purpose when no further disciplinary measures have been imposed on the Member for two (2) subsequent academic years. In advance of any proceedings involving the Member, the Dean/University Librarian shall remove such letters from the Member's personnel file and place them in a University depository. The Member shall be notified that this has been done.
- 5.70.8 All letters or assessments solicited by the Faculty Personnel Committee and any summaries thereof shall

be kept confidential and used only for the purposes for which they were solicited in any subsequent proceedings against that Member.

- 5.70.9 Student evaluations, in numerical or written form, shall not be admissible as evidence in any process involving a Member's tenure, promotion or dismissal if such evaluations are more than five (5) years old.
- 5.70.10 A full copy of a Member's file, including all letters of reference and assessments except those excluded by the provisions of this Forced Contract, shall be made available to the Faculty Personnel Committee and the Vice-President, Academic and Provost at their request for the purpose of promotion and tenure evaluation. Such committees will treat the file as confidential.
- 5.70.11 When confidential information is to be used by the Employer in the course of proceedings to resolve a grievance, the detailed substance of such confidential information shall be made available at least one (1) week in advance of the hearing to Members or their duly authorised representative in a form which does not identify the author. For arbitration, reasonable efforts will be made to supply the information as soon as practicable, subject to the above.
- 5.70.12 Where in the opinion of an arbitrator the identity of the author is central to the resolution of the difference, the arbitrator shall be supplied with the information and may make use of it as essential to her/his decision while maintaining the confidentiality thereof.
- 5.70.13 The Employer agrees not to release any individually identifiable information concerning a Member or Members without the written consent of the Member(s), except as provided for in Article 2.50 – Information.
- 5.70.14 In the case of an arbitration against dismissal, the contents of the official personnel file shall be made available to the Member as a true copy if and when the formal grievance procedure has been initiated using the same protection of confidentiality as stated in Article 5.70.11 above.

ARTICLE 5.75 – DISCIPLINE

- 5.75.1 Discipline of Members including dismissal shall be only for cause. Discipline shall be just and reasonable, based on the principle of progressive discipline, except in egregious cases.
- 5.75.2 Just cause shall be defined as:
 - (a) Gross misconduct including serious unprofessional behaviour and/or misconduct constituting a grave and direct violation of the personal safety of another Member; Members of the University community and/or students of the University community.
 - (b) Persistent failure to discharge academic responsibility as defined in this Forced Contract either through incompetence or neglect of duty to students or scholarly professional pursuits.
- 5.75.3 Just cause must be interpreted in the context of a University environment including the principles of tenure where applicable.
- 5.75.4 Discipline shall be imposed only in compliance with principles of natural justice and due process. Accordingly, the Member has a fundamental right to know, in a timely manner, the nature of the allegations against him/her, and the right to respond to such allegations.
- 5.75.5 The following are the only forms of discipline which may be taken by the Employer against
 - (a) a full time Member:
 - i. A letter of reprimand, specifying the grounds and adding this reprimand to the personnel file;
 - ii. The suspension with pay; if and only if the Vice-President, Academic and Provost cites the suspension with pay as a disciplinary measure. It is understood that where a suspension with pay is non-disciplinary such suspension shall not be referenced as disciplinary in any subsequent disciplinary actions;
 - iii. The suspension without pay; the reduction in pay shall be computed as one two hundred and sixtieth (1/260) of normal salary per day of suspension;
 - iv. The withholding of an annual increment;
 - v. Dismissal of a Member

(b) a sessional or part time Member

The following are the only forms of discipline which may be taken by the Employer against a sessional or part time Member:

- i. A letter of reprimand, specifying the grounds and adding this reprimand to the personnel file;
- ii. The suspension with pay; if and only if the Vice-President, Academic and Provost cites the suspension with pay as a disciplinary measure. It is understood that where a suspension with pay is non-disciplinary such suspension shall not be referenced as disciplinary in any subsequent disciplinary actions;
- iii. The suspension without pay, the reduction in pay shall be computed as 1/87 per day of suspension per three credit course and for Part-Time Clinicians the reduction in pay shall be computed as the average salary over the previous 4 weeks
- iv. The removal of seniority and/or Establishment
- v. Dismissal of a member for Part-time Clinician

- 5.75.6 When the Employer becomes aware of a matter that may lead to the imposition of discipline under this Article, including investigations triggered by a formal complaint pursuant to a discrimination and harassment policy, the Employer shall commence an investigation within twenty (20) working days. Except in circumstances where to do so would compromise the integrity of the investigation, the Member and the Union shall be notified in writing of the nature of the allegation(s) upon commencement of the investigation.

The investigation shall be completed within forty (40) working days of its commencement.

Prior to completing the investigation, the Employer shall schedule a meeting with the Member and his/her Union representative. The Member and her/his Union representative shall be given five (5) working days' notice of the time and place of the meeting wherever possible or practicable. The Employer shall also provide with the notice of meeting full particulars of the allegation(s) against the Member, including the name(s) of any complainant(s). At the meeting the Employer shall provide the Member with the opportunity to respond to these allegations.

- 5.75.7 When contemplating disciplining a Member following an investigation the Vice-President, Academic and Provost shall meet with the Member and his/her Union representative within 20 working days of the conclusion of the investigation to review the matter with the Member.

The Member and her/his Union representative shall be given five (5) working days' notice of the time and place of the meeting wherever possible or practicable along with a summary of the factual findings of the investigation.

The Vice President, Academic and Provost shall consider the representation of the Member and Union prior to the imposition of discipline.

- 5.75.8 Within five (5) working days of the meeting the Vice President, Academic and Provost shall notify the Member and Union in writing as to whether discipline shall be imposed, the nature of the disciplinary action, the reasons for it and the events being relied upon to support it.

- 5.75.9 All timelines in this Article can be extended by consent of the parties. The consent of either party shall not be unreasonably withheld.

Non-compliance with this Article will not result in discipline being automatically void. The effect of any prejudice to a Member as a result of non-compliance may be considered by an Arbitrator.

- 5.75.10 Cases involving non-culpable behaviour by a Member as a result of a physical or mental illness shall be treated separately from cases for disciplinary conduct and shall be dealt with in accordance with the *Ontario Human Rights Code*.

- 5.75.11 Grievances regarding disciplinary measures against Sessional Members shall be dealt with by the procedures in Article 4.40.7 of Article 4.40 – Withdrawal of Seniority for Sessional Members.

- 5.75.12 Any record of discipline shall be removed from a Member's personnel file after a period of twenty-four (24)

months from the date of the alleged infraction provided that no subsequent infractions of a similar nature have occurred within that period.

- 5.75.13 Letters of counselling are non-disciplinary letters. Letters of counselling may not be used to support or justify discipline, or a more serious form of discipline, except that letters of counselling may be used to refute a Member's claim that he/she was not aware of the wrongdoing giving rise to the discipline. The letters shall set out clear expectations from the Employer referencing the collective agreement. Every letter of counselling shall include the following statement: "This letter is not disciplinary in nature and does not attribute guilt." Letters of counselling are not a pre-requisite to discipline.

ARTICLE 5.85 – RESIGNATION

Academic Staff

- 5.85.1 Normally a Member may resign effective June 30 or December 30, with at least three (3) month's written notice to the Vice-President, Academic and Provost. All leaves to which a resigning Member would be entitled must be terminated at that date.
- 5.85.2 Employment may be terminated at any time by mutual written agreement between a Member and the Vice-President, Academic and Provost.
- 5.85.3 Faculty Members on a leave of absence at another university shall be deemed to have resigned six (6) months after they receive tenure at that institution.

Professional Staff

- 5.85.4 Professional Staff will provide their supervisor with a minimum of two (2) week's notice prior to resigning from their position.

ARTICLE 5.90 – RETIREMENT

5.90.1 *Normal Retirement Date*

For the purpose of the administration of the pension plan, the normal retirement date of a Member shall be the first (1st) day of July next following the attainment of age sixty-five (65), unless the Member's sixty-fifth (65th) birthday falls on the first (1st) day of July, in which case the Normal Retirement Date shall coincide with the Member's sixty-fifth (65th) birthday. However, in accordance with government statutes, retirement is not mandatory at that time.

5.90.2 *Optional Retirement Dates*

(a) Early Retirement

Early retirement shall be governed by the regulations of the Laurentian University Pension Plan.

(b) Retirement at Dates Other than July 1

Subject to 5.90.2 (a) above and in exceptional circumstances a Member may request and the Pension Committee may approve the request, retirement, at a date other than July 1. In this instance, an annuity shall be purchased as of the next date the Employer will have available to it the evaluation of the total fund as of the day preceding - that is, October 1, January 1, and April 1.

If such a request is made approved and implemented, only that Member's share of the net growth of the fund to the day preceding will be allocated.

5.90.3 *Members retired from this University shall retain:*

- (a) The right to their title and the listing of their name and their title in a special section at the back of the University Calendar, until the death of the Member.
- (b) The same library privileges as full-time Members, free parking in facilities available to full-time Members, and such other University facilities as may be granted by the Vice-President, Academic

and Provost at her/his discretion.

- (c) The same exemption from tuition fees for themselves as full-time Members, as per Article 8.50 – Tuition Fee Exemption and Spousal Library Card.

5.90.4 To honour an outstanding contribution in an academic field, the Employer may, in accordance with Senate policy, bestow the title of Professor/Librarian Emeritus upon a retiring Member.

RESEARCH, CREATIVITY AND PROFESSIONAL DEVELOPMENT

ARTICLE 6.10 – RESEARCH AND CREATIVITY

- 6.10.1 The Parties recognize that the common good of society depends upon the unfettered search for knowledge in all fields of study and upon its free exposition. The Parties further acknowledge the importance of research and creativity and the Employer will make every reasonable effort to support both in a fair and equitable manner.
- 6.10.2 The University is an open environment for the pursuit of scholarly work. Academic freedom and critical inquiry depend on the communication of the findings and results of intellectual investigation. The Employer shall not interfere with a Member's freedom to publish the results of scholarly inquiry and research, except for limitations imposed by duly constituted university Research Ethics Boards.

ARTICLE 6.15 – OFFICE OF RESEARCH SERVICES

- 6.15.1 The Office of Research Services (ORS) shall facilitate research and creativity for all Members in a fair and equitable manner. The work of the ORS such as providing the resources to assist all Members in preparing grant applications, shall be done in a constructive manner to provide better access to funding and research collaboration at the national and international level, while promoting research activities and creativity at Laurentian University.
- 6.15.2 For internally or externally-funded grant applications requesting a pre-selection or an evaluation, the Employer shall communicate the composition and terms of reference of the selection committee on the ORS Office website. The selection committee shall include Faculty Members as elected by Senate. If doing so does not prevent the application from going forward. None of the Members of the selection committee shall be involved in the grant or contract applications being reviewed pursuant to Article 3.35 – Conflict of Interest.
- 6.15.3 Members of the Administration shall not be involved as investigators in internal research grants and if they are investigators in externally-funded grants that are internally pre-selected, they shall not be part of the selection committee pursuant to Article 3.35 – Conflict of Interest.
- 6.15.4 The Employer shall inform faculty Members of any external competitions requiring Employer matching funds, the policies, selection criteria, and where possible, provide an estimation of the likelihood of success concerning such competitions.

ARTICLE 6.20 – RESEARCH AND DEVELOPMENT SUPPORT

- 6.20.1 In order to attract and retain faculty Members, all new full-time Members with probationary or tenured appointments shall receive a minimum Start-up Grant of eight thousand dollars (\$8,000).
- 6.20.2 Recipients of these awards shall have three (3) years to use the funds. After a three (3) year period, any unspent amount shall be returned to the Office of the Vice-President, Academic and Provost.

ARTICLE 6.25 – LAURENTIAN UNIVERSITY RESEARCH FUND (LURF)

- 6.25.1 For each of the years of the Forced Contract, the Employer shall provide to the Vice-President, Research a research fund to enhance scholarly productivity through an open competition among Members:

Research Support (LURF) as follows:
one hundred and sixty thousand dollars (\$160,000) per year.

In the event that faculty from federated or affiliated universities wish to apply, their applications shall only be considered if their home institution has contributed to the LURF fund an amount per full-time Member equivalent to that provided by the Employer.

- 6.25.2 For each of the years of the Forced Contract, the Employer will provide to the Vice-President, Research an additional twenty thousand dollars (\$20,000) per year to support both research activities and attendance at academic and professional conferences by retired Members, Sessional Members and Master Lecturers, through an open competition. The Employer will also provide active assistance to these Members making grant applications to NSERC, SSHRC, and CIHR.
- 6.25.3 A LURF Committee of eight (8) full-time Members, two (2) from Arts, one (1) from Education, one (1) from Health, two (2) from Sciences, Engineering and Architecture, one (1) from Management and one (1) Librarian will evaluate the proposals submitted to the Office of Research Services once a year. These Members will be appointed by the Dean/University Librarian in consultation with the Union for a two (2) year term.
- 6.25.4 The LURF Committee shall establish its own procedures, and develop criteria for the administration of the funds. These criteria shall be just, equitable and consistent with the objective of nurturing and stimulating research at Laurentian University. The rules of this yearly competition shall be clearly established in consultation and agreement with the Union and shall not be modified without the approval of the Union. The approved rules shall be treated as a public document and posted on the ORS website. The funding criteria for LURF shall not be limited to, or give priority to, salaries for assistants.
- 6.25.5 While the LURF committee should determine the amount of funding for each competition, in no case shall that amount of funding be greater than five thousand dollars (\$5,000) per application. The total LURF funding shall be allocated by Faculty/Library, proportionate to the numbers of full-time Members in each Faculty/Library.
- 6.25.6 The University shall maintain records and deposit copies of all proceedings, statements and correspondence related to the Committee's policies and the awarding of grants. This material will be made available to the Union upon request, subject to any limitations in the *Freedom of Information and Personal Privacy Act*. Applicants who are not funded by LURF should be given an explanation by the LURF Committee on the reasons of the rejection.
- 6.25.7 Applicants whose applications are rejected by the LURF committee shall have recourse to an appeals procedure only in the case of allegations of violations of academic freedom, significant procedural irregularities or discrimination. Notice of an appeal must be submitted to the Dean/University Librarian and ORS no later than one (1) month after the applicant has been notified of the decision. Within one (1) week of receiving notice of appeal, the ORS shall strike an Appeals Committee. Members of the Appeals Committee should be selected in light of research experience and expertise. The Committee will consist of:
- One (1) Member appointed by the Union;
One (1) Member appointed by the Vice-President, Research; and a Chair chosen by the two (2) appointed Members.
- 6.25.8 The Appeals Committee shall establish its own procedures taking into account the provisions of this Article and the published policies and procedures for grant applications of the LURF Committee. Should the appeal be upheld, the appellant's request will be funded if there are funds still available. If not, the appellant will be given first priority for funding at the next competition.
- 6.25.9 The decision of the Appeals Committee shall be final and binding on all Parties. The Appeals Committee shall communicate its decision and its reasons in writing to the appellant and the ORS within one (1) month of hearing the appeal.
- 6.25.10 A list of all awardees including the project title, the amount of funding and the duration of all projects shall be published on the ORS website after each competition.

ARTICLE 6.30 – PATENTS

- 6.30.1 The Employer agrees that the Members have the unqualified right to publish their inventions. The Employer further agrees that the Members have no obligation to modify their research to enhance patentability nor, unless otherwise agreed, any obligation to seek patent protection for the results of their scientific work.
- 6.30.2 The Employer waives, disclaims and abandons any interest in or claims to any invention, improvement, design or development made by a Member or Members except where this has occurred with the use of the Employer's funds, personnel or equipment in which instance the conditions set out in Article 6.30.4 hereof shall apply. Unless otherwise provided in this Article, any invention or any patent arising therefrom shall be the sole property of the inventor.
- 6.30.3 The Members shall have the right to make their own arrangements at their own expense to patent an invention subject to the obligations in this Article and shall be entitled to all the proceeds therefrom except where the invention was made with the use of the Employer's funds, personnel or equipment.
- 6.30.4 Where an invention, improvement, design or development was made by Members with the use of the Employer's funds, personnel or equipment the Members shall sign an agreement with the University before an application for patent is filed by them. This agreement shall provide that the Employer shall assign all rights, title and interest in the invention, improvement, design or development to the Members, subject to the University and the Members sharing equally in the "net proceeds" as used in this Article shall mean the net profits derived from licensing or commercialisation of the patented product, equipment or process after deduction of all expenses incurred in patent searches, for obtained patent protection and for maintaining said protection in Canada and in other countries.
- 6.30.5 Members agree to disclose the existence of any patent applications to the Employer within three (3) months of the date of the application unless otherwise provided for in this Article and shall affirm in writing at that time whether or not the discovery has been made and developed with the use of Employer's funds, personnel or equipment. The Employer may within one (1) month of receipt of the statement of the Member challenge in writing the assertion of the Member in regard to the circumstances of the discovery, in which case the matter shall be settled by arbitration as detailed in Article 12.15– Arbitration Procedure. Any challenge by the Employer shall be null and void unless received within the above noted time limit. If the Member(s) fails to disclose the existence of patent applications within three (3) months, it shall be understood that the Employer maintains its rights under this Article until such disclosure is made. Failure by the Employer to challenge the assertion of the Member within one (1) month shall constitute a waiver of any rights that the Employer may have had in such discovery.
- 6.30.6 For the purpose of interpreting Articles 6.30.2 to 6.30.5 above, payment of regular salary and benefits shall not be construed as use of the Employer's funds.
- 6.30.7 Members shall grant to the Employer a non-exclusive, royalty free, irrevocable, indivisible, and non-transferable right to use solely for the University 's internal use any patented device, equipment or process when such device, equipment or process has been invented with the use of the Employer's equipment, funds or support/technical personnel. Such right, however, shall not include the right to transfer or exploit any product or process.
- 6.30.8 Where Members decide that they will not patent, produce or market an invention, improvement or discovery at their own expense but consent to the University patenting, producing or marketing the invention, before an application for patent is filed by the University, the University shall negotiate an agreement with the Members. The agreement shall provide that the Members shall assign all their rights, titles and interests in the invention, improvement or discovery to the University subject to the University and the Members sharing equally in the "net proceeds" derived therefrom.
- 6.30.9 Without mutual agreement, the name of the University shall not be used in connection with inventions in which the Employer has no interest.
- 6.30.10 Any revenue that the Employer may receive from inventions shall be dedicated to academic development and research with at least fifty percent (50%) of such income designated for academic development and research in the Faculty/Library with which the inventor is affiliated. These funds shall be maintained in a special account, which shall be open to the inspection of the President of the Union or the President of the Union's designate.

- 6.30.11 The Employer agrees that it shall not enter any agreement to sub-contract work or responsibilities already undertaken or possessed by the Employer and the Members without securing to the Members who may be seconded to or be employed by the sub-contractor all the rights, privileges and benefits accorded to them in this patent Article of this Forced Contract. Nor shall the Employer enter into any agreement to create a consortia of universities or government departments or private companies for the purposes of research or development or commercial exploitation without securing to the Members who may be seconded to or employed by such consortia, departments or private companies all the rights, privileges and benefits accorded by this Article. If the Employer makes an agreement contrary to this provision and fails to secure the said rights, privileges and benefits to said Members, the agreement shall not apply to Members unless there is a special agreement in writing between the Employer and the Union to waive this clause of the Article.

ARTICLE 6.35 – COPYRIGHT

Copyright vested in the Member:

- 6.35.1 The Member who is the creator of any work including any printed material, computer programmes, on-line course material, painting, sculpture, film, slide, tape or similar material shall retain the copyright therein unless otherwise stated in this Article.

Copyright vested in the University:

- 6.35.2 The Parties agree that the University shall hold copyright to any work including any creative work, printed material, computer programme, on-line course material, films, slides, tapes or similar materials produced by Members as part of their normal workload for the University for use in its distance education courses. In all cases, the University shall arrange for the development of these courses through a special contract with the Members, which sets out terms in accordance with the terms in this Forced Contract. Copies of all works subject to the policy stated in this Article shall contain a statement or marking identifying the ownership of copyright, and with appropriate credit, the contributors. A copy of the contract between the Member and the University shall be sent to the Union.
- 6.35.3 If the University requests a work including a creative work, printed material, films, slides, tapes, computer programmes, on-line course material, or similar materials from a Member under special contract, then, in the absence of any agreement to the contrary, the University shall be the first owner of the copyright therein. This includes all materials for distance education courses. A Member entering into such a contract with the University shall be notified of the terms of this Article prior to signing the contract. The Union shall receive a copy of such notification.
- 6.35.4 All special contracts for distance education courses shall contain an Article which allows the contributors to use (for their own classroom purposes) parts of any course that they have created provided that they shall not use such material in another distance education course without the written permission of the University during the period in which the University holds copyright to that material.
- 6.35.5 The master copy of any work whose copyright is vested in the University under the terms of this Article shall be the property of the University. The University shall be responsible for the custody and control of such works and of any copies thereof.
- 6.35.6 Where consent, fees or licenses are required for the use of incorporated materials in works in which the University has copyright under the terms of this Article, the contributor shall notify the University by provision of a list of works which require such clearance. The University shall have the right to refuse to accept requests for copyright clearance, which are judged to be prohibitively expensive.
- 6.35.7 The Members who are the authors of any work, whose copyright is vested in the University shall sign a warranty that the work is original and that, to the best of their knowledge, it does not violate any existing copyright.

- 6.35.8 The offering of courses to which the University has copyright under the terms of this Article shall be at the University's discretion.

Revision:

- 6.35.9 From time to time, the University may require revisions in works to which it holds the copyright in order to ensure that proper and current academic standards are met.
- 6.35.10 Further, the author of work as defined in Articles 6.35.2 or 6.35.3 above may, at any time after three (3) years of use, and at three (3) year intervals thereafter notify the University of the need to revise such a work. The University and the Member shall negotiate the amount it will pay to defray the costs of such revisions including the Member's fee.
- 6.35.11 The process of revision shall be regarded as the joint responsibility of the author of the work and the University. If the author chooses not to undertake the revision or if the author has not accepted the University's request for revision within one (1) month of receipt of that request or if the author is no longer an Employee of the University, then the Department/School shall choose an individual to make the required revisions. By so doing, the author shall not lose contractual rights to any fees. Where the author is no longer an Employee of the University, notice of the intention to revise and of the proposed revisions shall be sent to her/him by registered mail at the last known address. In the event that the author and the University cannot agree on the nature or extent of the revisions, the University may engage the services of someone approved by the Department/School to make the revisions.
- 6.35.12 The University shall negotiate a fee for any revisions that are made at the University's request.
- 6.35.13 In all cases where someone other than the authors make revisions to the work, if the authors object to the extent or the propriety of the revisions, they may have their names withdrawn as contributors to the work and any visible indication that they are contributors to the work shall be withdrawn. The authors must notify the University of their desire to do so within one (1) month after receiving notice by registered mail of the proposed revisions.

Third Party use:

- 6.35.14 "Net proceeds" of any fees or royalties that the University receives for the use by another Party of a work to which the University has copyright under the terms of this Article shall be distributed in accordance with Article 6.35.15 hereof and the Member shall receive no additional payment. "Net Proceeds" shall mean the fees and royalties received less the cost of reproduction, administration and distribution.
- 6.35.15 Net proceeds shall be distributed as follows:
- (a) Until the original production costs have been recouped by the University, seventy-five percent (75%) to the University and twenty-five percent (25%) to the author.
 - (b) After recovery of the original production costs, fifty percent (50%) to the University and fifty percent (50%) to the author.

"Original production costs" include the normal tariff charges to produce the physical work including licensing costs of other copyright material exploited in the work. An accounting of production costs shall be produced by the University if requested by the Member or by the Union.

Member's Copy:

- 6.35.16 If practicable the Members shall receive, upon request, a copy at a cost not exceeding the cost of the tape/film/recording or other medium upon which the work has been produced of any work produced by them for the University and to which the University holds copyright under the terms of this Forced Contract.
- 6.35.17 Should the University wish to erase or otherwise destroy part or all of a work to which it has copyright under the terms of this Forced Contract, the authors shall be given notice of such intention and shall have one (1)

month in which to make known their wish to receive a copy of the section (s) to be erased. If the authors express such a wish within the time limit, they shall receive a copy of those sections at a cost not exceeding the cost of the tape/film/recording or other medium upon which the work has been produced plus reasonable administrative costs arising therefrom.

ARTICLE 6.40 – COMMITTEE ON PATENTS AND COPYRIGHT

- 6.40.1 The Parties agree to create a continuing Committee on Patents and Copyright, which shall be composed of two (2) individuals appointed by the Employer and two (2) Members appointed by the Union, with the Chairship alternating between the Employer's representatives and the Union's representatives at each successive meeting.
- 6.40.2 The Committee shall meet at least twice annually to:
- (a) Conduct such business as is referred to it.
 - (b) Consider strategies for marketing inventions, improvements or discoveries.
 - (c) Recommend to the Joint Committee on the Administration of the Forced Contract any proposals for modifications or changes in the patents and copyright Articles of this Forced Contract. The Parties agree to consider these recommendations during Collective Bargaining.
 - (d) Mediate any disputes arising out of Article 6.30 – Patents and Article 6.35 – Copyright in accordance with Article 6.40.3 below.

6.40.3 Grievance and Arbitration

For the purposes of this Forced Contract, any grievance by a Member pertaining to Article 6.30 – Patents and/or Article 6.35 – Copyright shall be handled in accordance with the following procedure:

- (a) The Member, within three (3) weeks of the event giving rise to the grievance or the date on which the Member knew or reasonably should have known of such event if that date is later, shall present a grievance to the Vice-President, Academic and Provost.
- (b) Within two (2) weeks of receipt of the grievance, the Vice-President, Academic and Provost shall refer the matter to the continuing Committee on Patents and Copyright and inform the Union of such grievance. If the Vice-President, Academic and Provost fails to refer the matter to the continuing Committee on Patents and Copyright within the time limits, the Members shall be deemed to have succeeded in their grievance and the results thereof shall be binding on the university.
- (c) The continuing Committee on Patents and Copyright, within one (1) month of the receipt of the grievance, shall make a recommendation for the resolution of the grievance. The time limits may be extended by mutual agreement. If the committee fails to make a recommendation within the time limits, the Vice-President, Academic and Provost may act as in Article 6.40.3 (d) below.
- (d) The Vice-President, Academic and Provost within one (1) week of the receipt of the recommendations of the continuing Committee on Patents and Copyright or within one (1) week of the end of the time limits for action by the Committee shall render the Committee's proposal in the matter and communicate it in writing to the Parties concerned.
- (e) If the proposal of the Vice-President, Academic and Provost rendered pursuant to Article 6.40.3 (d) above does not resolve the grievance, the matter may be submitted to binding arbitration by one (1) arbitrator in accordance with the grievance and arbitration procedures of this Forced Contract.

ARTICLE 6.45 – PROFESSIONAL DEVELOPMENT EXPENDITURES

- 6.45.1 In order to further the objectives of the University, the creation and dissemination of knowledge, the activities of each full-time Member shall be supported by professional expenditures in each contractual year. The amount of these expenditures shall be limited to two thousand four hundred and fifty dollars (\$2,450).
- 6.45.2 Professional development expenditures allowable under this Article include the following:

- (a) Membership fees for professional and/or learned societies related to the Member's discipline.
- (b) Subscriptions to professional and/or learned journals.
- (c) Books, materials, equipment, and services directly related to research and teaching/professional Library work.
- (d) Registration fees for the Member to attend a scholarly conference.
- (e) Travel including transportation, food and accommodation for the Member to attend relevant scholarly conferences or seminars, or to visit other universities or research sites to conduct research and scholarly work which cannot be done at Laurentian University. The per diem and kilometre rates to be calculated as per the Canada Revenue Agency as of July 1st of each year of the Forced Contract.
- (f) Page and reprint charges or costs incurred in the preparation and completion of scholarly manuscripts.
- (g) Professional/academic development or upgrading.
- (h) Hiring part-time assistants in support of research and teaching, excluding marking.

6.45.3 Expenditures must be approved in advance by the Dean/University Librarian and reimbursements will be made on verification of receipts. In the event that expenditures are incurred in relatively small amounts - less than fifty percent (50%) of the total or less than the remaining maximum allowable amount - reimbursements should be accumulated but receipts must be submitted not later than January 1 or July 1 following the date the expenditures have been made.

6.45.4 Full-time Members who are on sabbatical leave, study leave, or voluntary reduced workload are eligible for the professional development expenditures.

6.45.5 Any equipment purchased with funds provided under this Article remains the property of the University but a Member shall have the right if she/he so chooses to buy back such equipment at fair market value.

6.45.6 Any unused portion of the maximum allowed for professional development can be carried forward for two (2) years only.

LEAVES

ARTICLE 7.10 – RECOGNIZED AND OTHER HOLIDAYS

7.10.1 The following days and all days generally declared to be recognised holidays by Federal or Provincial authorities are recognised holidays and paid time off shall therefore be given to the Members on:

- (a) Family Day, Good Friday, Easter Monday, Victoria Day, Canada Day, August Civic Holiday, Labour Day, Thanksgiving Day, Christmas Day, Boxing Day, New Year's Day.
- (b) And on such other holidays as declared by the Employer, including the customary Christmas recess.

ARTICLE 7.15 – VACATION

7.15.1 Vacation is the period during which a Member is not accountable to the University.

7.15.2 In addition to recognised holidays, each Member is entitled to a vacation of twenty-five (25) working days, after eleven (11) months of service and annually thereafter. Members on contracts of less than one (1) year duration are entitled to a pro-rated period of vacation. When Members have accumulated five (5) full consecutive years of employment at the University, for each year of employment thereafter they shall be entitled to an additional two (2) days of vacation to a maximum entitlement of thirty-five (35) working days.

- 7.15.3 The Members will be paid during vacation periods but there shall be no remuneration in lieu of vacation in the event that the Members choose not to take their vacation allowance.
- 7.15.4 The Members are required to take the vacation to which they are entitled. Vacation may not be accumulated from year to year. The Members are required to take their vacation between Spring Convocation and Labour Day, unless prior permission has been granted by the Dean/University Librarian. Members may take their annual vacation at any time within that period provided that:
- (a) The period of the vacation does not conflict with a time during which the Members have scheduled duties assigned to them.
 - (b) The Members have indicated the dates of their vacation to the Dean/University Librarian, through their Chair/Director at least one (1) month in advance.
- 7.15.5 In the event of the death of a Member, the value of any unused vacation entitlement will be paid to his or her beneficiary.
- 7.15.6 Members retiring, resigning or whose limited-term appointment expires but who are unable to take their full vacation entitlement shall be paid vacation pay as follows:
- (a) Members retiring or resigning or whose limited-term appointments expire on June 30 shall be paid a number of working days equal to their vacation entitlement minus the number of working days in June that fall after the deadline for submission of final grades. Members are considered to be on vacation starting on the first working day after Spring Convocation.
 - (b) Members retiring or resigning on December 31 shall be paid a number of working days equal to their vacation entitlement minus the number of working days that fall after the deadline of submission of final grades for three (3) credit courses and mid-term grades for six (6) credit courses, and December 31.
 - (c) Members with limited-term appointments whose appointment expires on dates other than June 30 shall be paid a number of working days equivalent to their vacation entitlement minus the number of working days that fall after the deadline for submission of final grades and the date of the expiry of the term contract.
 - (d) The daily rate applied to the entitlements (paragraphs 7.15.6 (a) to (c) above) shall be one two hundred and sixtieth (1/260) of the Member's salary.

ARTICLE 7.20 – ABSENCE - GENERAL

- 7.20.1 The University as a community of scholars requires the availability of its Members on a regular and on-going basis to ensure that the activities of the University scheduled and unscheduled can be carried out in an orderly manner.
- 7.20.2 Any absence shall not normally interfere with assigned and/or scheduled activities and the harmonious functioning of the Department/School.
- 7.20.3 Any absence from campus affecting teaching/professional librarian duties shall be governed by Article 5.15 – Rights, Responsibilities and Duties of Academics.
- 7.20.4 From Labour Day to Spring Convocation absences of more than one (1) week require notification to the Chair/Director and permission of the Dean/University Librarian. Shorter absences require notification to the Chair/Director. When scheduled or assigned duties are affected by an absence, Members shall make suitable arrangements through their Chair/Director who shall advise the Dean/University Librarian when the absence has a significant impact on the Member's duties.
- 7.20.5 From Spring Convocation to Labour Day, Departments/Schools must maintain a fair and equitable system to assure a reasonable presence sufficient to administer the Department/School, to deal with

correspondence and to maintain on-going availability for student counselling and other unscheduled issues as they may from time to time arise. Absences during this period must be in accordance with this system. For any absences of more than a week, prior written permission shall be obtained from the Dean/University Librarian who shall not unreasonably withhold such permission.

- 7.20.6 Except where Members are on vacation, leave or other approved absence they must remain in communication with their Department/School so that it is reasonably possible for the University to contact and/or recall them on short notice.
- 7.20.7 It may in exceptional cases, be necessary for the University to recall a Member who is on vacation, leave or formally approved absence as defined in Article 7.20.5 above. The University will not do so arbitrarily or unreasonably. In such cases, the University will bear reasonable transportation costs consequent upon any such recall.

ARTICLE 7.25 – SABBATICAL LEAVES

7.25.1 Preamble

In recognition of the fact that full-time Members are required to continue to develop as scholars and researchers throughout their careers, the University maintains a policy of sabbatical leave intended for academic study, research or writing which will be mutually beneficial to the Member and the institution. For this purpose, sabbatical leave is defined as a period during which a Member is relieved of normal duties in order to:

- (a) Engage in further training, advanced studies or courses at a study or research centre, including language study.
- (b) Devote more time to scientific or creative work.
- (c) Improve the University's relations with other universities or countries in the capacity of a visiting professor or visiting librarian.
- (d) Gain practical or professional experience in a field connected with the Members' academic or professional specialization which will enable them to give instruction or, in the case of the library, service that is more complete and suitable to the requirements of the time.

Members who are on sabbatical leave and who elect to remain on campus for all or part of the duration of the leave shall not normally be assigned any formal workload nor shall they normally participate in any formal activities of the University other than those required by this Forced Contract. Members who have indicated in their sabbatical plan their intent to spend part or all of their sabbatical leave on campus are entitled to suitable office space on campus. Sabbaticants required to move their offices shall have all moving and storage expenses paid by the Employer. The Employer will replace Members on sabbatical leave when it deems it necessary. The Employer retains the right to limit the number granted leave in keeping with its academic responsibilities.

7.25.2 Eligibility

Eligibility for sabbatical leave is subject to the following conditions:

- (a) Members must have been full-time faculty Members of the University for the past six (6) consecutive years, holding the rank of Full Professor/Librarian, Associate Professor/Librarian, and Assistant Professor/Librarian at the time of application. They must be tenured at the time their sabbatical leave begins. In exceptional circumstances tenured Lecturers/General Librarians/Archivists with the requisite years at Laurentian are also eligible for sabbatical if they have the approval of the Dean/University Librarian to apply. Where the leave is to be used for upgrading, the University shall give special consideration to employment equity goals. Faculty Members' service for purposes of sabbatical leave eligibility shall be calculated from the date of their initial full-time appointment by the University or from the date of their last sabbatical leave, whichever is later. When Members take a sabbatical leave, all accumulated years of eligibility entitlement are exhausted unless otherwise

provided for in this Forced Contract. Time spent on sabbatical leave, study leave, or leave without pay does not count towards sabbatical eligibility. Sabbatical leave will not be automatic and shall be granted following an approved application procedure, outlined below.

- (b) In order to attract qualified faculty, the Vice-President, Academic and Provost may from time-to-time grant credit towards a sabbatical leave for full-time faculty service at another University, including service at a Federated or Affiliated College of a University. Such entitlement will be specified in the initial letter of appointment.
- (c) Under special circumstances, the Members may make application for leave one (1) year prior to the year in which they would normally become eligible to take sabbatical leave. If sabbatical leave is granted in this instance, the Members will receive a stipend of eighty percent (80%) of their salary.
- (d) In the interests of effective scheduling of a Department's/School's course offerings, the Dean/University Librarian may request that Members apply for their sabbatical leave after the completion of five (5) years. The Dean/University Librarian shall make the request by May 1 of the academic year preceding the year in which the Members are being requested to apply for sabbatical leave, and the Members shall respond to the Dean's/University Librarian's request by June 1. Should the Members accept, the Members shall submit a sabbatical plan by September 30 to the Chair/Director of the Department/School, as per Article 7.25.3 (b) below. Should Members accept, and if the application is approved, the Members shall receive a stipend of eighty-five percent (85%) of their salary during the sabbatical leave.

7.25.3 Application

- (a) Each Dean/University Librarian shall maintain and annually revise, in consultation with the Department/School, a sabbatical eligibility plan for each Department/School, the purpose of which is solely to assist in the orderly planning of sabbatical leaves. Copies of the plan will be distributed by July 1 of each year to the Chair/Director who shall forward one to each Department/School Member.
- (b) Applications for sabbatical leave shall be submitted by the Members to their Dean/University Librarian with a copy to Chair/Director of the Department/School no later than September 30 of the academic year preceding.
- (c) The Dean/University Librarian shall make her/his recommendation to the Vice-President, Academic and Provost no later than November 15 of the academic year preceding that in which the leave is to be taken. After verifying the status of the application in relation to criteria defined in Articles 7.25.1 and 7.25.2 above, and after taking into consideration the recommendation of the Dean/University Librarian, the Vice-President, Academic and Provost shall reach a decision and shall transmit it to the Member no later than December 15 of the academic year preceding that in which the leave is to be taken.
- (d) The Vice-President, Academic and Provost shall base her/his decision to approve or not to approve a sabbatical plan on the academic merits of the sabbatical leave project and its value to the professional development of the Member and to the University.
- (e) Should Members wish to make subsequent changes in their sabbatical plan, they shall submit the proposed changes to their respective Dean/University Librarian for prior approval. If the proposed changes are not approved by the Dean/University Librarian after consultation with the Department/School, Members may ask that they be submitted to the Vice-President, Academic and Provost for approval.
- (f) The Dean/University Librarian may refer back the application submitted by the Member as per Article 7.25.3 (b) above or the application for change as per Article 7.25.3 (e) above. If referred back, the applicant shall consider the Dean/University Librarian's suggestions and will re-submit a new application within ten (10) working days.

7.25.4 Postponement

- a) In the event that it is necessary on financial and/or program grounds for the Dean/University Librarian to require postponement of a sabbatical leave, the Members shall be informed by July 1 of the academic year preceding that in which the sabbatical is to be taken. Such a postponement shall not be required unreasonably. In such a case, Members shall receive an additional five percent (5%) of their regular salary for the year of postponement as "stipend" during their sabbatical year and shall receive one (1) year of sabbatical credit for the year postponed so that their next sabbatical leave will occur according to their original sabbatical rotation. A sabbatical leave cannot be postponed for more than three (3) years on financial or program grounds.
- b)
 - (i) In the event that Members wish to postpone application for leave, they shall do so only for valid reasons, and permission to do so shall be sought from the appropriate Dean/University Librarian no later than May 1 immediately preceding the deadline for application specified in Article 7.25.3 (b) above. Such permission shall not be unreasonably withheld. Should Members with a sabbatical leave confirmed by the Vice-President, Academic and Provost wish to postpone the leave for valid reasons, permission shall be sought from the appropriate Dean/University Librarian at least two (2) months prior to the planned commencement of such leave. Such permission shall not be unreasonably withheld.
 - (ii) If postponement of application for leave or of approved leave is approved, such Members do not have right of precedence over colleagues in the Department's/School's sabbatical leave plan. Such Members shall receive one (1) year of sabbatical credit for the year postponed so that their next sabbatical leave will occur according to their original sabbatical rotation. In no case may such a postponement be for more than one (1) year.
- c) In the event that a Member's tenure process is delayed for reasons of illness, pregnancy, parental or adoption leave, such Members shall receive one (1) year of sabbatical credit for the year delayed so that their next sabbatical leave will occur according to their original sabbatical rotation.
- d) Except in extenuating circumstances, where Members postpone a sabbatical leave without formal approval, they lose the right of precedence over colleagues in the Department's/School's sabbatical leave plan. Should such Members be required by the Dean/University Librarian on financial and/or program grounds to postpone their sabbatical leave in the following academic year, they shall not be entitled to any additional remuneration.
- e) Except in extenuating circumstances, where Members fail to apply for sabbatical leave for which they are eligible to apply, they shall not be entitled to any additional remuneration should they be required to postpone their sabbatical leave in the following academic year on financial and/or program grounds.
- f) If Members' sabbatical proposals are rejected on academic grounds by the Vice-President, Academic and Provost and/or Arbitration Board, they are entitled to apply the following year, but they are not entitled to any additional remuneration.
- g) Deadlines may be waived by agreement of the Parties.

7.25.5 **Duration**

Members may elect a sabbatical leave for a period of:

- (a) Six (6) months normally commencing either on the first (1st) day of July or the first (1st) day of January.
- or
- (b) Twelve (12) months normally commencing on the first (1st) day of July or such other date as agreed to by their respective Dean/University Librarian. Such agreement shall not be unreasonably withheld.

7.25.6 **Remuneration**

- (a) A Member taking a six (6) month sabbatical leave after six (6) years of accumulated sabbatical credit is entitled to full salary.
- (b) Members taking a twelve (12) month sabbatical leave after six (6) years of accumulated sabbatical credit are entitled to a stipend equivalent to eighty-five percent (85%) of the salary they would

normally have received.

- (c) Upon the Member's request, the University will provide a portion of the sabbatical leave stipend as a research grant subject to provincial and federal regulations. A Member who receives such a research grant from the University must make the necessary deductions and declarations as applicable under either the federal or provincial laws. The University accepts no responsibility in this regard.
- (d) A Member on sabbatical leave shall not take other paid appointments without the prior written permission of the Dean/University Librarian. Such permission shall not be unreasonably withheld. Normally, any additional remuneration received during the leave will be limited to an amount which brings a Member's total to one hundred percent (100%) of normal salary, plus travel and related expenses for the Member's spouse and dependent children. Where total remuneration exceeds this amount, the University reserves the right to reduce the sabbatical stipend proportionately.
- (e) Members who will have accumulated unused sabbatical credit by the time of their normal retirement date will be entitled to apply for a sabbatical leave to occur during their penultimate year before retirement, and on the understanding that they will return to the University for their final year. Should sabbatical leave be granted in such circumstances, Members are entitled to a stipend pro-rated on the basis of the normal sabbatical stipend and shall include entitlement for the year of return. At their discretion, the Dean/University Librarian may agree to pro-rate the period of time taken as sabbatical leave in lieu of a pro-rated stipend.

7.25.7 Benefits

- (a) During the period of sabbatical leave, the Member shall continue to receive all benefits as per Article 8.45 – Benefits subject to the conditions set out therein.
- (b) During a sabbatical leave, pension calculations shall be based on the Member's salary that would have been in effect if the Member had not been on sabbatical.

7.25.8 Vacation

All Members on sabbatical leave will be assumed to have used their prior year's annual vacation entitlement during the period July 1 to June 30 of the academic year in which the sabbatical leave is taken. Furthermore, Members who take a six (6) month sabbatical leave shall be deemed to have taken half of their annual vacation entitlement during the actual period of the sabbatical leave. Members will be entitled to one (1) year's vacation entitlement after June 30 of the year in which the sabbatical leave is completed.

7.25.9 Return

- (a) Members granted sabbatical leave shall undertake to return to the University to resume their responsibilities as a full-time Member of faculty for the period of at least one (1) year. Failure to return to the University shall require the Member to reimburse the University for all of the salary and benefits received during the leave, except as such obligations may be waived by the University.

However, when a Member is planning to retire in the academic year immediately following the Member's sabbatical leave, the Employer may waive the requirement to return to her/his responsibilities. Also, to facilitate earlier retirement, the Employer and the Member may agree to an early sabbatical leave as per Article 7.25.2 (c) above without financial penalty following which the Member retires and is not required to return to her/his responsibilities. In both these situations, agreement of the Employer is required.

- (b) Members must prepare and forward to their Dean/University Librarian, within one (1) month of their return, a full written account of their scholarly and professional activities and accomplishments as per the approved sabbatical plan during the leave. Members may make a written request to the Dean/University Librarian for a delay in the date of submission of their report. This report shall become part of their file to be used in evaluating the Member for salary increments and promotions. Failure of a Member to submit the sabbatical report by the specified time limit without adequate explanation may result in the delay of the decision whether to award or deny the annual increment as per Article 8.20.11 of Article 8.20 – Procedures for the Award/Denial of a Progress-Through-The-Ranks Increment.

Members who are not eligible for an annual increment must have their report submitted within one (1) month of their return in order to begin to accumulate sabbatical credit without penalty. When Members fail to do so, sabbatical credit shall not begin to accumulate until January 1 or July 1, whichever is the closest date next following submission of the report. If, after reviewing the report, the Dean/University Librarian finds the performance to be unsatisfactory, appropriate measures may be taken, as provided in Article 5.75 – Disciplinary Measures.

- (c) Notwithstanding the provisions of Article 7.25.9 (a) above, the University may grant up to a maximum of one (1) year of study leave to Members immediately following the completion of their sabbatical leave provided that during this sabbatical leave the Members were studying to obtain a Doctorate, and the additional year of leave will allow them to continue the program for the Doctorate. Under exceptional circumstances, upon recommendation of the Member's Dean/University Librarian and with the permission of the Vice-President, Academic and Provost, the study leave may be extended for an additional year. This back-to-back sabbatical/study leave shall be granted to Members only once in their academic career. The Members shall receive a stipend, according to the provisions of Article 7.30 – Study Leave during this study leave, and must return to the University for a period equal to the total leave or, in the alternative, reimburse the University for the full amount of the stipend and benefits received during the period of combined sabbatical/study leave.

The Member may request an altered pattern for the payment of the combined sabbatical/study leave stipends provided that the payment in any one year may not exceed the stipend originally awarded for the sabbatical year.

7.25.10 Disability

In the event that a Member on sabbatical leave becomes unable to fulfil the sabbatical obligations because of disability the following policies and procedures shall apply.

- (a) The Member will advise the Dean/University Librarian, as soon as possible under the circumstances, of the disability and will provide the Dean/University Librarian with a physician's report outlining the extent of the disability and if possible the expected date of return. For the duration of the illness the provisions of Article 7.55 – Physical and Mental Illness shall apply.
- (b) In the event that the sabbaticant is disabled from performing her/his tasks for less than fifty percent (50%) of the sabbatical leave, the Member shall be deemed to have taken her/his sabbatical leave. The Member shall submit a report on her/his sabbatical activities on completion of the sabbatical leave or at the end of the sick leave, whichever occurs later. The impact of the illness on the sabbatical plan of the Member shall be taken into consideration at evaluation time.
- (c) In the event that the Member is disabled from performing her/his tasks for more than fifty percent (50%) of the sabbatical leave, the Member shall be deemed not to have taken a sabbatical leave. The Member shall be eligible to take her/his sabbatical leave at the first mutually acceptable time. If the Member indicates that she/he will carry out the previously approved sabbatical plan then the Dean/University Librarian, on the advice of the Department/School and in consultation with the Member, will determine the date on which the sabbatical leave will commence. In the event that the Member wishes to amend the sabbatical plan, the provisions of Article 7.25.3 (f) above shall apply.

7.25.11 Sabbatical Leave After Three Years

While sabbaticals after six (6) years are the norm, the Parties recognize that outside of the sabbatical eligibility plan, which will take precedence, it may be mutually beneficial to Members and the University if Members were to take a six (6) month sabbatical at eighty-five percent (85%) salary after three (3) years of service. For each six (6) months of service beyond three (3) years the sabbaticant is eligible for an additional two and a half percent (2.5%) of salary during the leave period. In no case may a proposed or approved sabbatical leave after three (3) years be postponed for more than one (1) year. When Members take a sabbatical leave after three (3) years all accumulated years of eligibility are exhausted except as otherwise provided for by this Forced Contract. When the sabbatical leave is postponed, the Member shall receive one (1) year sabbatical credit for the year postponed so that their next sabbatical leave will occur according to their original sabbatical rotation. Sabbaticals after three (3) years can be granted provided that:

Eligibility

- (a) Members have tenure when the leave becomes effective;
- (b) Such a leave does not require the postponement of a sabbatical leave for a Member with six (6) or more years of service;
- (c) The leave does not have a negative impact on the budget of the Department/School.

Return

- (a) Members granted sabbatical leave under this Article shall undertake to return to the University to resume responsibilities as a full-time Member of faculty for the period of at least six (6) months. Failure to return to the University shall require the Member to reimburse the University for all of the salary and benefits received during the leave, except as such obligations may be waived by the University.

However, when a Member is planning to retire in the academic year immediately following the Member's sabbatical leave, the Employer may waive the requirement to return to her/his responsibilities. Also, to facilitate earlier retirement, the Employer and the Member may agree to an early sabbatical leave as per Article 7.25.2 (c) above without financial penalty following which the Member retires and is not required to return to her/his responsibilities. In both these situations, the Employer has to agree.

- (b) Members must prepare and forward to their Dean/University Librarian and Chair/Director of the Department/School, within one (1) month of their return, a full written account of their scholarly and professional activities and accomplishments as per the approved sabbatical plan during the leave, as outlined in Article 7.25.9 (b) above.

ARTICLE 7.30 – STUDY LEAVES

A leave for the purpose of upgrading academic qualifications, normally through the attainment of a higher degree or some other equivalent acceptable to the University and the Department/School shall be known as Study Leave. Such leave must be in the best interests of the University. The maximum length of leaves to be granted during a Member's academic career shall normally not exceed two (2) years.

7.30.1 *Eligibility*

A study leave may be granted to a tenured, probationary or Master Lecturer Member after two (2) years of full-time service, but no sooner than two (2) years after a sabbatical leave except as permitted in Article 7.25.9 (c) of Article 7.25 – Sabbatical Leaves. Such leave will not be automatic and shall be granted only upon the approval by the Vice-President, Academic and Provost, subsequent to consultation with the Department/School through its Chair/Director and the appropriate Dean/University Librarian, upon an approved application procedure noted below. In the event that the Employer is unable to grant a study leave to an applicant in one (1) given year, the Employer shall make every reasonable effort to ensure that the study leave is granted to the Member in the subsequent year of application.

7.30.2 *Application*

- (a) Applications for study leave shall be made by September 30 in consultation with the Department/School through the Chair/Director and the appropriate Dean/University Librarian to the Vice-President, Academic and Provost. In submitting an application for study leave, the Members shall provide a well considered plan indicating the value of the leave to their professional improvement and to the best interest of the University. In forwarding the application to the Dean/University Librarian, the Department/School through the Chair/Director shall recommend for or against approval, including in the recommendation not only an assessment of the project but also a judgement on how the leave, if granted, will affect the academic program(s) and the budget of the particular Department/School. In forwarding the application to the Vice-President, Academic and Provost, the Dean/University Librarian shall make an assessment of the application on the same grounds. The Dean/University Librarian will, at the Dean/University Librarian's discretion, make whatever inquiry

they deem desirable, including consideration of the applicant's demonstrated potential, in order to determine the merit of the application. Copies of both the Department/School's and the Dean's/University Librarian's recommendations shall be made available to the applicant.

- (b) Applications for study leave shall be filed with the Vice-President, Academic and Provost no later than October 31 of the academic year preceding that in which the leave is to be taken. The Vice-President, Academic and Provost shall verify the status of the application in relation to the relevant University policies and the financial implications of the leave, and make a decision, a copy of which shall be sent to the Member. The decision of the Vice-President, Academic and Provost shall be final and binding.
- (c) In the event that the Vice-President, Academic and Provost finds it necessary to refuse Members their study leave on financial grounds after the leave had been approved, that Member shall be given priority within the Member's Department/School for a study leave for the following year.
- (d) Deadlines listed above may be waived in special circumstances.

7.30.3 Terms

- (a) A one (1) year study leave may be granted to a tenured, probationary or Master Lecturer Member after two (2) years of service at a stipend of \$36,707 on July 1, 2020 or a pro-rated amount if the leave is for a period of less than one (1) year.
- (b) A two (2) year study leave may be granted to a tenured, probationary or Master Lecturer Member after four (4) years of service at a stipend of \$36,707 on July 1, 2020.
- (c) A Member may request a temporary reduction in workload to undertake or complete Doctoral studies. Where, in the discretion of the Vice-President, Academic and Provost and upon recommendation of the Dean/University Librarian, satisfactory replacement arrangements can be made, the workload reduction will be granted with a proportionate reduction in salary based on the overload stipend.
- (d) The maximum period of absence is two (2) consecutive years, normally commencing on July 1.
- (e) In the event that Members wish to pursue a summer course for upgrading purposes, they may request up to four (4) weeks at full pay if they contribute equal time from their vacation period without losing any of their study leave entitlement. To apply for such a leave, Members will follow the procedures set out in Article 7.30.2 above.

7.30.4 Benefits

Benefits of insurance, pension, etc., will continue during the leave provided the Members continue payment of their portion of the fees.

7.30.5 Return

- (a) The Members must agree in writing to return immediately to the University for a period equal to their leave of absence but in no case for a period of less than one (1) year or to reimburse the University for the full amount of the stipend received. If Members return to the University for a period of time less than the length of the leave, the University shall require the Members to reimburse the University for all or part of their stipend received during the leave.
- (b) The Members must prepare and forward to their Dean/University Librarian and Chair/Director of the Department/School, within one (1) week of their return, a full written account of their scholarly activities during the study leave. The report shall become part of their personnel file.
- (c) Time spent on study leave does not count towards sabbatical credit.

7.30.6 Appointments while on Leave

All Members on study leave must obtain written approval in advance from the Dean/University Librarian for any paid activity before making any such commitment.

ARTICLE 7.35 – VOLUNTARY REDUCED WORKLOAD

- 7.35.1 The Employer and the Union endorse the principle of voluntary reduced workload as being mutually beneficial to the Members and the institution. Any full-time Member of the Bargaining Unit who currently occupies a regular full-time position and who has a minimum of two (2) years of continuous full-time service at the University at their request may be granted up to fifty percent (50%) temporary reduction in workload with a proportionate reduction in salary, and annual vacation entitlement, provided that:
- (a) The temporary reduction is effective for a twelve (12) month period.
 - (b) The request is normally made to the Department/School and the Dean/University Librarian three (3) months in advance.
 - (c) The Dean/University Librarian approves the request, such approval not to be unreasonably withheld.
- 7.35.2 Notwithstanding Article 7.35.1 (a) above, the University may, upon request, grant voluntary reduced workloads for periods longer than twelve (12) months and/or renewals of twelve (12) month reduction periods, subject to the Dean's/University Librarian's approval as in Article 7.35.1 (c) above.
- 7.35.3 Faculty Members on Voluntary Reduced Workload have the right to benefits and to contribute to the benefits plan of the University in accordance with the provisions of the Forced Contract for sharing contributions.
- (a) **Sick leave.** Members will be covered for periods of sick leave to the extent of the actual salary paid during that period as per Article 7.55 – Physical and Mental Illness.
 - (b) **Long-Term Disability.** Members who are planning to take a voluntary reduced workload must be provided with specific information concerning coverage for Long-Term Disability during and after the period of voluntary reduced workload. Members should not accept voluntary reduced workload without a full and complete written statement concerning Long-Term Disability coverage.
 - (c) **Pension Plan.** Members on voluntary reduced workload may contribute to the pension plan on the basis of their normal full salary with appropriate contributions from the Employee and Employer as outlined in the Forced Contract to the extent possible under Revenue Canada regulations. It is understood that contributions based on normal salary rather than reduced salary may not be possible under Revenue Canada regulations for a cumulative total of more than five (5) years.
 - (d) **Life Insurance.** Life insurance may be carried based on the Member's normal salary and normal maximum.
 - (e) **Sabbatical Leave.** Sabbatical leave entitlements for Members on voluntary reduced workload will be pro-rated in accordance with the reduced workload.
- 7.35.4 Members who use this option shall remain Members of the Bargaining Unit, notwithstanding the definition of membership as defined in Article 2.15 – Recognition of the Bargaining Unit.
- 7.35.5 For the application of tenure and promotion policies, periods of reduced workload shall be pro-rated in accordance with the reduction in workload. Full-time research and teaching activities at another institution while a Member is on voluntary reduced workload at Laurentian will be counted for purposes of the minimum time requirement for promotion.
- 7.35.6 Members on voluntary reduced workload retain both the right and the obligation to contribute to the administrative work of the University. Evaluations of such activity by the Dean/University Librarian would be expected to recognise the reduced workload of the Member. As full-time Members of the Bargaining Unit, Members on voluntary reduced workload retain the right to participate in academic councils as full voting Members and to receive minutes and other Departmental/School and University documents and communications if the Member can be present on campus. If Members are absent from campus, the University is not required to undertake extraordinary steps to assure the ability of the Member to fully

participate.

- 7.35.7 During the period of voluntary reduced workload, Members are expected to submit annual reports as per Article 5.45 – Annual Report for Members in order to qualify for Progress-Through-The-Ranks increments (Article 8.15 – Progress-Through-The-Ranks Increments and Article 8.20 – Procedures for the Award/Denial of a Progress-Through-The-Ranks Increment). The evaluation will take into account the reduced workload. If awarded, the Progress-Through-The-Ranks increment will be added to the base salary of the Member. The new base salary will be used to determine the actual salary of the Member in conformity with the percent reduction in workload.

ARTICLE 7.40 – LEAVES OF ABSENCE WITHOUT PAY

- 7.40.1 A Member may be granted a leave of absence without pay under terms approved by the University. All such terms including arrangements for benefits shall be set out in written form prior to the leave. All terms shall be communicated in written form to the Union for information prior to the leave. Permission for such leave shall not be unreasonably denied by the Employer.
- 7.40.2 An application for such leave shall normally be submitted in writing to the Dean/University Librarian at least six (6) months in advance stating the purpose of the leave. An application for an extension should be made in writing to the Dean/University Librarian at least four (4) months in advance. These time requirements may be waived in special circumstances.
- 7.40.3 Applications for such leaves shall be recommended by the Dean/University Librarian after consultation with the Department/School. Final approval rests with the Vice-President, Academic and Provost.
- 7.40.4 Leave of absence without pay under this Article shall normally not exceed two (2) years.
- 7.40.5 The Members may elect to discontinue the benefits during the leave of absence subject to existing policies and regulations. If they elect to continue those benefits available to the Members, they shall make suitable arrangements as defined in Article 7.40.1 above.
- 7.40.6 Court and Political leaves shall be governed by Article 7.45 – Court Leaves and Article 7.50 – Political Leaves.

ARTICLE 7.45 – COURT LEAVES

- 7.45.1 Leave of absence with pay shall normally be granted to any Member, other than a Member on leave of absence without pay, who is required to serve on a jury or to attend as a witness or an expert in a court of justice or before any legal or statutory body in Canada with power to compel the attendance of witnesses before it.
- 7.45.2 The Members shall notify their Dean/University Librarian in advance, in writing, and shall provide proof of their attendance, if so requested.
- Members shall attempt to make arrangements to ensure that their duties are properly carried out during the period of their absence.
- 7.45.3 Leave with pay does not apply to Members serving a sentence or appearing as a witness on their own behalf.
- 7.45.4 When Members wish time off in order to pursue a civil action in court, the Members shall apply to the Dean/University Librarian for leave of absence without pay. (See Article 7.40 – Leaves of Absences Without Pay.)
- 7.45.5 If Members are required to absent themselves from their duties to appear in court as a result of legal action taken against them in regard to matters arising out of the performance of their duties to the University, they shall not be penalised for such absence. Such an absence shall be governed by Article 7.45.2 above.

ARTICLE 7.50 – POLITICAL LEAVES

- 7.50.1 The Employer recognises that all Members of the Bargaining Unit are free to enter public life and to seek any political office, as a Member of the provincial or federal government, or any full-time political office.
- 7.50.2 If Members of the Bargaining Unit wish to allow their names to stand either before a party convention or for actual nomination for an election, the Members shall notify the Dean/University Librarian concerned within a reasonable time so that the Dean/University Librarian may make whatever arrangements may be deemed necessary in order to ensure that the resulting added workload can be properly performed by others from the date of the issuance of the writ up to and including the date of the election.
- 7.50.3 The Employer may grant such a Member leave without pay for a period from the issuance of the writ up to and including election day. Such leave shall not be unreasonably withheld.
- 7.50.4 Should the Members not be elected, they shall come back to work immediately to assume their normal duties.
- 7.50.5 If the Members are elected and:
- (a) If they are Members with tenure and return immediately upon ceasing to hold office within six (6) years of their election, all rights, privileges and rank shall be restored to them upon return and the Members shall be entitled to a rate of pay including all statutory increases which were granted to Members of the teaching staff of equal rank that the Members occupied at the time the leave was granted. Extensions of the six (6) year time limit may be made by agreement of the Parties. During the term of any such leave, the Members shall be entitled to leave without remuneration. Such Members shall not be entitled to any rights or privileges under this Forced Contract except in regards to benefits as governed by Article 7.40 – Leaves of Absence Without Pay.
- Nothing in this Article shall be construed as preventing such Members from being employed on a part-time basis by the University for lecturing/professional library service or for any task, in which case the Members shall be remunerated therefore at the normal scale for part-time Members of the teaching/professional library staff.
- (b) If they are a Member without tenure, they shall be deemed to have resigned their position with the University as of the day following their election.
- 7.50.6 Any Members of the Bargaining Unit who wish to run for a political office other than a full-time one are free to do so subject to Article 5.15 – Rights, Responsibilities and Duties of Academics. Any such Members of the Bargaining Unit shall be required to perform all normal duties as set out in this Forced Contract.

ARTICLE 7.55 – PHYSICAL AND MENTAL ILLNESS

- 7.55.1 The Members of the Bargaining Unit are eligible for sick leave up to a maximum of six (6) months at salary otherwise receivable from the date of disability due to accident or illness, for each separate disability cause, excluding pregnancy which shall be covered by the provisions of Article 7.60 – Pregnancy, Parental and Adoption Leaves. Illness of a duration of more than six (6) months will be dealt with according to the provisions of the University's Long-Term Disability Plan, and the Employer agrees that there shall be no amendments to that plan during the life of the Forced Contract which shall materially affect the nature or level of the benefits to which a Member is entitled. As soon as practicable after the start of each disability period, the Dean/University Librarian must be informed by or on behalf of the disabled about the absence and about its expected duration.

Where the Employer makes payment to the Member according to the above mentioned terms or assumes liability therefore, the Employer is subrogated to all rights of recovery of the Member to the extent that the Employer has made payment to, or on behalf of, or for the benefit of the Member. The Employer may bring an action in the name of the Member to enforce these rights.

7.55.2

- a) A Member shall, when requested by the Dean/University Librarian, submit the certificate of a legally qualified medical practitioner certifying that the Member is unable to attend to the duties of her/his position;

(i) For any sick leave in excess of five (5) consecutive working days.

(ii) In the event a Member's sick leave pattern raises substantial doubt of the claim, even if the individual's sick leave periods are short enough not to require medical certificates otherwise.

- b) In this Article, a "legally qualified medical practitioner" shall be limited to licensed physicians, licensed midwives, registered nurse practitioners, licensed dentists and registered psychologists.

Please note that being under the care and treatment of a person other than a licensed physician, a Member may jeopardize qualifying for Long-Term Disability. A physician is a person who is duly licensed to practice medicine and is recognized by the College of Physicians and Surgeons.

- c) The Member shall only be required to submit one medical certificate of disability or illness per absence, unless the expected duration of the absence is extended beyond the prognosis provided in the original certificate. In such circumstances the Member shall submit additional certificates of disability or illness for each extension.
- d) Any certificate of disability or illness submitted, in addition to certifying that the Member is unable to attend to the duties of her/his position, shall indicate the probable duration of the Member's absence but the legally qualified medical practitioner shall not disclose any information respecting the diagnosis of the condition giving rise to the Member's absence, without the Member's written and informed consent.
- e) Where the certificate is submitted by a Member or on behalf of a Member, a copy of the certificate of disability produced shall be provided to the Union by the Dean/University Librarian.

Where the certificate is requested under Article 7.55.2 (a) (ii) above, a copy of the request for the certificate and a copy of the certificate of disability produced shall be provided to the Union by the Dean/University Librarian.

- f) Upon receipt of any certificate of disability, the Dean/University Librarian shall advise the Member of the Member's right to accommodation if such accommodation will assist the Member to return to work to full or partial duties, or will assist the Member to return to work at an earlier date than would otherwise be the case.
- g) If the Member requires or wishes accommodation, the Member shall submit to the Dean/University Librarian the certificate of a legally qualified medical practitioner certifying the details of the accommodation that the Member requires and the expected duration of the accommodation.
- h) A copy of the certificate provided pursuant to Article 7.55.2 (g) above shall be provided to the Union by the Dean/University Librarian.
- i) The Employer, the Union and the Member will cooperate fully to achieve the accommodation required by the Member, and to ensure, where possible, that any changes to the Member's workplace required by the accommodation are in place for the Member's return.
- j) The reasonable costs of any certificates required under this Article shall be paid by the Member and reimbursed by the Employer to the Member.

7.55.3 In order to have a sick leave benefits period reinstated up to the maximum, Members of the Bargaining Unit who have been absent and in receipt of sick leave benefits must return to work for at least one (1) full working day in the case of a completely unrelated and different disability cause, and for thirty (30) calendar days in the case of the same disability cause.

7.55.4 Sick leave benefits for any period of absence following notice of termination of employment will not be payable without substantiating medical evidence and shall cease no later than the date of termination.

- 7.55.5 Sick leave benefits are not cumulative and are not cashable upon termination of employment or at any other time.
- 7.55.6 Sick leave benefits will be reduced by the amount of any Worker's Compensation benefits or similar disability income benefits which the Member of the Bargaining Unit is eligible to receive by reason of accident or sickness, from a government plan, except Unemployment Insurance.
- (a) A Member may be required by the Vice-President, Academic and Provost to undergo a medical examination by a legally qualified medical practitioner appointed by the University in the following circumstances:
 - (i) If the Member submits a request for accommodation pursuant to Article 7.55.2 (g) above;
 - (ii) At the time the Member indicates her/his readiness to return to work, if the absence has been for a period of a month or more;
 - (iii) At one other time during the sick leave; and
 - (b) The Employer shall pay all costs of the medical practitioner and shall pay all reasonable expenses incurred by the Member with respect to such medical examination.
 - (c) Where the Employer requires the Member to undergo a medical examination pursuant to Article 7.55.6 (a) above it shall notify the Member with a copy to the Union and it shall provide the Member with the names of three (3) duly qualified medical practitioners and the Member shall select one of those practitioners to conduct the examination.
 - (d) The medical practitioner who conducts the examination shall provide a report to the Member, which report shall certify whether or not the Member is medically able to perform the duties of her/his position, or whether the Member could perform such duties with accommodation; a prognosis for the Member's return to work; and, where applicable, whether or not accommodation requested by the Member is appropriate. The report shall not contain any diagnosis of the Member's condition, unless the Member, in consultation with the Union, requests that the diagnosis be included.
 - (e) Within five (5) working days of the receipt of the report, the Member shall provide the report to the Dean/University Librarian who shall in turn provide a copy to the Union within five (5) working days.
- 7.55.7 When invalidity is due to drug addiction or alcoholism, benefits provided by this Article will be granted only for leaves of absence necessary for proper treatment under a physician's care or that of specialized personnel.
- 7.55.8 When the Member's behaviour raises reasonable and substantial doubt as to the state of her/his physical or mental health, which affects in a material way the Member's ability to perform her/his duties, or which raises real concern for the safety of the Member or other Members of the University community, the Vice-President, Academic and Provost may require the Member to undergo a medical examination in accordance with Article 7.55.6 above. The Union shall be notified when such action is taken. Where the report is requested as a result of a real concern for the safety of the Member or other Members of the University community, the report produced, in addition to the information provided pursuant to Article 7.55.6 (d) above, shall certify whether or not the Member's behaviour raises any real concern for the safety of the Member or other Members of the University community.
- 7.55.9 Sick leave benefits defined in this Article may not be granted under the following circumstances:
- (a) Intentionally self-inflicted injuries or diseases.
 - (b) Pregnancy (however, complications due to pregnancy are covered by sick leave provisions, upon submission of a medical certificate).
 - (c) While vacation pay is also being received.
 - (d) Wilful participation in riots, wars or violent or uncontrolled demonstrations or protests.

- (e) Injuries or diseases sustained while committing a criminal act for which the Member has been found to be guilty by a duly constituted court or while serving a prison sentence.

7.55.10 If Members are on sickness or disability leave and consider that they have recovered and are capable of undertaking normal academic activities, they shall present medical evidence from a medical practitioner to their Dean/University Librarian. If the Dean/University Librarian agrees, the Members shall be reinstated with full rights and benefits forthwith. If the Dean/University Librarian disagrees, the Dean/University Librarian shall require the opinion of two (2) additional medical practitioners named by agreement with the Member or, if there is no agreement, by the Ontario Medical Association. The majority opinion of the three (3) medical practitioners shall prevail. The Employer shall pay the cost of such additional medical examinations required by it.

ARTICLE 7.60 – PREGNANCY, PARENTAL AND ADOPTION LEAVES

7.60.1 *Pregnancy Leave*

- (a) A pregnant full-time Member or pregnant Master Lecturer Member shall be entitled to seventeen (17) weeks pregnancy leave.
- (b) During the period of pregnancy leave as specified in Article 7.60.1 (a) above, the Member shall receive from the Employer:
 - (i) For the first week, one-hundred percent (100%) of her nominal salary;
 - (ii) For up to a maximum of sixteen (16) additional weeks, an amount equal to the difference between the Employment Insurance (EI) benefits received by the Member and one-hundred percent (100%) of the Member's nominal salary;
 - (iii) Further, in the event of any reduction by the Government of Canada to the Member's EI benefit entitlement, an amount necessary to ensure that the Member receives the top-up described in Article 7.60.2 (b) (ii) above.
- (c) If the Member is disentitled or disqualified from receiving EI benefits or should EI cease to provide coverage for pregnancy benefits or adjust the amount of benefits that were received, then the Employer shall maintain the Member at one-hundred percent (100%) of her nominal earnings for the period of her leave.

7.60.2 *Notice Required for Pregnancy Leave*

- (a) The Member shall normally give the Employer at least eight (8) weeks written notice of the date the pregnancy leave is to begin. The notice period may be altered by mutual agreement or by the Member with a new written notice at least two (2) weeks prior to the date the pregnancy leave is to begin.
- (b) The notice period in Article 7.60.2 (a) above shall not apply if the Member stops working because of complications caused by her pregnancy or because of a birth, still birth or miscarriage.

7.60.3 *Duration of Pregnancy Leave*

- (a) The pregnancy leave of a Member who is entitled to take parental leave shall end seventeen (17) weeks after the pregnancy leave began. In the case where the newborn child is hospitalized, a Member may postpone or interrupt her pregnancy leave by the number of weeks the newborn child is hospitalized but it must be taken within the fifty-two (52) weeks from the date of the birth of the child.
- (b) The pregnancy leave of a Member who is not entitled to take parental leave shall end on the later of either the day that is seventeen (17) weeks after the pregnancy leave began or the day that is six (6) weeks after the birth, still birth or miscarriage.

7.60.4 Leave for Parent Not Taking Pregnancy or Parental Leave

On the occasion of the birth of a child, surrogacy or the adoption of a child coming into the care or custody of a parent for the first time, the child's parent who is not taking the pregnancy or the parental leave shall be entitled to a leave with full salary and benefits of up to five (5) working days, to be taken at the discretion of the Member within the fifty-two (52) weeks from the date of the birth of the child or the adoption of a child coming into the care or custody of a parent for the first time.

7.60.5 Parental Leave on the Occasion of the Birth of a Child

- (a) On the occasion of the birth of a child, a Member who is a parent and who has opted to take parental leave under the *Employment Insurance Act* and applicable legislation shall be entitled to a parental leave of up to thirty-five (35) weeks.
- (b) During the period of parental leave as specified in Article 7.60.5 (a) above, the Member shall receive from the Employer:
 - (i) For the first week, one-hundred percent (100%) of her/his nominal salary;
 - (ii) For up to a maximum of eight (8) additional weeks, an amount equal to the difference between the EI benefits received by the Member and one-hundred percent (100%) of the Member's nominal salary;
 - (iii) Further, in the event of any adjustment by the Government of Canada to the Member's EI benefit entitlement, the Employer shall pay to the Member the amount necessary to ensure that the Member receives the top-up described in Article 7.60.5 (b) (ii) above.
- (c) If the Member is disentitled or disqualified from receiving EI benefits or should EI cease to provide coverage for parental benefits or adjust the amount of benefits that were received, the Employer shall maintain the Member at one-hundred percent (100%) of her/his nominal earnings for the period of her/his leave.

7.60.6 Parental Leave on the Occasion of the Adoption of a Child or Surrogacy

- (a) On the occasion of the adoption of a child coming into the care or custody of a parent for the first time, a Member who is a parent shall be entitled to a parental leave of up to thirty-seven (37) weeks. The parental leave must be commenced within the fifty-two (52) weeks from the date the child comes into care or custody of the parent for the first time.
- (b) During the period of parental leave as specified in Article 7.60.6 (a) above, a Member shall receive from the Employer:
 - (i) For the first week, one-hundred percent (100%) of her/his nominal salary;
 - (ii) For up to a maximum of eight (8) additional weeks, an amount equal to the difference between the EI benefits received by the Member and one-hundred percent (100%) of the Member's nominal salary.
 - (iii) Further, in the event of any adjustment by the Government of Canada to the Member's EI benefit entitlement, the Employer shall pay to the Member the amount necessary to ensure that the Member receives the top-up described in Article 7.60.6 (b) (ii) above.
- (c) If the Member is disentitled or disqualified from receiving EI benefits or should EI cease to provide coverage for parental benefits or adjust the amount of benefits that were received, the Employer shall maintain the Member at one-hundred percent (100%) of her/his nominal earnings for the period of her leave.

7.60.7 Notice Required for Parental Leave

- (a) A Member shall normally give written notice to the Employer of her/his intention to take a parental

leave at least eight (8) weeks prior to the commencement of such leave. The notice period may be altered by mutual agreement or by the Member with a new written notice at least two (2) weeks prior to the date the parental leave is to begin.

- (b) The notice period in Article 7.60.7 (a) above shall not apply if the Member stops working because the child comes into the custody, care and control of the parent sooner than expected.

7.60.8 ***Extended Parental Leave***

An extended parental leave without pay, up to a maximum of one (1) year, shall be given to Members who request it.

7.60.9 ***General Considerations***

- (a) During leaves under this Article, the Member shall continue to participate in the pension plan and the other benefit plans set out in this Forced Contract. The Member and the Employer shall each continue to pay their applicable share of contributions and/or premiums.
- (b) Nothing in this Article shall prevent a Member from claiming sick leave for absences from work due to illnesses.
- (c) Upon return to work, a Member who has taken leaves under this Article shall resume her/his former position with her/his full nominal salary and benefits as provided for under this Forced Contract.
- (d) The period of a Member's leave shall be included in the calculation of her/his length of service for seniority purposes.
- (e) A Member on pregnancy, parental or adoption leave may elect to defer contractual decisions on reappointment or tenure/permanence by an equivalent period of time. When a Member elects to defer such decisions, she/he shall provide the Dean/University Librarian, or equivalent, with written notice of her/his intention to do so.
- (f) The Parties agree that the provisions of this Article shall be no less than those in the *Employment Standards Act, 2000* and *Employment Insurance Act* as may be further amended. Differences in the interpretation of this Article shall be resolved based on consistency with the Acts.
- (g) Nothing in this Article shall prevent a Member claiming pregnancy, parental or adoption leave during a sabbatical leave. Any unused portion of a sabbatical leave shall be taken at a time mutually acceptable to the Member and Dean/University Librarian
- (h) If both parents are Members, they may share their paid periods of leave between them.

7.60.10 ***Workload reduction following Parental Leave***

Following parental leave, Members will not be required to teach within the term that they return from parental leave in order to help re-establish their scholarly work.

ARTICLE 7.65 – SPECIAL LEAVES

- 7.65.1 A full-time Member, who holds a tenured or probationary appointment within the University, shall be eligible for a paid leave of absence for a period of up to three (3) weeks to fulfill responsibilities relating to the special needs of a Member of the Employee's family. Special needs may include, but are not restricted to, resettlement of aged or disabled parents, serious illness of parents, partner, or child, medical treatment of partner or child that cannot be provided in the Sudbury Region. The teaching/professional and service responsibilities of Members on this leave shall normally be assumed by their colleagues without additional expense to the University. For periods in excess of three (3) weeks, a Member may apply for leave of

absence without pay as per Article 7.40 – Leaves of Absence Without Pay. Such requests will not be unreasonably refused.

- 7.65.2 A Member taking a leave of absence exceeding six (6) months may elect to defer contractual decisions on reappointment or tenure/permanence by one year. When a Member elects to defer such decisions, the Member shall provide the Dean/University Librarian with written notice of the intention to do so.

ARTICLE 7.70 – COMPASSIONATE LEAVE

- 7.70.1 In the event of death of a partner, son or daughter (including step-son, step-daughter and child of partner), the Employee shall be granted a leave of absence of up to ten (10) working days without loss of pay.

- 7.70.2 In the event of the death of another Member of an Employee's family, the Employee shall be granted a leave of absence of up to five (5) working days without loss of pay.

The term "another Member of an Employee's family" means brother and sister, step-brother and step-sister, mother and father, mother-in-law and father-in-law, sister-in-law and brother-in-law, grandparent, guardian, grandchildren, daughter-in-law and son-in-law.

- 7.70.3 For a longer period of absence, a Member may apply for leave without pay according to Article 7.40 – Leave of Absence Without Pay.

- 7.70.4 In the event of the death of an Employee's nephew, niece, grandparent-in-law, aunt or uncle, the Member shall be granted a leave of absence of one (1) working day without loss in pay.

- 7.70.5 If, during her/his vacation period, a Member is bereaved in circumstances under which she/he would have been eligible for leave under this Article, she/he shall be granted leave and her/his vacation pay credits shall be restored to the extent of any concurrent leave granted.

SALARY AND BENEFITS

ARTICLE 8.10 – SALARY STRUCTURE

Effective July 1, 2017, breakpoints are to be calculated on July 1st on the ranks as of July 1st.

Each member of the bargaining unit will take 5 furlough days in each of 2021-22, 2022-23 and 2023-24 to be processed as one day per month between July and November. Effective May 1st, 2021, each of the Faculty Members' salary shall be decreased by five percent (5%).

The salary floors effective July 1, 2020-June 30 2025 shall be as follows:

Rank	Floor
Lecturer / General Librarian	\$65,832
Assistant Professor / Librarian	\$79,360
Associate Professor / Librarian	\$95,163
Full Professor / Librarian	\$116,843

The Salary Structure for the Academic Year 2020-2021

- 8.10.1 The salary of each Member shall be composed of the base salary of each Member as of June 30, 2020 as modified by the following items:

- (a) For July 1, 2020, a scale increase of zero percent (0%) of the Member's regular salary.
- (b) For July 1, 2020, no Progress-Through-the Ranks increment or merit award for the evaluation carried

out for the year 2019-2020.

- (c) Additional qualification increments shall be awarded pursuant to Article 8.30 – Additional Qualifications Increments in an amount of \$2,900.
- (d) Promotion increments shall be awarded according to Article 8.15- Progress-through-the-Ranks Increments regardless of breakpoints.
- (e) For May 1, 2021, a scale decrease of five percent (5%) of the Member's regular salary.

The Salary Structure for the Academic Year 2021-2022

8.10.2 The salary of each Member shall be composed of the base salary of each Member as of May 1, 2021 as modified by the following items:

- (a) For July 1, 2021, no Progress-Through-The-Ranks increment or merit award for the evaluation carried out for the year 2020-21.
- (b) Additional qualification increments shall be awarded pursuant to Article 8.30 – Additional Qualifications Increments in an amount of \$2,900.
- (c) Promotion increments shall be awarded according to Articles 8.15 – Progress-Through-The-Ranks Increments regardless of breakpoints.

The Salary Structure for the Academic Year 2022-2023

8.10.3 The salary of each Member shall be composed of the base salary of each Member as of June 30, 2022 as modified by the following items:

- (a) For July 1, 2022, a scale increase of one percent (1%) of the Member's regular salary.
- (b) For July 1, 2022, a Progress-Through-The-Ranks increment for the evaluation carried out for the year 2021-2022 as described in Article 8.20 – Procedures for the Award/Denial of a Progress-Through-The-Ranks Increment. The Progress-Through-The-Ranks increments shall have a value of two thousand eight hundred dollars (\$2,900).

For all ranks other than Full Professor/Librarian, where a Member's salary exceeds \$156,594 per annum, the PTR will be at fifty percent (50%) value. For all ranks, where a Member's salary exceeds \$173,328 per annum, the PTR will be nil.

- (c) Additional qualification increments shall be awarded pursuant to Article 8.30 – Additional Qualifications Increments in an amount of \$2900.
- (d) Promotion and Merit increments shall be awarded according to Article 8.15—Progress- Through-The- Ranks Increments and to Article 8.25 – Merit Increments, regardless of breakpoints.

The Salary Structure for the Academic Year 2023-2024

8.10.4 The salary of each Member shall be composed of the base salary of each Member as of June 30, 2023 as modified by the following items:

- (a) For July 1, 2023, a scale increase of one percent (1%) of the Member's regular salary.
- (b) For July 1, 2023, A Progress-Through-The-Ranks increment for the evaluation carried out for the year 2022-2023 as described in Article 8.20 – Procedures for the Award/Denial of a Progress-Through-The-Ranks Increment. The Progress-Through-The-Ranks increments shall have a value of two thousand eight hundred dollars (\$2,900).

For all ranks other than Full Professor/Librarian, where a Member's salary exceeds \$156,594 per

annum, the PTR will be at fifty percent (50%) value. For all ranks, where a Member's salary exceeds \$173,328 per annum, the PTR will be nil.

- (c) Additional qualification increments shall be awarded pursuant to Article 8.30 – Additional Qualifications Increments in an amount of \$2,900.
- (d) Promotion and Merit increments shall be awarded according to Article 8.15- Progress-Through-The-Ranks-Increment and Article 8.25 – Merit Increments, regardless of breakpoints.

The Salary Structure for the Academic Year 2024-2025

8.10.5 The salary of each Member shall be composed of the base salary of each Member as of June 30, 2024 as modified by the following items:

- (a) For July 1, 2024, a scale increase of one percent (1%) of the Member's regular salary.
- (b) For July 1, 2024, a Progress-Through-The-Ranks increment for the evaluation carried out for the year 2023-2024 as described in Article 8.20 – Procedures for the Award/Denial of a Progress-Through-The-Ranks Increment. The Progress-Through-The-Ranks increments shall have a value of two thousand eight hundred dollars (\$2,900).

For all ranks other than Full Professor/Librarian, where a Member's salary exceeds \$156,594 per annum, the PTR will be at fifty percent (50%) value. For all ranks, where a Member's salary exceeds \$173,328 per annum, the PTR will be nil.

- (c) Additional qualification increments shall be awarded pursuant to Article 8.30 – Additional Qualifications Increments in an amount of \$2,900.
- (d) Promotion and Merit increments shall be awarded according to Article 8.15- Progress-Through-The-Ranks-Increment and Article 8.25 – Merit Increments, regardless of breakpoints

ARTICLE 8.15 – PROGRESS-THROUGH-THE-RANKS INCREMENTS

- 8.15.1 The purpose of these increments is to provide, through a series of salary increases, orderly promotion within rank.
- 8.15.2 These increments shall be awarded annually for satisfactory performance of duties per Article 8.20 – Procedures for the Award/Denial of a Progress-Through-The-Ranks Increment.
- 8.15.3 Increments may be withheld if performance is deficient, as outlined in Article 8.20 – Procedures for the Award/Denial of a Progress-Through-The-Ranks Increment.
- 8.15.4 Any Members who are promoted to a higher rank shall not be required to take a loss in salary. If such Members' salaries are below the floor salary of the higher rank, they shall receive the floor salary upon promotion.
- 8.15.5 Promotion Increment: Effective July 1, 2009, there shall be an award equal to one (1) PTR increment added to the Member's base salary upon promotion from either Lecturer/General Librarian to Assistant Professor/Librarian, from Assistant Professor/Librarian to Associate Professor/Librarian, from Associate Professor/Librarian to Full Professor/Librarian. In no circumstances will a Member be awarded more than two (2) PTRs in any given year, excepting the case of a reinstatement of the PTR increment as per Article 8.20 – Procedures for the Award/Denial of a Progress-Through-The-Ranks Increment.

ARTICLE 8.20 – PROCEDURES FOR THE AWARD/DENIAL OF A PROGRESS-THROUGH-THE-RANKS INCREMENT

- 8.20.1 When a Member's performance is judged to be satisfactory by the Dean/University Librarian, the annual

increment shall be awarded. The denial of an annual increment under this Article shall not constitute discipline.

- 8.20.2 Decisions to award the annual increment or notification of a review as per Article 8.20.4 below shall be communicated to the Members by June 30, provided that the Member submitted her/his annual report by May 15. If the annual report is submitted after May 15, the decision of the Dean/University Librarian shall be communicated to the Member within six (6) weeks after the Member's annual report has been submitted.
- 8.20.3 For those Members on sabbatical or study leave, the decision whether to award the annual increment may be delayed until submission of their final report as specified in Article 5.45 – Annual Report for Members.
- 8.20.4 The Dean/University Librarian shall examine the annual reports as per Article 5.45 – Annual Report for Members, and make such other inquiries, as she/he deems appropriate. Where the Dean/University Librarian has concerns about the Member's performance with respect to the awarding of the PTR increment, the Dean/University Librarian shall first issue a written warning, stating the basis of the concerns, and what needs to be done to remedy them. This warning will be issued in a separate letter. The Member shall be awarded the PTR increment for that year and shall indicate in the following year's annual report what measures the Member has taken to address those concerns. If in the following year, the Dean/University Librarian is not satisfied that the concerns have been addressed by the Member and that the Member does not show active participation and/or satisfactory performance in all three (3) areas, A), B), and C) (within the provisions of Article 5.15 – Rights, Responsibilities and Duties of Academics) or in the subset of those areas for which the Member's terms of employment are relevant, the Dean/University Librarian shall communicate to the Member the possibility that the PTR will be denied. The Dean/University Librarian shall specify the reasons and provide the evidence giving rise to this possibility. The Dean/University Librarian shall invite the Member to a meeting in order to address the concerns. The Dean/University Librarian shall inform the Union of the upcoming meeting and shall inform the Member of her/his right to be accompanied by a Union representative. The review shall include a consideration of at least the three (3) previous annual reports, if available, and a meeting with the Member. The Dean/University Librarian shall invite the Member to submit relevant materials.
- 8.20.5 When a review is undertaken under the terms of Article 8.20.4 above, the deadline for communicating the decision to the Member is delayed by one (1) month from those stated in Article 8.20.2 above.
- 8.20.6 After making her/his evaluation, the Dean/University Librarian shall inform the Member in writing whether the increment is awarded and shall provide a justification for the decision.
- 8.20.7 A Member whose annual increment is denied shall have the right of appeal to the Vice President, Academic and Provost. In making her/his decision, the Vice President, Academic and Provost shall at a minimum consult the annual report, the investigation made by the Dean/University Librarian, and the appeal presented by the Member, and may consult more broadly. In cases where a Member elects to appeal, the decision of the Vice President, Academic and Provost shall be communicated to the Member within six (6) weeks of the Member's appeal.
- 8.20.8 If the Vice President, Academic and Provost reverses the decision of the Dean/University Librarian and awards the annual increment, a retroactive payment shall be made to the Member as appropriate.
- 8.20.9 There shall be no denial of a PTR increment to a full-time Member with a probationary appointment prior to the Member's tenure decision as per Article 5.60 – Tenure Evaluation Procedures.
- 8.20.10 A Member shall have the opportunity for reinstatement of the increment, as follows: A reinstatement of the increment shall occur July 1 for the academic year after the Member receives two (2) consecutive satisfactory annual assessments from the Dean/University Librarian, or after the Member receives a promotion in rank as per Article 5.65 – Promotion Procedures, or after the Member receives a merit award as per Article 8.25 – Merit Increments. The reinstated amount shall be equal to the amount of the PTR denied.
- 8.20.11 If, within three (3) years of the first denial of a PTR, the Member's performance is not satisfactory the Dean/University Librarian may deny the PTR, as per Article 8.20.4 above without a preliminary year of warning.

ARTICLE 8.25 – MERIT INCREMENTS

- 8.25.1 Merit increments are awarded by the Vice-President, Academic and Provost and shall become a permanent part of the Member's salary structure. Only Full Professors/Librarians/Archivists and Master Lecturers are eligible for merit increments.
- 8.25.2 It shall be the goal of the Vice-President, Academic and Provost to award merit increments to at least five percent (5%) of the Full Professors/Librarians/Archivists and Master Lecturers at Laurentian University. Notwithstanding this goal, the criteria specified in Article 8.25.5 below shall not be violated.
- 8.25.3 All merit increments have the value of one Progress-Through-The-Ranks increment.
- 8.25.4 Merit increments are awarded according to the procedures of Article 5.50 – Assessment of a Member's Performance. Only tenured Members are eligible to vote.
- 8.25.5 For Full Professors/Librarians/Archivists, the Faculty Personnel Committee shall consider the award of merit increments in relation to criteria for promotion to the rank for Full Professor/Librarian. The Member's performance at Laurentian University over a three (3) year time period or since the award of the last merit increment, whichever is shorter, must be judged clearly above the level for promotion to Full Professor/Librarian, as stated in Article 5.10 – Academic Qualifications Guidelines.
- For Master Lecturers, the judging of the applicant's performance over the past three (3) years, or since the award of the last merit increase, shall be based on consistently good teaching.
- 8.25.6 In making recommendations in merit increment cases, the procedure in Article 5.50 – Assessment of a Member's Performance shall be followed.
- 8.25.7 All merit increments received previously or awarded during the academic year 2007-08 under the terms of prior Forced Contracts remain in force.
- 8.25.8 The determination of individuals to receive merit increments pursuant to Article 8.25.5 above shall not be subject to grievance.
- 8.25.9 Although Lecturer, Assistant and Associate Professors are not eligible for merit increments, as per Article 8.15.5 of Article 8.15 – Progress-Through-The-Ranks Increments, Members in these ranks shall receive an additional PTR when promoted to the next rank.

ARTICLE 8.30 – ADDITIONAL QUALIFICATIONS INCREMENTS

- 8.30.1 An additional increment, equal to the value of a Progress-Through-The-Ranks increment, shall be awarded to individuals obtaining a first Doctorate provided that such a degree was not a condition of nomination to a specific rank and salary as indicated in the letter of appointment. Such an award will be retroactive to the first (1st) day of July immediately preceding the receipt of the Doctorate. The Doctorate will be deemed to have been received when the individual can provide a diploma or a letter from the university where the Doctorate is being obtained indicating that all the conditions for the Doctorate, including the thesis defence and the corrections to the thesis, have been met. The Member shall apply for an additional increment through the Dean/University Librarian and must furnish a copy of the appropriate document.

ARTICLE 8.35 – OVERLOADS

- 8.35.1 All ranks of full-time Members who are teaching a course on a paid overload basis will receive a stipend as shown below for courses beginning after these dates:

	<i>Full course (6 credits)</i>	<i>Half course (3 credits)</i>
As of July 1, 2020	\$10,665	\$5,333

- 8.35.2 Where scheduled Continuing Education courses may otherwise have to be cancelled, Members may, if they choose, agree to teach a course for an amount less than the overload stipend. The Union shall be informed of any such agreement prior to its settlement.
- 8.35.3 In recognition of agreement by the Parties, that excessive overload teaching/professional Library service is undesirable (specified in Article 5.40.6 (b) of Article 5.40 – Academic Workload), the Dean/University Librarian has the authority to limit the number of overload courses a Member may teach in any given academic year, or its equivalent in the Library. In order to fulfil this function, the Dean/University Librarian must approve all paid overloads including distance education courses and on-campus courses administered by the Centre for Continuing Education. In decisions to limit the number of paid overloads, the Dean/University Librarian shall be guided by her/his assessment of the total workload of the Member, the impact of overload teaching/professional library work on the likely career progress of the Member, including the capacity of the Member to undertake scholarly activity and administrative duties expected of all Members. A decision by the Dean/University Librarian to limit paid overloads in any academic year shall not be grievable.
- 8.35.4 Librarians and Archivists may be paid full or half overloads according to the schedule outlined in this Article.
- 8.35.5 All Members who believe they are entitled to an overload stipend shall apply per Article 5.40 – Academic Workload.
- 8.35.6 Full-time Members in the Department of Music teaching Applied Music courses on overload shall be paid the following rate of pay:

	<i>Total hourly rate of pay</i>
As of July 1, 2020	\$69.96

ARTICLE 8.40 – DISTANCE EDUCATION COURSES

8.40.1 Normal function

The development and/or supervision of distance or on-line education courses are an integral part of University functions. Therefore, the development and/or supervision of a distance or on-line education course may be part of a Member's normal workload as per Article 5.40 – Academic Workload and according to Senate regulations or may be carried out on an overload basis. Prior to assigning the supervision of a distance or on-line course to a Member as part of her/his normal workload, the Dean shall seek volunteers willing to teach such a course. The Dean shall not assign the development of a distance or on-line education course to a Member as part of her/his normal workload without her/his prior consent in writing. The development and/or supervision of a distance or on-line education course are governed by the terms and conditions of a contract issued by the Centre for Continuing Education on behalf of the University.

8.40.2 Equivalents

The development of a distance education course shall normally be equivalent to twice the credit value of the course but may be equivalent to a lesser amount or up to a maximum of a full workload.

In all instances, a written statement of the equivalency will be provided in advance by the Dean when the work is part of assigned workload and by the Director of Continuing Education otherwise.

8.40.3 Copyright

Copyright for distance education courses shall be governed by Article 6.35 – Copyright.

8.40.4 Compensation

Where the development of a distance education course is not included as a part of a Member's normal workload the payment shall be an overload payment based on the equivalence outlined in Article 8.40.2

above. A Member may also agree to some combination of normal workload assignment plus paid overload as appropriate.

8.40.5 **Supervision**

Where the supervision of a distance education course is not included as part of a normal workload, the course shall be paid for as identified in article 4.56- Rates of Pay for individuals who conduct instruction through distance education delivery modes. The maximum pay shall be the rate of pay of a Sessional Member without establishment as per Article 4.55 Rates of Pay for Sessional Members with restrictions as per Article 5.40.6 of Article 5.40 – Academic Workload.

ARTICLE 8.45 – BENEFITS

8.45.1 The following benefits are available to full-time Members and Master Lecturer Members:

- (a) Retirement Plan of Laurentian University of Sudbury and its Federated and Affiliated Colleges
- (b) Group Life Insurance
- (c) Accidental Death and Dismemberment
- (d) Dependent Group Life
- (e) Extended Health Care (including semi-private hospital coverage)
- (f) Long-Term Disability
- (g) Dental Care

8.45.2 Participation in the Retirement Plan of Laurentian University of Sudbury and Its Federated and Affiliated Colleges shall be mandatory for all new full-time faculty Members effective the date of their appointment.

8.45.3 Effective July 1, 2011, Members shall only participate in the Defined Benefit component of the Retirement Plan and Member contributions shall only be used toward funding the Defined Benefit component of the Retirement Plan. All pension service contributions and benefits accrued prior to July 1, 2011, shall remain in the hybrid component of the Retirement Plan.

8.45.4 The cost of premiums shall be shared by the Employer and the Member on the following basis:

	<i>Employer</i>	<i>Member</i>
<i>Life Insurance</i>	50% coverage up to maximum of \$400,000	50%
<i>Accidental Death & Dismemberment</i>	50% Coverage up to maximum of \$400,000	50%
<i>Dependent Group Life</i>	50%	50%
<i>Extended Health Care</i>	100%	
<i>Dental Care</i>	100%	
<i>Long Term Disability</i>		100% Coverage amount up to maximum of \$6,000 per month.
<i>Retirement Plan</i>	The Employer's contributions to the Retirement Plan shall be at least the amount required to fund current service costs and any unfunded liabilities and solvency liabilities, or 8.0%, whichever is greater, in accordance with the <i>Pension Benefits Act</i> and regulations there under	Each Member shall contribute by regular payroll deduction as follows. Effective July 1, 2021, the sum of: a) 6.7% of Pensionable Earnings up to the YAMPE; and

	based upon the actuarial valuations for the Retirement Plan that the Employer files with the Financial Services Regulatory Authority of Ontario. Interest on the Employee contributions to the Plan will be credited at the Plan rate of return.	b) 10.4% of Pensionable Earnings above the YAMPE.
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8.45.5 **Extended Health Care**

Effective November 1, 2008, extended health care will be enhanced by providing full payment to paramedical practitioners (audiologist, chiropractor, kinesiologist, massage therapist, naturopath, osteopath, podiatrist, and speech therapist) up to an annual limit of two thousand two hundred dollars (\$2,200) per benefit year per covered individual. Effective January 1, 2019, these benefits will be increased to an annual limit of three thousand dollars (\$3,000) per benefit year per covered individual.

Effective November 1, 2008, the professional services for a certified psychologist only will increase up to four thousand dollars (\$4,000) per covered individual per benefit year.

Extended health care will continue to provide payment, according to the Extended Health Care Plan, to physiotherapists and athletic therapists without an annual limit.

8.45.6 **Vision Care**

Purchase and fitting of prescription glasses or elective contact lenses, as well as repairs or elective laser vision correction procedures, up to an overall maximum increase to four hundred dollars (\$400) per covered individual in any twenty-four (24) consecutive months.

Effective January 1, 2019, purchase and fitting of prescription glasses or elective contact lenses, as well as repairs or elective laser vision correction procedures will be increased to an overall maximum of five hundred dollars (\$500) per covered individual in any twenty-four (24) consecutive months.

8.45.7 **Hearing Aids**

Effective July 1, 2016, up to two thousand dollars (\$2000) per covered individual in any two (2) consecutive benefit years.

8.45.8 **Dental**

The Employer shall pay one hundred percent (100%) of the cost of the premiums of the dental plan in accordance with the current rate schedule as established by the Ontario Dental Association and including six (6) month recall, effective November 1, 2008.

	Annual Maximum	Reimbursement
<i>Basic coverage, including major services, per person per benefit year:</i>	\$3,000	
<i>Basic coverage :</i>		100% Reimbursement by plan
<i>Major services :</i>		80% Reimbursement by plan
<i>Orthodontics coverage per person</i>	Lifetime Maximum \$3,000	50% Reimbursement by plan
Effective June 30, 2020 Major services for dentures and implants	\$5,000	100% Reimbursement by plan

8.45.9 Any Member on an unpaid leave of absence shall make special arrangements for benefit coverage as outlined in Article 7.40 – Leaves of Absence Without Pay.

- 8.45.10 Benefits for the spouse and dependants of a Member, enrolled in the various benefits plans at the time of death, shall continue for a period of two (2) years from the date of death and shall terminate at the end of the month in which the death occurred, two (2) years after the date of death.

ARTICLE 8.50 – TUITION FEE EXEMPTION AND SPOUSAL LIBRARY CARD

Tuition Fee Exemption

- 8.50.1 The following shall be eligible for Tuition Fee Exemption.
- (a) All full-time Members as of the effective date of appointment and all retired full-time Members.
 - (b) Spouses and dependants of all full-time Members, and of Members who died while in the full-time employ of the University. Dependants include wife and husband (including common-law relationships), children up to the age of twenty-six (26) years (including natural, step, and adopted children, wards and other children for whom the Member is the primary caregiver).
- 8.50.2 Exemption from tuition fees is subject to the following conditions:
- (a) A student must remain in good standing as defined by the Registrar's Office in order to qualify for tuition exemption. In the event of loss of good standing, the same course(s) or an equivalent one(s) may be taken at the student's expense in order to reinstate good standing and eligibility.
 - (b) Students who are eligible for an exemption from tuition fees are not exempted from the payment of incidental fees.
 - (c) To the extent that a grant is specifically given to defray tuition a student who receives a grant is not eligible for exemption from tuition fees.
 - (d) To the extent that tuition is reduced by a Laurentian University tuition scholarship, the student is not eligible for exemption from tuition fees. Where the funds are from an outside source this condition does not apply.
 - (e) International tuition fees will only be covered up to the rate of domestic tuition fees. The remaining balance is the responsibility of the student.
- 8.50.3 Eligibility ceases with the term immediately following the date of termination of employment of a Member, unless otherwise specified in this Forced Contract.
- 8.50.4 The Employer reserves the right to modify or rescind this policy depending on the development of future government policy that has a bearing on this matter.

Spousal Photo ID Library Card

- 8.50.5 On an annual basis, spouses of all Members, including retired Members, deceased retired Members and Members who died while in the employ of the University, upon request, will be supplied with a photo identification library card at no cost to them except if they require a replacement for a lost card. The cards will receive a renewal sticker yearly and be reissued only if necessary. The charge for replacement will be fifteen dollars (\$15) per card.

ARTICLE 8.55 – MOVING EXPENSES

- 8.55.1 On initial appointment to the University each regular full-time Member shall be entitled to reimbursement for moving expenses subject to the following conditions:
- (a) All claims must be substantiated by official receipts or reasonable facsimiles.
 - (b) The University shall reimburse claims at the rate of one hundred percent (100%) to a maximum of five thousand dollars (\$5,000). In exceptional circumstances, the University may exceed this amount. Such conditions will be specified in the initial letter of appointment.
- 8.55.2 Moving expenses include:
- (a) Moving, packing, crating and unpacking of household goods and personal effects.
 - (b) Transfer of family by the most economical means of transportation.

- (c) Reasonable living expenses for the duration of the trip to the new location.
 - (d) One (1) advance visit for the purpose of securing suitable housing. The newly appointed Members may be accompanied by their spouse in this instance.
- 8.55.3 Employees appointed on a contract of twelve (12) month's duration or less shall not normally be eligible to claim moving expenses. The Vice-President, Academic and Provost may under special circumstances allow some amount of moving expenses to be reimbursed for such employees.
- 8.55.4 Moving expenses paid to a new Member will constitute a loan made by the University. This loan will be retired when the Member has completed three (3) years of continuous service to the University, each year being equivalent to one third (1/3) of the reimbursement of the loan.
- 8.55.5 Should the beneficiary of such a loan leave the University before completing three (3) years of continuous service, for personal or disciplinary reasons, she/he must reimburse the University for the remaining unretired portion of the loan.

ARTICLE 8.65 – PUBLIC LIABILITY INSURANCE

- 8.65.1 Subject to the express provisions of the current policy (ies) of insurance providing such coverage, the University shall continue to maintain the present public liability insurance insuring, among others, Members who are acting within the scope of their employment against liability claims (including negligence, property damage, personal injury, libel and slander), up to a limit of four million dollars (\$4,000,000). Any legal representation to which Members are entitled under this policy shall be provided in a fair and equitable manner. The Union is entitled to receive a copy of the insurance policy upon request. Any changes in this current policy shall be made with the agreement of the Parties.

ARTICLE 8.70 – PARKING

- 8.70.1 The Parties agree that Members wishing to reserve a parking space in any parking area on campus shall pay the fee established by the University. The parking fees shall be determined following consultation with the Advisory Committee on Security Services on which the Union shall maintain its current representation of one (1) Member.
- 8.70.2 Members with a temporary or Long-Term Disability or pregnant Members shall be entitled upon request to their Dean/University Librarian to a reserved parking space close to their office.

ARTICLE 8.75 – REIMBURSEMENT OF EXPENSES

- 8.75.1 All Members will be reimbursed within the normal amounts payable following approval of the Miscellaneous Expense Claim Form for reasonable out-of-pocket expenses incurred while on authorized business for the University, such as parking fees, transportation costs, meal allowances, equipment for field trips, accommodation costs, and incidental expenses. Receipts for such expenses will be provided where required. Claims can be accumulated but receipts must be submitted no later than six (6) months following the date of expenditures. However, all claims for the previous fiscal year (ending April 30) must be submitted by May 15.

The claim for reimbursement including receipts where required shall be submitted to the Member's Chair/Director. In the event that the Chair/Director is unwilling or unable to reimburse such expenses, the receipts for such expenses shall be submitted to the appropriate Dean/University Librarian. Amounts reimbursed will be according to the schedule of amounts in the Employer's 'Policies and Procedures Concerning Travel and Related Expenses' as updated annually and amended to include incidental expenses.

- 8.75.2 Prior to April 15, the Employer will send the link to the Policy and will remind Members that all receipts are due by May 15.

ARTICLE 8.80 – POLICY AND PROCEDURES IN THE EVENT OF DEATH

NOTE: The following procedures and practices are currently in place and are largely determined by external agencies. It may from time to time be necessary to make adjustments to these procedures based on requirements of these external agencies. The Parties agree that such changes required by external agencies do not require prior approval.

8.80.1 The beneficiary is to contact the Pension and Benefits Officer in the Personnel Office. If within seven (7) days the University has not been contacted by the beneficiary, the University shall make every reasonable effort to contact the beneficiary.

8.80.2 ***Life Insurance***

- (a) The Employee is insured for three (3) times salary to a maximum of four-hundred thousand dollars (\$400,000).
- (b) The following documents will be required to request payment of the insurance carrier:
 - (i) The beneficiary must complete a Statement required by the insurance carrier as well as provide her/his Social Insurance Number;
 - (ii) The notice of the Employee's death that appeared in the Obituary Notices;
 - (iii) A Death Certificate;
 - (iv) The last insurance certificate that was issued to the faculty Member.
- (c) The Life Insurance proceeds are usually paid within one (1) month.

8.80.3 ***Pension Plan***

If the Member dies prior to receiving a pension, the following will be required to process the benefits:

- (a) The University shall contact the Beneficiary and outline the procedures to be followed.
- (b) The Beneficiary must complete an "Application for Death Benefit".
- (c) Provide a Death Certificate.
- (d) Provide a "notarial copy" of the Employee's "Last Will and Testament".
- (e) All Members should have a current "Last Will and Testament".
- (f) Beneficiaries of Members without a "Last Will and Testament" will have to settle any disputes between potential Beneficiaries (children vs spouse) in the courts, prior to receiving any funds from the Pension Plan.

The file will be forwarded to the Actuary for the calculation of the death benefit. Once that calculation is received, the Beneficiary will be contacted. The Beneficiary can request a lump sum refund or a transfer to a R.R.S.P. that is not subject to locked-in provisions.

The death benefit from the Pension Plan is usually paid within two (2) to three (3) months.

If the Member dies after commencing to receive her/his pension, the form of pension that was selected by the Member will determine if further benefits are payable to the Beneficiary.

8.80.4 Benefits to spouse and dependants shall continue as per Article 8.45.9 of Article 8.45 – Benefits.

8.80.5 Every Member while employed by Laurentian University will be expected to complete by January 1, 2009 or within six (6) months of hire a statement to be retained in their Personnel File indicating who shall have access to the Member's computer files and office contents in the event of the Member's death or incapacitation. In the event of the death or incapacitation of the Member, the Employer shall review the Member's files and office contents to retrieve the documents and files belonging to the Employer. This review shall be consistent with Article 6.30 – Patents and Article 6.35 – Copyright. After this review, only the person or persons named shall have access to the Member's computer files and office contents. If there is no signed access statement, the right of access shall go to the executor in the event of death, and to the next of kin in the event of incapacitation. The executor or next of kin shall have access to the deceased Member's files for a period of at least one (1) year. The ownership of the computer files and office contents belonging to the Member shall be transferred according to the Member's will.

ARTICLE 8.85 – SALARY TO BENEFICIARY IN THE EVENT OF DEATH OF FACULTY MEMBER

- 8.85.1 Salary Rate: shall be the rate of gross pay for the contract period, including any proportionate reduction in stipend consequent on approved University policies.
- 8.85.2 Termination Date: shall be the end of the month in which the death occurs.
- 8.85.3 Period of Negotiations: where it would unduly retard settlement to postpone closure until the completion of a Forced Contract, an arbitrary figure in excess of any anticipated agreement may be used as the basis for settlement by mutual agreement of the Parties.
- 8.85.4 Vacation Pay: the lesser of two percent (2%) per week or eight percent (8%) per month of entitlement shall be calculated on gross earnings paid during the period of the year to termination.
- 8.85.5 Sabbatical Leave: is an investment by the University in an approved plan of professional development with a view to enhance future contributions to the work of the University and the broader scholarly community. Sabbatical leave entitlement is not a benefit, which the Employee or her/his assigns can claim as of right in the event of either termination (for any cause), retirement, or death. For purposes of death benefits (Hospital care, Extended Medical and Dental Insurance), any sabbatical stipend is to be regarded as the equivalent of salary.
- 8.85.6 Contractual Travel Allowance: may be claimed by the Beneficiary for vouchered expenses incurred prior to termination.

CHAIRS AND DIRECTORS

ARTICLE 9.10 – DUTIES OF CHAIRS/DIRECTORS

- 9.10.1 The Chairs/Directors are responsible for providing academic leadership to their Departments/Schools. They serve as the representatives of their Departments/Schools in administrative matters, as well as the official spokesperson of their Departments/Schools and they report to the Dean/University Librarian.

In carrying out their duties, the Chairs/Directors will ensure that the Members of the Departments/Schools have an opportunity to share in the decision-making process, in the formulation of policies, and in the administrative tasks of the Departments/Schools in accordance with the Departments/Schools constitution, and in a manner that is consistent with the Forced Contract.

Chair/Director shall not be required to review or approve Member applications for reimbursement for Professional Development Expenditures (Article 6.45 – Professional Development Expenditures and Article 4.70 – Professional Development Expenditures for Sessional Members). The Professional Development Expenditures shall be submitted directly to the secretary for the department/school who shall in turn submit the reimbursement forms to the Dean/University Librarian.

- 9.10.2 Their duties are the following and shall be carried out in accordance with good administrative practices:
- (a) To ensure that the Department/School has a constitution that clearly delineates a transparent and collegial decision making process for the unit and that is consistent with this Forced Contract.
 - (b) To ensure that the Members of the Department/School are informed of their duties and responsibilities in accordance with Senate regulations, the regulations of the University and this Forced Contract.
 - (c) To ensure that the Members of the Department/School receive a copy of all formal correspondence exchanged with the Administration and are kept informed of all discussions relating to Department/School affairs.
 - (d) To convene and preside over meetings of the Department/School at regular intervals during the academic year and to be an *ex officio* and voting Member of its standing committees.
 - (e) To prepare budgetary recommendations and administer the annual budget for the Department/School and the clinic in conjunction with the Dean/University Librarian and the appropriate internal body.
 - (f) To ensure the proper use and maintenance of space and equipment allocated to the Department/School and the clinic.

- (g) To submit the Department/School recommendations on the annual course offerings, full-time faculty workloads and sessional contracts for Members with establishment to the Dean by February 15 following consultation with Members the Department/School pursuant to Article 5.40.3. Recommendations for the Library workload shall be submitted to the University Librarian by February 15.
- (h) To ensure that the Members of the Department/School receive a copy of the workload recommendations in (g) and the Dean's/University Librarian's workload decision according to Article 5.40.1 of Article 5.40 – Academic Workload, and that each Member also receive a copy of the sabbatical eligibility plans according to Article 7.25.3 of Article 7.25 – Sabbatical Leaves.
- (i) To ensure that students receive academic counselling on programs of study and academic matters within the Department/School.
- (j) To ensure the Department/School maintains a seniority list for clinicians and a roster of sessional Members pursuant to Article 4.15.2.
- (k) To prepare a succinct annual report, that shall not exceed 10 pages, for submission to the Dean/University Librarian due by June 30. The report shall include information on the enrolment, curriculum and other pragmatic issues facing the Department/School. The report may also include information relevant to the cyclical program review and/or accreditation and information on any resource issues. The annual report shall also include a list of Sessional Lecturers with establishment in specific courses and a list of all Sessional Members on the Department/School roster in accordance with paragraph (j) The report shall be distributed to Members of the Department/School prior to being submitted to the Dean/University Librarian.
- (l) To be responsible for presenting the academic programs of the Department/School for accreditation or approval of external bodies.
- (m) To maintain relations between the Department/School and external professional constituencies and agencies and the wider community, as relevant and appropriate: and to arrange representation as necessary.
- (n) To perform such other duties in connection with the work and administration of the Department/School as the appropriate Dean/University Librarian may assign her/him, provided the request is reasonable and is consistent with her/his status as a Member of the Bargaining Unit.

ARTICLE 9.15 – SELECTION OF CHAIRS/DIRECTORS

- 9.15.1 The Chair/Director of a Department/School shall be appointed by the Vice-President, Academic and Provost in accordance with the procedures of this Article. The Chair/Director shall not serve for more than two (2) consecutive terms.
- 9.15.2 The following procedures will be initiated by the Dean/University Librarian at least six (6) months before the end of a term of a Chair/Director or immediately if a post of Chair/Director becomes vacant.
- 9.15.3
 - (a) The Dean/University Librarian shall ensure that there is a selection committee with the following composition, including a Chair of the committee, in place within five (5) months before the end of a term of a Chair/Director or immediately if a post of Chair/Director becomes vacant:
 - (i) One third (1/3) of the full-time teaching/librarian Members of the Department/School to the nearest whole number. The Members of the committee shall be tenured or probationary appointments, if possible, and shall be elected by all the full-time teaching/librarian Members of the Department/School.
 - (ii) The Dean/University Librarian as a non-voting Member.
 - (iii) The Chair/Director of another Department/School appointed by the Dean/University Librarian in consultation with the Department/School seeking a Chair/Director.
 - (iv) At least one (1) Member of the committee shall be a woman. Where the Department/School has no women Members and no woman is otherwise on the committee, the Dean/University Librarian, in consultation with the Department/School shall appoint a woman Member in addition to those described above.
 - (b) The Committee shall elect a Chair from among its Members.

- 9.15.4 The Chair of the Selection Committee shall use all reasonable efforts to invite all full-time Members of the Department/School (including those on leave) to submit to her/him, within a specified period of time, in confidence, the names of possible candidates and reasons supporting their candidature. Without disclosing the names of the individuals submitting them, these names and reasons shall be communicated to the Selection Committee.
- 9.15.5 In the event that no candidates are submitted by the Department/School within ten (10) working days of the Selection Committee's request, the Committee may suggest a short list of its own or make a request to the Vice-President, Academic and Provost to search for a candidate from outside the Department/School or the University. In the latter instance, the Department/School shall be consulted for the names of possible outside candidates.
- 9.15.6 (a) The Selection Committee, after undertaking any further inquiries that it deems appropriate and relevant shall establish a short list of not fewer than two (2) and not more than three (3) candidates, unless it is convinced that it can find only one suitable candidate.
- (b) The selection committee shall evaluate candidates on the grounds of proven administrative ability, scholarly activity, and teaching/librarian competence. The Selection Committee will be guided by Article 9.10 – Duties of Chairs/Directors in making this evaluation. The Committee may wish to meet with the candidates.
- (c) Prior to the compilation of its final short list, the Selection Committee will obtain, in writing, the consent of the candidates on that list.
- (d) The Department/School may wish to meet with the short-listed candidates prior to the balloting process.
- 9.15.7 Within ten (10) working days from the final receipt of names from the Department/School as per Article 9.15.4 above, the Chair of the Selection Committee shall make all reasonable efforts to provide all full-time Members of the Department/School, including those on leave, with a ballot. The ballot shall set out the short list of candidates. The Members shall indicate their one (1) preferred choice, in confidence, to the Chair of the Selection Committee within fifteen (15) working days from the distribution date noted on the ballot. The ballots shall be opened and counted in the presence of the Selection Committee.
- 9.15.8 In the event the Selection Committee finds only one (1) suitable candidate, the Chair of the Selection Committee shall use all reasonable efforts to submit to all the full-time Members of the Department/School, including those on leave, a ballot showing this candidate's name. Time limits for this submission and the Member's responses shall be as set out in Article 9.15.7 above. The ballots shall be opened and counted in the presence of the Selection Committee.
- 9.15.9 The Chair of the Selection Committee shall report the results of the selection process and its recommendation to the Dean/University Librarian.
- 9.15.10 If the Dean/University Librarian is prepared to accept the Selection Committee's recommendation then the Dean/University Librarian will forward this recommendation together with her/his own to the Vice-President, Academic and Provost who will make the appointment.
- 9.15.11 Should the Dean/University Librarian not be prepared to accept the Selection Committee's recommendation, the Dean/University Librarian shall indicate her/his reservations to the Selection Committee and the Department/School. If the Dean/University Librarian and the Selection Committee are unable to agree on an appointment, the selection procedure shall be reinstituted as in Article 9.15.3 above.
- 9.15.12 The Chair/Director shall be a tenured or probationary Member of faculty. Any outside appointment shall be made in accordance with Article 5.20 – Appointment and Renewal.
- 9.15.13 In exceptional circumstances the Vice-President, Academic and Provost and the Dean/University Librarian, after consultation with a Department/School, may appoint an acting Chair/Director for a period of up to four (4) months, consistent with Article 9.20 – Term of Office of Chairs/Directors and Article 9.30 – Removal from Office of Chairs/Directors.

9.15.14 ***Abbreviated Selection Process***

In many selection processes, it is apparent at step 4 (Article 9.15.4 above) that a strong consensus has emerged for the selection of one (1) candidate. In that event, the Selection Committee may proceed directly to step 8 (Article 9.15.8 above) of the procedure. If at least two (2) Members object to the abbreviated

selection process, then the Committee shall follow the full procedure.

ARTICLE 9.20 – TERM OF OFFICE OF CHAIRS/DIRECTORS

- 9.20.1 The term of office for Chairs/Directors shall normally be for three (3) years, renewable by Department/School selection per Article 9.15 – Selection of Chairs/Directors.
- 9.20.2 Should Chairs/Directors not be able to carry out their duties for six (6) months or less, the Chairs/Directors shall make provision for the take-over of their duties in consultation with the Department/School and Dean/University Librarian.
- 9.20.3 If the absence is for a period of longer than four six (6), the Chairs/Directors shall relinquish her/his title and a new Chair/Director shall be selected according to the procedures set out in Article 9.15 – Selection of Chairs/Directors.

ARTICLE 9.25 – TEACHING LOAD REDUCTIONS AND STIPENDS FOR CHAIRS/DIRECTORS

9.25.1

(a) The Chair/Director shall be entitled to a six (6) credit teaching load reduction during each calendar year served as Chair/Director. For Departments/Schools with twenty-five (25) or more full-time Members and employees (as defined in Article 9.25.2 below), Chairs/Directors shall receive an additional three (3) credit course reduction. Where the Dean has assigned a full teaching load with the agreement of the Member, an overload payment (or proportion thereof) will be made in lieu thereof. Where the University Librarian has assigned a greater than normal workload with the agreement of the Member, an overload payment (or proportion thereof) will be made.

(b) The Chair/Director may voluntarily waive these entitlements, in full or in part.

- 9.25.2 The Chair/Director will be entitled to an annual stipend for each full year served. Portions of a year will be pro-rated. An acting Chair/Director shall receive a pro-rated stipend in lieu of the Chair/Director for each full month served in excess of the first month. The stipend shall be based on the number of full-time teaching/librarian Members in the Department/School and the number of other full-time equivalent employees (secretaries, technical staff, etc.) who report to the Chair/Director. For purposes of administration of this Article, the Chair/Director shall indicate to the Dean/University Librarian as of September 1 of each year the category under which she/he should be compensated. Changes occurring after September 1 shall be reflected in the following year. If the Dean/University Librarian agrees with the category under which a Chair/Director is to be compensated, the Dean/University Librarian will forward this information to the Vice-President, Academic and Provost. If the Dean/University Librarian does not agree with the category and the disagreement cannot be resolved, the Vice-President, Academic and Provost will rule on the matter. The ruling of the Vice-President, Academic and Provost shall not be grievable.

- 9.25.3 Full-time teaching/librarian Members and other full-time employees (compensation per year):

One to nine (1 – 9)	July 1 st , 2020 to June 30 2025 \$2,360
Ten to nineteen (10 – 19)	July 1 st , 2020 to June 30 2025 \$3,409
Twenty to twenty-nine (20 – 29)	July 1 st , 2020 to June 30 2025 \$4,457
Thirty and over (30 –)	July 1 st , 2020 to June 30 2025 \$5,506

- 9.25.4 In lieu of compensation, the Chair/Director may elect to receive the whole or part of the stipend in the form of an equivalent enhancement to the professional allowance. The Chair/Director will indicate her/his intentions in this matter by September 1 of each year.
- 9.25.5 In addition to the above compensation, the Chair/Director shall be entitled to a credit of one (1) year toward her/his sabbatical for a completed three (3) year term.

ARTICLE 9.30 – REMOVAL FROM OFFICE OF CHAIRS/DIRECTORS

9.30.1 Proceedings for the removal of the Chair/Director may be initiated by:

- (a) A written complaint to the Dean/University Librarian specifying the reasons for the complaint, signed by at least a majority of the full-time faculty of the Department/School, excluding those on leave and the Chair/Director herself/himself. The Dean/University Librarian shall investigate the situation and offer her/his services to resolve the matter. If the attempt is unsuccessful, the Dean/University Librarian will forward the written complaint together with her/his report to the Vice-President, Academic and Provost.

or

- (a) A written complaint by the Dean/University Librarian to the Vice-President, Academic and Provost specifying the grounds for the complaint. The grounds for such complaints should normally be related to Articles 9.10 – Duties of Chairs/Directors and Article 5.15 – Rights, Responsibilities and Duties of Academics.

9.30.2 The Vice-President, Academic and Provost shall invite the Chair/Director and the Department/School to discuss the complaint. Following an adequate investigation, the Vice-President, Academic and Provost may request the Chair/Director to relinquish their office. If the Chair/Director are not requested to relinquish their office the Department/School or the Dean/University Librarian may request initiation of procedures under Article 9.30.3 (c) below.

9.30.3 If the Chair/Director does not voluntarily resign as Chair/Director:

- (a) The Vice-President, Academic and Provost is empowered to suspend that individual as Chair/Director. Once suspended, the Member retains all other rights and responsibilities as defined in this Forced Contract.
- (b) The Vice-President, Academic and Provost shall instruct the Dean/University Librarian to appoint an Acting-Chair/Director in consultation with the Department/School in accordance with Article 9.15 – Selection of Chairs/Directors and shall forward the complaint to the President in the form of an appeal.
- (c) The President shall create an ad hoc committee to investigate the complaint and shall conduct its investigation in accordance with statutory requirements. As a result of the committee's investigation, the President shall rule on the question of removal from office.
- (d) The decision of the President shall be final, non-grievable and binding on all parties.

PROFESSIONAL STAFF

ARTICLE 10.10 – DEFINITIONS AND TERMS

10.10.1 *Definitions Clinicians and Counsellors*

Clinical members and Counsellors are licensed health care professionals. Clinicians shall be defined as regulated health professionals who are assigned the principal responsibility for delivering patient care.

Immediate Supervisor: For Counsellors shall mean Manager of Counselling Services or Director of Indigenous Sharing and Learning Centre or as redefined based on structural changes. Where permanent changes are made, the members and the Union shall be given 1 month's notice of any structural changes.

10.10.2 *Terms*

The following articles of the Forced Contract shall also apply to the part-time Professional Staff: Article 1 – Introduction, Article 2 – Relations Between the Union and the Employer, Article 3 – Working Conditions, with the exception of 3.10 – Academic Freedom; Article 4.45-Physical and Mental Illness for Sessional Members, Article 4.50—Family Responsibility for Sessional Members, Article 4.65- Exemption for

Tuition Fees for Sessional Members (Counsellors only), Article 4.70—Professional Development Expenditures for Sessional Members (Counsellors only), Article 5.25 – Employment Equity, Article 5.35 – Newly Hired Members, Article 5.70 – Personnel Files, Article 5.75 Discipline, Article 7.10 – Recognized and Other Holidays, Article 7.45 – Court Leaves, Article 7.50 – Political Leaves, Article 7.70 – Compassionate Leave, Article 8.65 – Public Liability Insurance, Article 8.70 - Parking, Article 8.75 – Reimbursement of Expenses, Article 12– Grievance and Arbitration, Article 13– Strikes and Lockouts, Article 14– Validity, Duration and Continuance of the Forced Contract.

With the exception of Article 4 – Sessional Members, the parties agree that the above noted Articles will apply to Full Time Professional Staff. In addition the parties agree that the following Articles shall also apply: Article 5.85 - Resignation, 5.90 - Retirement, 6.45 – Professional Development Expenditures (Full Time Clinicians only), 7.15 – Vacation (Full Time Clinicians only), 7.55 – Physical and Mental Illness, 7.60 – Pregnancy, Parental and Adoption Leaves, 7.65 – Special Leaves, 8.45 - Benefits, 8.50 – Tuition Fee Exemption and Spousal Library Card, 8.80 – Policies and Procedures in the Event of a Death and 8.85) – Salary to Beneficiary in the Event of a Death of Faculty Member.

- 10.10.3 For Clinicians all other terms of employment will be negotiated at the time a full time position is created. Any disputes will be resolved as per the Minutes of Settlement signed on June 10, 2020.

ARTICLE 10.15 – RIGHTS, RESPONSIBILITIES AND DUTIES

- 10.15.1 Professional Staff have rights, duties and responsibilities, which derive from their positions as Professional Staff working within the University community which reflect the reasonable expectations of the Members, the University and broader community and the contractual expectations of the Employer. Nothing in this Article is meant to include academic oversight which is dealt with through Faculty members.

10.15.2 Professional Freedom

Each Professional Staff must be free to pursue excellence in the professional's field of competence, must be encouraged to contribute to the intellectual life of the School and University and broader communities, and must be encouraged to contribute to the intellectual life of the professional groups to which the Professional Staff belongs.

10.15.3 Academic Freedom

The common good of society depends upon the search for knowledge and its free exposition. Academic freedom is central to the University. Professional Staff who undertake research on their own time will have academic freedom. Professional Staff who are hired to teach as Sessional Instructors shall retain all of the rights specified under the Forced Contract for Sessional Instructors.

10.15.4 Rights, Responsibilities and Duties of Clinicians

The Clinician's duties will be made up of some combination of the following as identified in the letter of appointment.

- i. to conduct assessments, diagnosis, intervention, and consultative services;
- ii. to collaborate with the multidisciplinary team (for example, teacher, school principal, other allied health professionals, etc.) as required.
- iii. to supervise students who are completing practicum or internship work within the clinic. In performing this duty, members shall have academic collegial rights provided to Sessionals, including but not limited to academic freedom. The process followed for these appointment shall follow normal processes in the CA for appointment of supervisory work.

10.15.5 Rights, Responsibilities and Duties of Clinic Coordinator

One Clinician may be appointed as the Clinic Coordinator. The Clinical Coordinator shall be generally responsible for overseeing the clinic operations in collaboration with the Department. This will include reporting to the Department Chair on the clinical budget, coordination of the clinic's schedule, recruitment and intake of potential clients, oversight of the signed contractual agreements, coordination of clinical assistants, ensure proper and compliant record keeping,

submit an annual report, where required, to the Privacy Commissioner, assist with the coordination of the internships placements and practicums in collaboration with the relevant Departmental coordinators, develop and maintain clinic guides and policies, provide recommendations to the academic department on relevant aspects of the curriculum. The letter of appointment shall include the specific hours related to these duties. Seniority rights shall apply to the appointment of the Clinic Coordinator.

10.15.6 ***Rights, Responsibilities and Duties of Counsellors***

The primary duty of a Counsellor is to provide counselling and consultation services to students. This includes individual student assessment, counselling and case management in areas respecting personal/family/social matters.

During the Fall and Winter term for the academic year, it is expected that normally 85% of the Counsellor's time will be spent providing counselling, case management and consultation services. This allocation may decrease during the summer months, allowing more time for professional and service duties.

Counsellors working in the Indigenous Sharing and Learning Centre it is expected that normally 75-80% of the Counsellor's time will be spent providing counselling, case management and consultation services. This allocation may decrease during the summer months, allowing more time for professional and service duties.

That notwithstanding, Counsellors may also perform professional and services duties as described below:

a) Professional Duties

- development and delivery of student group counselling, workshops and programs;
- training and supervision of counselling interns, and practicum students

b) Service Duties

- collaboration with members of the University on development and implementation of programs and projects dedicated to supporting students and/or enhancing campus life;
- intervention into student crisis incidents on campus; professional development for staff and faculty;
- participation on University, Student Services and Centre committees, when invited or elected;
- participation in the activities of the Association
- May choose to be representative on Joint Health and Safety Committee as appointed by LUFA executive

c) Service to the Profession and the Community

Consistent with their professional duties, Counsellors have the right to participate in the activities of their profession, professional associations, and other professional and labour organizations.

When a Counsellor's service on such bodies conflicts with scheduled counselling or professional duties, the Counsellor must seek the approval from the immediate supervisor for proposed alternative arrangements to ensure that such scheduled duties are fulfilled, such approval not to be unreasonably withheld. A Counsellor's service to such societies and associations shall be recognized.

d) Outside Professional Activity

Suitable contact with the public and private sectors offers a means by which Counsellors may practice and enhance their professional knowledge and skills. Consistent with their duties, Counsellors are encouraged to participate in such activities which will enhance the standing of both the member and the University. However, except when specifically authorized to speak on behalf of the University, Counsellors must make it clear that their positions and opinions are personal.

Such activity shall be subject to the following:

Such professional activity shall not conflict or interfere with the fulfillment of his/her primary duties and responsibilities with respect to students as provided in this Agreement.

A written statement of the nature, scope and extent of the activity shall be given to the immediate supervisor who shall review the same in the light of the above.

Further, a Counsellor may be required to provide the University with a legal waiver of liability agreement" which shall be placed on the official university records.

10.15.7 *Proof of qualification and professional obligations*

Professional Staff are obligated to develop and maintain their professional competence and effectiveness and to uphold the standards and ethics governing their profession. Clinicians and Counsellors must be registered with their appropriate professional college.

Prior to beginning work, Professional Staff shall be required to provide the following:

- i. a photocopy of his/her professional designation with the relevant college or body
- ii. a recent (within the past year) Criminal Reference Verification (Vulnerable Sector). The employer agrees to reimburse the cost of producing this document.
- iii. The incumbent must hold a current professional designation.
- iv. Each year thereafter, the Professional Staff will be required to sign a declaration stating that he/she is not under investigation for any suspicion of criminal wrong doing and has not been convicted on any offence, since having initially submitted a completed Vulnerable Sector Criminal Record Check.

10.15.8 *Confidentiality*

The Professional Staff shall fulfill all duties in accordance with laws, rules and regulations set out by the Personal Health Information Protection Act (PHIPA) and the by the relevant regulatory body or College.

10.15.9 *Other Employment*

While the University recognizes that a Clinician may wish to supplement her/his income with outside work, the Clinician agrees:

- a) to recognize that the Clinic's client waitlist belongs to the Clinic
- b) to not solicit clients from the Clinic's active caseload nor the waitlist
- c) agree to provide services via her/his own private practice only to clients who contact her/him directly via her/his private practice contact information
- d) not to represent herself/himself as an employee of the Clinic when providing services via her/his own practice
- e) to inform prospective clients who contact him/her via her/him private practice contact information that the Clinic is also an option for them

ARTICLE 10.20 – WORKING ENVIRONMENT

10.20.1 *Clinic space*

The Clinic shall be provided spaces consistent with Article 3.20.6. The following securable spaces are allocated for clinic use: AR-217 A, AR-217 B, AR- 217 D, AR-205 B, and AR-200. The clinic space shall not be entered except by authorized University Staff. Should the University be required to relocate the clinical spaces, it shall be done in consultation with the Union.

10.20.2 *Office Space*

Part-time Clinicians shall be provided an office consistent with the sessional requirement in Article 3.20.1. The Clinic Coordinator shall have access to an office space consistent with article 3.20.6 to support

the effective discharge of their duties. The Employer shall ensure that there is access to private and secure cabinets.

10.20.3 *Materials*

The Administration will provide the Professional Staff with the clinical materials necessary to carry out the assigned duties. This shall include access to computers. The clinic shall be provided with four (4) computers/iPads. The computers or iPads shall be replaced consistent with the terms of Article 3.20.

The Administration/Clinic's property and materials shall only be used for work performed to fulfill their contractual obligations and shall not be used for external purposes.

10.20.4 *Centre*

The Counsellors will be provided with appropriate and reasonable administrative support.

ARTICLE 10.25 – APPOINTMENT PROCESS

10.25.1 *Appointment process for Counsellors*

General

a) New appointments that fall within the Bargaining Unit shall normally be advertised: (a) Within the University and (b) Outside the University in suitable discipline publications that may be especially directed to professionals who belong to any of the four (4) designated employment equity groups. Advertisements shall contain an article stating that Laurentian University is committed to employment equity.

b) Equity initiatives shall be prioritized in the hiring process.

c) In advance of hiring a new Counsellor, a hiring committee will be formed and at least one existing Counsellor will be part of the committee.

d) Normally, the minimum qualification for a career stream Counsellor shall be a completed Master's degree in Counselling Psychology, Bachelor or Master's degree in Social Work or a related discipline and three to five (3-5) years of counselling experience.

Members of the hiring committee are responsible for declaring any conflicts of interest and shall respond to such conflicts according to the provisions of Article 3.35. Members of the hiring committee are bound by confidentiality in their deliberations about individual candidates. They may have discussions with Association or Administration representatives on any matter of concern.

Advertisements for all vacant positions shall refer to the Union website where applicants can access the Forced Contract.

10.25.2 *Probationary Period*

A probationary appointment is a period of appraisal during which time the member is expected to meet the standards of performance required for career positions. The probationary period for Professional Counsellors shall be one year. The probationary appointment may be extended for up to one year in accordance with the procedure set out in the Article below.

10.25.3 *Assessment of Probationary Counsellors*

The performance of a member on a probationary appointment shall be formally reviewed during the sixth month of her/his probationary appointment. The manager or director shall be responsible for conducting the formal review and for producing an assessment report. The report shall indicate clearly any areas of performance which are not meeting the standards expected of a Counsellor.

The manager or director shall provide the member with a written copy of the report with copy to the Union,

at least five days in advance of meeting with the member and the Union to discuss his/her performance. The Manager or Director shall indicate clearly any areas of performance which are not meeting the standards expected of a Counsellor.

The probationary Counsellor shall sign the report to signify that he/she has read the review and has discussed his/her performance at the meeting with the manager or director. The signature does not indicate that the member agrees with the performance evaluation.

The member shall have the right to respond in writing to the assessment review.

If at any time during the probationary period, the probationary member is not demonstrating satisfactory progress in meeting the standards expected of a Counsellor, the manager or director shall indicate in writing with a copy to the Union, clearly any areas of performance which need improvement, and shall provide the probationary member with a reasonable period of time for such improvement. If after this period of time the probationary member is still not demonstrating satisfactory progress, may recommend dismissal to the manager or director.

No later than one month before the end of the probationary period the manager or director shall have concluded a final assessment of the probationary member's performance in accordance with this Article. A copy of this report shall be given to the probationary member with copy to the Union, and shall include the rationale for the decision.

The manager or director shall render one of three recommendations:

- i. That the member be deemed to have passed probation;
- ii. That the probationary period be extended for up to one year either where the probationary member's performance has been marginally satisfactory and may be expected to improve, or where the probationary period has not provided a suitable opportunity for the member to demonstrate satisfactory performance;
- or
- iii. That the member's employment be terminated for failure to meet the standards expected of a career professional Counsellor.

The Supervisor of the individual who provides the recommendation shall review the recommendation. They shall either confirm the manager or director's recommendation and cause it to be implemented or refer the recommendation back to the manager or director with questions.

In the case of a dismissal, the Manager/Director shall, prior to reaching a final decision, provide the member with a full opportunity to respond to the issues raised by the manager or director. If the Manager/Director proceeds with dismissal of a probationary member, they shall provide notice in accordance with this Article.

In the case of a decision to dismiss a probationary Counsellor, the Counsellor member has recourse to Grievance and Arbitration as outlined in Article 12.

10.25.4 ***Appointment process- part time Clinicians***

Appointments of Clinicians are by the Dean on the written recommendation of the majority of the Department concerned by the majority of a committee consisting of no fewer than three (3) Members after scheduled minuted meeting(s). Where the Dean decides not to follow the recommendation of the Department/School she/he will provide written reasons for her/his decision.

The Department shall provide recommendation to the Dean two weeks in advance of the contract offer dates.

First right of refusal will be determined by the Seniority list. Seniority shall provide first right of refusal on the first 20 hours per week. If once the Seniority list has been exhausted, any additional hours will be offered again to members on the Seniority list to a maximum of 33.75 hours per week. If once this process has been completed and there are remaining hours which have not been assigned, the Department may post externally.

Prior to posting externally the Department shall provide written reasons for the decision to the Dean with a copy to the Union. Approval to advertise externally rests with the Dean and may not commence until the

completion of the internal process.

If the process above, can not be implemented due to emergency reasons, such as a new community service contract, replacement of a unexpected leave, etc the timeline above shall be waived. Seniority provisions will be respected.

10.25.5 Letter of Appointment

The parties agree that Offers of Appointment shall be sent by email to Clinicians by the following dates: by July 1st for Fall term, November 1st for Winter term and February 1st for Spring/Summer term.

The Letter of appointment shall specify the contract duration, the minimum and maximum number of weekly hours, the required work days for student placements, the terms and conditions of employment including salary, benefit, professional development expenditure, Seniority, and cancellation conditions. The schedule of services will be determined by the Clinician in consultation with Department Chair and if required, the Clinic Coordinator.

A link to the Current Forced Contract shall be sent with every offer of employment. The Employer shall also issue at no charge, a hard copy to individual Members upon request by the Member.

A copy of each accepted Offer of Appointment shall be sent to the Union within fifteen (15) days of the Employer's receipt.

10.25.6 Contract Period

Contracts shall be issued on a 4, 8 or 12-month basis.

10.25.7 Cancellations

Signed contracts which are cancelled in advance of their specified end date, will be subject to the appropriate statutory notice. Once a contract is issued, if cancelled, the member shall be paid a \$500 cancellation fee.

10.25.8 Full-Time Clinicians

Contract positions for full time Clinicians shall be dealt with in accordance with the process and the non academic terms in Article 5.20.11 (e), 5.20.12- 5.20.17.

10.25.9 Bi-weekly reports and timesheets

Clinicians shall maintain detailed and accurate records for time spent providing the Services and to submit these records to the Clinic Coordinator and Department Chair in the form of bi-weekly timesheets and day to day statistics. Time sheets shall be approved by the Department Chair prior to being submitted to financial services.

ARTICLE 10.30 – SENIORITY

10.30.1 Clinicians

Clinicians who have received 3 contracts within a 6 year period will be deemed to have Seniority, and shall have priority of hire over external candidates. Available contracts will first be offered to individuals with the most years of service. Where two members have equal years of service, the member with the most cumulative months of service be awarded the contract.

Individuals who are on an approved leave will continue to accrue active service time for the duration of their approved leave. This excludes individuals who are on a leave of absence without pay.

Year of service shall mean any year in which a member was employed.

Clinicians may request leave from the Seniority list for up to (2) consecutive years. Such application shall be made annually to the Dean and shall not be unreasonably refused.

10.30.2 **Counsellors**

Seniority shall be determined by the date upon which continuous employment as a counsellor in the bargaining unit commenced. The Employer shall maintain two separate seniority lists, one for Counselling Services and one for Indigenous Sharing and Learning Centre.

If a limited-term employee is currently in a position that becomes permanent and applies for the position, and providing that he/she has been in that same term position for a period of eight (8) months or more, then, for the purpose of applying for this position, the limited term employee will be deemed to have seniority, and shall have priority of hire over external candidates. Available contracts will first be offered to individuals with the most years of service. Where two members have equal years of service, the member with the most cumulative months of service be awarded the contract.

Should the limited term employee be awarded the permanent position, then her/his seniority will begin from the date of the first appointment in that position.

Individuals who are on an approved leave will continue to accrue service time for the duration of their approved leave. This excludes individuals who are on a leave of absence without pay.

ARTICLE 10.35 – TUITION EXEMPTION FOR PART TIME CLINICIANS

Clinicians shall be entitled to exemption from tuition fees for credit courses taken at Laurentian University. The exemption shall be 3 credits for 175 hours of work. If during a contract, the Clinician works more or less than 175 hours, their tuition exemption entitlement shall be pro-rated based on the above equivalency. Credit accrual and application shall be applied in accordance with Article 4.65.1.

ARTICLE 10.40 – PROFESSIONAL DEVELOPMENT EXPENDITURE

10.40.1 **Expenditure**

The parties agree that the University is best served when staff have the opportunities for personal development and career advancement and to work in an environment that will encourage them to develop their abilities and leadership potential.

10.40.2 **Counsellors**

In order to further the objectives of the University, the activities of each full time Counsellor shall be supported by \$500 in expenditures in each contractual year and as identified below.

10.40.3 **For part-time Clinicians**

Each Sessional Clinician shall receive the amount of professional development specified in Article 4.70 for each academic term of employment; they will have carry forward and transfer rights as outlined therein.

10.40.4 **Days**

Effective July 1, 2023, full-time Professional Staff are entitled to three (3) professional development days. All professional development days are, where reasonably practical, to be requested seven (7) days in advance and will be granted subject to operational requirements. Requests for professional development days made less than 7 days in advance are at the discretion of the manager or director. In either case, approval will not be unreasonably withheld. Professional Staff will be required to provide a description of the professional development activities being pursued during the designated days.

10.40.5 **Course and Conferences**

If the Employer requests a full-time Professional Staff to enroll in a course/conference outside the University a reimbursement of tuition will be granted at 100 percent by that department's budget.

ARTICLE 10.45 – ANNUAL REVIEW FOR PART-TIME CLINICIANS

10.45.1 Clinicians shall submit to the Dean a report within 30 days of completion of their contract which provides a broad and general overview of the clinical services they provided during their employment. Clinicians will also be required to provide an up to date copy of their curriculum vitae. The timelines and process for the annual report shall be applied in accordance with Article 4.35.

ARTICLE 10.50 – DISCIPLINE

10.50.1 Article 5.75 shall apply to part-time Clinicians as amended below :

5.75.5 (c) The suspension without pay; the reduction in pay shall be computed as the average salary over the previous 4 weeks.

5.75.5 (e) removal of seniority or dismissal of a member.

ARTICLE 10.55 – SALARIES, INCREMENTS AND ALLOWANCES

Part Time – Clinicians

As of June 30th, 2020 the hourly shall be as follows:

	Hourly Rate	4% in lieu of vacation	Total rate of pay
Without Seniority	\$42.42	\$1.70	\$44.11
		6% in lieu of vacation	
With Seniority	\$47.92	\$2.88	\$50.80
Members listed in Appendix 1 in settlement of 15 July 2020	\$51.23	\$3.07	\$54.30

Full Time – Counsellors

10.55.1 **Base Salary Minimum and CDI Breakpoint**

The base salary minima and CDI breakpoint as of July 1, 2023 (includes a 1% increase for July 1, 2023)

Minimum \$82,834
CDI Breakpoint \$94,943

Minimum and CDI Breakpoint will increase based on annual ATB

10.55.2 **Starting Salary**

Starting salary will reflect qualifications and relevant work experience.

10.55.3 **Career Development Increments**

A Counsellor's salary will be increased by one Career Development Increment (CDI) of 2.3% annually. Counsellors will be eligible for their increments on July 1st each year until they reach the CDI breakpoint.

10.55.4 **Across The Board (ATB) Adjustments**

As of July 1, 2023 the Across-the-Board increase of 1%.
As of July 1, 2024 the Across-the-Board increase of 1%.

10.55.5 **Special Allowances**

The University shall pay a stipend to a Professional Counsellor who has been appointed to perform additional supervisory or administrative duties.

ARTICLE 10.60 – WORKLOAD COUNSELLORS

10.60.1 Hours

A Counsellor's normal work week shall be 33.75 hours of work per week.

Work hours shall normally be scheduled from Monday to Friday 9:00-4:30 during the academic year and Monday to Friday 8:30-4:00 for the months of May-August. It is understood that evening shifts may be required during the academic year. A minimum of 2 weeks notice must be provided prior to assigning a Counsellor to work outside of the normal working hours.

10.60.2 Assignment

The assignment of duties may vary from time to time and among individual Counsellors. The appropriate combination is determined by the Immediate Supervisor after consultation with the individual Counsellors. Annually the Immediate Supervisor shall meet with each individual Counsellor to discuss and review workload outside student assessments, counselling, and case management.

The initial workload letter shall be shared with other Counsellors and LUFA within 15 days. Workload including additional opportunities (special projects, seminar, training, presentations etc.) shall be assigned in a fair and equitable manner. To help ensure this goal, each Member of a Centre shall receive an invitation to accept this additional work. The Administration agrees to maintain a summary of this work and will share the summary with LUFA and other Counsellors at the end of each year.

10.60.3 Case Management

Counsellors shall be given 30 min for case management and paperwork for each student session. This may be completed daily or in a block of time, however the standard expectation is that Counsellors will provide service to an average of four (4) students per work day.

Where possible and when required, or to promote a balance between work and personal commitments, flexible or alternate work arrangements may be mutually agreed upon between a Counsellor and their immediate supervisor. All arrangements must ensure operational, employee, and managerial responsibilities are met. Arrangements must be documented via email between the employee and their immediate supervisor and recorded in the University calendar system in an appropriate manner for the employees and immediate supervisor to reference and verify as needed.

10.60.4 Overtime

Salary schedule will be paid at one and one-half times their regular rate of pay for authorized work in excess of 35 weekly hours. For clarity, for overtime calculation, the week shall be considered from Sunday to the following Saturday. Upon mutual agreement with their Manager, Members may choose to take time off in lieu of payment.

The University shall endeavour to keep overtime to a minimum. However, any overtime shall be divided fairly among the employees in the department in similar positions and with similar qualifications, who normally perform the work, and who are available and qualified to perform the work. Seniority shall be the deciding factor in the event of a scheduling conflict amongst those qualified to perform the work.

Where practicable if overtime is required the University shall request overtime from amongst those employees who normally perform the work. Employees shall have the right to refuse overtime, provided they give a valid reason.

In an emergency, the University may assign overtime to the employees who normally perform the work, and the employees agree to work such overtime.

The University shall give as much notice of overtime as is reasonably possible.

ARTICLE 10.65- VACATION- FULL TIME COUNSELLORS

- 10.65.1 Vacation is the period during which a Member is not accountable to the University.
- 10.65.2 On completion of each year of service, Counsellors shall be entitled to twenty (20) days of paid vacation after the completion of each year of service; after ten (10) years of continuous service, Counsellors will be entitled to one extra day of vacation per year of continuous service, up to a maximum of 35 days.
- 10.65.3 Vacation will be taken during periods approved by the Manager/Director. A member may request that vacation be taken several times throughout the year or at one time, depending on the individual needs. Requests shall not be unreasonably refused.
- 10.65.4 Vacation entitlement will not be carried over, or accumulated, from one year to the next, without the written approval of the AVP of Human Resources and Organizational Development.

ARTICLE 10.70- DISMISSAL

- 10.70.1 A Professional Staff may be dismissed only pursuant to Article 5.75 (Discipline), or pursuant to Article 10.75 (Redundancy for Financial Reasons). Professional Staff on probationary status may also be dismissed pursuant to Article 10.25.3 (Assessment of Probationary Professional Staff).

ARTICLE 10.75- REDUNDANCY OF POSITION FOR FINANCIAL REASONS

- 10.75.1 Should a Professional Staff position be declared redundant, the Member shall be entitled to severance pay equal to two (2) weeks of salary for each year of service, with a minimum of two (2) months and up to a maximum of twelve (12) months. The notice of termination, for financial reasons, shall be two (2) months.
- 10.75.2 Professional Staff who may be considered for lay-off shall be those with the least seniority.
- Prior to declaring a redundancy, the Administration shall meet with the Union and provide a written report substantiating the need to declare a redundancy.
- 10.75.3 In the event that an incumbent is notified that her/his position has been declared redundant for financial reasons, the University will allow that incumbent, during the period of the notice, days off for job-seeking interviews equal to 1/12 of the period of notice.

REDUNDANCY AND FINANCIAL EXIGENCY

ARTICLE 11.10 – REDUNDANCY

- 11.10.1 For the purposes of this Article, the declaration of a state of redundancy by the Employer shall mean that the number of Members employed in a particular Department/School(s) must be reduced. The Employer agrees that no procedures other than those specified in this Article will be used to deal with redundancies as defined in Article 11.10.3 below. It is understood that the term redundancy does not apply to limited term appointments that carry no implication of renewal or continuation beyond the stated term in accordance with Article 5.20 – Appointment and Renewal.
- 11.10.2 The Employer shall declare a state of redundancy by sending a written notice to the Union and to the Vice-President, Academic and Provost that it has approved a resolution for one of the reasons outlined in Article 11.10.3 below. With this notice, the Employer shall submit a detailed report specifying the reasons why the redundancy is justified and the exact magnitude of the reduction believed to be necessary.
- 11.10.3 A declaration of redundancy by the Employer may be initiated in one of two (2) ways:
- (a) Senate may resolve to terminate a Faculty, Department/School or program for reasons other than Financial Exigency. For the purpose of this Article, a program is defined as a course of study previously approved by the Senate and leading to a degree or a diploma. Should the program involve more than one Faculty or Department/School, the plural should be understood in the following Articles. If the Employer resolves to approve Senate's decision, then a program redundancy shall be declared.

- (b) The Vice-President, Academic and Provost may make a submission to the Employer that a particular Department(s)/School(s) has (have) a larger number of Members than necessary to fulfil its (their) program and service teaching requirements in the light of student demand. Such a redundancy shall be known as a workload redundancy. The Employer agrees that it will not declare a workload redundancy if such an action will result in insufficient academic personnel for that Department(s)/School(s) to continue to offer a viable program(s). The onus shall be on the Employer to show that the proposed reductions are consistent with normal workloads as defined in Article 5.40 – Academic Workload and that the proposed reductions will not create an inequitable workload for the Department(s)/School(s) affected by the redundancies.
- 11.10.4 Redundancies may be justified only for bona fide academic reasons and/or on the grounds of insufficient student demand. When insufficient student demand is used as a justification, such lack of demand must be demonstrable over a period of at least three (3) years and projections into the future must not indicate any appreciable increase in this student demand.
- 11.10.5 As a result of the Employer's declaration, a Redundancy Committee shall be formed. This Committee shall hold its first meeting within fifteen (15) days of receipt by the Union of the Employer's notice as specified in Article 11.10.2 hereof. Within ten (10) days of receipt of that notice, the Union shall forward to the Vice-President, Academic and Provost the names of three (3) Members who shall serve on the Redundancy Committee.
- 11.10.6 The Redundancy Committee shall include the following:
- a. Three (3) Members chosen by the Union,
 - b. Three (3) individuals named by the Employer,
 - c. The Vice-President, Academic and Provost as non-voting Chair.
- 11.10.7 Within sixty (60) days of its first meeting, the Redundancy Committee shall make its final report to the Employer (with a copy to the Union). The Employer shall make no new academic or administrative appointments nor shall the Employer order the reduction or redistribution of the actual number of full-time Members of the Bargaining Unit, until the Redundancy Committee has made its final report or until the time limit of sixty (60) days stated in this Article has expired, whichever comes first.
- 11.10.8 It shall be the responsibility of the Redundancy Committee in consultation with the Vice-President, Academic and Provost, the Dean/University Librarian and the Faculty/Library Personnel Committee to recommend who, among the Members of the Department(s)/School(s) under consideration, shall be affected by redundancy.
- 11.10.9 Keeping in mind that the continuing academic function assigned to the Department/School is of the highest priority, the Redundancy Committee shall consider the following steps in the following order:
- (a) Non-renewal of limited term appointments within the Department/School.
 - (b) Non-renewal of two (2) year probationary contracts within the Department/School.
 - (b) Non-renewal of contracts of Members within the Department/School on three (3) year probationary contracts.
 - (c) Removal of a tenured Member from the Department/School.
- 11.10.10 If the Redundancy Committee decides that Members with tenure, or on a three (3) year probationary contract will be affected by Redundancy pursuant to Article 11.10.9 hereof, it shall include, in its final recommendation to the Employer, a list of administrative and academic areas to which the Members could be transferred, with or without a year's retraining, considering their academic and professional qualifications.
- 11.10.11 If the Employer approves a resolution to act on the Redundancy Committee's recommendation that a Member be declared redundant, then the Employer shall send the Member a written notice of its resolution. This notice shall also contain an offer to the tenured Member of the following options:
- (a) Voluntary early retirement if the Member is age fifty-five (55) or more.
 - (b) Transfer in whole or in part to another Department/School for which the Member is academically

qualified or could become qualified with a year's retraining if the transfer can be effected by one (1) of the following means:

- (i) Filling a vacancy
- (ii) Non-renewal of a limited term contract
- (iii) Non-renewal of a two (2) year probationary contract
- (iv) Non-renewal of contract of Members on three (3) year probationary contract in the Department/School to which the tenured Member is to be transferred.
- (c) Transfer to an appropriate administrative vacancy in the University.
- (d) Termination of employment with severance pay.
- (e) Any other alternative that may be implemented in the future with the mutual consent of the two Parties.

Any of the above options shall be implemented in accordance with the terms of this Article. All proposed transfers to another Department/School must have the approval of the Vice-President, Academic and Provost. If the offer is to transfer one (1) component of the Member's workload (this component restricted to either teaching or research) to another academic area, such offer shall include a statement of the duties of that Member and a method of weighing the Member's evaluation for merit based on these special arrangements.

If the Employer cannot offer at least one (1) of paragraphs 11.10.11 (b) or (c) above, it shall offer to keep the Members in their present position until such time as it can offer them one (1) of paragraphs 11.10.11 (b) or (c) above unless Article 11.10.16 below applies.

- 11.10.12 Notwithstanding Article 5.20 – Appointment and Renewal, Members with a two (2) year, initial probationary appointment can be refused the second probationary appointment for reasons of redundancy in accordance with Articles 11.10.9 or 11.10.11 above. In such instances, the Members shall receive notice by December 15 of the academic year in which their contract comes up for renewal. A written notice of non-renewal shall be sent to the Members in which redundancy shall be clearly stated as the reason for non-renewal.
- 11.10.13 Notwithstanding Article 5.20 – Appointment and Renewal and Article 5.60 – Tenure Evaluation Procedures, Members who are on a three (3) year probationary appointment can be refused a renewal of their appointment and/or tenure for reasons of redundancy in accordance with Articles 11.10.9 or 11.10.11 above. In such instances, the Members shall receive notice by December 15 of the academic year in which their contract comes up for renewal. A written notice shall be sent to the Members in which redundancy shall be clearly stated as the reason for non-renewal and/or refusal to grant tenure. They shall be given severance pay in accordance with Article 11.10.18 hereof as well as recall rights in accordance with Article 11.10.18 below.
- 11.10.14 Tenured Members who accept a transfer to another academic area in whole or in part, shall retain their rank as well as all pre-existing employment rights. If such a transfer requires retraining, the Members shall be granted leave to a maximum of one (1) year at one hundred percent (100%) salary plus benefits. Any tuition fees connected with the retraining shall be paid by the University.
- 11.10.15 Tenured Members who accept a transfer to an administrative position in accordance with Article 11.10.11 (c) hereof cease to be Members of the Bargaining Unit on the date that the transfer becomes effective. Members transferred to an administrative position shall not be dismissed for a period of five (5) years for reasons other than just cause and shall retain for this period the full rights of Members of this Union, to grieve dismissal for cause. Such Members shall not have their pay decreased as a result of the transfer but they shall receive only the basic percentage increase to salary scale and no increments until the normal salary level for their administrative position has reached their own. For a period of five (5) years from the date of their appointment to the administrative position, the Members shall have first right of refusal of any academic vacancy within Laurentian for which they are judged by the Vice-President, Academic and Provost to be academically competent.
- 11.10.16 Where a redundancy results from the termination of a program as per Article 11.10.3 (a) above and when all transfer provisions have been exhausted, the Employer may lay-off a tenured Member provided that those

Members who are at least forty-five (45) years of age, have tenure and in respect of whom the sum of years of seniority from the effective date of tenure plus age equals fifty-five (55) shall be exempt from lay-off.

Costs associated with any arbitration arising out of lay-off shall be distributed in accordance with Article 11.15 – Arbitration Procedure. The usual burden of proof shall apply.

- 11.10.17 Groups and/or individuals who are selected for redundancy may grieve their selection (under Article 12.10 – Grievance Procedure) on the grounds of bias or procedural error, as well as on the grounds that the criteria for selection have been applied in a manner which is discriminatory or is in bad faith. This right to grieve includes the right to challenge the validity of the redundancy but not the right to challenge the Employer's authority to initiate Redundancy procedures.

Tenured Members who wish to remain in the employ of the University and who have been offered transfer but do not wish to accept the offer must grieve this transfer within thirty (30) days of receipt of the offer. If the Arbitration Board concludes that the Members' refusal is well founded, the Members retain their original positions. If the Arbitration Board concludes that the Members' refusal are not well founded or that another suitable transfer is available, then the Members must accept the transfer within thirty (30) days of receiving a copy of the decision or else the Members' employment shall be terminated. The effective date of notice shall be the date that the arbitrator's report is received by the Members. The Members shall retain recall and notice of termination rights but shall lose their rights to all severance payments and benefits.

11.10.18 a) Full-time Members

Any full-time Member whose employment is terminated through the insolvency proceedings in Court file CV- 21-656040-00CL will have the rights provided in Article 11.10 and shall be granted recall rights to any new academic positions created and any academic vacancies which arise at the University in accordance with the conditions, processes and timeframes set out in Article 11.10.18(b).

All Members who are on tenured or three (3) year probationary appointments, and whose appointments are terminated pursuant to this Article shall have rights as set out hereafter:

- (a) (i) Twelve (12) months' notice in writing or any equivalent combination of notice plus salary followed by
- (ii) Six (6) months' salary plus one (1) month's salary for each year as a full-time employee provided that no Member on a three (3) year probationary appointment receives less than nine (9) months' salary and no tenured Member receives less than eighteen (18) months' salary.

All payments under this Article shall be based on the Members' total regular salary including the University's contribution to pension and other benefit plans for their final full academic year of service at the University. In no case shall the number of months' salary paid under this Article exceed the time remaining until the normal retirement age of the Member.

- (b) Members who have not reached the normal retirement age shall be granted, in order of seniority, first right of refusal to all academic vacancies within Laurentian University, for which they have academic competence unless the Employer can substantiate that the post cannot be filled by the member or by a re-arrangement of the duties of other members of the same academic unit for a period of three (3) years for a Member on a three (3) year probationary appointment and five (5) years for a tenured Member from the effective date of termination. Individuals who accept such positions shall return to the University at the rank they held when their appointments were terminated, with full recognition for years of service at Laurentian. Disputes arising out of these recall procedures are referable to the grievance and arbitration process set out in this Forced Contract.

Individuals who are recalled pursuant to this Article shall have up to thirty (30) days to accept such recall offer, and shall terminate their alternative employment and take up the offered post, as soon as they are contractually able to do so but in no instance later than six (6) months after accepting the recall offer.

- (c) Reasonable efforts by the Employer to assist a laid-off Member in obtaining suitable alternative employment including the use of professional assistance as well as access to University resources.

- (d) Reasonable access to library, laboratory and computer facilities subject to the agreement of the Dean/University Librarian concerned until suitable alternative employment is secured or for three (3) years in the case of a Member on a three (3) year probationary appointment or for five (5) years in the case of a tenured Member if suitable alternative employment has not been secured.

11.10.19 Nothing in this Article shall limit the total amount of severance benefits that a tenured Member might privately negotiate with the Employer.

11.10.20 All grievances submitted under the terms of this Article shall go directly to arbitration in accordance with Article 11.15 – Arbitration Procedure. Unless stated otherwise in this Article, within fifteen (15) days of receipt of the written notice containing the decision which the Members wish to grieve, the Members must give notice in writing to the Employer of their intention to submit that decision to Arbitration.

Note: Master Lecturers with permanency will be treated in the same category as tenured faculty and Master Lecturers without permanency shall be treated in the same category as probationary faculty.

ARTICLE 11.15 – FINANCIAL EXIGENCY

11.15.1 The Board of Governors and the Union agree that the first duty of the University is to ensure that its academic priorities remain paramount, particularly with regard to the quality of instruction, library service and research, and the preservation of academic freedom.

11.15.2 For the purposes of this Article, Financial Exigency shall be defined as substantial and recurring deficits, which threaten the long-term solvency of the University as a whole.

11.15.3 Reductions in academic staff for reasons of financial exigency shall occur only in extraordinary circumstances, and only then after efforts to alleviate the financial crisis by economies in all other segments of the budget have been undertaken and after all reasonable means of improving the University's revenues have been exhausted.

11.15.4 Members may be laid off in accordance with this Article only in the event that a state of financial exigency has been both declared and confirmed pursuant to the procedures contained in this Article.

11.15.5 In the event that the Employer considers that a financial exigency exists, within the meaning of Article 11.15.2 above, it may give notice of such a belief. As of the date of such notice the procedures specified in this Article shall apply, and no new appointments may be made to either the academic or administrative staff complement.

11.15.6 Within two (2) days of giving notice of its belief that a financial exigency exists, the Board of Governors shall forward to the Union all financial documentation relevant to the alleged state of financial exigency.

11.15.7 Within fifteen (15) days of the notice specified in Article 11.15.5 above, the Parties shall establish a Financial Commission which will consider the alleged financial exigency and either (a) confirm it (under whatever conditions it chooses to impose) or (b) reject it.

11.15.8 The Financial Commission shall be chosen as is an Arbitration Board per Article 12.15– Arbitration Procedure. It is agreed that in this instance no Member of the Financial Commission shall be a government official, and the Minister of Labour, if requested to appoint a Chair, shall choose a person who is not in the employ of a government. Decisions of the Financial Commission under this Article shall be final and binding on all Parties. In this regard the Financial Commission shall be deemed to be an Arbitration Board.

11.15.9 The onus of proof shall be on the Employer to establish to the satisfaction of the Financial Commission that a state of financial exigency exists within the meaning of this Article.

11.15.10 Within seven (7) days of the choice of a Chair, the Financial Commission shall meet and invite and consider submissions on the University's financial condition. *Inter alia* it shall consider:

- (a) Whether the University's financial position (as evidenced from the total budget and not just the

- academic or salary components thereof) constitutes a *bona fide* budgetary crisis such that deficits projected by generally accepted accounting principles are expected to continue for more than two (2) fiscal years;
- (b) Whether in view of the primacy of academic goals at the University the reduction of academic staff is a reasonable type of cost saving;
 - (c) Whether all reasonable means of achieving cost-saving in other areas of the University budget have been explored and exhausted;
 - (d) Whether all reasonable means of improving the University's revenue position have been explored and exhausted;
 - (e) Whether every effort has been made to secure further assistance from the provincial government;
 - (f) Whether enrolment projections are consistent with a proposed reduction in the academic staff complement;
 - (g) Whether all means of reducing the academic staff complement including voluntary early retirement, voluntary resignation, voluntary reduced workload, voluntary redeployment and leaves, etc. have been exhausted, and
 - (h) Whatever other matters it considers relevant.
- 11.15.11 The Financial Commission will normally be expected to hand down its Report and deliver a copy to the Employer and to the Union within sixty (60) days of its first meeting. If the Commission finds that a state of financial exigency does not exist, no reductions of academic staff for reasons of financial exigency may take place. If the Commission finds that a financial exigency does exist, its Report shall specify the amount of reduction required, if any, in the budgetary allocation to salary and benefits for Members of the Bargaining Unit. Any reduction in the budgetary allocation for academic salaries and benefits may be made conditional upon the further exploration of alternative cost saving measures by the University, and the Commission shall remain seized of its jurisdiction in this matter pending the satisfactory exhaustion of all such specified alternatives. Within five (5) days of receipt of the Report of the Financial Commission, the Parties shall meet and confer with respect to its implications.
- 11.15.12 Pursuant to the ruling of the Financial Commission, the Board of Governors may reduce the budgetary allocation for salaries and benefits of Members of the Bargaining Unit but such reduction shall not exceed the amount of the reduction specified by the Commission. The decision of the Board of Governors shall be taken and written notice thereof sent to the Financial Commission within two (2) weeks of receipt of the notice mentioned in Article 11.15.11 above.
- 11.15.13 Within twenty (20) days the Financial Commission shall apportion among the Faculties, Library and similar units, the reduction in the budgetary allocation for salaries and benefits of the Members of the Bargaining Unit. Whenever possible, such reductions will be divided in a proportionate amount among the Faculties and Library within the University unless there is a clear and substantial reason for doing otherwise.
- 11.15.14 Within thirty (30) days, the Faculties/Library through their respective Faculty/Library Councils shall apportion the budgetary reduction among the Departments/Schools within the Faculty/Library and determine which among its Members are to be laid off. Whenever possible such reductions will be divided among the units within a Faculty/Library in a proportionate amount unless there is a clear and substantial reason for doing otherwise.
- 11.15.15 The principal criteria in the termination/lay-off of Members within a Department, School or similar unit shall be:
- (a) The possession of qualifications suitable for the continuing function of the Faculty, School, Department or Library.
 - (b) Quality of performance in teaching and research or scholarly activity where applicable.
 - (c) The possession of qualifications suitable for transfer with or without retraining to another academic or administrative position within the University.
 - (d) Contributions to the wider community.
- 11.15.16 Within a Department/School, a tenured Member shall not be terminated in preference to a non-tenured Member. For tenured Members, the more senior Member, in terms of service determined from the date at which tenure at the University became effective shall be retained unless, after applying the above criteria, there is a clear and substantial reason for doing otherwise.
- 11.15.17 Those Members who are at least forty (40) years of age, have tenure and in respect of whom the sum of years of seniority from the effective date of tenure plus age equals at least fifty-five (55) shall be exempt

from lay-off until all other academic staff within the Faculty/Library and not included in this category have been laid off.

- 11.15.18 Should the Faculty/Library Council fail to determine within thirty (30) days who among its Members is to be laid off, it shall be the responsibility of the Deans/University Librarian to apportion the budgetary reduction within their Faculty/Library. Should the Deans/University Librarian fail to make such a decision within seven (7) days, the Financial Commission shall make the apportionment of the budgetary reduction.
- 11.15.19 Members who are selected for lay-off under this Article shall be provided with written notice of the reasons for their selection. Lay-offs under this Article shall not be treated or recorded as dismissals for cause.
- 11.15.20 After the selection of the Members who are to be laid off, but prior to the implementation of such lay-offs, the Employer shall make every reasonable effort to secure positions elsewhere in the University, including administrative positions, for those Members who are to be laid-off. Members who accept alternative academic employment retain all pre-existing employment rights, including credit for sabbaticals, salaries and pensions. Members who accept alternative employment shall be given the opportunity to retrain for a period of up to one (1) year for their new duties. The Employer shall pay any related tuition fees and full salary to the Member during this retraining period.
- 11.15.21 Groups and/or individuals who are selected for lay-off by a Faculty/Library Council or Dean/University Librarian, may grieve their selection under Article 12.10– Grievance Procedure and Article 12.15– Arbitration Procedure on the ground of bias or procedural error, as well as on the grounds that the criteria for lay-off have been applied in a manner that is discriminatory or is in bad faith. The right to grieve does not include the right to challenge the validity of the financial exigency.
- 11.15.22 All tenured and probationary Members whose appointments are terminated pursuant to this Article shall have rights as set out hereafter:

(a)

- (i) The University shall be obliged to offer twelve (12) months' notice or twelve (12) months' salary in lieu of notice followed by;
- (ii) One (1) month's salary for each year as a full-time employee provided that no tenured Member shall receive less than twelve (12) month's salary.

All payments under this Article shall be based on the Members' total salary including the University's contribution to pension and other benefit plans for their final full academic year of service at the University. In no case shall the number of months' salary paid under this Article exceed the time remaining until the normal retirement age of the Member.

- (b) Members who have not reached the normal retirement age shall be granted, in order of seniority, first right of refusal of all academic vacancies within Laurentian University, for which they have academic competence unless the Employer can substantiate that the post cannot be filled by the member or by a re-arrangement of the duties of other members of the same academic unit for a period of three (3) years from the effective date of termination. Individuals who accept such positions shall return to the University at the rank they held when they were laid off, with full recognition for years of service at Laurentian. Disputes arising out of these recall procedures are referable to the Grievance and Arbitration process set out in this Forced Contract.

Individuals who are recalled pursuant to this Article shall have up to thirty (30) days to accept such recall offer, and shall terminate their alternative employment and take up the offered post, as soon as they are contractually able to do so but in no instance later than six (6) months after accepting the recall offer.

- (c) Reasonable efforts by the Employer to assist a laid-off Member in obtaining alternative employment including the use of professional assistance as well as access to University resources.
- (d) Reasonable access to Library, laboratory and computer facilities subject to the agreement of the Dean/University Librarian concerned until suitable alternative employment is secured or for three (3) years whichever is less.

- 11.15.23 Notice of academic vacancies shall be deemed to be good and sufficient if they are sent by the Board of

Governors to the Member's last known address with a copy to the Union. Any Member who fails to reply within thirty (30) days or who refuses a permanent position offered under this Article shall lose all rights of recall.

- 11.15.24 A Member accepting a permanent position at Laurentian University will no longer receive severance pay.
- 11.15.25 Any vacancy that occurs and that cannot be filled through the recall procedures in this Article will be filled in accordance with the normal hiring practices.
- 11.15.26 Tenured Members, whose appointments are terminated while they are on leave as in Article 3.2, shall have the same rights as other tenured Members in accordance with the terms of this Article.
- 11.15.27 Laid off Members who are recalled shall repay any portion of the allowance specified in Article 11.15.22 above which exceeds their entitlement had they continued to occupy their normal position.
- 11.15.28 The cost of the Financial Commission established under this Article shall be borne by the Employer.

GRIEVANCE AND ARBITRATION

ARTICLE 12.10 – GRIEVANCE PROCEDURE

- 12.10.1 There shall be no discrimination, harassment or coercion, of any kind, practised against any persons involved in these procedures.
- 12.10.2 The Union and the Employer agree to make every reasonable effort to settle all grievances in a prompt, just and equitable manner.
- 12.10.3 **Definitions**
 - (a) Grievance: A "grievance" shall mean any difference arising from the interpretation, application, administration or alleged violation of the Forced Contract, including any question as to whether a matter is arbitrable in accordance with the *Labour Relations Act, 1995*.
 - (b) Grievor: The grievor is either the Union which initiates a grievance against the Employer on behalf of a Member or group of Members or itself, or the Employer which initiates a grievance against the Union, an individual Member or a group of Members except as otherwise prohibited in this Forced Contract.
 - (c) "Working days": Working days shall mean Monday through Friday, excluding Recognised and other Holidays identified in Article 7.10 – Recognized and Other Holidays including the customary December – January recess, as well as the months of July and August.
- 12.10.4 The time limits specified in this Article may be extended by mutual agreement by the Parties. Moreover, an arbitrator shall have the power to waive time limits. The amended time limits must be specified in writing.
- 12.10.6 All communications required under these procedures shall be in writing and shall be delivered by email.
- 12.10.7 No technical violation or irregularity occasioned by clerical, typographical or technical error in the written specification of the grievance shall prevent the substance of a grievance from being heard and judged on its merits.
- 12.10.8 All Parties to a grievance shall be bound by and shall promptly implement all decisions arrived at under the procedures described in this Article.
- 12.10.9 **Applicability of Grievance Procedures**
 - (a) The following decisions will not be subject to grievance:
 - (i) Non-renewal of term appointments as per Article 5.20 – Appointment and Renewal;
 - (ii) The award of a merit increment as per Article 8.25 – Merit Increments.

- (b) The following decisions will be subject to grievance only in the case of allegations of either violations of academic freedom, significant procedural irregularities or discrimination:
 - (i) The non-renewal of a probationary appointment when the Vice-President, Academic and Provost confirms a negative recommendation of a Faculty Personnel Committee;
 - (ii) The denial of a first application for promotion to a particular rank when the Vice-President, Academic and Provost confirms a negative recommendation of a Faculty Personnel Committee (and the denial of a second application for promotion where the two (2) applications are made in consecutive years);
 - (iii) The denial of an early application for tenure when the Vice-President, Academic and Provost confirms a negative recommendation of a Faculty Personnel Committee;
 - (iv) The decision of the Vice-President, Academic and Provost, regarding academic workload as per Article 5.40.6 (d) of Article 5.40 – Academic Workload.
- (c) Grievances concerning Renewal as per Article 5.20 – Appointment and Renewal, concerning tenure as per Article 5.60 – Tenure Evaluation Procedures, and concerning promotion as per Article 5.65 – Promotion Procedures, shall proceed directly to arbitration as set forth in Article 12.15– Arbitration Procedure.
- (d) Grievances concerning dismissal shall proceed directly to Step 2 – Formal Grievance Procedure as set forth in this Article.

12.10.10 **Step 1 – Informal Grievance Procedure**

The Union and the Employer agree to make reasonable efforts to settle grievances promptly by informal and amicable means. Thus, the grievor shall first attempt to get the matter under question resolved by informal means within thirty (30) working days of the date upon which the grievor had notice of the event or decision giving rise to the grievance. This would normally involve contacting the Dean/University Librarian concerned before bringing the matter to the Vice-President, Academic and Provost. However, this does not preclude making the Vice-President, Academic and Provost aware of such a grievance, nor does it preclude a grievance from being addressed to the Vice-President, Academic and Provost initially or early on in the process.

12.10.11 **Step 2 – Formal Grievance Procedure**

- (a) Failing resolution at Step 1, the grievor shall present a notice of grievance in writing to the Vice-President, Academic and Provost in the case of the Union, or to the President of the Union in the case of the Employer, within thirty (30) working days of the date upon which the grievor had notice of the event or decision giving rise to the grievance. The notice of grievance shall specify the matter(s) in dispute, the Article(s) alleged to have been violated, and the remedy sought.
- (b) No later than twenty (20) working days following the receipt of the formal grievance, the Employer representative shall meet with the Union representative. The Parties shall make every reasonable attempt to resolve the grievance.
- (c) If the grievance is resolved at this stage, such settlement shall be reduced to writing and countersigned by the Union representative and the Employer representative within fifteen (15) working days of the meeting at which the settlement was reached.
- (d) In the event that the Union representative and the Employer representative cannot resolve the grievance within fifteen (15) working days of the meeting(s) specified in Article 12.10.11 (c), the representative of the party responding to the grievance shall forward in writing to the other party's representative the reasons for denying the grievance.

ARTICLE 12.15 – ARBITRATION PROCEDURE

12.15.1

- a) Failing settlement and/or timely response under the foregoing grievance procedure, any grievance may then be submitted to arbitration as hereinafter provided under its own distinct arbitral procedure. If no written request for arbitration is received within thirty (30) working days after the decision of the Vice President, Academic and Provost or the Union President under Step 2 – Formal Grievance Procedure of the grievance procedure is given, the grievance shall be deemed to have been abandoned.
- b) When either Party requests that any matter be submitted to Arbitration as provided in this Article, it shall make such request in writing addressed to the other Party of this Forced Contract, and at the same time propose an Arbitrator. Within fifteen (15) working days thereafter, the other Party shall either accept the proposed Arbitrator or propose an alternate Arbitrator. If parties are unsuccessful in agreeing upon an Arbitrator within a period of twenty (20) working days they shall request the Minister of Labour for Ontario to appoint an Arbitrator.
- c) The time limits specified in this Article may be extended by mutual agreement by the Parties

12.15.2 The Arbitrator shall not be authorized to make any decisions inconsistent with the provisions of this Forced Contract, nor to alter, modify, add to, or amend any part of this Forced Contract.

12.15.3 No matter may be submitted to arbitration which has not been properly carried through all requisite steps of the Grievance Procedure hereinbefore set out unless otherwise agreed to in writing between the Parties.

12.15.4 The Arbitration proceedings will be expedited by the Parties, and the decision of the Arbitrator will be final and binding upon the Parties, and the Employee or Employees concerned.

12.15.5 The Parties will share equally the fees and expenses, if any, of the Arbitrator.

STRIKES AND LOCKOUTS

ARTICLE 13.10 – STRIKES AND LOCKOUTS

13.10.1 The University and the Union hereby agree that there shall not be, during the currency of this Forced Contract, any lockout by the University or any strike by Members of the Union.

13.10.2 A Member shall not be disciplined per Article 5.75 – Disciplinary Measures for refusing to cross a picket line on campus which has been established in full compliance with existing laws. The Employer may, however, dock such a Member's salary by one three hundred and sixty-fifth (1/365) for each day lost.

VALIDITY, DURATION AND CONTINUANCE OF THE FORCED CONTRACT

ARTICLE 14.10 – VALIDITY OF THE FORCED CONTRACT

14.10.1 In the event of any of the provisions of this Forced Contract or any practices established hereby being contrary to the provisions of any applicable law hereinafter enacted, this Forced Contract shall not be deemed to be abrogated, but shall be amended so as to conform with the regulations of any such law.

ARTICLE 14.15 – DURATION AND CONTINUANCE OF THE FORCED CONTRACT

14.15.1 This Forced Contract shall come into effect upon ratification by the Parties and shall continue in effect to June 30, 2025 and shall continue from year to year thereafter unless either Party gives the other Party notice in writing, not more than one hundred and fifty (150) days but not less than one hundred and twenty (120) days prior to the thirtieth (30th) of June in 2025 or in any year following June 30, 2025, that it desires to amend or terminate this Forced Contract.

- 14.15.2 If notice is given as provided in Article 14.15.1 above, the two Parties to this Forced Contract shall meet within ten (10) days.
- 14.15.3 During any period of negotiations, this Forced Contract shall remain in force. If a new Forced Contract has not been ratified by both Parties by June 30 of the year in which notice has been given as provided for in Article 14.15.1 above, then all the provisions of this Forced Contract shall continue in force (but these provisions shall not constitute a Forced Contract) until either:
- (a) A new Forced Contract has been ratified by both Parties.
or
 - (b) Following conciliation, a strike or lockout is declared in accordance with the Ontario *Labour Relations Act*.
- 14.15.4 At least ten (10) days before the termination of this Forced Contract, a separate memorandum which shall continue in force thereafter, shall be signed by the Parties to the effect that in the event of a strike or lockout,
- (a) Members whose ongoing research requires access to University facilities in order to prevent irreparable damage to research facilities (such as loss of live and/or decomposable materials) shall be allowed access to the facilities usually associated with such research. Such access will be limited to maintaining the facilities and shall not be used to continue the research. Such Members shall give notice in writing of their access requirements to the President of the Union and to their Deans/University Librarian. Such notice will normally be given at least ten (10) days before the date of termination of the Forced Contract.
 - (b) The Union will assume the costs of maintaining Members' eligibility in the University's hospital, extended health and dental care plans.

APPENDICES

APPENDIX A: LETTER OF UNDERSTANDING – CAMPUSES OUTSIDE SUDBURY

Faculty Members employed by Laurentian University on Campuses outside of Sudbury

BETWEEN:

THE LAURENTIAN UNIVERSITY FACULTY ASSOCIATION

AND

LAURENTIAN UNIVERSITY OF SUDBURY

RE: Faculty Members employed by Laurentian University on Campuses Outside of Sudbury.

WHEREAS the University is now engaged in providing jointly-run programs with Georgian College of Applied Arts and Technology, on multiple campuses;

AND WHEREAS such initiatives are likely to occur with greater frequency;

AND WHEREAS the expansion of the University's programs contributes to the health of the University, and provides greater opportunities for faculty Members;

THEREFORE THE PARTIES AGREE AS FOLLOWS:

1. All Faculty Members employed by Laurentian University to teach courses for degree credit shall be included in the Bargaining Unit represented by the Union, if they would be included in the Bargaining Unit were they teaching in Sudbury. Persons affected by this will have departmental status in the academic unit at Laurentian to which their appointment elsewhere belongs, and that academic unit will be involved in the appropriate tenure and promotion processes according to the Forced Contract. However, the terms of the agreement will be interpreted as site specific, such that, for example, exigency and seniority Articles will apply to the campus on which the program is being offered.
2. In the event of a closure of an academic unit or program the tenure-stream Members affected by the decision on campuses outside Sudbury shall have the right either of transfer to the same Unit or program at the Sudbury campus with the same rights and privileges as they held at the outside campus or, in the event there are no such positions, of severance equivalent to the remedy provided for in Article 11.15.22 as applicable.

REVISION DATED AT Sudbury, Ontario, this 14th day of September 2014.

"Rizwan Haq"

Dr. Rizwan

for Laurentian University Faculty Association

"Hermann Falter"

Dr. Hermann Falter

for Laurentian University of Sudbury

APPENDIX B: STANDARD LETTER OF APPOINTMENT

(The actual letter may contain additional information)

DAY/MONTH/YEAR

Dr. XXX
Address

Dear Dr. XXX

On the recommendation of the Dean of **(FACULTY)** / University Librarian and the **(DEPARTMENT/SCHOOL)** we are pleased to offer you an appointment at Laurentian University.

The terms of the offer are shown on the enclosed form. If they are acceptable, please sign and return one copy.

A copy of the Forced Contract with the Laurentian University Faculty Association can be found at the following website:
<http://www.lufapul.ca/ColAgree.htm>

This offer is conditional on your being legally entitled to work in Canada. Please call me if you have any questions concerning your entitlement to work in Canada.

Please note in the enclosed offer the requirement that you furnish proof of educational credentials. All appointments at Laurentian University are conditional upon this requirement being fulfilled. The requirement can be met by you bringing to the Vice-President, Academic and Provost the original degree or diploma for photocopying, or by the educational institution submitting directly to my office either a transcript or a certification that the stated degree or diploma has been granted.

This offer remains open until **(DATE)**. If you require more time to consider this offer, please contact me as soon as possible and in any event before the offer expires.

If you have any questions, please do not hesitate to contact me.

Sincerely,

Vice-President, Academic and Provost

Enclosures

OFFER OF EMPLOYMENT TO

(Subject to changes in the new Forced Contract)

DR. XXX,

DATE

1. **DEPARTMENT/SCHOOL.** This appointment is in the Department/School of **XXX**.
2. **TYPE OF APPOINTMENT.** This is a **XXX** appointment.
3. **EFFECTIVE DATE.** The effective date of this appointment will be Day/Month/Year. End date if applicable.
4. **RANK.** This appointment will be at the rank of XXX based on your qualifications and years of experience according to Article 5.10 – Academic Qualifications Guidelines.
5. **SALARY.** Your starting salary will be XXX per annum based on XXX years of university experience and XXX years of other experience relevant to your discipline as well as other factors affecting faculty recruitment in your field. Your salary, benefits and other provisions will be adjusted according to any new Forced Contract between the Employer and the Union.
6. **LENGTH OF PROBATIONARY PERIOD.** The normal probationary period is five (5) academic years in length. (Because of your previous experience at Laurentian, the normal probationary period may be reduced by xxx years. Please confirm in writing should you wish to accept that reduction.) You will be considered for tenure in the fifth (5th) academic year (academic year 20x/20xx) following the effective date of this appointment. If tenure is not granted, your appointment will terminate at the end of that academic year (**XXX**). If tenure is granted, it will be effective on the first (1st) day of the following academic year (day/month/year).

You may apply and be considered for tenure in the fourth academic year (academic year **XXX**) following the effective date of this appointment per Article 5.60.3 (a) of Article 5.60 – Tenure Evaluation Procedures.
7. **RENEWAL.** As per Article 5.20.22 of Article 5.20 – Appointment and Renewal, in September 20XX, you will undergo an initial contract renewal which if successful will be followed by a further two (2) year probationary appointment.
8. **SABBATICAL LEAVE.** As per Article 7.25 – Sabbatical Leaves, you will be eligible to apply for a sabbatical leave of one (1) year to commence after six (6) academic years of service, less XXX years of credit that you have been granted, in a full-time academic capacity for service.
9. **RESPONSIBILITIES.** Your responsibilities are outlined in Article 5.15 – Rights, Responsibilities and Duties of Academics and will include teaching and academic guidance of students, scholarly activity, and service to the University.
10. **BILINGUAL REQUIREMENT.** As per Article 3.30 – Bilingualism, you are required to become passively bilingual as a condition of tenure. If needed, the Employer will provide language training and in any year you take such training you will be relieved of the requirement to participate in university governance beyond the Department/School level.
11. **RELEASE TIME.** Your normal teaching load will be reduced by one (1) course (six (6) credit equivalent) during your first (1st) year (if applicable).
12. **PHYSICAL AND MENTAL ILLNESS.** You are eligible for sick leave up to a maximum of six (6) months at full salary from the date of disability due to accident or illness, for each separate disability cause as per Article 7.55 – Physical and Mental Illness.
13. **LONG-TERM DISABILITY.** You will be required to join the Long-Term Disability insurance plan which provides benefits after six (6) months of uninterrupted total disability.
14. **LIFE INSURANCE INCLUDING ACCIDENTAL DEATH AND DISMEMBERMENT.** You will be required to join the life insurance plan. You may supplement your coverage by purchasing optional life insurance, the premiums for which are fully paid by the Employee.

15. **EXTENDED MEDICAL AND DENTAL CARE PLANS.** You will be eligible to join the Extended Medical and Dental Care Plans.
16. **PENSION.** You are required to join the pension plan effective your date of appointment.
17. **VACATION.** You will be entitled to an annual vacation of twenty-five (25) days during your first (1st) year and thereafter as per Article 7.15 – Vacation.
18. **TUITION FEE EXEMPTION.** This policy covers a person employed full-time by the University from the first (1st) day of her/his appointment and her/his spouse and dependent children from the same date.
19. **START-UP GRANT.** You will be provided with a start-up research/creative activity grant of **XXX**. These funds must be used and expended in accordance with the University policy on start-up grants.
20. **PROFESSIONAL DEVELOPMENT EXPENDITURES.** You will be provided **XXX** for the first (1st) year for your professional development expenditures and thereafter as per Article 6.45 – Professional Development Expenditures.
21. **MOVING EXPENSES.** The Employer will reimburse claims at the rate of one hundred percent (100%) to a maximum of five thousand dollars (\$5,000). Moving expenses paid to a new Member constitute a loan made by the University. This loan will be retired when the Member has completed three (3) years of continuous service to the University, each year being equivalent to one-third (1/3) of the reimbursement of the loan.
22. **LAURENTIAN UNIVERSITY FACULTY ASSOCIATION.** This appointment is subject to a Forced Contract between the Board of Governors of Laurentian University and the Laurentian University Faculty Association. The current Forced Contract is for a term ending 2011. Monthly dues to the Union will be deducted from your salary.
23. **PROOF OF STATED EDUCATIONAL QUALIFICATIONS.** It is University policy that all persons appointed to positions of both an academic and non-academic nature, part-time or full-time, furnish proof of their stated educational credentials to the Vice-President, Academic and Provost. This offer of employment is conditional upon this requirement being fulfilled by you in respect of your latest degree.
24. **OTHER TERMS.**
 - a) Without limiting the generality of the foregoing, this probationary appointment will terminate automatically if you are not granted a tenured appointment. Laurentian University makes no promises concerning the possibility of further or other appointments, including a tenured appointment.
25. **CONSISTENCY WITH FORCED CONTRACT.** This offer is made pursuant to the Forced Contract and the Forced Contract shall prevail in case of any inconsistency between the terms of this Offer and the terms of the Forced Contract.

Vice-President, Academic and Provost

Date

I hereby accept the conditions of employment set out in this document.

NAME

Date

c.c.: Dean
Financial Services
Human Resources
Institutional Research
Laurentian University Faculty Association
Payroll and Benefits Centre
DATED AT Sudbury, Ontario, this 21st day of September 2008.

"DAVID LEADBEATER"

Dr. David Leadbeater for Laurentian University Faculty Association

"HARLEY D'ENTREMONT"

Dr. Harley d'Entremont for Laurentian University of Sudbury

APPENDIX C: DEPARTMENTAL/SCHOOL ASSESSMENT CONTRACT RENEWAL

Date :
Name of candidate :
Department:

The recommendation below includes both majority and minority opinions, if any.

In assessing the applicant's progress toward meeting the requirements for tenure outlined in paragraphs 5.60.6 of Article 5.60 – Tenure Evaluation Procedures, the committee shall comment on **each aspect of these criteria**. (Article 5.20.22 (d))

Pursuant to Articles 5.15, 5.50 and 5.60, we have made the following assessment :

1. Teaching

a) **Assessment of teaching**, the quality of which is satisfactory as determined based on the teaching dossier and approved course evaluations as mandated by the Forced Contract. Student evaluations, in numerical or written form, shall not be admissible as evidence if such evaluations are more than five (5) years old. If the applicant has faced problems in teaching, the committee will look for evidence that he/she has recognized the problems, has taken steps to improve, and has made some improvements. (Articles 5.10.2 (c) (ii), 5.70.9 and 5.60.3 (c) (i))

Satisfactory _____ Unsatisfactory _____
Reasons:
Or

Professional Librarianship / Archives Management

When considering librarians/archivists, professional service and library/archives management skills shall be substituted for "teaching". (Article 5.40).

Satisfactory _____ Unsatisfactory _____
Reasons:

b) Assessment of the candidate's teaching dossier. The **nature and scope** of past teaching activities shall be taken into account. (Clauses 5.50.3 and 5.60.3 (c) (i)).

Satisfactory _____ Unsatisfactory _____
Reasons:

2. Scholarly activity

A record of satisfactory scholarly activity as defined in Article 5.15 – Rights, Responsibilities and Duties of Academics. The applicant shall show **progress in independent research or creative activity**. (Article 5.60.3 (c) (ii))

Satisfactory _____ Unsatisfactory _____
Reasons :

3. University Governance and Administrative Duties

A record of contributions to University governance and administrative duties as set out in Article 5.15 – Rights, Responsibilities and Duties of Academics. (Article 5.60.3 (c) (iii))

Satisfactory _____ Unsatisfactory _____
Reasons :

RECOMMENDATION

In assessing the applicant's progress toward meeting the requirements for tenure, the committee should comment on the **rate of progress shown** during the initial probationary period.

On the basis of the assessment above, we **recommend** _____/do not recommend _____ the candidate for contract renewal.

Vote : In favour _____ Opposed _____

Members :

Signature :

APPENDIX D: DEPARTMENTAL/SCHOOL ASSESSMENT TENURE

Date :

Name of candidate:

Department:

The recommendation below includes both majority and minority opinions, if any.

Pursuant to Articles 5.15, 5.50 and 5.60, we have made the following assessment :

1. Teaching

a) **Assessment of teaching**, the quality of which is satisfactory as determined based on the teaching dossier and approved course evaluations as mandated by the Forced Contract. Student evaluations, in numerical or written form, shall not be admissible as evidence if such evaluations are more than five (5) years old. If the applicant has faced problems in teaching, the committee will look for evidence that he/she has recognized the problems, has taken steps to improve, and has made some improvements. (Articles 5.10.2 (c) (ii), 5.70.9 and 5.60.3 (c) (i))

Satisfactory _____ Unsatisfactory _____

Reasons :

b) Assessment of the candidate's teaching dossier. The **nature and scope** of past teaching activities shall be taken into account. (Clauses 5.50.3 and 5.60.3 (c) (i)).

Satisfactory _____ Unsatisfactory _____

Reasons:

Or

Professional Librarianship / Archives Management

When considering librarians/archivists, professional service and library/archives management skills shall be substituted for "teaching". (Article 5.40).

Satisfactory _____ Unsatisfactory _____

Reasons:

2. Scholarly activity

A record of satisfactory scholarly activity as defined in Article 5.15 – Rights, Responsibilities and Duties of Academics. The applicant shall show **progress in independent research or creative activity**. (Article 5.60.3 (c) (ii))

Satisfactory _____ Unsatisfactory _____

Reasons:

3. University Governance and Administrative Duties

A record of contributions to University governance and administrative duties as set out in Article 5.15 – Rights, Responsibilities and Duties of Academics. (Article 5.60.3 (c) (iii))

Satisfactory _____ Unsatisfactory _____

Reasons:

RECOMMENDATION

The committee shall be flexible in assessing stronger performance in some areas against weaker performance in other areas as set out in Article 5.50.3 of Article 5.50 – Assessment of a Member’s Performance. However, in no instance shall it recommend tenure for an applicant if teaching performance is judged mostly unsatisfactory or if the applicant is not engaged in a program of scholarly activity. (Article 5.60.3 (c) (v))

On the basis of the assessment above, we **recommend** _____/do not recommend _____ the candidate for tenure.

Vote : In favour _____ Opposed _____

Members :

Signature :

APPENDIX E: DEPARTMENTAL/SCHOOL ASSESSMENT PROMOTION TO THE RANK OF ASSISTANT PROFESSOR/LIBRARIAN

Date :
Name of candidate:
Department:

The recommendation below includes both majority and minority opinions, if any.

Pursuant to Articles 5.10.2 (b), 5.15 and 5.50, we have made the following assessment :

1. Experience

At the time the promotion to the rank of Assistant Professor/Librarian becomes effective, the candidate will have at least five (5) years of satisfactory performance of the Member's responsibilities and duties. (Article 5.10.2 (b) (ii))

Yes _____ No _____ Date of appointment : _____

2. Teaching

a) Assessment of teaching, the quality of which is satisfactory as determined based on the teaching dossier and approved course evaluations as mandated by the Forced Contract. Student evaluations, in numerical or written form, shall not be admissible as evidence if such evaluations are more than five (5) years old. (Articles 5.10.2 (b) (ii) and 5.70.9)

Satisfactory _____ Unsatisfactory _____

Reasons :

b) Assessment of the candidate's teaching dossier. (Clauses 5.50.3).

Satisfactory _____ Unsatisfactory _____

Reasons:

Or

Professional Librarianship / Archives Management

When considering librarians/archivists, professional service and library/archives management skills shall be substituted for "teaching". (Article 5.40).

Satisfactory _____ Unsatisfactory _____

Reasons:

3. Scholarly activity

Demonstrated evidence of scholarly activity (as per Article 5.15 – Rights, Responsibilities and Duties of Academics).

Satisfactory _____ Unsatisfactory _____

Reasons :

4. University Governance and Administrative Duties

Evidence of contributions to the governance of the University through membership on appropriate bodies. (Article 5.15.26)

Satisfactory _____ Unsatisfactory _____

Reasons:

5. Exceptional contributions in one area which compensate for lesser contributions in another.

a) Teaching/ (Articles 5.50.4)

b) University Governance and Administrative Duties (Article 5.50.4)

RECOMMENDATION

On the basis of the assessment above, we **recommend** _____/do not recommend _____the candidate for rank of Assistant Professor/Librarian.

Vote : In favour _____ Opposed _____

Members :

Signature :

APPENDIX F: DEPARTMENTAL/SCHOOL ASSESSMENT PROMOTION TO THE RANK OF ASSOCIATE PROFESSOR/LIBRARIAN

Date :
Name of candidate :
Department:

The recommendation below includes both majority and minority opinions, if any.

Pursuant to Articles 5.10.2 (c), 5.15 and 5.50, we have made the following assessment :

1. Experience

At the time the promotion to Associate Professor/Librarian becomes effective, the candidate will have at least five (5) years of full-time teaching and/or research in a university or an institution of equivalent level or at least five (5) years of professional experience judged to be relevant for teaching at the university level. (Article 5.10.2 (c) (iv))

Yes _____ No _____ Date of appointment : _____

Previous experience, if any :

2. Teaching

a) Assessment of teaching, the quality of which is satisfactory as determined based on the teaching dossier and approved course evaluations as mandated by the Forced Contract. Student evaluations, in numerical or written form, shall not be admissible as evidence if such evaluations are more than five (5) years old. (Articles 5.10.2 (c) (ii) and 5.70.9)

Satisfactory _____ Unsatisfactory _____

Reasons:

b) Assessment of the candidate's teaching dossier. (Clauses 5.50.3).

Satisfactory _____ Unsatisfactory _____

Reasons:

Or

Professional Librarianship / Archives Management

When considering librarians/archivists, professional service and library/archives management skills shall be substituted for "teaching". (Article 5.40).

Satisfactory _____ Unsatisfactory _____

Reasons:

3. Scholarly activity

Evidence of scholarly activity (as per Article 5.15 – Rights, Responsibilities and Duties of Academics) that is of good quality. (Article 5.10.2 (c) (iii))

Satisfactory _____ Unsatisfactory _____

Reasons:

4. University Governance and Administrative Duties

Evidence of contributions to the governance of the University through membership on appropriate bodies. (Article

5.15.26)

Satisfactory _____ Unsatisfactory _____

Reasons:

5. Exceptional contributions in one area which compensate for lesser contributions in another.

a) Teaching (Articles 5.50.4 and 5.10.2 (c) (v))

b) University Governance and Administrative Duties
(Article 5.50.4)

RECOMMENDATION

On the basis of the assessment above, we **recommend** _____/do not recommend _____ the candidate for promotion to the rank of Associate Professor/Librarian.

Vote : In favour _____ Opposed _____

Members:

Signature :

APPENDIX G: DEPARTMENTAL/SCHOOL ASSESSMENT PROMOTION TO THE RANK OF FULL PROFESSOR/LIBRARIAN

Date :
Name of candidate:
Department:

The recommendation below includes both majority and minority opinions, if any.

Pursuant to Articles 5.10.2 (d), 5.15 and 5.50, we have made the following assessment :

1. Experience

At the time the promotion to Full Professor/Librarian becomes effective, the candidate will have at least ten (10) years of full-time teaching and/or research in a university or an institution of equivalent level or at least ten (10) years of professional experience judged to be relevant for teaching at the university level. (Article 5.10.2 (d) (iv))

Yes _____ No _____ Date of appointment: _____

Previous experience, if any:

2. Teaching

a) Assessment of teaching, the quality of which is satisfactory as determined based on the teaching dossier and approved course evaluations as mandated by the Forced Contract. Student evaluations, in numerical or written form, shall not be admissible as evidence if such evaluations are more than five (5) years old. (Articles 5.10.2 (d) (ii) and 5.70.9)

Satisfactory _____ Unsatisfactory _____

Reasons :

b) Assessment of the candidate's teaching dossier. (Clauses 5.50.3).

Satisfactory _____ Unsatisfactory _____

Reasons:

Or

Professional Librarianship / Archives Management

When considering librarians/archivists, professional service and library/archives management skills shall be substituted for "teaching". (Article 5.40).

Satisfactory _____ Unsatisfactory _____

Reasons:

3. Scholarly activity

Evidence of scholarly activity (per Article 5.15 – Rights, Responsibilities and Duties of Academics) throughout the Member's career and after her/his promotion to Associate Professor/Librarian that ranks as a recognized contribution to the scholarly field or professional activity concerned. (Article 5.10.2 (d) (iii))

Satisfactory _____ Unsatisfactory _____

Reasons :

4. University Governance and Administrative Duties

Evidence of contributions to the governance of the University through membership on appropriate bodies. (Article 5.15.26)

Satisfactory _____ Unsatisfactory _____

Reasons :

5. Exceptional contributions in one area which compensate for lesser contributions in another.

a) Teaching (Articles 5.50.4 and 5.10.2 (c) (v))

b) University Governance and Administrative Duties (Article 5.50.4)

RECOMMENDATION

On the basis of the assessment above, we **recommend** _____/do not recommend _____ the candidate for promotion to the rank of Full Professor/Librarian.

Vote : In favour _____ Opposed _____

Members :

Signature :

APPENDIX H: DEPARTMENTAL/SCHOOL ASSESSMENT MERIT INCREMENT

Date :
Name of candidate:
Department :

The recommendation below includes both majority and minority opinions, if any.

Pursuant to Articles 5.15, 5.50, 8.25 and 5.10.2 (d) or 4.20, as applicable, we have made the following assessment :

1. Eligibility

Full Professor/Librarian _____

Master Lecturer _____

2. Teaching

a) Assessment of teaching, the quality of which is satisfactory as determined solely by the method of teaching evaluation mandated by the Forced Contract. Student evaluations, in numerical or written form, shall not be admissible as evidence if such evaluations are more than five (5) years old. (Articles 5.10.2 (d) (ii) and 5.70.9)

For Full Professors :

Performance is **clearly above the level for promotion** to the rank of Full Professor (Article 8.25.5)

For Master Lecturers :

The candidate has demonstrated **consistently good teaching** (Article 8.25.5)

Yes _____ No _____

Reasons :

b) Assessment of the candidate's teaching dossier (Article 5.50.3)

Satisfactory _____ Unsatisfactory _____

Reasons :

Or

Professional Librarianship / Archives Management

When considering librarians/archivists, professional service and library/archives management skills shall be substituted for "teaching". (Article 5.40).

Satisfactory _____ Unsatisfactory _____

Reasons:

3. Scholarly activity

Evidence of scholarly activity (per Article 5.15 – Rights, Responsibilities and Duties of Academics) throughout the Member's career and after her/his promotion to Associate Professor/Librarian that ranks as a recognized contribution to the scholarly field or professional activity concerned.
(Article 5.10.2 (d) (iii))

For Full Professors/Librarians/Archivists :

Performance is **clearly above the level for promotion** to the rank of Full Professor

Yes _____ No _____

Reasons :

4. University Governance and Administrative Duties. Evidence of contributions to the governance of the University through membership on appropriate bodies. (Article 5.15.26)

For Full Professors:

Performance is **clearly above the level for promotion** to the rank of Full Professor/Librarian

Yes _____ No _____

Reasons :

5. Exceptional contributions in one area which compensate for lesser contributions in another.

a) Teaching (Articles 5.50.4 and 5.10.2 (c) (v))

b) University Governance and Administrative Duties
(Article 5.50.4)

RECOMMENDATION

On the basis of the assessment above, we **recommend** _____/do not recommend _____ the candidate for a merit increase.

Vote : In favour _____ Opposed _____

Members :

Signature :

APPENDIX I: FPC/FFPC/LPC ASSESSMENT REVIEW FORM

Name of candidate _____

Does the FPC/FFPC/LPC endorse the assessment and recommendation of the **Department/School Assessment Committee**?

Yes _____ No _____

In each of the categories below and with reference to the **criteria** cited in Article 5.15 – Rights, Responsibilities and Duties of Academics, please provide a comprehensive and substantive rationale for your vote:

A) Teaching or Professional Librarianship/Archives Management

B) Scholarly Activity

C) University Governance and Administrative Duties

2. Does the FPC/FFPC/LPC endorse the assessment and recommendation of the **Dean/University Librarian**? Yes _____ No _____

In each of the categories below and with reference to the **criteria** cited in Article 5.15 – Rights, Responsibilities and Duties of Academics, please provide a comprehensive and substantive rationale for your vote:

A) Teaching or Professional Librarianship/Archives Management

B) Scholarly Activity

C) University Governance and Administrative Duties

Summary

Based on our review of the assessments by the Department/School Assessment Committee and the Dean/University Librarian, we advise the Vice-President (Academic) and Provost to support _____ / oppose _____ the candidate's application.

Rationale:

Article 5.50.7(m)

The Member may make written representations to the Vice-President, Academic and Provost within ten (10) working days of the date on which the Faculty Personnel Committee forwards to the Member a copy of its assessment letter to the Vice-President, Academic and Provost.

The Chair of the Faculty Personnel Committee shall forward the assessment letter to the Vice-President, Academic and Provost, with a copy to the applicant, by December 15 for renewal and tenure applications, and by February 15 for promotion, with the exception of applications for promotion to Full Professor/Librarian.

APPENDIX J: LETTER OF UNDERSTANDING- MCEWEN SCHOOL OF ARCHITECTURE WORKLOAD

BETWEEN:

THE LAURENTIAN UNIVERSITY FACULTY ASSOCIATION

AND

LAURENTIAN UNIVERSITY OF SUDBURY

RE: McEwen School of Architecture workload

The Parties agree that all full-time members in the McEwen School of Architecture shall be required to teach two (2) studio courses per academic year, normally one per term. In exceptional circumstances, that number may vary with the member's consent. The parties agree that the workload shall not exceed current practices for teaching assignment in the School.

Full-time members appointed through tenured, probationary, or limited term appointments shall be required to teach, in addition to the (2) studio courses, one (1) three (3) credit course per year or equivalent.

Full-time members appointed to Master Lecturer positions shall be required to teach, in addition to the two (2) studio courses, nine (9) credits of courses per year or equivalent.

The term "studio courses" refers to the following: ARCH 1505, ARCH 1515, ARCH 2505, ARCH 2515, ARCH 3505, ARCH 3515, ARCH 4505, ARCH 4515, ARCH 5505, ARCH 5515, ARCH 5525, ARCH 5555, ARCH 5565.

APPENDIX K- EXPEDITED MEDIATION AND ARBITRATION PROCESSES

The parties agree on the following letter of understanding, which would expire on June 30, 2025:

EXPEDITED MED-ARBITRATION

1. The parties may be represented by legal counsel for the expedited med-arbitration dates;
2. The parties will agree to up to four (4) dates for expedited med-arbitration for each year of the term of the Forced Contract;
3. At least sixty (60) days prior to each expedited med-arbitration date the parties will agree on the grievances to be dealt with on that day;
4. The parties will schedule up to three (3) grievances to be heard on each expedited med-arbitration date.
5. Forty-five (45) days prior to each expedited med-arbitration date a party may make requests for production of documents from the other party. Disclosure will be provided within fifteen (15) days.
6. Each grievance proceeding to expedited med-arbitration will be heard and determined on the basis of written briefs prepared by the parties as supplemented by brief oral arguments.
7. The parties will exchange written briefs at least fourteen (14) days in advance of the expedited med-arbitration.
8. The parties' written briefs for each expedited med-arbitration will contain a summary of the facts the party will rely on, a copy of all documents that the party will rely on in support of its case, as well a written argument in summary form and a copy of all cases on which the party relies. The briefs will be sent to the med-arbitrator seven (7) days in advance of the med-arbitration date.
9. In the event that a party does not deliver its written brief within the time required under paragraph 7 above, or with the content required under paragraph 7 above, the other party may, at its sole discretion cancel the med-arbitration date.
10. Any procedural disputes shall be resolved by the arbitrator assigned to the med-arbitration date in question on an expedited basis.
11. Awards arising out of this process are non-precedential and may not be referred to or relied upon by the Parties in any other proceedings unless mutually agreed otherwise. Negotiated settlements may or may not be precedential as agreed by the parties.
12. The med-arbitration will be heard by the following Arbitrators on a rotational basis: William Kaplan, Sheri Price, Elizabeth McIntyre and Brian Sheehan.

APPENDIX L- RIGHTS OF FEDERATED UNIVERSITY EMPLOYEES

B E T W E E N :

LAURENTIAN UNIVERSITY
("Laurentian University")

-- and --

LAURENTIAN UNIVERSITY FACULTY ASSOCIATION
("LUFA")

Letter of Understanding

WHEREAS the parties entered into a Term Sheet on April 4, 2021;

The parties agree as follows:

For a period of 5 years commencing May 1, 2021, where any new academic positions are created, or any academic vacancies arise at the University, which are not filled by a Member with recall rights, applicants who are employed at Thorneloe University, Huntington University or the University of Sudbury as of the date of the signing of this Letter of Understanding, will be given priority in the hiring process, and if qualified, offered the position.

APPENDIX M: LETTER OF UNDERSTANDING- COUNSELLORS

BETWEEN:

LAURENTIAN UNIVERSITY FACULTY ASSOCIATION

AND

LAURENTIAN UNIVERSITY OF SUDBURY

RE: Article 2.20.1- Counsellors

Notwithstanding the limitations set out in Article 2.20.1 with respect to limits on contracting out clinical services, the parties agree to the following:

1. The employer shall be entitled to hire third parties for student counselling service pursuant to the conditions in this MOA.
2. Any third-party student counselling service engaged by the University will be instructed to refer French and English-speaking students located in Ontario at the time of accessing the services to the University's student Counselling Centres.
3. For clarity, students in crisis will not be denied service but will be referred to the University's student counselling office for any future needs.
4. No bargaining unit member will lose employment or have their hours reduced as a result of third-party counselling services.
5. The Administration agrees to provide LUFA with a copy of all contracts with third party student counselling services within 15 days of signing the contract.
6. The Administration agrees to provide on a semester basis full usage report for third party student counselling services, including demographic information.
7. In recognition of the tri-cultural nature of the University, the parties agree to continue discussions on how to improve student counselling services for Indigenous students on campus.
8. This is without prejudice/precedent to LUFA's position that crisis work is bargaining unit work.

APPENDIX N: COORDINATOR CREDITS- PROGRAMS

PROGRAMS and POSITIONS	Credits
FACULTY OF SCIENCE	
Earth Science	
PhD Graduate Coordinator GEOL 6000	3
MSc Graduate Coordinator, GEOL 5000	3
MSC Graduate Coordinator, GEOL 5055	3
B Sc. Undergraduate Coordinator GEOL 4005	3
CAF Academic Advisor	3
Engineering	
Chemical ENGR Coordinator	3
Mining ENGR Coordinator	3
M.Sc/Ph.D Meng.. Graduate Coordinator	3
Mechanical Program Coordinator	3
Coop work term Coordinator (ENRG 0000 EL 01 02 03)	3
Communications Science	
Coordinator of Science Communication	6
Mathematics & Computer Science	
Graduate Program Coordinator- Computational Science	3
COOP Coordinator (COSC 0001, 0002, 003, 0004) term report	3
Chemistry	
Graduate Prog Coordinator	3
Material Sciences	3
Research and Seminar- Course Coordination 4615 4655	6
Biology	
M.Sc. Program Coordinator (BIOL 5000E)	3
Forensics	
FORS Undergraduate Program Coordinator	3
SEA and Forensic Sc Student Recruitment Coordinator	3
Stand alone science Programs	
Liberal Science Program Coordinator (Changed to Interdisciplinary Sciences	3
Biomecular Sciences Program Coordinator	3
FACULTY OF MANAGEMENT	

SPAD	
Undergrad Coord, SPAD	3
Coordination Internship Program (4005 and 4006 0300) (27 credits)	18
Business	
MBA Coordinator	3
Coordinator, BBA	6
Coordinateur, B.Comm/BAA	3
*COOP/Placement/WIL Coordinator	3
FACULTY OF HEALTH	
Orthophonie	
Coordonnatrice M.Sc.S.	3
Coordonnateur B.Sc.S.	3
Placement Coordinator (Responsable des stages, de l'externat et liaison avec l'EMNO pour les	3
Social Work	
English	
Coordinator, BSW	3
Coordinator MSW	3
French	
Coordination MSS	3
Coordination BSS campus	3
Coordination BSS en ligne	6
School of Indigenous Relations	
BISW coordinator	3
MIR Coordinator	3
Nursing	
English	
Clinical Education/ Praxis Leader	12
Curriculum Lead	5.5
BScN Collaborative Scholarship Lead	6
BScN Coordinator	3
BScN Collaborative Program Coordinator	3
Program Collaboration Coordination (Director)	3
Coordination of Course Team Lead (0.5)	12.5
French	
Coordonnateur du BSInf	3
Facilitatrice de l'enseignement clinique	6
Graduate Coordination (E/F)	

Coordinator NP	3
Coordinator IPP	3
Graduate Coordinator MScN	1.5
Coordination du programme MsInf	1.5
Administration of Coordination des programmes NP/IP	3
Human Kinetics	
Coordinator, HEAL	2
Coordonnateur-EDPH	3
Coordinator MHK	3.0
Coordinator-ADVL	3.0
Coordinator-KINE	3.0
Coordinator-SPED	3.0
Coordinator-SPPS	3
Rural and Northern Health	
IRNH Ph. D. Graduate Coordinator	3
Interdisciplinary Health M. Sc./M.A Graduate Coordinator	3
USCD Team Lead	6
FACULTY OF EDUCATION	
Education	
Coordinator pre-practicum courses	12
FACULTY OF ARTS	
Human Studies	
PhD Human Studies (HUST/SCHU)	6
Psychology	
Honor's Thesis Coordinator	3
Master's Applied Practicum	3
Coordinatrice de la maîtrise en Psycho.	3
	233

APPENDIX O: COORDINATOR CREDITS- COURSES

Course	CC Credits assigned
GEOL 5007/6007 E	3 cr
GEOL 5007/6007	3 cr

APPENDIX P: TRANSPARENCY AND OVERSIGHT

BETWEEN:

LAURENTIAN UNIVERSITY FACULTY ASSOCIATION

AND

LAURENTIAN UNIVERSITY OF SUDBURY

The parties agree on the following actions to be taken by the University in response to the Union's concerns on transparency and oversight:

1. Laurentian will jointly propose that the Laurentian University of Sudbury Act be amended to permit up to 2 faculty to be voting members of the Board as soon as practicable;
2. Laurentian will undertake a governance review, including with the assistance of an experienced external advisor;
3. Legislative amendments to permit (1) will be included as part of any Plan of Arrangement.

**LAURENTIAN UNIVERSITY FACULTY ASSOCIATION
MEDIATION TERM SHEET**

DATED APRIL 7, 2021

The below sets out the key financial terms and conditions agreed to following negotiations between Laurentian University of Sudbury (“**Laurentian**”) and the Laurentian University Faculty Association (“**LUFA**”) in the confidential mediation overseen by Mr. Justice Sean Dunphy, the Court-appointed mediator in the CCAA proceedings of Laurentian (in such capacity, the “**Mediator**”).

For greater certainty, this term sheet and its schedules reflect certain key terms and conditions required by Laurentian to become a financially sustainable post-secondary organization, in terms of monetary value and stability of overall operations.

Term of Collective Agreement	The collective agreement shall have a five-year term commencing on July 1, 2020 up to and including June 30, 2025.
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Faculty Member Termination	The parties agree that the total number of Full-Time Faculty Members who will be terminated or who elect to retire pursuant to the Retirement Election below is 116 Faculty Members, including 6 members of Administration. The agreed-upon confidential list of Faculty Members who will be terminated is attached hereto as Confidential Schedule “A” (the “ Terminated Faculty Members ”).
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Effective Termination Date	The effective termination date of the Terminated Faculty Members for those teaching courses in this academic term shall be May 15, 2021, to allow for marking of final exams, papers and communicating grades. For all Terminated Faculty Members who are not teaching courses in this academic term, the effective termination date shall be April 30, 2021.
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Retirement Election	Faculty Members may elect, by irrevocable written notice provided on or before April 9, 2021, that any Faculty Members intend to retire (the “ Retiring Faculty Members ”).
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The effective termination date of the Retiring Faculty Members for those teaching courses in this academic term shall be May 15, 2021, to allow for marking of final exams, papers and communicating grades. For all Retiring Faculty Members who are not teaching courses in this academic term, the effective termination date shall be April 30, 2021.

**Notice to Faculty
Members**

The parties agree to develop mutually acceptable communications to be delivered to the Terminated Faculty Members.

Terms of Termination of Faculty Members	Terminated Faculty Members shall be entitled to file a claim in the CCAA claims process in respect of all entitlements relating to their employment or former employment with Laurentian in accordance with their entitlement under the collective agreement and the terms of the CCAA.
Treatment of Retiring Faculty Members	Retiring Faculty Members shall be entitled to receive the following: (i) A claim in the CCAA claims process in accordance with their entitlement under the collective agreement and the terms of the CCAA; (ii) Access to office space for up to June 30, 2023. The office provided shall be at the discretion of the Dean, and may be shared office space; (iii) Emeritus Status (as defined in the Collective Agreement), if eligible and alternatively adjunct status if eligible, such determinations to be made on a reasonably expedited basis; (iv) To be added to the sessional roster in the applicable Department/School and be given priority for one three credit course for which no member has establishment, for which they have taught at least once in the past 3 years, to be paid at the overload rate; (v) Continued library privileges; (vi) Until June 30, 2023, the ability to maintain their current status with respect to supervision of students and will be paid when the graduate student completes a thesis in accordance with article 5.40.8; (vii) Their name appearing on the University website for their Department as long as they are either engaged as a sessional instructor and/or with respect to supervision of students; (viii) Until June 30, 2023, with 100% of the premium cost to be at the cost of the retiree, the option to maintain Laurentian Health Benefits (Health & Dental) subject to Manulife approval; (ix) Their name included in the next service ceremony for Laurentian; and

- (x) Retiring Members shall be advised that the option to commute the value of their pension at the wind-up transfer ratio remains available to them at this time but may not be available in the future.

Claims of Terminated Faculty Members Any and all claims that each of the Terminated Faculty Members listed in Confidential Schedule “A” has against Laurentian shall be dealt with solely as part of a claims process in the CCAA proceedings.

It is further agreed that a Terminated Faculty Member shall have no further or other rights against Laurentian pursuant to the collective agreement or otherwise upon termination, save and except as it relates to the registered pension plan and the terms of the collective agreement as amended herein. In the event of an inconsistency between the collective agreement and this Term Sheet, this Term Sheet shall be paramount.

Termination of Counsellor The parties agree that the one counsellor listed in confidential Schedule “B” to this term sheet shall be terminated (the “**Terminated Counsellor**”), with an effective termination date of April 30, 2021.

Terms of Termination of Counsellor The Terminated Counsellor shall be entitled to file a claim in the CCAA claims process in respect of all entitlements relating to their employment or former employment with Laurentian, which claim shall be in accordance with their employment contract with the University and the terms of the CCAA.

Centre for Academic Excellence Laurentian will agree to terminate 1 academic advisor position.

Salary Adjustments to Faculty Members As per Schedule “C”, effective May 1, 2021, each of the Faculty Members’ salary shall be decreased by five percent (5%).

Year 1 (July 1, 2020 – June 30, 2021)

- (i) ATB to Base Salary: 0%
- (ii) Annual Progress-Through-the-Ranks: \$0
- (iii) Promotion and Additional Qualifications: \$2,900

Year 2 (July 1, 2021 – June 30, 2022)

- (i) ATB to Base Salary: 0%
- (ii) Annual Progress-Through-the-Ranks: \$0
- (iii) Promotion and Additional Qualifications: \$2,900

Year 3 (July 1, 2022 – June 30, 2023)

- (i) ATB to Base Salary: 1%
- (ii) Annual Progress-Through-the-Ranks: \$2,900
- (iii) Promotion and Additional Qualifications: \$2,900

Year 4 (July 1, 2023 – June 30, 2024)

- (i) ATB to Base Salary: 1%
- (ii) Annual Progress-Through-the-Ranks: \$2,900
- (iii) Promotion and Additional Qualifications: \$2,900

Year 5 (July 1, 2024 – June 30, 2025)

- (i) ATB to Base Salary: 1%
- (ii) Annual Progress-Through-the-Ranks: \$2,900
- (iii) Promotion and Additional Qualifications: \$2,900

Each member of the bargaining unit will take 5 unpaid furlough days in each of 2021-22, 2022-23 and 2023-24 to be processed as one day per month between July and November.

Laurentian will ensure that there is an equitable distribution of salary reductions among LUFA, LUAPS and Senior Leaders over the term of the collective agreement.

Professional Development

As per Schedule “D”, upon execution of this Term Sheet, all existing professional development balances allocated to each of the Faculty Members shall be zero.

Allocation of professional development funds shall resume on July 1, 2021, in accordance with the terms of the collective agreement.

Faculty Member Workload

As per Schedule “E”, the maximum normal teaching load for each academic year shall be two and one-half (2 ½) full-year courses or fifteen (15) credit equivalents in all Faculties.

Other Amendments to Collective Agreement

Please refer to the attached Schedules “F” to “EE” to this Term Sheet for other amendments to the Collective Agreement.

Binding Arbitration	Issues specifically identified within Schedules “F” to “EE” which stipulate that by agreement of the parties they are to be determined through binding arbitration shall, once determined and if applicable, constitute amendments to the collective agreement. Such binding arbitration shall take place before William Kaplan and will be completed by June 18, 2021.
Grievances	The parties agree that grievances for non-monetary issues or those not involving the expenditure of money such as accommodation, denial of tenure or unjust dismissal, which arise on or after February 1, 2021 shall not be stayed as a result of the CCAA proceeding, and may proceed in the ordinary course.
Entire Agreement	This Term Sheet and its Schedules constitute the entire agreement between the parties pertaining to the subject matter of this Term Sheet. For greater certainty, in the event that this Term Sheet and the Schedules conflict, this Term Sheet shall be paramount.
Governing Law	The terms of settlement and amendments to the collective agreement set out in this Term Sheet shall be governed by and interpreted in accordance with the laws of the Province of Ontario and the laws of Canada applicable in Ontario. While the stay of proceedings remains in force, the CCAA Court shall have the exclusive jurisdiction to determine any action arising under this agreement and the parties hereby attorn to the exclusive jurisdiction thereof. Nothing in this agreement derogates from the exclusive jurisdiction conferred on the Ontario Labour Relations Board or a labour arbitrator by the <i>Labour Relations Act</i> , 1995, S.O. 1995, c.1-Schedule A for non-monetary matters during the currency of the stay of proceedings, and for all matters upon emergence or termination of the CCAA proceeding.
Amendments	This Term Sheet, once executed, shall only be modified in writing and upon signature by the parties hereto.
Notices	All notices, requests, consents and other communications delivered pursuant to the terms of this Term Sheet shall be contained in a written instrument and may be delivered in person or sent by internationally recognized overnight courier or by email.

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LAURENTIAN UNIVERSITY OF SUDBURY

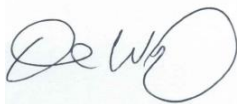
Per:  _____ c/s

Name: Robert Haché

Title: President and Vice-
Chancellor

I have the authority to bind the Corporation.

**LAURENTIAN UNIVERSITY FACULTY
ASSOCIATION**

Per:  _____ c/s

Name: David Wright

Firm: Ryder Wright Blair & Holmes LLP

Title: Chief Negotiator and Counsel

I have the authority to bind LUFA.

Schedule “A”

List of Terminated LUFA Members

See the attached password-protected spreadsheet.

Schedule “B”

List of Terminated Counsellor

See the attached password-protected spreadsheet.

Schedule “C”

Salary

The parties agree to the following:

Each member of the bargaining unit will take 5 furlough days in each of 2021-22, 2022-23 and 2023-24 to be processed as one day per month between July and November.

The parties agree to amend the following language in Article 8.10

8.10.1 The salary of each Member shall be composed of the base salary of each Member as of June 30, 2020 as modified by the following items:

- a) For July 1, 2020, a scale increase of **zero percent (0%)** of the Member's regular salary.
- b) For July 1, 2020, **no Progress-Through-The-Ranks** increment or merit award for the evaluation carried out for the year 2019-20.
- c) Additional qualification increments shall be awarded pursuant to Article 8.30 – Additional Qualifications Increments in an amount of \$2,900.
- d) Promotion increments shall be awarded according to Articles 8.15 – Progress-Through-The-Ranks Increments regardless of breakpoints.

8.10.2 The salary of each Member shall be composed of the base salary of each Member as of **May 1, 2021** as modified by the following items:

- (a) For **May 1, 2021**, a scale decrease of five percent (5%) of the Member's regular salary.
- (b) For July 1, 2021, no Progress-Through-The-Ranks increment or merit award for the evaluation carried out for the year 2020-21.
- (c) Additional qualification increments shall be awarded pursuant to Article 8.30 – Additional Qualifications Increments in an amount of \$2,900.
- (d) Promotion increments shall be awarded according to Articles 8.15 – Progress-Through-The-Ranks Increments regardless of breakpoints.

8.10.3 The salary of each Member shall be composed of the base salary of each Member as of June 30, 2022 as modified by the following items:

- (a) For July 1, 2022, a scale increase of one percent (1%) of the Member's regular salary.

- (b) For July 1, 2022, a Progress-Through-The-Ranks increment for the evaluation carried out for the year 2021-2022 as described in Article 8.20 – Procedures for the Award/Denial of a Progress-Through-The-Ranks Increment. The Progress-Through-The-Ranks increments shall have a value of two thousand nine hundred dollars (\$2,900).
- (c) Additional qualification increments shall be awarded pursuant to Article 8.30 – Additional Qualifications Increments in an amount of \$2,900.
- (d) Promotion or Merit increments shall be awarded according to Articles 8.15 – Progress-Through-The-Ranks Increments and Article 8.25 – Merit Increments, regardless of breakpoints.

8.10.4 The salary of each Member shall be composed of the base salary of each Member as of June 30, 2023 as modified by the following items:

- (a) For July 1, 2023, a scale increase of one percent (1%) of the Member's regular salary.
- (b) For July 1, 2023, a Progress-Through-The-Ranks increment for the evaluation carried out for the year 2022-2023 as described in Article 8.20 – Procedures for the Award/Denial of a Progress-Through-The-Ranks Increment. The Progress-Through-The-Ranks increments shall have a value of two thousand nine hundred dollars (\$2,900).
- (c) Additional qualification increments shall be awarded pursuant to Article 8.30 – Additional Qualifications Increments in an amount of \$2,900.
- (d) Promotion or Merit increments shall be awarded according to Articles 8.15 – Progress-Through-The-Ranks Increments and Article 8.25 – Merit Increments, regardless of breakpoints.

8.10.5 The salary of each Member shall be composed of the base salary of each Member as of June 30, 2024 as modified by the following items:

- (a) For July 1, 2024, a scale increase of one percent (1%) of the Member's regular salary.
- (b) For July 1, 2024, a Progress-Through-The-Ranks increment for the evaluation carried out for the year 2023-2024 as described in Article 8.20 – Procedures for the Award/Denial of a Progress-Through-The-Ranks Increment. The Progress-Through-The-Ranks increments shall have a value of two thousand nine hundred dollars (\$2,900).
- (c) Additional qualification increments shall be awarded pursuant to Article 8.30 – Additional Qualifications Increments in an amount of \$2,900.

- (d) Promotion or Merit increments shall be awarded according to Articles 8.15 – Progress-Through-The-Ranks Increments and Article 8.25 – Merit Increments, regardless of breakpoints.

Schedule “D”

Professional Development Expenditures

The parties agree that Professional Development Expenditures, as per Articles 4.70.1 and 6.45.1, will not be allocated and/or paid out for the 2020-2021 academic year. In addition, any outstanding balances from previous years will not be carried over.

It is understood that this measure will be applied equally to the Professional Development Allowances contractually provided to any Senior Academic Administrators or applicable Laurentian University Administrative and Professional Staff.

Schedule “E”

Workload Across All Faculties

The parties agree to amend the following language in Article 5.40.4 (a):

- (a) Teaching Members: In the assignment of teaching loads by the Deans, in consultation with the academic Departments/Schools, the maximum normal teaching load per academic year shall be ~~two (2) full courses or twelve (12) credit equivalents in the Faculty of Science, Engineering and Architecture and~~ two and one-half (2 ½) full courses or fifteen (15) credit equivalents in **all** ~~other~~ Faculties.

Schedule “F”

Laurentian University Research Fund (LURF)

The parties agree to suspend obligations under 6.25.1 for the term of this Collective Agreement.

Schedule “G”

LURF Additional Fund

The parties agree to suspend obligations under 6.25.2 for the term of this Collective Agreement.

Schedule “H”

Cancellation for Sessionals

Laurentian requests to amend the following language in Article 4.52.1 (d):

Cancellation Articles shall be used only where there is good reason to believe that enrolment levels may be vulnerable. In the event that a sessional contract is cancelled within 15 days of the course start date, of a cancellation the Employer shall:

Attempt to find work of equivalent value for which the Sessional Member is qualified; and failing this

Shall pay a cancellation fee of fifteen percent (15%) of the agreed salary as outlined in the Letter of Appointment.

Members who conduct instruction through distance education delivery modes shall be paid two hundred and fifty dollars (\$250).

Sessional Members shall accrue Sessional Seniority for all cancelled courses once they have achieved establishment. Cancelled courses shall not count toward establishment.

The parties agree to have this issue addressed by way of binding arbitration.

Schedule "I"

Gym Memberships

The parties agree to delete articles 4.60.1 and 8.60.1 of the Collective Agreement. It is further understood that other employee groups shall not receive a free or preferential rate for access to the Physical Education Centre.

4.60.1 Sessional Members and their spouse and dependants as defined for full-time Members are eligible for Physical Education Centre (Sudbury Campus) membership and locker for the academic year in which they are employed, subject to the payment of the annual service fee and locker rental fee as established by the Division of Physical Education.

8.60.1 As of the effective date of appointment, all full-time Members, their spouses and dependants as defined in Article 8.50 – Tuition Fee Exemption and Spousal Library Card shall be eligible for free Physical Education Centre membership subject to the payment of an annual service fee and locker rental fee as established by the Division of Physical Education.

As a result of the above, the following articles are moot and Laurentian and LUFA agree that any references to fees and access to the Physical Education Facilities and/or any subsidies for other gym memberships should be deleted. These include:

Article 4.60.2 - (Gym Membership for Sessional Members teaching at the Barrie Campus)

Article 5.90.3 (d) - (Retirees)

Article 10.10.18 (e) – Members terminated through Redundancy

Article 10.15.22 (e) – Members terminated through Financial Exigency

~~**4.60.2** Sessional Members teaching at the Barrie campus will be reimbursed by the University up to two hundred and fifty dollars (\$250) for an individual gym membership, or five hundred dollars (\$500) for a family gym membership, upon production of receipts.~~

~~**5.90.3** Members retired from this University shall retain:~~

~~(d) The same eligibility for free Physical Education Centre membership for themselves, their spouses and their dependants as full-time Members, as per Article 8.60 – Physical Education Facilities.~~

~~**10.10.18** All Members who are on tenured or three (3) year probationary appointments, and whose appointments are terminated pursuant to this Article (Redundancy) shall have rights as set out hereafter:~~

~~(e) Eligibility for themselves and their dependants for exemption from tuition and Physical Education fees until suitable alternative employment is secured or for three (3) years in the case of a Member on a three (3) year probationary appointment or for five (5) years in the case of a tenured Member if suitable alternative employment has not been secured.~~

~~10.15.22 All tenured and probationary Members whose appointments are terminated pursuant to this Article shall have rights as set out hereafter:~~

- ~~-(e) Eligibility for themselves and their dependants for exemption from tuition and Physical Education fees until suitable alternative employment is secured or for three (3) years, whichever is less.~~

Schedule “J”

Letter of Understanding – Revenue Stream Creation

[INTENTIONALLY WITHDRAWN]

Schedule “K”

Tuition Exemption

The parties agree to amend the following language in Articles 8.50:

8.50.1 The following shall be eligible for Tuition Fee Exemption.

- (a) All full-time Members as of the effective date of appointment and all retired full-time Members.
- (b) Spouses and dependants of all full-time Members, ~~of retired full-time Members, of deceased retired Members~~ and of Members who died while in the full-time employ of the University. Dependants include wife and husband (including common-law relationships), children up to the age of twenty-six (26) years (including natural, step, and adopted children, wards and other children for whom the Member is the primary caregiver).

8.50.2 Exemption from tuition fees is subject to the following conditions:

- (a) A student must remain in good standing as defined by the Registrar's Office in order to qualify for tuition exemption. In the event of loss of good standing, the same course(s) or an equivalent one(s) may be taken at the student's expense in order to reinstate good standing and eligibility.
- (b) Students who are eligible for an exemption from tuition fees are not exempted from the payment of incidental fees.
- (c) To the extent that a grant is specifically given to defray tuition a student who receives a grant is not eligible for exemption from tuition fees.
- (d) To the extent that tuition is reduced by a Laurentian University tuition scholarship, the student is not eligible for exemption from tuition fees. Where the funds are from an outside source this condition does not apply.
- (e) **International tuition fees will only be covered up to the rate of domestic tuition fees. The remaining balance is the responsibility of the student.**

Schedule “L”

Redundancy

[INTENTIONALLY WITHDRAWN].

Schedule “M”

Coordinator Credits

Laurentian has requested to eliminate paragraph two in Article 5.40.4 (a):

~~Effective July 1st, 2017 the current practices (2014-2017) regarding the application of coordinator credits and student supervision shall not change.~~

Laurentian has requested to amend 5.40.3 (b) (v) as follows:

All non-instructional work, **including coordination duties**, with a credit weighting or stipend and a code identifying the nature of the work.

The parties agree that this issue will be dealt with by way of binding arbitration.

Schedule “N”

Course Buyouts

Laurentian requests to amend the following language in Article 5.40.10 (b):

In order to promote scholarly activity, as defined by section B) Scholarly Activity of Article 5.15 – Rights, Responsibilities and Duties of Academics within the University, a Member may have her/his teaching/library service workload altered. Requests for workload reductions as a result of other paid activity shall be considered in accordance with the provisions of Article 7.35 – Voluntary Reduced Workload. However, contract research where the Member is paid a stipend not to exceed twenty thousand dollars (\$20,000) for her/his services may be considered under this provision.

- (b) With compensation to the University: A Member with a regular teaching load may elect to buy-out of up to fifteen (15) credits of teaching load over five (5) years, not to exceed six (6) credits per year, or the equivalent of professional library service in order to concentrate on research activities. It is acknowledged that certain grants may require a reduction in teaching loads exceeding fifteen (15) credits. The buyout must be applied for no later than February 1 of the year preceding the academic year for which it is requested and the Dean/University Librarian shall not unreasonably refuse such request. The Dean/University Librarian shall communicate her/his decision by April 1. A Member taking advantage of this provision will be ineligible to receive an overload course during the same period. The buy-out shall **be charged to the Faculty Member at the total rate of pay for established sessionals plus 12%.** ~~cover the actual cost (including benefits) to replace the teaching/professional library work but shall not exceed the overload or sessional rate of pay as appropriate.~~ A Member shall not be refused such a request for two (2) consecutive years.

The parties agree to have this issue addressed by way of binding arbitration.

Schedule “O”

Low Enrollment Courses

Laurentian requests to amend the following language in Article 5.40.4 and 5.40.7:

The composition of the workload of Members may vary with their discipline, and will take into account the capabilities of the Members, the need to maximize their potential and any obligations placed on them within the University's operations, consistent with the terms of this Collective Agreement. In the assignment of teaching loads, the Deans, in consultation with the Departments/Schools, shall consider not only the number of courses taught by a Member, but the size and type of such courses as well as administrative and other duties. Members' workloads shall also be subject to the following maximum norms for assigned workloads.

- a. The Parties agree that it is mutually beneficial to allow Members to bank or owe teaching credits as outlined below. The banking or owing of teaching credits will be permitted in the following cases:
 - i. The Member proposes to arrange a teaching-reduced or teaching-free term for the purposes of scholarly activity
 - ii. The total credit value of the Member's normal assigned teaching load deviates by not more than six (6) credits from the normal maximum teaching load
 - iii. The Member undertakes academic supervision of an individual student pursuant to Article 5.40.8 (h)
 - iv. Courses assigned as part of the Member's normal workload are cancelled **due to low enrolment**. ~~zero-enrolment~~

5.40.7 Once assigned, workloads shall not be altered except in cases of emergency. If a proposed workload must be altered, such alteration will be taken into consideration in the annual performance evaluation. However, alterations for reasonable program requirements and low enrolment may be made **within 30 days of the start of the term in which the course is being offered**.

If the Dean, for non-emergency reasons, deems it necessary to alter the workload of a Member once it has been assigned, the Dean must obtain the agreement of the Member.

Any alteration to a Member's workload, including any associated overload payments shall be communicated to each Member of the Department/School within five (5) working days after the Member has been formally notified of the change.

Notwithstanding the provisions of this Article, when an assigned course(s) is cancelled because of low enrolment ~~zero-registration~~ in the course(s) there arises an obligation on the part of the Member to undertake additional work in order to maintain fairness and equity within the Department/School. The nature and extent of such work shall be determined in

discussions between the Member, the Chair of the Department/School and the Dean. In the event that the Member was scheduled to receive an overload stipend such a stipend should be reduced appropriately. In the case where additional work assigned is in the form of a course, such course shall be one the Member has taught in the last two (2) years, unless otherwise agreed to by the Member.

The parties agree to have this issue addressed by way of binding arbitration.

Schedule “P”

Additional Matters for Binding Arbitration

The parties agree the following matters will be sent for binding arbitration:

1. Pregnancy, Parental and Adoption Leaves
2. Faculty Personnel Committees
3. Outsourcing
4. Senior Academic Administrators – nomination process
5. Reimbursement for workload of union executives

Schedule “Q”

New Course Preparation

The parties agree to suspend the language in Article 5.40.8 (d) for the duration of this agreement.

Schedule “R”

Thesis Supervision

The parties agree to amend the following language in Article 5.40.8:

- (g) Full-time Members teaching in programs where the preparation of a thesis is mandatory for students have an obligation to participate in the thesis supervision provided that they are qualified to do so. However, the Parties agree that the close working relationship desirable for the successful preparation of a thesis is best achieved under conditions that allow for mutual choice on the part of the Member and the student before entering the supervisor/student relationship.
- (h) ~~Notwithstanding Article 5.40.6 (c) above, w~~ When a Member undertakes academic supervision of an individual student in a program offered by Laurentian University, ~~when such work is over and above the normal workload,~~ such supervisory work shall be recognized upon its successful defence or completion as follows:

Supervisory work	Credit value	Monetary value at \$1,000 / credit
PhD Thesis	3	\$3,000
Master’s Thesis or Advanced Practicum in Social Work	1	\$1,000
PhD or Master’s Research Project, Research Essay, Directed Reading Seminar or Independent Study	½	\$500
Undergraduate Thesis or School of Architecture Master’s Thesis	¼	\$333
Undergraduate Directed Reading Seminar or Independent Study where mandatory	¼	\$250

- (i) The above ~~credits~~ **compensation** may be shared by agreement between two (2) or more Members who have contributed to the thesis or other supervision. In cases of disagreement, the Dean shall arbitrate the proportions.
- (ii) ~~A Member’s teaching credits for individual supervisions as outlined in this paragraph can be accumulated towards a reduction of the Member’s normal teaching load to a maximum of three (3) credits release per academic year. Unused credits can be carried over to subsequent years. The scheduling of the reduction shall be with the mutual agreement of the Member and her/his Dean.~~
- (iii) ~~Alternatively, Members may~~ **will** be paid the ~~credit~~ **monetary** value accumulated for any supervisory work in their professional expenditure account. ~~At any time, Members may transfer the monetary value of the accumulated credits into their professional development expenditure account.~~

- (iv) Once the supervisory work has been completed, it shall be the responsibility of the Member to report such completion to the Dean on a form co-signed by her/his Chair/Director. The Dean's Office shall ~~either register the credit on the Member's workload credit account to be created in Datatel or~~ **arrange for the** transfer ~~the~~ **of** funds to the Member's professional development expenditure account **within 60 days of approval, as the Member directs.**
- (v) Based on existing program requirements, the Dean shall identify those programs which have mandatory supervisory needs as per Article 5.40.8 (g) above. Any Member planning to supervise an individual student in another program ~~for credit~~ under this paragraph needs the prior authorization of the Dean.
- (vi) ~~Research Chairs shall be eligible for the monetary value only in Articles 5.40.8 (h) (i) to 5.40.8 (h) (iv) above.~~

The parties agree that the sole issue of whether the transfer of funds pursuant to paragraph (h)(iv) above will be processed within 30 or 60 days of approval will be addressed by way of binding arbitration.

Schedule “S”

Expedited Mediation and Arbitration Processes

The parties agree on the following letter of understanding, which would expire on June 30, 2025:

EXPEDITED MED-ARBITRATION

1. The parties may be represented by legal counsel for the expedited med-arbitration dates;
2. The parties will agree to up to four (4) dates for expedited med-arbitration for each year of the term of the Collective Agreement;
3. At least sixty (60) days prior to each expedited med-arbitration date the parties will agree on the grievances to be dealt with on that day;
4. The parties will schedule up to three (3) grievances to be heard on each expedited med-arbitration date.
5. Forty-five (45) days prior to each expedited med-arbitration date a party may make requests for production of documents from the other party. Disclosure will be provided within fifteen (15) days.
6. Each grievance proceeding to expedited med-arbitration will be heard and determined on the basis of written briefs prepared by the parties as supplemented by brief oral arguments.
7. The parties will exchange written briefs at least fourteen (14) days in advance of the expedited med-arbitration.
8. The parties' written briefs for each expedited med-arbitration will contain a summary of the facts the party will rely on, a copy of all documents that the party will rely on in support of its case, as well a written argument in summary form and a copy of all cases on which the party relies. The briefs will be sent to the med-arbitrator seven (7) days in advance of the med-arbitration date.
9. In the event that a party does not deliver its written brief within the time required under paragraph 7 above, or with the content required under paragraph 7 above, the other party may, at its sole discretion cancel the med-arbitration date.
10. Any procedural disputes shall be resolved by the arbitrator assigned to the med-arbitration date in question on an expedited basis.
11. Awards arising out of this process are non-precedential and may not be referred to or relied upon by the Parties in any other proceedings unless mutually agreed otherwise. Negotiated settlements may or may not be precedential as agreed by the parties.
12. The med-arbitration will be heard by the following Arbitrators on a rotational basis: William Kaplan, Sheri Price, Elizabeth McIntyre and Brian Sheehan.

Schedule “T”

Existing Practices

[INTENTIONALLY WITHDRAWN]

Schedule “X”

Transparency and Oversight

The parties agree on the following actions to be taken by the University in response to the Union’s concerns on transparency and oversight:

1. Laurentian will jointly propose that the *Laurentian University of Sudbury Act* be amended to permit up to 2 faculty to be voting members of the Board as soon as practicable;
2. Laurentian will undertake a governance review, including with the assistance of an experienced external advisor;
3. Legislative amendments to permit (1) will be included as part of any Plan of Arrangement.

Schedule “Y”

The parties agree to the following changes:

Definitions- Article 1.30

(j) University Librarian shall mean the University Librarian duly appointed or the University Librarian’s designate ~~the officer in charge of the University Library and Archives.~~

Professional Practice for Librarians and Archivists shall mean contribution to the selection, development and implementation of strategic directions, priorities, policies, procedures and standards for the resources and services offered by the Library and the Archives.

Academic Workload- 5.40

5.40.3 (c) Establishing the Professional Practice Component of Individual Workloads – Librarians

(a) In considering the professional practice component of individual workloads, relevant factors include the following, as applicable:

1. Development, management and evaluation of information resource collections;
2. Provision of specialized and general reference services;
3. Appraisal, acquisition, control, storage, preservation and conservation of information resources and collections;
4. Management of material library resources;
5. Selection, development, implementation and management of information systems designed to enable access to library services and resources, build digital collections, and facilitate scholarly communication;
6. Provision of information literacy and curriculum support including programming, collaboration, instruction and teaching;
7. Faculty outreach and liaison, including participation in research and support for scholarly communication;
8. Evaluation, measurement and analysis of user needs and library services and resources;
9. Research services, extension, and other activities related to programs at the University; and
10. Any other relevant activities.

Schedule “Z”

The parties agree that the Retiree Health Benefits Plan (RHBP) will cease to exist and all Collective Agreement references will be eliminated. Faculty members shall be entitled to file claims as part of any CCAA claims process for the amount of contributions made by the faculty member to the RHBP.

Schedule “AA”

RECALL RIGHTS

The parties agree to amend the following language in articles 10.10.18 (b) and 10.15.22 (b):

a) Full-time Members

Any full-time Member whose employment is terminated through the insolvency proceedings in Court file CV- 21-656040-00CL will have the rights provided in Article 10.10 ~~10.10.18(b)~~ and shall be granted recall rights to any new academic positions created and any academic vacancies which arise at the University in accordance with the conditions, processes and timeframes set out in Article 10.10.18(b) as amended below.

(b) Members who have not reached the normal retirement age shall be granted, in order of seniority, first right of refusal to all academic vacancies within Laurentian University for which they have academic competences as judged by the Vice President, Academic and Provost in consultation with the Department/School to which the individual is to be appointed unless the Employer can substantiate that the post cannot be filled by the member or by a re-arrangement of the duties of other members of the same academic unit for a period of three (3) years for a Member on a three (3) year probationary appointment and five (5) years for a tenured Member from the effective date of termination. Individuals who accept such positions shall return to the University at the rank they held when their appointments were terminated, with full recognition for years of service at Laurentian. Disputes arising out of these recall procedures are referable to the grievance and arbitration process set out in this Collective Agreement.

Individuals who are recalled pursuant to this Article shall have up to thirty (30) days to accept such recall offer, and shall terminate their alternative employment and take up the offered post, as soon as they are contractually able to do so but in no instance later than six (6) months after accepting the recall offer.

b) Sessional Members

Sessional members shall have the right to remain on the roster and exercise roster, seniority and establishment rights for any courses they have earned seniority or establishment rights with respect to, or which are substantially similar to courses for which they earned seniority and establishment rights. Sessional members shall have the right to exercise roster, seniority and establishment rights in any Department/School which offers any such courses regardless of whether they earned their seniority and establishment rights in the Department or School now offering such courses.

Article 4.15.8 shall not apply.

Despite Article 4.15.6, for the duration of the renewed Collective Agreement, where no other member has establishment rights, establishment rights shall not be specific to the medium, location and language of course for all members who have earned establishment rights prior to April 30, 2021.

Notice of all sessional contracts to be filled will be provided on a University wide basis.

Schedule “BB”

LUFA agrees to the following:

- a) To withdraw any claim for monetary relief in the Unfair Labour Practice complaint.
- b) To withdraw the Judicial Review Application.

**Schedule “CC”
Counsellors**

The parties agree on the following actions to be taken by the University in response to the Union’s concerns regarding Counsellors:

Counsellors

Upon the completion of negotiations of a first collective agreement for the newly certified Counsellors, the University will enter into a Memorandum of Settlement respecting such negotiations, and attaching the resulting agreement to the LUFA Collective Agreement.

The parties shall make such amendments to the terms of the LUFA Collective Agreement as are required to give effect to the terms of the Memorandum of Settlement respecting the Counsellors bargaining unit.

Article 2.15.1 will be amended to add as a 4th paragraph that the bargaining unit includes:

- All persons employed by Laurentian University in the job classification of Counsellors, save and except, managers and persons above the rank of manager and for persons any bargaining agent held bargaining rights as of April 9, 2020.

Schedule “DD”

Article 9.20 - Term of Office of Chairs/Directors

The parties agree to changes to the following language in article 9.20:

9.20.2

Should Chairs/Directors not be able to carry out their duties for ~~four (4)~~ **six (6)** months or less, the Chairs/Directors shall make provision for the take-over of their duties in consultation with the Department/School and Dean/University Librarian.

9.20.3

If the absence is for a period of longer than ~~four (4)~~ **six (6)** months, the Chairs/Directors shall relinquish her/his title and a new Chair/Director shall be selected according to the procedures set out in Article 9.15 – Selection of Chairs/Directors.

The parties agree to the following accepted editorial changes:

ACCEPTED

ARTICLE 1.30 – DEFINITIONS

(z) Clinician shall mean a Member hitherto a Member of the Bargaining Unit designated by the May 6, 2018 OLRB certificate.

ARTICLE 2.15 – RECOGNITION OF THE BARGAINING UNIT

2.15.1 Laurentian University Faculty Association represents:

All Members of faculty, including professional librarians and archivists employed by Laurentian University of Sudbury in the Regional Municipality of Greater Sudbury;

All Members of faculty employed by Laurentian University to teach courses for degree credit at locations outside the Regional Municipality of Greater Sudbury; and

All persons employed by Laurentian University through the Centre for Continuing Education (CCE) to conduct instruction at off-campus centres located outside the Regional Municipality of Greater Sudbury or through distance Education Delivery modes.

All persons employed by Laurentian University as Clinical Teachers, Clinical Instructors, Clinical Educators and Clinical Advisors ~~save and except administrators at or above the rank of Director or academic staff at or above the rank of Dean.~~

~~All persons employed by Laurentian University as Clinicians save and except administrators at or above the rank of Director or academic staff at or above the rank of Dean and persons who are members of another bargaining unit as of the date of certification.~~ Clarity Note: The parties agree that clinicians employed in the University's Health Clinic and/or the Department of Student Life are not included in the bargaining unit.

Save and Except:

Administrative Staff, at or above the rank of Director;

Academic Staff, at or above the rank of Associate Dean;

Registrar, Special Advisor to the President, Director of Professional Relations, Translators, University Librarian, and Director, Office of Research Services;

Members of the Board of Governors;

Athletic Coaches as part of their duties to teach degree credit activity courses;

Full-Time Faculty Members employed by Laurentian University for a period of not more than one year while on leave from another university;

Persons employed to teach courses intended primarily for students who are not registered in a degree credit program;

Persons assigned responsibility for teaching portions of courses coordinated by regular faculty Members, such as Teaching Assistants, Field Consultants in Social Work, Laboratory Technicians, or Outdoor School Instructors.

ARTICLE 2.20 – EMPLOYMENT OF NON-MEMBERS

- 2.20.1 The Employer agrees that, except as otherwise provided for in this Article, it will not employ Non-Members to teach ~~or provide clinical care~~ in the programs of/offer professional library service in the University. Membership in the Bargaining Unit is defined in Article 2.15 – Recognition of the Bargaining Unit.

2.35 – MODIFICATIONS TO THE LEGAL STATUS OF THE UNIVERSITY

2.35.2 *Amalgamation, Consolidation, Merger or Expansion of The University*

(a) In the event of a merger or amalgamation or a transfer of jurisdiction, the provisions of the *Labour Relations Act, 1995* of Ontario shall apply, particularly sections ~~62~~ 68 and ~~63~~ 69.

(b) This Collective Agreement shall bind the transferees or assignees of the University or of the Union.

ARTICLE 2.40 – RIGHTS AND PRIVILEGES OF THE UNION

- 2.40.8 The President of the Union, or someone designated by the ~~LUFA Executive President of the Union~~, and a second Member designated by the ~~LUFA Executive President of the Union~~, shall continue to be non-voting Members of the Board of Governors.
- 2.40.9 The President of the Union, or someone designated by the ~~LUFA Executive President of the Union~~, shall continue to be a non-voting Member of the Finance Committee of the Board of Governors.
- 2.40.12 The President of the Union or someone designated by ~~LUFA Executive~~ ~~the President~~, and two (2) additional Members designated by the ~~LUFA Executive President of the Union~~, shall continue to be voting Members of the University Pension Committee. Given the importance of pensions, on substantive matters, the Union's Board has the right to ratify the recommendations of its representatives.

2.50 INFORMATION ITEMS

(b) In October, February, and May of each year, an electronic list showing the name, salary, seniority status, establishment status, and courses taught of each Sessional Member ~~and each Clinician~~ who is employed during the current academic session.

(k) A copy of the letters of appointment of all Sessional Members ~~and each Clinician~~ who accept employment with the University. Such letters of appointment shall be supplied to the Union within fifteen (15) days of receipt of said executed letters of appointment and a copy of all letters cancelling sessional contracts.

ARTICLE 2.55 – CORRESPONDENCE

- 2.55.1 In conformity with section ~~443~~ 122 of the Ontario *Labour Relations Act*, 1995, except where otherwise expressly provided in this Collective Agreement, notices required to be given under the provisions of this Collective Agreement shall be in writing and shall be sufficient either if addressed to the appropriate recipient and sent by campus mail or Canada Post, or if delivered to the appropriate recipient personally with a signed receipt required.

ARTICLE 3.20 – WORKING ENVIRONMENT

- 3.20.1 The Employer acknowledges its responsibility to provide and maintain facilities, services and general working conditions, which support the effective discharge by full-time Members of their responsibilities as specified in Article 5.15 – Rights, Responsibilities and Duties of Academics. The Employer will determine by consideration of the financial resources of the University, the manner in which and the level at which facilities and services are provided to Members. Additionally, the Employer will provide, in a fair and equitable manner, at least a securable individual office for each full-time Member and securable group offices exclusively for Sessional Members, ergonomically appropriate office furniture, appropriate lighting and ventilation, and will maintain reasonable levels of working space, secretarial and other support services, including telephones, computing, printing, duplicating, library services, technical services, Department/School resources, teaching and research assistance and laboratory space if required.

The Employer shall provide individual office space for newly hired Members on the start date of their appointment.

The Employer shall comply with its obligations regarding thermal comfort and air quality in the workplace, including offices and classrooms, in accordance with the Occupational Health and Safety Act.

~~The Employer shall provide the Full Time Faculty Members at Laurentian in Barrie reimbursement, on production of receipts, for the cost of a membership at the University of Toronto Libraries for each academic year.~~

All moving expenses to relocate Members within the University shall be paid by the Employer.

- 3.20.5 Member accounts may be accessed only with the authorization of the Chief Information Officer (CIO).

The Chief Information Officer (CIO) shall authorize access to a Member's accounts on the network without the Member's permission only in the following circumstances:

- (a) when immediate action is necessary to protect the integrity of the computer network
- (b) when subject to a search by law enforcement agencies acting under the order of a court of appropriate jurisdiction.

Where possible, the Member will be notified prior to the Member's accounts being accessed, and if prior notice proves impossible, then notice will be given within one (1) calendar day.

Each time the Chief Information Officer (CIO) authorizes access to a Member's accounts it shall be recorded in a log maintained for this purpose. The log shall record who accessed the Member's accounts, when they were accessed and the purpose for the access. Members have a right to view all log entries dealing with their Member accounts. Upon request, the Employer will provide the Union with a report indicating which and when Member accounts were accessed and the purpose for the access.

The Union acknowledges that no authorization by the Chief Information Officer ("CIO") is required where members grant permission for the University to access their accounts.

The University agrees that it will provide notice to the Union at the same time it provides notice to a member under Article 3.20.5.

The University will advise the Union of significant security breaches which compromise the integrity of Union members' accounts and data as soon as when doing so would not compromise a University investigation and incident response process, which will be conducted in a timely manner. Nothing in this paragraph will prejudice any right of a member to be informed in a timely manner of any security breach which impacts the member's privacy rights.

The University will advise the Union of all IT service disruptions and degradations which are of significance to LUFA members in light of the number of individuals affected, likelihood of recurrence and the impact of the disruption or degradation.

ARTICLE 4.55 – RATES OF PAY FOR SESSIONAL LECTURERS ON AND OFF CAMPUS

Where required by settlement of policy grievance 2018-32 change all references to "4%" for vacation pay to "6%" and add "Establishment" to table titles"

ARTICLE 4.60 – PHYSICAL EDUCATION FACILITIES FOR SESSIONAL MEMBERS

- 4.60.2 ~~Sessional Members teaching at the Barrie campus will be reimbursed by the University up to two hundred and fifty dollars (\$250) for an individual gym membership, or five hundred dollars (\$500) for a family gym membership, upon production of receipts.~~

4.95- CLINICIANS

The following articles of the Collective Agreement shall also apply to the part-time Clinicians: Article 1, Article 2, Article 3; with the exception of 3.10, Article 4.45, Article 4.50, Article 4.60.1 Article 4.65 (as amended), Article 4.70 (as amended), Article 5.25, Article 5.35, Article 5.70, Article 5.75 (as amended), Article 7.10, Article 7.45, Article 7.50, Article 7.70, Article 8.65, Article 8.70, Article 8.75, Article 11, Article 12, Article 13.

With the exception of Article 4, the parties agree that the above noted Articles will apply to Full Time Clinicians. In addition the parties agree that the following Articles shall also apply: Article 5.85, 5.90, 6.45, 7.15, 7.55, 7.60, 7.65, 8.45, 8.50, 8.60, 8.80 and 8.85).

All other terms of employment will be negotiated at the time a full time position is created. Any disputes will be resolved as per the Minutes of Settlement signed on June 10, 2020.

4.95.1 DEFINITION

Clinical members are licensed health care professionals. Clinicians shall be defined as regulated health professionals who are assigned the principal responsibility for delivering patient care.

4.95.2 RIGHTS, RESPONSIBILITIES AND DUTIES OF CLINICIANS

Professional Freedom

Each Clinician must be free to pursue excellence in the professional's field of competence, must be encouraged to contribute to the intellectual life of the School and University and broader communities, and must be encouraged to contribute to the intellectual life of the professional groups to which the Clinician belongs.

Duties

The Clinical members of the bargaining unit have rights, duties and responsibilities, which derive from their positions as Clinicians working within the University community which reflect the reasonable expectations of the Members, the University and broader community and the contractual expectations of the Employer. Nothing in this Article is meant to include academic oversight which is dealt with through Faculty members.

The Clinician's duties will be made up of some combination of the following as identified in the letter of appointment.

- a) to conduct assessments, diagnosis, intervention, and consultative services;
- b) to collaborate with the multidisciplinary team (for example, teacher, school principal, other allied health professionals, etc.) as required.
- c) to supervise students who are completing practicum or internship work within the clinic. In performing this duty, members shall have academic collegial rights provided to Sessionals, including but not limited to academic freedom. The process followed for these appointment shall follow normal processes in the CA for appointment of supervisory work.

Clinic Coordination

One Clinician may be appointed as the Clinic Coordinator. The Clinical Coordinator shall be generally responsible for overseeing the clinic operations in collaboration with the Department. This will include reporting to the Department Chair on the clinical budget, coordination of the clinic's schedule, recruitment and intake of potential clients, oversight of the signed contractual agreements, coordination of clinical assistants, ensure proper and compliant record keeping, submit an annual reports, where required, to the Privacy Commissioner, assist with the coordination of the internships placements and practicums in collaboration with the relevant Departmental coordinators, develop and maintain clinic guides and policies, provide recommendations to the academic department on relevant aspects of the

curriculum. The letter of appointment shall include the specific hours related to these duties. Seniority rights shall apply to the appointment of the Clinic Coordinator.

Proof of qualification and professional obligations

Prior to beginning work, Clinicians shall be required to provide the following:

- a) a photocopy of his/her professional designation with the relevant college or body
- b) a recent (within the past year) Criminal Reference Verification (Vulnerable Sector). The employer agrees to reimburse the cost of producing this document.
- c) The incumbent must hold a current professional designation.
- d) Each year thereafter, the Clinician will be required to sign a declaration stating that he/she is not under investigation for any suspicion of criminal wrong doing and has not been convicted on any offence, since having initially submitted a completed Vulnerable Sector Criminal Record Check.

Confidentiality

The Clinician shall fulfill all duties in accordance with laws, rules and regulations set out by the Personal Health Information Protection Act (PHIPA) and the by the relevant regulatory body or College.

Other Employment.

While the University recognizes that a Clinician may wish to supplement her/his income with outside work, the Clinician agrees:

- to recognize that the Clinic's client waitlist belongs to the Clinic
- to not solicit clients from the Clinic's active caseload nor the waitlist
- agree to provide services via her/his own private practice only to clients who contact her/him directly via her/his private practice contact information
- not to represent herself/himself as an employee of the Clinic when providing services via her/his own practice
- inform prospective clients who contact him/her via her/him private practice contact information that the Clinic is also an option for them

4.95.3 WORKING ENVIRONMENT

Clinic space

The Clinic shall be provided spaces consistent with Article 3.20.6.

The following securable spaces are allocated for clinic use: AR-217 A, AR-217 B, AR-217 D, AR-205 B, and AR-200. The clinic space shall not be entered except by authorized University Staff.

Should the University be required to relocate the clinical spaces, it shall be done in consultation with the Union.

Office Space

Part-time Clinicians shall be provided an office consistent with the sessional requirement in Article 3.20.1.

The Clinic Coordinator shall have access to an office space consistent with article 3.20.6 to support the effective discharge of their duties.

The Employer shall ensure that there is access to private and secure cabinets.

Materials

The Administration will provide the Clinicians with the clinical materials necessary to carry out the assigned duties. This shall include access to computers.

The clinic shall be provided with four (4) computers/iPads. The computers or iPads shall be replaced consistent with the terms of Article 3.20.

The Administration/Clinic's property and materials shall only be used for work performed to fulfill their contractual obligations and shall not be used for external purposes.

4.95.4 APPOINTMENT PROCESS- PART TIME CLINICIANS

Hiring Process

Appointments of Clinicians are by the Dean on the written recommendation of the majority of the Department concerned by the majority of a committee consisting of no fewer than three (3) Members after scheduled minuted meeting(s). Where the Dean decides not to follow the recommendation of the Department/School she/he will provide written reasons for her/his decision.

The Department shall provide recommendation to the Dean two weeks in advance of the contract offer dates.

First right of refusal will be determined by the Seniority list. Seniority shall provide first right of refusal on the first 20 hours per week. If once the Seniority list has been exhausted, any additional hours will be offered again to members on the Seniority list to a maximum of 33.75 hours per week. If once this process has been completed and there are remaining hours which have not been assigned, the Department may post externally.

Prior to posting externally the Department shall provide written reasons for the decision to the Dean with a copy to the Union.

Approval to advertise externally rests with the Dean and may not commence until the completion of the internal process.

If the process above, can not be implemented due to emergency reasons, such as a new community service contract, replacement of a unexpected leave, etc the timeline above shall be waived. Seniority provisions will be respected.

Letter of Appointment

The parties agree that Offers of Appointment shall be sent by email to Clinicians by the following dates: by July 1st for Fall term, November 1st for Winter term and February 1st for Spring/Summer term.

The Letter of appointment shall specify the contract duration, the minimum and maximum number of weekly hours, the required work days for student placements, the terms and conditions of employment including salary, benefit, professional development expenditure, Seniority, and cancellation conditions. The schedule of services will be determined by the Clinician in consultation with Department Chair and if required, the

Clinic Coordinator.

A link to the Current Collective Agreement shall be sent with every offer of employment. The Employer shall also issue at no charge, a hard copy to individual Members upon request by the Member. A copy of each accepted Offer of Appointment shall be sent to the Union within fifteen (15) days of the Employer's receipt.

Contract Period

Contracts shall be issued on a 4, 8 or 12-month basis.

Cancellations

Signed contracts which are cancelled in advance of their specified end date, will be subject to the appropriate statutory notice. Once a contract is issued, if cancelled, the member shall be paid a \$500 cancellation fee. 10

Full-Time Clinicians

Contract positions for full time Clinicians shall be dealt with in accordance with the process and the non-academic terms in Article 5.20.11 (e), 5.20.12-5.20.17.

4.95.5 BI-WEEKLY REPORTS AND TIMESHEETS

Clinicians shall maintain detailed and accurate records for time spent providing the Services and to submit these records to the Clinic Coordinator and Department Chair in the form of bi-weekly timesheets and day to day statistics.

Time sheets shall be approved by the Department Chair prior to being submitted to financial services.

4.95.6 SENIORITY

Clinicians who have received 3 contracts within a 6-year period will be deemed to have Seniority, and shall have priority of hire over external candidates. Available contracts will first be offered to individuals with the most years of service. Where two members have equal years of service, the member with the most cumulative months of service be awarded the contract.

Individuals who are on an approved leave will continue to accrue active service time for the duration of their approved leave. This excludes individuals who are on a leave of absence without pay.

Year of service shall mean any year in which a member was employed.

Clinicians may request leave from the Seniority list for up to (2) consecutive years. Such application shall be made annually to the Dean and shall not be unreasonably refused.

4.95.7 TUITION EXEMPTION FOR PART TIME CLINICIANS

Clinicians shall be entitled to exemption from tuition fees for credit courses taken at Laurentian University. The exemption shall be 3 credits for 175 hours of work. If during a contract, the Clinician works more or less than 175 hours, their tuition exemption entitlement shall be pro-rated based on the above

equivalency. Credit accrual and application shall be applied in accordance with Article 4.65.1.

4.95.8 PROFESSIONAL DEVELOPMENT EXPENDITURE FOR PART TIME CLINICIANS

Each Sessional Clinician shall receive the amount of professional development specified in Article 4.70 for each academic term of employment; they will have carry forward and transfer rights as outlined therein.

4.95.9 ANNUAL REVIEW FOR PART-TIME CLINICIANS

Clinicians shall submit to the Dean a report within 30 days of completion of their contract which provides a broad and general overview of the clinical services they provided during their employment. Clinicians will also be required to provide an up to date copy of their curriculum vitae. The timelines and process for the annual report shall be applied in accordance with Article 4.35.

4.95.10 DISCIPLINE

Article 5.75 shall apply to part-time Clinicians as amended below:

5.75.5 (c) The suspension without pay; the reduction in pay shall be computed as the average salary over the previous 4 weeks.

5.75.5 (e) removal of seniority or dismissal of a member

ARTICLE 5.40 – ACADEMIC WORKLOAD

5.40.1 The academic workload shall be assigned in a fair and equitable manner. To help ensure this goal, each Member of a Department/School shall receive a copy of the Chair's/Director's recommendations to the Dean/University Librarian on the Member's own workload and a summary of the recommendations on all other Members in the Department/School, including any recommendations for overloads, prior to the recommendations being forwarded to the Dean/University Librarian. Each Member shall receive by April 1 a copy of the Dean's/University Librarian's decision on these recommendations. ~~When Units make workload recommendations, regular workload will be determined prior to considering overload requests. The Deans will ensure that the collective agreement, including this process, is respected~~

5.40.4 (d) The Parties agree that it is mutually beneficial to allow Members to bank or owe teaching credits as outlined below. The banking or owing of teaching credits will be permitted in the following cases:

- I. The Member proposes to arrange a teaching-reduced or teaching-free term for the purposes of scholarly activity
- II. The total credit value of the Member's normal assigned teaching load deviates by not more than six (6) credits from the normal maximum teaching load
- III. The Member undertakes academic supervision of an individual student pursuant to Article 5.40.8 (h)
- IV. Courses assigned as part of the Member's normal workload are cancelled because of zero enrolment

Members shall not normally be permitted to bank or owe more than six (6) teaching credits at any given time. Members with banked teaching credits may request a maximum of six (6) credits release per academic year. The scheduling of the reduction shall be with the mutual agreement of the Member and the Dean. No remuneration for banked teaching credits will be provided in lieu of release time. If the Member's Department/School agrees with the Member's proposal to arrange a teaching-reduced or teaching-free term for the purposes of scholarly activity and recommends it to the Dean for approval, the Dean shall not unreasonably refuse such a recommendation. Members owing three (3) or more teaching credits shall undertake to teach a course above the normal teaching load without remuneration within three (3) years of the end of the term during which the total number of credits owing reached three (3).

In the event that the Member leaves his/her employment due to retirement, resignation, death or dismissal, the Member shall not be entitled to remuneration for any banked teaching credits, nor shall he/she be required to repay any teaching credits owing at the time of the termination of employment.

When a member was scheduled to teach extra credits in a semester to make up credits owing from an earlier semester and the member is on sick leave for that term, the member will be paid full sick leave during that semester, but will still owe the credits in question and will make those credits by teaching extra credits in a semester following her/his return from sick leave.

When a member was scheduled to teach fewer credits in a semester to compensate for credits banked from an earlier semester and the member is on sick leave for that term, the member will be paid full sick leave during that semester, but will still maintain the banked credits in question to be used to reduce her/his teaching load in a semester following her/his return from sick leave.

The semester in which the owed or banked credits are to be used will be determined in accordance with the processes in the Collective Agreement, with appropriate adjustments to the time in which such credits must be used in order to reflect the member's sick leave.

ARTICLE 5.70 – PERSONNEL FILES

5.70.1 Official personnel files of a Member shall be kept by the ~~Office of the Vice-President, Academic and Provost~~ ~~appropriate Dean/University Librarian~~, with copy in the office of the ~~Dean/University Librarian~~ **Vice-President, Academic and Provost**. The Employer agrees not to use any unofficial personnel information that is not maintained in accordance with this Article for any official purposes including disciplinary measures. There shall be two (2) types of files for Members, active files and archival files. Active files shall contain only information allowed under this Article. Archival files shall contain material which has been banned for use in subsequent proceedings as in Articles 5.70.5 to 5.70.9 below but which the University requires for matters other than those related to this Collective Agreement.

5.70.2 Members shall have the right to examine all of their personnel files during normal business hours, after notice in writing, in the presence of the Dean/University Librarian or a person authorised by the Dean/University Librarian. Material in the files which is to be held confidential according to the provisions of this Collective Agreement will be removed from the files prior to their inspection by the Member. However, an inventory of this confidential material, certified by **Office of**

~~the Vice-President, Academic and Provost~~ ~~the Dean/University Librarian~~, will be provided to the Member, such inventory shall identify all confidential documents by authorship (if appropriate), date and general subject matter only.

5.70.14 In the case of an ~~appeal~~ ~~arbitration~~ against dismissal, the contents of the official personnel file shall be made available to the Member as a true copy if and when the formal grievance procedure has been initiated using the same protection of confidentiality as stated in Article 5.70.11 above.

ARTICLE 9.10 – DUTIES OF CHAIRS/DIRECTORS

9.10.2 Their duties are the following and shall be carried out in accordance with good administrative practices:

- (e) To prepare budgetary recommendations and administer the annual budget for the Department/School ~~and the clinic~~ in conjunction with the Dean/University Librarian and the appropriate internal body.
- (f) To ensure the proper use and maintenance of space and equipment allocated to the Department/School ~~and the clinic~~.
- (j) To ensure the Department/School maintains ~~a seniority list for clinicians~~ ~~and Error! Bookmark not defined.~~ a roster of sessional Members pursuant to Article 4.15.2.

Grievance of Appointment Decision of Sessional Members

4.15.19 All applicants from the roster shall be notified of the appointment decision. **Notification will occur on or before July 31 for the Fall Term, October 31 for the Winter Term and February 15 for the Spring/Summer Term. For courses that are filled beyond the timelines stated in 4.15.16, the applicantsmemberperson the roster shall be notified within 30 days of appointment.** In the event that an unsuccessful applicant for a sessional teaching position believes that someone else was appointed to the position in violation of the provisions of this Collective Agreement, she/he may request within one (1) month of the notification, a review of the appointment with the view of establishing whether the Employer acted in accordance with the provisions of this Collective Agreement when not appointing the unsuccessful applicant.⁶

ADMIN: The University counters the Union's editorial proposal in article 4.15.19 as modified above.

LUFA: The Employer's counter is not purely editorial and deviates from the order from Mr. Kaplan. **However, LUFA agrees to the employer's proposal.**

ORDER FROM MR. KAPLAN

The Union has grieved the University's failure in some circumstances to notify members on the roster of the appointment decision for sessional contracts as required in Article 4.15.19. The University concedes that not all appointment decisions have been provided to members on the roster. Article 4.15.5 reads:

4.15.19 All applicants from the roster shall be notified of the appointment decision.

2. I direct the University to have the appropriate Dean instruct the applicable Departments/Schools **to notify members on the roster** of the appointment decision for sessional contracts as required in Article 4.15.19. For the purpose of this article, notification will occur on or before July 31 for the Fall Term, October 31 for the Winter Term and February 15 for the Spring/Summer Term. For courses that are filled beyond the timelines stated in 4.15.16, the roster shall be notified within 30 days of appointment.

2. This award is prospective and without prejudice to either parties' position on any **outstanding grievance or breach up until today's date.**

⁶Order from Mr. Kaplan 17 December Grievance 2019-16 – added “members on”

ARTICLE 8.20 – PROCEDURES FOR THE AWARD/DENIAL OF A PROGRESS-THROUGH-THE-RANKS INCREMENT

- 8.20.4 The Dean/University Librarian shall examine the annual reports as per Article 5.45 – Annual Report for Members, and make such other inquiries, as she/he deems appropriate. Where the Dean/University Librarian has concerns about the Member's performance with respect to the awarding of the PTR increment, the Dean/University Librarian shall first issue a written warning, stating the basis of the concerns, and what needs to be done to remedy them. This warning will be ~~clearly spelled out~~⁷ **clearly spelled out** ~~issued~~ in a separate letter. The Member shall be awarded the PTR increment for that year and shall indicate in the following year's annual report what measures the Member has taken to address those concerns. If in the following year, the Dean/University Librarian is not satisfied that the concerns have been addressed by the Member and that the Member does not show active participation and/or satisfactory performance in all three (3) areas, A), B), and C) (within the provisions of Article 5.15 – Rights, Responsibilities and Duties of Academics) or in the subset of those areas for which the Member's terms of employment are relevant, the Dean/University Librarian shall communicate to the Member the possibility that the PTR will be denied. The Dean/University Librarian shall specify the reasons and provide the evidence giving rise to this possibility. The Dean/University Librarian shall invite the Member to a meeting in order to address the concerns. The Dean/University Librarian shall inform the Union of the upcoming meeting and shall inform the Member of her/his right to be accompanied by a Union representative. The review shall include a consideration of at least the three (3) previous annual reports, if available, and a meeting with the Member. The Dean/University Librarian shall invite the Member to submit relevant materials.

ADMIN: The University counters the Union's editorial proposal in article 8.20.4 as modified below:

LUFA: The changes are purely editorial. Language in settlement clearly states it will be spelled out. However, LUFA agrees to the employer's proposal.

Settlement Paragraph 3- 2015-05

The administration acknowledges that it was improper to deny PTR's without following the process outlined in Article 8.20.4 and that a written statement of concerns issued in an annual assessment does not constitute a warning as per Article 8.20.4 and that **such warning will be clearly spelled out in a separate letter;**

⁷Grievance Settlement 2015-05, 2016-20, 2016-21 signed 16 December, 2016.

Indigenous Knowledge

Indigenous Knowledge

5.15.3

Members have responsibilities relating to items A), B) and C) and are expected to participate actively in items A), B) and C), although not necessarily in all three (3) in any one (1) given year. A Member's responsibilities related to item A) shall consist of those teaching or library duties which are assigned by the Dean/University Librarian as per Article 5.40 – Academic Workload. A Member's responsibilities related to items B) and C) are inherent in a Member's status as an academic and thus flow naturally therefrom. Certain specific duties related to item B) and C) may also be assigned by the Dean/University Librarian on an *ad hoc* basis in order to ensure a good and proper functioning of the University. A Member's responsibilities relating to item D), E) and F) are undertaken voluntarily by the Member.

The parties recognize that acknowledging Indigenous knowledge and ways of knowing requires applying the following definition of Indigenous knowledge for the application of rights, duties, responsibilities and assessment of members.

Indigenous knowledge, in accordance with the 2018 Tri-Council Policy Statement, is rarely acquired through written documents, but is, rather, a worldview adopted through living, listening and learning in the ancestral languages and within the contexts of living on the land. Engagement with Elders and other knowledge holders is acknowledged as valued and vital to knowledge transmission within the context of Indigenous Peoples living in place. Both Indigenous knowledge content and processes of knowledge transmission are, thus, embedded in the performance of living, including storytelling, ceremonies, living on the land, the use of natural resources and medicine plants, arts and crafts, singing and dancing, as well as engagement with the more than human world.

5.15.22

Scholarly activity may involve, although not necessarily be limited to, activities of the type set out in the following list. It is understood that this list does not imply an order of priority. It is also understood that the following forms of scholarly activity are not necessarily to be given equal weight and application for each discipline when a Member is being evaluated for an annual increment, merit increment, tenure or promotion. In each case the Member must demonstrate that the activity is of good quality and is consistent with the contribution to knowledge described in Article 5.15.20 above.

- (a) The writing or editing and publication of books, textbooks, journals and of Articles, which may be externally reviewed.
- (b) The earning of additional appropriate academic and/or professional qualifications.
- (c) Research carried out on research contracts.
- (d) The writing and/or publication of case studies.

- (e) The development of teaching/library materials, of an innovative sort which have a wider application than the Member's own teaching/library activities.
- (f) The compilation and publication of scholarly bibliographies, or literary work.
- (g) The translation and publication of scholarly or literary work.
- (h) Literary and artistic works, including recordings and public performances.
- (i) Demonstrated leadership in the area of professional education, including workshops.
- (j) Creative application of existing knowledge through such activities as consulting or workshops.
- (k) Research carried out using traditional/Indigenous knowledge and the practical applications or dissemination of such research generally, or specifically through engagement with Indigenous communities.
- (l) Development and publication of new teaching strategies.
- (m) Attending and/or presenting at conferences.
- (n) Production of images including but not limited to photography and architectural works.
- (o) Indigenous Scholarship**

Indigenous Scholarship, in accordance with the 2018 Tri-Council Policy Statement, is defined as research in any field or discipline that is conducted by, grounded in, or engaged with, First Nations, Inuit, Métis or other Indigenous nations, communities, societies or individuals, and their wisdom, cultures, experiences or knowledge systems, as expressed in their dynamic forms, past and present. Indigenous research can embrace the intellectual, physical, emotional and/or spiritual dimensions of knowledge in creative and interconnected relationships with people, places and the natural environment.

Whatever the methodologies or perspectives that apply in a given context, researchers who conduct Indigenous research, whether they are Indigenous or non-Indigenous themselves, commit to respectful relationships with all Indigenous peoples and communities.

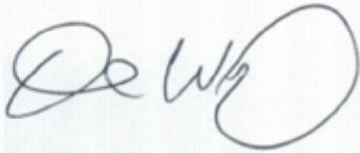
Research by and with Indigenous peoples and communities emphasizes and values their existing strengths, assets and knowledge systems.

In addition to those activities listed above (a-n), Indigenous Scholarship is recognized as a primary category of scholarly contribution and includes but is not limited to:

- (i) Development and sharing of Indigenous knowledge and languages.

- (ii) Engagement with culturally appropriate research and publication venues.
- (iii) Lived experiences within Aboriginal communities.
- (iv) Incorporation of Indigenous knowledge systems.
- (v) Participation in traditional ceremonies.

SIGNED OFF ON October 2, 2020
Date



David Wright
For the Laurentian University Faculty Association



Michael Kennedy
For Laurentian University of Sudbury

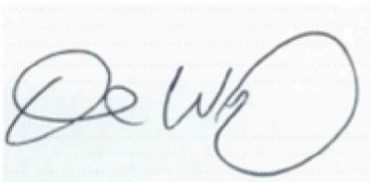
Process for Withdrawal of Seniority of Sessional Members (Article 4.40)

The parties agree to delete article 4.40 and add the following to article 5.75.5:

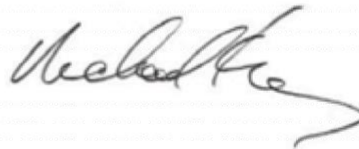
(b) The following are the only forms of discipline which may be taken by the Employer against a sessional or part time Member:

- i. A letter of reprimand, specifying the grounds and adding this reprimand to the personnel file;
- ii. The suspension with pay; if and only if the Vice-President, Academic and Provost cites the suspension with pay as a disciplinary measure. It is understood that where a suspension with pay is non-disciplinary such suspension shall not be referenced as disciplinary in any subsequent disciplinary actions;
- iii. The suspension without pay, the reduction in pay shall be computed as 1/87 per day of suspension per three credit course;
- iv. The removal of Seniority and/or Establishment.

SIGNED OFF ON October 2, 2020
Date



David Wright
For the Laurentian University Faculty Association
Sudbury



Michael Kennedy
For Laurentian University of

Changes marked below that indicate “AGREE” have been agreed to by the parties.

ARTICLE 11.10 – GRIEVANCE PROCEDURE

11.10.1 There shall be no discrimination, harassment or coercion, of any kind, practised against any persons involved in these procedures.

11.10.2 The Union and the Employer agree to make every reasonable effort to settle all grievances in a prompt, just and equitable manner.

11.10.3 Definitions

- (a) Grievance: A "grievance" shall mean any difference arising from the interpretation, application, administration or alleged violation of the Collective Agreement, including any question as to whether a matter is arbitrable in accordance with the *Labour Relations Act, 1995*.
- (b) Grievor: The grievor is either the Union which initiates a grievance against the Employer on behalf of a Member or group of Members or itself, or the Employer which initiates a grievance against the Union, an individual Member or a group of Members except as otherwise prohibited in this Collective Agreement.
- (c) ~~Individual Grievance: An individual grievance is a grievance initiated by the Union on behalf of an individual Member.~~ **AGREE** ~~Group Grievance: A group grievance is a grievance initiated by the Union on behalf of a group of Members.~~ **AGREE** ~~Policy Grievance: A policy grievance is a grievance by a Union which may involve a matter of general policy or of general application of the Collective Agreement.~~ **AGREE** (f) ~~Union Grievance: A Union grievance is a grievance which directly affects the Union.~~ **AGREE** ~~Employer Grievance: An Employer grievance is a grievance initiated by the Employer.~~ **AGREE**
- (c) "Working days": Working days shall mean Monday through Friday, excluding Recognised and other Holidays identified in Article 7.10 – Recognized and Other Holidays including the customary December – January recess, as well as the months of July and August. **AGREE**

11.10.4 The time limits specified in this Article may be extended by mutual agreement by the Parties. Moreover, an arbitrator shall have the power to waive time limits. The amended time limits must be specified in writing.

11.10.5 ~~Notwithstanding Article 11.10.2 above, a grievor shall have recourse to the grievance procedures set out below if such grievor is convinced that no settlement can be reached by informal means, unless otherwise specified in this Collective Agreement.~~ **AGREE**

- 11.10.6 All communications required under these procedures shall be in writing and shall be delivered **by email electronically**. ~~by registered mail or with written proof of receipt.~~ AGREE
- 11.10.7 No technical violation or irregularity occasioned by clerical, typographical or technical error in the written specification of the grievance shall prevent the substance of a grievance from being heard and judged on its merits.
- 11.10.8 All Parties to a grievance shall be bound by and shall promptly implement all decisions arrived at under the procedures described in this Article.

11.10.9 Applicability of Grievance Procedures

- (a) The following decisions will not be subject to grievance:
- (i) Non-renewal of term appointments as per Article 5.20 – Appointment and Renewal;
 - (ii) The award of a merit increment as per Article 8.25 – Merit Increments.
- (b) The following decisions will be subject to grievance only in the case of allegations of either violations of academic freedom, significant procedural irregularities or discrimination:
- (i) The non-renewal of a probationary appointment when the Vice-President, Academic and Provost confirms a negative recommendation of a Faculty Personnel Committee;
 - (ii) The denial of a first application for promotion to a particular rank when the Vice- President, Academic and Provost confirms a negative recommendation of a Faculty Personnel Committee (and the denial of a second application for promotion where the two (2) applications are made in consecutive years);
 - (iii) The denial of an early application for tenure when the Vice-President, Academic and Provost confirms a negative recommendation of a Faculty Personnel Committee;
 - (iv) The decision of the Vice-President, Academic and Provost, regarding academic workload as per Article 5.40.6 (d) of Article 5.40 – Academic Workload.

- (c) Grievances concerning Renewal as per Article 5.20 – Appointment and Renewal, concerning tenure as per Article 5.60 – Tenure Evaluation Procedures, and concerning promotion as per Article 5.65 – Promotion Procedures, shall proceed directly to arbitration as set forth in Article 11.15 – Arbitration Procedure.
- (d) Grievances concerning dismissal shall proceed directly to Step 2 – Formal Grievance Procedure as set forth in this Article.

11.10.10 Step 1 – Informal Grievance Procedure

The Union and the Employer agree to make reasonable efforts to settle grievances promptly by informal and amicable means. Thus, the grievor shall first attempt to get the matter under question resolved by informal means within thirty (30) working days of the date upon which the grievor had notice of the event or decision giving rise to the grievance. This would normally involve contacting the Dean/University Librarian concerned before bringing the matter to the Vice-President, Academic and Provost. However, this does not preclude making the Vice-President, Academic and Provost aware of such a grievance, nor does it preclude a grievance from being addressed to the Vice-President, Academic and Provost initially or early on in the process.

11.10.11 Step 2 – Formal Grievance Procedure

- (a) **Filing a resolution at step 1,** ~~the grievor shall present a notice of grievance in writing to the Vice-President, Academic and Provost in the case of the Union a Member, or to the President of the Union in the case of the Employer,~~ within thirty (30) working days of the date upon which the grievor had notice of the event or decision giving rise to the grievance. The notice of grievance shall specify the matter(s) in dispute, the Article(s) alleged to have been violated, and the remedy sought.
- (b) ~~In the event of a grievance concerning renewal, tenure or promotion as per Article 11.10.9 (c) above, the notice of grievance shall also include the name of the grievor's appointee to the Arbitration Panel.~~ AGREE
- (c) No later than **twenty (20)** working days following the receipt of the **formal** grievance, the Employer representative shall meet with the Union representative. The Parties shall make every reasonable attempt to resolve the grievance. AGREE

- (d) If the grievance is resolved at this stage, such settlement shall be reduced to writing and countersigned by the Union representative and the Employer representative within fifteen (15) working days of the meeting at which the settlement was reached.
 - (e) In the event that the Union representative and the Employer representative cannot resolve the grievance within fifteen (15) working days of the meeting(s) specified in Article 11.10.11 (c), the ~~Employer~~ representative of **the party responding to the grievance** shall forward in writing to the ~~Union~~ **other party's** representative the reasons for denying the grievance.
- AGREE

Article 11.15 – Arbitration Procedure

11.15.1

- (a) Failing settlement and/or timely response under the foregoing grievance procedure, any grievance may then be submitted to arbitration as hereinafter provided under its own distinct arbitral procedure. If no written request for arbitration is received within thirty (30) working days after the decision of the Vice President, Academic and Provost or the Union President under Step 2 – Formal Grievance Procedure of the grievance procedure is given, the grievance shall be deemed to have been abandoned.
- (b) When either Party requests that any matter be submitted to Arbitration as provided in this Article, it shall make such request in writing addressed to the other Party of this Collective Agreement, and at the same time ~~appoint a nominee~~ **propose an Arbitrator**. Within fifteen (15) working days thereafter, the other Party shall ~~appoint its nominee~~ **either accept the proposed Arbitrator or propose an alternate Arbitrator**, provided however, that if such Party fails to appoint its nominee as herein required, ~~the Minister of Labour for Ontario shall have the power to make such appointment upon application thereto by the Party invoking the arbitration procedure. The two (2) nominees shall attempt to agree upon a chairperson of the Arbitration Board. If they are parties are unsuccessful in agreeing upon such a chairperson~~ **an Arbitrator** within a period of twenty (20) working days of the appointment of the second nominee, they shall request the Minister of Labour for Ontario to appoint ~~a chairperson~~ **an Arbitrator**.

The time limits specified in this Article may be extended by mutual agreement by the Parties. ~~However, the thirty (30) working day time limit set out in Article 11.15.1 (a) above referring a grievance to arbitration shall not be waived and/or extended pursuant to the Labour Relations Act, 1995. Moreover, an arbitrator shall be bound by this provision~~ **ADMIN : Agree**

~~(d) Saturdays, Sundays, Recognised and other Holidays identified in Article 7.10 – Recognized and Other Holidays including the customary December – January recess as well as the months of July and August are not to be counted in the time limits set out in this Article. AGREE~~

11.15.2 ~~No person may be appointed to the Arbitration Board who has been involved in an attempt to negotiate or settle the grievance. AGREE~~

~~The Arbitration Board~~ **Arbitrator** shall not be authorized to make any decisions inconsistent with the provisions of this Collective Agreement, nor to alter, modify, add to, or amend any part of this Collective Agreement. AGREE

11.15.4 No matter may be submitted to arbitration which has not been properly carried through all requisite steps of the Grievance Procedure hereinbefore set out unless otherwise agreed to in writing between the Parties.

11.15.5 ~~The proceedings of the Arbitration Board~~ **proceedings** will be expedited by the Parties hereto, and the decision of the **Arbitrator** majority and, where there is no majority, the decision of the chairperson will be final and binding upon the Parties hereto, and the Employee or Employees concerned. AGREE

11.15.6 ~~Each of the Parties hereto will bear the expenses of the nominee appointed by it, and the Parties will share equally the fees and expenses, if any, of the Arbitrator chairperson of the Arbitration Board. AGREE~~

~~Wherever the term “Arbitration Board” is referred to in this Collective Agreement, the Parties hereto may mutually agree, in writing, to substitute a mutually agreeable arbitrator for the Arbitration Board at the time of reference to arbitration and the other provisions referring to Arbitration Board shall appropriately apply. AGREE~~

Schedule “EE”
Pension Term Sheet

See attached agreement.

Schedule “FF”

Rights of Federated University Employees

The parties agree to the attached Letter of Understanding:

B E T W E E N :

LAURENTIAN UNIVERSITY

(“Laurentian University”)

- and –

LAURENTIAN UNIVERSITY FACULTY ASSOCIATION

(“LUFA”)

Letter of Understanding

WHEREAS the parties entered into a Term Sheet on April 4, 2021;

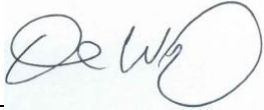
The parties agree as follows:

For a period of 5 years commencing May 1, 2021, where any new academic positions are created, or any academic vacancies arise at the University, which are not filled by a Member with recall rights, applicants who are employed at Thorneloe University, Huntington University or the University of Sudbury as of the date of the signing of this Letter of Understanding, will be given priority in the hiring process, and if qualified, offered the position.

Dated at Sudbury this 7th day of April, 2021.



Laurentian University



LUFA

LAURENTIAN UNIVERSITY FACULTY ASSOCIATION (“LUFA”) and LAURENTIAN
UNIVERSITY STAFF UNION (“LUSU”)
PENSION TERM SHEET

This document describes the terms for proposed support agreements from each of LUFA and LUSU in respect of the Retirement Plan of Laurentian University of Sudbury and its Federated and Affiliated Universities, Registration No. 0267013 (the “**Registered Pension Plan**”).

The contents of the LUFA and LUSU Pension Term Sheet are intended to be summary only and remain subject to definitive documentation to be agreed among LUFA, LUSU and Laurentian University as contemplated herein. Agreement on the Registered Pension Plan is a necessary component of a larger set of agreements between Laurentian University and LUFA and LUSU, respectively, and is dependent on agreement on all other matters currently under negotiation between the parties.

The confidentiality provisions applicable to the parties pursuant to the confidential mediation taking place in connection with Laurentian’s proceeding under the *Companies’ Creditors Arrangement Act* apply to the LUFA and LUSU Pension Term Sheet.

A. Registered Pension Plan Design Changes

Each of the changes outlined below is proposed to be made effective July 1, 2021, unless otherwise noted.

1. Limit Portability as of May 1, 2021

Remove the right to a commuted value payment in lieu of a monthly pension payable from the Registered Pension Plan for any active member who leaves employment after having reached their early retirement date (the first day of July coincident with or next following the member’s 55th birthday).

Provide notice and one final window of opportunity for former members to elect a commuted value payment in lieu of a monthly pension payable from the Registered Pension Plan.

For those faculty members who have chosen to retire pursuant to the Retirement Incentives communicated by the University on March 28, 2021, the deadline to elect to receive a commuted value payment will be extended to May 15, 2021.

2. Modify Early Retirement Provisions

For members who have not attained age 62 as of July 1, 2021:

- Remove subsidized early retirement reductions for all members on all service (actuarially adjusted from normal retirement date for LUFA members and Senior Leadership members and from age 62 for LUSU members and other members except LUFA members and Senior Leadership members);
- Eliminate unreduced early retirement (prior to normal retirement date) for LUFA members and Senior Leadership members.

For purposes of the foregoing, Senior Leadership are leaders who are excluded from a bargaining unit and serve above the Director level, in positions such as: Assistant Vice- President, Associate Dean, Associate Vice-President (AVP), Chief Advancement Officer,

Chief of Staff, Dean, Executive Director, President and Vice-Chancellor, Registrar and Secretary of Senate, University Secretary and General Counsel or Vice-President.

3. Limit Receipt of Pension While Employed

Remove ability of members to draw a pension while remaining in continuous employment after age 65, except for members already in receipt of a pension as of July 1, 2021 or who must commence receipt of their pension under income tax law.

4. Freeze Best Average Pensionable Earnings

Best Average Pensionable Earnings would be frozen at the rate in effect on June 30, 2021. This figure will be communicated to members at that time.

Improvements to pre-July 1, 2021 Best Average Pensionable Earnings through pre-retirement indexation to be granted in accordance with the Benefits and Funding Policy.

5. Future Service Reduced Career Average Earnings Lifetime Benefit Formula Integrated with Enhanced CPP

For service on and after July 1, 2021, members will make contributions toward and earn pension benefits at the 1.3% rate on the portion of their earnings below the Year's Additional Maximum Pensionable Earnings ("YAMPE") and at the 2% rate on the portion of earnings above the YAMPE. For this purpose, $YAMPE = 114\%$ of YMPE. The benefit formula for service on and after July 1, 2021 will be based on pensionable earnings in each year (career average earnings formula), not on a final average earnings formula.

Improvements to career average earnings formula through pre-retirement indexation to be granted in accordance with the Benefits and Funding Policy.

6. Indexation

For service on and after July 1, 2021 indexation, which is not guaranteed, to be granted in accordance with the Benefits and Funding Policy.

B. Registered Pension Plan Contribution Changes

Laurentian will contribute a minimum of 8% of pensionable earnings, inclusive of employer current service contributions, special payments and administrative expenses.

Members will also contribute 8% of pensionable earnings in aggregate based on a rate to be set that reflects a lower rate on earnings up to the YAMPE and a higher rate on earnings in excess of the YAMPE, with the objective of achieving an equitable relationship between contributions and benefits above and below the YAMPE. The preliminary member contribution rates as of July 1, 2021 are:

Earnings up to YAMPE: 6.7%

Earnings above YAMPE: 10.4%

The rate of member contributions up to and above the YAMPE will be determined following the filing of a July 1, 2021 valuation, to be confirmed by an independent actuary selected by LUFA and LUSU and to become effective on a date to be agreed by Laurentian, LUFA and LUSU.

C. Pension Committee Terms of Reference

The Pension Committee Terms of Reference are amended as set out in Appendix “A”.

D. Registered Pension Plan Benefits and Funding Policy

A Benefits and Funding Policy to govern the financial management of the Registered Pension Plan shall be established based on the key terms set out in Appendix “B”.

The Benefits and Funding Policy shall, subject to review and amendment in accordance with its terms, bind the stakeholders and govern their future discussions, proposals, and negotiations in relation to the Registered Pension Plan.

E. Collective Agreement Proposals Relating to Pensions and Retiree Benefits

The LUFA-Laurentian and LUSU-Laurentian collective agreements will be revised to give effect to the above in accordance with the proposed amendments set out in Appendix “C”.

F. Joint Committee on the Benefits and Funding Policy and Long-Term Pension Sustainability:

1. A joint committee will be established prior to April 30, 2021 whose mandate will be to monitor and advise on the administration and implementation of the Benefits and Funding Policy. The joint committee will also review and report on the pros and cons of all possible long term sustainability options for the Registered Pension Plan, including the available JSPP options (at least CAAT DBPlus and the University Pension Plan), with the objective of making a recommendation to the Stakeholders (LUFA, LUSU and Laurentian) for adoption not later than December 31, 2021, or an alternative date set by the joint committee.
2. The joint committee will be comprised of four (4) Laurentian representatives, two (2) LUFA representatives and two (2) LUSU representatives.
3. Terms of Reference and Rules of Procedure for the joint committee are to be determined by April 30, 2021 by LUFA, LUSU and Laurentian, to be subject to binding mediation/arbitration by Eli Gedalof or William Kaplan absent a decision by April 20, 2021.
4. The joint committee will be supported by an independent actuary jointly selected by the committee.

LAURENTIAN UNIVERSITY FACULTY ASSOCIATION

Per: David Wright c/s April 7, 2021
Name: David Wright Date
Firm: Ryder, Wright, Blair & Holmes LLP
Title: Chief Negotiator and Counsel
I have the authority to bind the Association

LAURENTIAN UNIVERSITY SUDBURY

Per: Robert Haché c/s April 7, 2021
Name: Robert Haché Date
Title: President
I have the authority to bind the Corporation

LAURENTIAN UNIVERSITY STAFF UNION

Per: _____ c/s _____
Name: Tom Fenske Date
Title: President
I have the authority to bind the Union

Appendix “A”

LAURENTIAN UNIVERSITY PENSION COMMITTEE

Terms of Reference

1. To monitor, and advise the Finance Committee of the Board of Governors on the following matters:
 - a) the selection of one or more investment managers;
 - b) the investment policy of the plan; and
 - c) operational changes to the administration of the plan.
2. To meet with the investment manager(s) to review fund performance.
3. To meet with representatives of the investment consultant to review comparative pension fund investment measurement reports.
4. To advise the University on periodic reports to be provided to plan members.
5. To review the actuarial valuation reports prepared by the actuary of the plan.
6. To implement and administer the Benefits and Funding Policy.
7. To consult with the Joint Committee on the Benefits and Funding Policy and Long-Term Pension Sustainability as contemplated by the Benefits and Funding Policy.
8. To propose plan text amendments (i) required to satisfy regulatory compliance requirements and (ii) required to be made in accordance with the Benefits and Funding Policy.

Composition

Voting Members

Five representatives appointed by the Board of Governors

Three representatives appointed by the Faculty Association (LUFA)

Two representatives appointed by the Staff Union (LUSU)

Non-Voting Members

Associate Vice-President Human Resources and Organizational Development (ex officio)

Associate Vice-President, Financial Services (ex officio)

One representative of faculty retirees

One representative appointed by non-union administrative staff (LUAPSA)

Rules of Procedure

The Pension Committee's Rules of Procedure are to be developed consistent with these Terms of Reference.

Revised: April 30, 2021

Appendix “B”

Key Terms

Registered Pension Plan Benefits and Funding Policy (“Funding Policy”)

Laurentian University, LUFA, and LUSU have agreed to reduce pension benefits in the context of Laurentian University’s proceeding under the *Companies’ Creditors Arrangement Act*. As a consequence, the aggregate 16% contribution rate for the Plan has been developed to exceed the current service cost of the plan design on and after July 1, 2021.

This Funding Policy’s purpose is to ensure that excess contributions will be used to (i) build reserves and (ii) grant benefit improvements.

The following criteria must be met in order for benefit improvements to be granted:

- The Plan must be 95% funded on a solvency basis;
- The Plan must be 105% funded on a going concern basis, including Provision for Adverse Deviations;
- The cost of any benefit improvement maintains a low risk of special payments in the five years following the benefit improvement. For this purpose, a benefit improvement must result in the solvency ratio of the Plan remaining at no less than 90% and the going concern funded status of the Plan, including Provision for Adverse Deviation, remaining at no less than 103% following the granting of the improvement; and
- The contributions to the Plan have a low risk of exceeding 16% of pensionable earnings.

The priority of benefit improvements and building of reserves is to be set out in the Benefits and Funding Policy to be established by Laurentian University, LUFA and LUSU and shall reflect the key terms set out herein. Agreement on the Benefits and Funding Policy shall be reached by April 30, 2021, to be subject to binding mediation/arbitration by Eli Gedalof or William Kaplan, absent a decision by April 20, 2021.

The criteria for granting benefit improvements will be assessed against robust actuarial analysis prepared annually. The actuarial assumptions and methodologies used will be the same as those used in the latest filed actuarial valuation for the Plan. Actuarial assumptions and methodologies are to be based on best estimates.

The Joint Committee on the Benefits and Funding Policy and Long-Term Pension Sustainability (the “**Joint Committee**”) comprised of representatives of Laurentian, LUFA and LUSU, pursuant to the LUFA/LUSU Pension Term Sheet will be notified by the Pension Committee and given the opportunity to comment prior to changes to the actuarial assumptions for filed valuations.

The Joint Committee will be notified by the Pension Committee of any proposed changes to the Statement of Investment Policy and given the opportunity to comment prior to the implementation of any changes.

The Joint Committee will monitor the administration of the Benefits and Funding Policy to ensure that Plan amendments to give effect to improvements to benefits and establishment of reserves are implemented pursuant to the criteria and priority described therein.

No benefit improvements will be considered prior to July 1, 2025, unless prior to that time the surplus in the Plan exceeds the *Income Tax Act* (“ITA”) maximums, in order to build reserves.

Employer contribution holidays and reductions in employer contribution rates are prohibited. Contributions to the Plan are subject to the *Pension Benefits Act* and ITA.

This policy is subject to review by Laurentian University, LUFA and LUSU no later than July 1, 2025.

Appendix “C”

LUFA and LUSU Collective Agreement Proposals Relating to Pension

LUFA Collective Agreement			
Provision	Intended Amendment	Current	Proposed Revised
2.40.12	Adjust to reflect revised Pension Committee Composition in Terms of Reference	The President of the Union or someone designated by the President, and two (2) additional Members designated by the President of the Union, shall continue to be voting Members of the University Pension Committee. Given the importance of pensions, on substantive matters, the Union’s Board has the right to ratify the recommendations of its representatives.	The President of the Union or someone designated by the President, and two (2) additional Three (3) Members designated by the President of the Union; shall continue to be voting Members of the University Pension Committee. Given the importance of pensions, on substantive matters, the Union’s Board has the right to ratify the recommendations of its representatives. No amendments to the Pension Plan that reduce pension benefits for Members, or that materially affect Members’ rights, may be made without LUFA’s consent.
5.90.5	Reflect proposed pension portability changes	Members hired after September 24, 2017, and who are age 55 or older upon retirement or resignation, will not have the option to commute the value of their pension benefit upon retirement or resignation. The Pension Plan will be amended to reflect this agreement.	Delete [to be included in plan design support agreement].
8.45.3	Delete reference to the SuRP.	Effective July 1, 2011, Members shall only participate in the	Effective July 1, 2011, Members shall only participate in the

LUFA Collective Agreement			
Provision	Intended Amendment	Current	Proposed Revised
		Defined Benefit component of the Retirement Plan and Member contributions shall only be used toward funding the Defined Benefit component of the Retirement Plan. All pension service contributions and benefits accrued prior to July 1, 2011, shall remain in the hybrid component of the Retirement Plan. Eligible Members shall participate in the Laurentian University Supplementary Pension Plan.	Defined Benefit component of the Retirement Plan and Member contributions shall only be used toward funding the Defined Benefit component of the Retirement Plan. All pension service contributions and benefits accrued prior to July 1, 2011, shall remain in the hybrid component of the Retirement Plan. Eligible Members shall participate in the Laurentian University Supplementary Pension Plan.
8.45.4	Reflect agreement on contributions	<u>Employer</u> The Employer's contributions to the Retirement Plan shall be at least the amount required to fund current service costs and any unfunded liabilities and Solvency liabilities, or 7.5%, whichever is greater, in accordance with the <i>Pension Benefits Act</i> and regulations thereunder based upon the actuarial valuations for the Retirement Plan that the Employer files with the Financial Services Commission of Ontario. Interest on the Employee contributions to the	<u>Employer</u> The Employer's contributions to the Retirement Plan shall be at least the amount required to fund current service costs and any unfunded liabilities and reduced solvency liabilities, or 7.5%8.0%, whichever is greater, in accordance with the <i>Pension Benefits Act</i> and regulations thereunder based upon the actuarial valuations for the Retirement Plan that the Employer files with the Financial Services CommissionRegulatory Authority of Ontario. Interest on the Employee contributions

LUFA Collective Agreement			
Provision	Intended Amendment	Current	Proposed Revised
		Plan will be credited at the Plan rate of return. The Employer may take a contribution holiday in accordance with the <i>Pension Benefits Act</i> and after discussion with the Pension Committee only when required under the <i>Income Tax Act</i> due to excess surpluses as defined under the <i>Income Tax Act</i> 147.2(2) (d). Any contribution holiday shall be shared equally between the Employer and Employees. <u>Employee</u> (a) Effective June 30, 2017, eight point two percent (8.2%) of the part of the Member's Pensionable Earnings that is below the year's basic exemption as defined by the Canada Pension Plan; (b) Effective June 30, 2017, six point four percent (6.4%) of the part of the Member's Pensionable Earnings that is between the year's basic exemption and the year's maximum pensionable earnings; (c) Effective June	to the Plan will be credited at the Plan rate of return. The Employer may take a contribution holiday in accordance with the <i>Pension Benefits Act</i> and after discussion with the Pension Committee only when required under the <i>Income Tax Act</i> due to excess surpluses as defined under the <i>Income Tax Act</i> 147.2(2) (d). Any contribution holiday shall be shared equally between the Employer and Employees. <u>Employee:</u> Each Member shall contribute by regular payroll deduction as follows. Effective July 1, 2021, the sum of: a) 6.7% of Pensionable Earnings up to the YAMPE; and b) 10.4% of Pensionable Earnings above the YAMPE. [Placeholder for further adjustments to reflect Pension Term Sheet] (a) — Effective June 30, 2017, eight point

LUFA Collective Agreement			
Provision	Intended Amendment	Current	Proposed Revised
		30, 2017, eight point two percent (8.2%) of the part of the member's Pensionable Earnings that is in excess of the year's maximum pensionable earnings.	two percent (8.2%) of the part of the Member's Pensionable Earnings that is below the year's basic exemption as defined by the Canada Pension Plan; (b) — Effective June 30, 2017, six point four percent (6.4%) of the part of the Member's Pensionable Earnings that is between the year's basic exemption and the year's maximum pensionable earnings; (c) — Effective June 30, 2017, eight point two percent (8.2%) of the part of the member's Pensionable Earnings that is in excess of the year's maximum pensionable earnings.
Appendix L: Letter of Understanding - Pension Plan Contributions	Remove	RE: Pension Plan Contributions. During the 2017 collective bargaining negotiations, the University sought an increase to employee pension contributions from LUFA members while providing a fully offsetting salary increase, with the goal of achieving a fair and equitable cost-sharing of current service costs. It was agreed that the parties would benefit from an opportunity to	Delete.

LUFA Collective Agreement			
Provision	Intended Amendment	Current	Proposed Revised
		consider the July 1, 2017 Pension Plan Valuation, due to be finalized in or about December 2017. The parties therefore agreed that the matter of pension contributions would not form part of the renewal collective agreement but committed to a process to make progress on the matter during the life of the agreement. In that spirit, recognizing that no outcome is binding on either party except as may be mutually agreed in writing, the University and the Union commit to engaging in collegial, open and transparent discussions. The parties agree to begin these discussions in a timely manner to allow for pension and salary increases, if any, to take effect July 1, 2018.	

LUFA and LUSU Collective Agreement Proposals Relating to Pension

LUSU Collective Agreement			
Provision	Intended Amendment	Current	Proposed Revised
20.01	Delete reference to the SuRP.	Effective July 1, 2012, Members shall only participate in the Defined Benefit component of the Retirement Plan and Member contributions shall only be used toward funding the Defined Benefit component of the Retirement Plan. All pension service contributions and benefits accrued prior to July 01, 2012, shall remain in the hybrid component of the Retirement Plan. Eligible Members shall participate in the Laurentian University Supplementary Pension Plan.	Effective July 1, 2012, Members shall only participate in the Defined Benefit component of the Retirement Plan and Member contributions shall only be used toward funding the Defined Benefit component of the Retirement Plan. All pension service contributions and benefits accrued prior to July 01, 2012, shall remain in the hybrid component of the Retirement Plan. Eligible Members shall participate in the Laurentian University Supplementary Pension Plan.
20.03	Reflect agreement on contributions	Employer Contribution The Employer's contributions to the Retirement Plan shall be at least the amount required to fund current service costs and any unfunded liabilities and solvency liabilities, or 7.5%, whichever is greater, in accordance with the <i>Pension Benefits Act</i> and regulations there under based upon the	Employer Contribution The Employer's contributions to the Retirement Plan shall be at least the amount required to fund current service costs and any unfunded liabilities and <u>reduced</u> solvency liabilities, or 7.5%<u>8.0%</u>, whichever is greater, in accordance with the <i>Pension Benefits Act</i> and regulations there under based upon the

LUSU Collective Agreement			
Provision	Intended Amendment	Current	Proposed Revised
		actuarial valuations for the Retirement Plan that the Employer files with the Financial Services Commission of Ontario. Interest on the Employee contributions to the Plan will be credited at the Plan rate of return. The Employer may take a contribution holiday in accordance with the <i>Pension Benefits Act</i> and after discussion with the Pension Committee only when required under the <i>Income Tax Act</i> due to excess surpluses as defined under the Income Tax Act 147.2(2) (d). Any contribution holiday shall be shared equally between the Employer and Employees. Member's Required Contribution Each Member shall contribute by regular payroll deduction as follows: Effective July 1, 2018, the sum of:	actuarial valuations for the Retirement Plan that the Employer files with the Financial Services Commission <u>Regulatory Authority</u> of Ontario. Interest on the Employee contributions to the Plan will be credited at the Plan rate of return. The Employer may take a contribution holiday in accordance with the <i>Pension Benefits Act</i> and after discussion with the Pension Committee only when required under the <i>Income Tax Act</i> due to excess surpluses as defined under the Income Tax Act 147.2(2) (d). Any contribution holiday shall be shared equally between the Employer and Employees. Member's Required Contribution: Each Member shall contribute by regular payroll deduction as follows: Effective July 1,

LUSU Collective Agreement			
Provision	Intended Amendment	Current	Proposed Revised
		a) 9.9 % of the part of the Member's Pensionable Earnings that is below the year's basic exemption as defined by the Canada Pension Plan; b) 6.4 % of the part of the Member's Pensionable Earnings that is between the year's basic exemption and the Y.M.P.E.; and c) 9.9 % of the part of the Member's Pensionable Earnings that is in excess of the Y.M.P.E.	2018<u>2021</u>, the sum of: a) <u>6.7% of Pensionable Earnings up to the YAMPE</u>; and b) <u>10.4% of Pensionable Earnings above the YAMPE</u>. [Placeholder for further adjustments to reflect Pension Term Sheet] a) 9.9 % of the part of the Member's Pensionable Earnings that is below the year's basic exemption as defined by the Canada Pension Plan; b) 6.4 % of the part of the Member's Pensionable Earnings that is between the year's basic exemption and the Y.M.P.E.; and c) 9.9 % of the part of the Member's Pensionable Earnings that is in excess of the Y.M.P.E.
20.05 c)	Reflect proposed pension portability changes	c) Laurentian University Staff Union members who are hired on or after September 24,	Delete [to be included in plan design support agreement]

LUSU Collective Agreement			
Provision	Intended Amendment	Current	Proposed Revised
		2017, and who are age 55 or older upon retirement or resignation, will not have the option to commute the value of their pension benefit upon retirement or resignation. The Pension Plan will be amended to reflect this agreement.	
New 20.06	Reflect LUSU participation in Pension Committee	N/A	Two (2) Laurentian University Staff Union members designated by the President of the Union shall be voting Members of the University Pension Committee.
New 20.07	Address Amendments to the Pension Plan	N/A	No amendments to the Pension Plan that reduce pension benefits for Members, or that materially affect Members' rights, may be made without LUSU's consent.

